

# MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

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[942 NE2d 300, 917 NYS2d 91]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAT-  
RICK R. ASHLEY, Appellant.

Decided January 6, 2011

## SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 15, 2010. The Appellate Division affirmed a judgment of the St. Lawrence County Court (Kathleen M. Rogers, J.), which had convicted defendant, upon his plea of guilty, of attempted robbery in the first degree, and sentenced defendant, as a second violent felony offender, to a term of imprisonment of nine years with five years postrelease supervision.

The Appellate Division found that defendant failed to preserve his claim that his sentence as a second violent felony offender was illegally predicated on his 1999 convictions in which the court failed to impose a mandatory period of postrelease supervision. The Court held that defendant's failure to object to or controvert the use of his prior felony convictions or request a hearing on the issue waived his right to challenge the predicate convictions and their validity.

*People v Ashley*, 71 AD3d 1286, affirmed.

## HEADNOTE

### Crimes — Appeal — Academic and Moot Questions

In a prosecution in which defendant pleaded guilty to attempted robbery in the first degree, his challenge to his adjudication as a second violent felony offender and the sentence that was originally imposed was moot because County Court resentenced him as a first felony offender in a postjudgment proceeding that was not a subject of this appeal. Moreover, defendant failed to preserve

his argument that the guilty plea became involuntary after he was subsequently resentenced for a prior, unrelated criminal offense.

#### APPEARANCES OF COUNSEL

*D.J. & J.A. Cirando*, Syracuse (*John A. Cirando* of counsel), for appellant.

*Derek P. Champagne*, District Attorney, Malone (*Jennifer M. Hollis* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant's challenge to his adjudication as a second violent felony offender and the sentence that was originally imposed is moot because County Court resentenced him as a first felony offender in a postjudgment CPL 440.20 proceeding that is not a subject of this appeal. Defendant failed to preserve his argument that the guilty plea became involuntary after he was subsequently resentenced for a prior, unrelated criminal offense. Defendant's remaining contentions lack merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and JONES concur; Judge PIGOTT taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

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ROBERT HENRY, Appellant, v PEDRO L. PEGUERO et al., Respondents.

Submitted November 1, 2010; decided January 6, 2011

Reported below, 72 AD3d 600.

Motion for reconsideration of this Court's September 14, 2010 dismissal order denied (*see* 15 NY3d 820 [2010]).

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In the Matter of JUSTYCE M. and Another, Children Alleged to be Neglected. MONROE COUNTY DEPARTMENT OF HUMAN SERVICES, Respondent; SHAVON E., Appellant.

Submitted November 22, 2010; decided January 6, 2011

Reported below, 77 AD3d 1407.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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PENGUIN GROUP (USA) INC., Appellant, v AMERICAN BUDDHA,  
Respondent.

Submitted December 13, 2010; decided January 6, 2011

*See* 609 F3d 30.

Motion by Public Citizen for leave to appear amicus curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v COREY  
GAMBLE, Appellant.

Submitted December 20, 2010; decided January 6, 2011

Reported below, 72 AD3d 544.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PHILIP  
GEORGE, Appellant.

Submitted December 27, 2010; decided January 6, 2011

Reported below, 255 AD2d 881.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed as untimely.

Judge PIGOTT taking no part.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RO-  
LANDO HERRERA, Appellant.

Submitted December 27, 2010; decided January 6, 2011

Reported below, 76 AD3d 891.

Motion for assignment of counsel granted and Robin G. Steinberg, Esq. and Matthew Caldwell, Esq., care of the Bronx Defenders, 860 Courtlandt Ave., Bronx, New York 10451 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH HIGHTOWER, Appellant.

Submitted January 3, 2011; decided January 6, 2011

Reported below, 28 Misc 3d 131(A).

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID HOLLAND, Appellant.

Submitted January 3, 2011; decided January 6, 2011

Reported below, 74 AD3d 520.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PADRAIC KEATING, Appellant.

Submitted January 3, 2011; decided January 6, 2011

Reported below, 74 AD3d 1094.

Motion for assignment of counsel granted and Lauren G. Klein, Esq., PO Box 2042, Nantucket, Massachusetts 02584 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent-Appellant, v SANTOS QUINTO, Appellant-Respondent.

Submitted December 20, 2010; decided January 6, 2011

Reported below, 77 AD3d 76.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant-respondent on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAFAEL RODRIGUEZ, Appellant.

Submitted December 27, 2010; decided January 6, 2011

Reported below, 77 AD3d 420.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

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HELEN SKOURAS, Appellant, v VICTORIA HALL CONDOMINIUM et al., Respondents.

Submitted October 25, 2010; decided January 6, 2011

Reported below, 73 AD3d 902.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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[942 NE2d 305, 917 NYS2d 95]

ERICA Y. DARRISAW, as Administratrix of the Estate of DOLORES N. SCHUYLER, Deceased, Appellant, v STRONG MEMORIAL HOSPITAL, a Division of University of Rochester, et al., Respondents.

Decided January 11, 2011

#### SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 11, 2010. The Appellate Division, with two Justices dissenting in part, affirmed an order of the Supreme Court, Monroe County (Thomas A. Stander, J.), which had granted a motion for summary judgment by defendants dismissing the complaint.

Plaintiff's decedent was injured when she fell at defendant hospital, fracturing her ankle. Decedent was seated in a chair in her hospital room, and she refused the offer of defendant nurse to assist her in leaving the chair in order to walk around the nurses' station. According to decedent, defendant nurse touched her arm while she was attempting to stand. In support of their motion, defendants submitted the deposition testimony of decedent in which she stated that defendant nurse did not apply force to her arm in any way that caused her to fall. When asked if she knew what caused her to fall, decedent stated that she did not know, but that she may have been startled by defendant nurse's light touch to her elbow.

The Appellate Division concluded that defendants established their entitlement to judgment as a matter of law and that plaintiff failed to raise an issue of fact. The Court further held that plaintiff improperly contended for the first time in opposition to defendants' motion that defendants failed to provide decedent with adequate supervision since there was no reference in the complaint to the adequacy of the supervision provided to decedent. The Appellate Division added that even assuming, *arguendo*, plaintiff may be deemed to have raised the theory of inadequate supervision in the bill of particulars, it should not be addressed, since a bill of particulars is intended to amplify the pleadings, limit the proof, and prevent surprise at trial; it may not be used to allege a new theory not originally asserted in the complaint.

*Darrisaw v Strong Mem. Hosp.*, 74 AD3d 1769, affirmed.

#### HEADNOTE

##### **Judgments — Summary Judgment**

In a personal injury action arising from plaintiff's decedent's fall in defendant hospital, defendants demonstrated their entitlement to summary judgment on the negligence cause of action, since plaintiff failed to adduce sufficient evidence to raise a triable issue of fact on the allegations that a nurse grabbed decedent's arm or caused her to fall to the ground. Additionally, plaintiff's negligent supervision claim was not before the court because neither the cause of action nor its underlying facts were raised in the complaint.

#### APPEARANCES OF COUNSEL

*Hite & Beaumont, P.C.*, Albany (*John H. Beaumont* of counsel), for appellant.

*Osborn, Reed & Burke, LLP*, Rochester (*Christian C. Casini* of counsel), for respondents.

## OPINION OF THE COURT

## MEMORANDUM.

The order of the Appellate Division should be affirmed with costs. We conclude defendants demonstrated their entitlement to summary judgment on the negligence cause of action. In opposition, plaintiff failed to adduce sufficient evidence to raise a triable issue of fact on the allegations that Nurse Baldwin grabbed decedent's arm or caused her to fall to the ground.

Additionally, we agree with the Appellate Division majority that plaintiff's negligent supervision claim is not before the court because neither the cause of action nor its underlying facts were raised in the complaint.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

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VICTOR BATSCHEVER et al., Appellants, v JAFAR JAFAR et al.,  
Respondents.

Submitted November 15, 2010; decided January 11, 2011

Reported below, 2010 NY Slip Op 82900(U); 73 AD3d 1108.

Motion, insofar as it seeks leave to appeal from the September 2010 Appellate Division order, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the May 2010 Appellate Division order, dismissed for failure to demonstrate timeliness as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (2). Motion for poor person relief dismissed as academic.

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JAMES BRADY et al., Appellants, v 450 WEST 31ST OWNERS CORP.,  
Respondent, et al., Defendants.

Submitted December 6, 2010; decided January 11, 2011

Reported below, 70 AD3d 469.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 15 NY3d 710 (2010)].

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NOCENZO CUSUMANO et al., Respondents, v CITY OF NEW YORK,  
Appellant.

Submitted November 29, 2010; decided January 11, 2011

Reported below, 63 AD3d 5.

Motion for clarification denied with \$100 costs and necessary reproduction disbursements [*see* 15 NY3d 319 (2010)].

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FARRAH DONALD, Appellant, v STATE OF NEW YORK, Respondent.  
(Claim No. 115414.)

Submitted November 29, 2010; decided January 11, 2011

Reported below, 73 AD3d 1465.

Motion by Sydney Burch et al. for leave to file an affirmation amici curiae on the motion for leave to appeal herein granted and the affirmation is accepted as filed.

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RUCHAMA GAMIEL, Appellant, v CURTIS & REISS-CURTIS, PC., et  
al., Respondents. (And a Third-Party Action.)

Submitted November 29, 2010; decided January 11, 2011

Reported below, 60 AD3d 473.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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JACQUELYN E. MURAD, Plaintiff, v JOSEPHINE RUSSO, Defendant.  
CITY OF UTICA, Appellant, v JOSEPHINE RUSSO, Respondent.

Submitted November 8, 2010; decided January 11, 2011

Reported below, 74 AD3d 1823.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution.

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NATALIA COKINOS OAKES, Individually and as Successor Trustee of the HERBERT C. OAKES LIVING TRUST, as Assignee of Herbert C. Oakes, Jr. and Another, and as Guardian of LEOPOLD V. OAKES, an Infant, Respondent, v BETTY O. MUKA, Appellant.

Submitted December 6, 2010; decided January 11, 2011

Reported below, 2010 NY Slip Op 74045(U); 69 AD3d 1139.

Motion for reconsideration of this Court's October 19, 2010 dismissal order denied [*see* 15 NY3d 867 (2010)].

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EUGENE PALLADINO, Appellant, v CNY CENTRO, INC., et al., Respondents. (And Another Action.)

Submitted November 15, 2010; decided January 11, 2011

Reported below, 74 AD3d 1909.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the consolidated actions within the meaning of the Constitution.

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JAIME PEREZ, an Infant, by His Mother and Natural Guardian, NANCY TORRES, et al., Appellants, v CITY OF NEW YORK, Respondent.

Submitted December 6, 2010; decided January 11, 2011

Reported below, 74 AD3d 638.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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SHARON ROSE, Respondent, v CHRISTIAN J. HEIDORF et al., Appellants.

Submitted November 15, 2010; decided January 11, 2011

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the County Court entered in this proceeding commenced in Town Court (*see* NY

Const, art VI, § 3 [b]; CPLR 5602 [a]). Motion for a stay dismissed as academic.

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CAROLYN SCHENK, Appellant, v STATEN ISLAND UNIVERSITY HOSPITAL et al., Respondents, et al., Defendant.

WASHINGTON MUTUAL BANK, Respondent, v CAROLYN SCHENK, Appellant, et al., Defendants.

Submitted December 13, 2010; decided January 11, 2011

Reported below, 2010 NY Slip Op 73258(U); 2010 NY Slip Op 68731(U).

Motion for leave to appeal etc. dismissed upon the ground that the orders sought to be appealed from do not finally determine the actions within the meaning of the Constitution.

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CAROL A. TONZI, Appellant-Respondent, v RICHARD H. NICHOLS, Individually and Doing Business as NICHOLS FINANCIAL SERVICES, Respondent-Appellant. (Appeal No. 1.)

Submitted November 8, 2010; decided January 11, 2011

Reported below, 77 AD3d 1450.

Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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CAROL A. TONZI, Appellant-Respondent, v RICHARD H. NICHOLS, Individually and Doing Business as NICHOLS FINANCIAL SERVICES, Respondent-Appellant. (Appeal No. 1.)

Submitted December 13, 2010; decided January 11, 2011

Reported below, 77 AD3d 1450.

Motion by Cornell Securities Law Clinic for leave to file a brief amicus curiae on the motions for leave to appeal herein granted and the brief is accepted as filed, and for leave to appear amicus curiae on the appeal herein dismissed as academic.

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In the Matter of CARLOS ABREU, Appellant, v HAWLEY VONCE, as Correction Nurse, et al., Respondents.

Decided January 18, 2011

Reported below, 76 AD3d 1149.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of MARIA-LUCIA ANGHEL, Appellant, v RICHARD F. DAINES, as Commissioner of Health, et al., Respondents.

Submitted November 15, 2010; decided January 18, 2011

Reported below, 2010 NY Slip Op 83970(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

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In the Matter of BRENDAN N., a Neglected Child. COLUMBIA COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; ARTHUR N., Appellant. (And Other Proceedings.)

Submitted December 20, 2010; decided January 18, 2011

Reported below, 79 AD3d 1175; 72 AD3d 1138.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

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In the Matter of MERCEDES CASADO et al., Respondents, v MARVIN MARKUS, as Chair of the New York City Rent Guidelines Board, et al., Appellants.

Submitted January 10, 2011; decided January 18, 2011

Reported below, 74 AD3d 632.

Motion by Council of the City of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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CITY SCHOOL DISTRICT OF THE CITY OF NEW YORK, Appellant, v COLLEEN MCGRAHAM, Respondent.

Submitted December 27, 2010; decided January 18, 2011

Reported below, 75 AD3d 445.

Motion to dismiss appeal denied.

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In the Matter of TINA M. COBANE, Appellant, v BRIAN P. COBANE, Respondent.

Submitted November 29, 2010; decided January 18, 2011

Reported below, 77 AD3d 1068.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge PIGOTT taking no part.

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In the Matter of VICTOR ALTHEUS DEPONCEAU, Appellant, v BRIAN FISCHER, as Commissioner of Correctional Services, Respondent.

Decided January 18, 2011

Reported below, 2010 NY Slip Op 90332(U); 2010 NY Slip Op 86730(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

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REINFORD EVANS, Respondent, v LAKISHA PITT, Appellant.

Submitted November 22, 2010; decided January 18, 2011

Reported below, 77 AD3d 611.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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SUSAN LARABEE et al., Respondents-Appellants, v GOVERNOR OF THE STATE OF NEW YORK, Respondent, and NEW YORK STATE SENATE et al., Appellants-Respondents.

Submitted December 6, 2010; decided January 18, 2011

Reported below, 65 AD3d 74.

Motion for reargument dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 14 NY3d 230 (2010)].

Chief Judge LIPPMAN taking no part.

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In the Matter of RAYMOND C. MILLER SR., Appellant, v PATRICIA A. MILLER, Respondent. (And Another Related Proceeding.)

Submitted December 6, 2010; decided January 18, 2011

Reported below, 77 AD3d 1064; 63 AD3d 1323.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the dismissal of the application to adjudicate respondent in violation of an order of visitation, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge PIGOTT taking no part.

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ALFONSO MORETTI et al., Appellants, v CRONISER CONSTRUCTION CORPORATION, Defendant, and RAYMOND CRONISER, Respondent.

Submitted November 22, 2010; decided January 18, 2011

Reported below, 76 AD3d 1055.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

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In the Matter of O., Respondent, v M., Appellant.

Submitted December 27, 2010; decided January 18, 2011

Reported below, 67 AD3d 1018.

Motion, insofar as it seeks leave to appeal from the November 2009 Appellate Division order, dismissed upon the ground that it does not lie, appellant having previously moved for leave to appeal to the Court of Appeals from the Appellate Division order from which leave to appeal is currently sought (14 NY3d 881 [2010]); motion, insofar as it seeks leave to appeal from the November 2010 Family Court order, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution and thus does not constitute a final judgment within the meaning of CPLR 5602 (a) (1) (ii),

and upon the further ground that simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]). Motion for a stay dismissed as academic.

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PENGUIN GROUP (USA) INC., Appellant, v AMERICAN BUDDHA,  
Respondent.

Submitted January 10, 2011; decided January 18, 2011

*See* 609 F3d 30.

Motion by International Trademark Association for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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PENGUIN GROUP (USA) INC., Appellant, v AMERICAN BUDDHA,  
Respondent.

Submitted January 10, 2011; decided January 18, 2011

*See* 609 F3d 30.

Motion by American Association of Publishers et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAURICE CANTEEN, Appellant.

Submitted December 6, 2010; decided January 18, 2011

Reported below, 30 Misc 3d 132(A).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HAI GUANG ZHENG, Appellant.

Submitted January 10, 2011; decided January 18, 2011

Reported below, 69 AD3d 878.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JASON MACK, Respondent.

Submitted January 10, 2011; decided January 18, 2011

Reported below, 76 AD3d 877.

Motion for assignment of counsel granted and Alice L. Fontier, Esq., 2 Wall Street, 3rd Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISIDRO RODRIGUEZ, Appellant.

Submitted December 13, 2010; decided January 18, 2011

Reported below, 71 AD3d 450.

Motion to vacate this Court's December 1, 2010 preclusion order granted.

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ADRIENNE RAVILLE, Respondent, v SALAH ELNOMANY, Appellant.

Decided January 18, 2011

Reported below, 76 AD3d 520.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of JUSTO RICHARDS, Appellant, v ANDREW CUOMO, New York State Attorney General, Respondent.

Submitted November 29, 2010; decided January 18, 2011

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]). Motion for

leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

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In the Matter of SHELLFISH, INC., Appellant, v NEW YORK STATE DEPARTMENT OF ENVIRONMENTAL CONSERVATION et al., Respondents.

Submitted November 8, 2010; decided January 18, 2011

Reported below, 76 AD3d 975.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

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DAVID J. SMITH, Respondent, v NIAGARA FRONTIER TRANSIT METRO SYSTEM, INC., et al., Appellants.

Submitted November 15, 2010; decided January 18, 2011

Reported below, 75 AD3d 1084.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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DOUGLAS WARNEY, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 114826.)

Submitted January 10, 2011; decided January 18, 2011

Reported below, 70 AD3d 1475.

Motion by Innocence Network for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

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JOHN WHITFIELD, Appellant, v STATE OF NEW YORK, Respondent.

Submitted December 6, 2010; decided January 18, 2011

Reported below, 2010 NY Slip Op 84381(U); 2010 NY Slip Op 84380(U).



Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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**APPEALS WITHDRAWN AND DISCONTINUED**

(January 1, 2011 through January 31, 2011)

|                                           |                              |         |
|-------------------------------------------|------------------------------|---------|
| Huff v Rodriguez                          | 4th Dept: 64 AD3d 1221, 1225 | 1/6/11  |
| Kemper Mut. Ins. Co., Matter of (Russell) | 3d Dept: 75 AD3d 724         | 1/12/11 |
| Rich v East 10th St. Assoc. LLC           | 1st Dept: 77 AD3d 60         | 1/19/11 |

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**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

(January 1, 2011 through January 31, 2011)

|                             |                                                       |                                              |
|-----------------------------|-------------------------------------------------------|----------------------------------------------|
| People v Amidon             | 3d Dept: 79 AD3d 1158 (Madison)                       | denied 1/28/11 (Grafteo, J.)                 |
| People v Arroyo             | 1st Dept: 77 AD3d 446 (NY)                            | denied 1/27/11 (Smith, J.)                   |
| People v Artis (Vincent)    | 2d Dept: 77 AD3d 847 (Rockland)                       | denied 1/28/11 (Grafteo, J.)                 |
| People v Artis (Vincent)    | 2d Dept: 77 AD3d 848 (Rockland)                       | denied 1/28/11 (Grafteo, J.)                 |
| People v Artis (Vincent)    | App Div, 2d Dept: 2010 NY Slip Op 82217(U) (Rockland) | denied reconsideration 1/28/11 (Grafteo, J.) |
| People v Badia              | App Div, 1st Dept: 2010 NY Slip Op 89896(U) (NY)      | dismissed 1/27/11 (Smith, J.)                |
| People v Barnes (Arrello)   | App Div, 2d Dept: 2010 NY Slip Op 90108(U) (Queens)   | dismissed 1/18/11 (Lippman, Ch. J.)          |
| People v Barnes (Escalante) | App Div, 2d Dept: 2010 NY Slip Op 90108(U) (Queens)   | dismissed 1/18/11 (Lippman, Ch. J.)          |
| People v Beaver             | 3d Dept: 76 AD3d 384 (Columbia)                       | denied 1/25/11 (Jones, J.)                   |
| People v Bermudez           | 4th Dept: 77 AD3d 1284 (Monroe)                       | denied 1/28/11 (Ciparick, J.)                |
| People v Biggs              | 2d Dept: 77 AD3d 764 (Queens)                         | denied 1/28/11 (Grafteo, J.)                 |

|                       |                                                       |                                                   |
|-----------------------|-------------------------------------------------------|---------------------------------------------------|
| People v Bogan        | 2d Dept: 78 AD3d 855 (Kings)                          | denied 1/28/11<br>(Pigott, J.)                    |
| People v Brehon       | App Div, 2d Dept: 2010 NY Slip Op<br>87209(U) (Kings) | dismissed 1/20/11<br>(Pigott, J.)                 |
| People v Brink        | 4th Dept: 78 AD3d 1483 (Ontario)                      | denied 1/18/11<br>(Smith, J.)                     |
| People v Brown        | 2d Dept: 78 AD3d 962 (Queens)                         | denied 1/19/11<br>(Smith, J.)                     |
| People v Browne       | 2d Dept: 76 AD3d 1030 (Queens)                        | denied 1/25/11<br>(Jones, J.)                     |
| People v Bryan        | App Div, 2d Dept: 2010 NY Slip Op<br>89758(U) (Kings) | dismissed 1/4/11<br>(Jones, J.)                   |
| People v Budden       | 2d Dept: 77 AD3d 672 (Nassau)                         | denied 1/25/11<br>(Jones, J.)                     |
| People v Bullock      | 4th Dept: 78 AD3d 1697 (Onondaga)                     | denied 1/24/11<br>(Pigott, J.)                    |
| People v Caldwell     | 1st Dept: 74 AD3d 676 (NY)                            | denied 1/13/11<br>(Read, J.)                      |
| People v Campbell     | 2d Dept: 76 AD3d 644 (Nassau)                         | denied 1/28/11<br>(Ciparick, J.)                  |
| People v Cannon (Joe) | 4th Dept: 78 AD3d 1638 (Onondaga)                     | denied 1/28/11<br>(Grafteo, J.)<br>(Appeal No. 1) |
| People v Cannon (Joe) | 4th Dept: 78 AD3d 1638 (Onondaga)                     | denied 1/28/11<br>(Grafteo, J.)<br>(Appeal No. 2) |
| People v Casco        | 2d Dept: 77 AD3d 848 (Queens)                         | denied 1/18/11<br>(Smith, J.)                     |
| People v Chambers     | 2d Dept: 78 AD3d 963 (Kings)                          | denied 1/28/11<br>(Grafteo, J.)                   |
| People v Cooper       | 4th Dept: 77 AD3d 1417 (Erie)                         | denied 1/25/11<br>(Jones, J.)                     |
| People v Correa       | 1st Dept: 77 AD3d 555 (NY)                            | denied 1/26/11<br>(Pigott, J.)                    |
| People v Cox          | 4th Dept: 78 AD3d 1571 (Monroe)                       | denied 1/28/11<br>(Grafteo, J.)                   |
| People v Cruz         | 2d Dept: 77 AD3d 764 (Queens)                         | denied 1/18/11<br>(Lippman, Ch. J.)               |
| People v Dabreo       | App Term, 1st Dept: 29 Misc 3d 137(A)<br>(NY)         | denied 1/28/11<br>(Pigott, J.)                    |
| People v Davidson     | App Div, 1st Dept: 2010 NY Slip Op<br>79707(U) (NY)   | dismissed 1/13/11<br>(Read, J.)                   |
| People v Davis        | 1st Dept: 78 AD3d 435 (Bronx)                         | denied 1/28/11<br>(Grafteo, J.)                   |
| People v Dewese       | 2d Dept: 77 AD3d 970 (Queens)                         | denied 1/20/11<br>(Pigott, J.)                    |
| People v Donald       | 4th Dept: 78 AD3d 1571 (Monroe)                       | denied 1/18/11<br>(Smith, J.)                     |
| People v Donnelly     | App Term, 2d Dept: 30 Misc 3d 136(A)<br>(Suffolk)     | denied 1/24/11<br>(Pigott, J.)                    |

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|-------------------------------|---------------------------------------------------------|---------------------------------|
| People v Duncan               | 2d Dept: 78 AD3d 1194 (Kings)                           | denied 1/27/11<br>(Smith, J.)   |
| People v Dye                  | 4th Dept: 78 AD3d 1607 (Niagara)                        | denied 1/28/11<br>(Grafteo, J.) |
| People v Elder (Jarvis)       | 4th Dept: 71 AD3d 1483 (Niagara)                        | denied 1/25/11<br>(Jones, J.)   |
| People v Elder (Jarvis)       | 4th Dept: 71 AD3d 1484 (Niagara)                        | denied 1/25/11<br>(Jones, J.)   |
| People v Galloway             | 2d Dept: 76 AD3d 982 (Kings)                            | denied 1/25/11<br>(Jones, J.)   |
| People v Garcia               | App Term, 1st Dept: 29 Misc 3d 133(A)<br>(NY)           | denied 1/28/11<br>(Pigott, J.)  |
| People v Givhan               | 2d Dept: 78 AD3d 730 (Westchester)                      | denied 1/28/11<br>(Pigott, J.)  |
| People v Graham               | 2d Dept: 78 AD3d 964 (Suffolk)                          | denied 1/28/11<br>(Grafteo, J.) |
| People v Gross                | 2d Dept: 78 AD3d 1196 (Suffolk)                         | denied 1/28/11<br>(Grafteo, J.) |
| People v Hansraj              | County Ct, 10/27/10 (Monroe)                            | denied 1/27/11<br>(Smith, J.)   |
| People v Hardy                | 2d Dept: 77 AD3d 133 (Orange)                           | denied 1/21/11<br>(Pigott, J.)  |
| People v Harris               | 4th Dept: 77 AD3d 1326 (Erie)                           | denied 1/25/11<br>(Jones, J.)   |
| People v Henderson            | 4th Dept: 78 AD3d 1506 (Onondaga)                       | denied 1/18/11<br>(Smith, J.)   |
| People v Hill                 | App Term, 1st Dept: 29 Misc 3d 131(A)<br>(NY)           | denied 1/28/11<br>(Pigott, J.)  |
| People v Hoffstead            | App Term, 2d Dept: 28 Misc 3d 16<br>(Westchester)       | denied 1/20/11<br>(Jones, J.)   |
| People v Jace (Christina)     | 2d Dept: 76 AD3d 683 (Queens)                           | denied 1/20/11<br>(Jones, J.)   |
| People v Jace (Nancy)         | 2d Dept: 76 AD3d 683 (Queens)                           | denied 1/20/11<br>(Jones, J.)   |
| People v Jace (Tiffany)       | 2d Dept: 76 AD3d 683 (Queens)                           | denied 1/20/11<br>(Jones, J.)   |
| People v Jackson              | 4th Dept: 78 AD3d 1685 (Erie)                           | denied 1/26/11<br>(Pigott, J.)  |
| People v Jarvis               | 4th Dept: 78 AD3d 1634 (Monroe)                         | denied 1/28/11<br>(Grafteo, J.) |
| People v Jenkins              | 1st Dept: 78 AD3d 613 (NY)                              | denied 1/28/11<br>(Grafteo, J.) |
| People v Johnson<br>(Charles) | 4th Dept: 78 AD3d 1548 (Erie)                           | denied 1/19/11<br>(Smith, J.)   |
| People v Johnson<br>(Craig)   | 3d Dept: 77 AD3d 986 (Broome)                           | denied 1/25/11<br>(Jones, J.)   |
| People v Johnson<br>(Douglas) | App Div, 2d Dept: 2010 NY Slip Op<br>78815(U) (Suffolk) | dismissed 1/13/11<br>(Read, J.) |
| People v Johnson<br>(Kevin)   | 2d Dept: 77 AD3d 972 (Queens)                           | denied 1/26/11<br>(Pigott, J.)  |

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| People v Johnson<br>(Leroy) | App Div, 2d Dept: 2010 NY Slip Op<br>81846(U) (Queens) | denied 1/28/11<br>(Grafteo, J.)                    |
| People v Joseph             | 1st Dept: 77 AD3d 511 (Bronx)                          | denied 1/28/11<br>(Ciparick, J.)                   |
| People v Kelley             | App Div, 4th Dept, 11/11/10 (Erie)                     | dismissed 1/21/11<br>(Smith, J.)                   |
| People v Kelly              | 2d Dept: 67 AD3d 706 (Kings)                           | denied<br>reconsideration<br>1/13/11<br>(Read, J.) |
| People v LaFlesh            | County Ct, 6/9/10 (St. Lawrence)                       | denied 1/26/11<br>(Jones, J.)                      |
| People v Lagas              | 3d Dept: 76 AD3d 384 (Columbia)                        | denied 1/25/11<br>(Jones, J.)                      |
| People v Latimer            | 2d Dept: 75 AD3d 562 (Orange)                          | denied 1/18/11<br>(Lippman, Ch. J.)                |
| People v Lawrence           | App Div, 2d Dept: 2009 NY Slip Op<br>80042(U) (Nassau) | denied<br>reconsideration<br>1/13/11<br>(Read, J.) |
| People v Lebron             | 1st Dept: 77 AD3d 440 (NY)                             | denied 1/18/11<br>(Lippman, Ch. J.)                |
| People v Lewis              | 1st Dept: 77 AD3d 579 (NY)                             | denied 1/24/11<br>(Pigott, J.)                     |
| People v Lobban             | 2d Dept: 77 AD3d 768 (Nassau)                          | denied 1/28/11<br>(Grafteo, J.)                    |
| People v Macon              | 4th Dept: 77 AD3d 1299 (Monroe)                        | denied 1/20/11<br>(Pigott, J.)                     |
| People v Malarly            | 2d Dept: 76 AD3d 1105 (Kings)                          | denied 1/25/11<br>(Jones, J.)                      |
| People v Maxineau           | 2d Dept: 78 AD3d 732 (Queens)                          | denied 1/20/11<br>(Pigott, J.)                     |
| People v Mays               | 2d Dept: 76 AD3d 983 (Nassau)                          | denied 1/19/11<br>(Smith, J.)                      |
| People v McAllister         | 2d Dept: 78 AD3d 1077 (Queens)                         | denied 1/28/11<br>(Grafteo, J.)                    |
| People v McKinnon           | 2d Dept: 78 AD3d 864 (Nassau)                          | denied 1/19/11<br>(Smith, J.)                      |
| People v McNeil             | 2d Dept: 77 AD3d 685 (Queens)                          | denied 1/25/11<br>(Jones, J.)                      |
| People v McRae              | 2d Dept: 77 AD3d 769 (Kings)                           | denied 1/28/11<br>(Grafteo, J.)                    |
| People v Michaelides        | 2d Dept: 78 AD3d 1198 (Queens)                         | denied 1/27/11<br>(Smith, J.)                      |
| People v Miller             | 1st Dept: 78 AD3d 412 (NY)                             | denied 1/28/11<br>(Pigott, J.)                     |
| People v Mislá              | 2d Dept: 78 AD3d 735 (Queens)                          | denied <sup>1</sup> 1/21/11<br>(Smith, J.)         |

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1. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

## MEMORANDA

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|-------------------------------|--------------------------------------------------------------|----------------------------------------------------|
| People v Nash                 | 2d Dept: 77 AD3d 687 (Kings)                                 | denied 1/25/11<br>(Jones, J.)                      |
| People v Negron               | 2d Dept: 78 AD3d 1079 (Kings)                                | denied <sup>2</sup> 1/21/11<br>(Smith, J.)         |
| People v Nimmons              | 1st Dept: 76 AD3d 935 (Bronx)                                | denied 1/28/11<br>(Ciparick, J.)                   |
| People v Nisvis               | App Div, 2d Dept: 2010 NY Slip Op<br>86313(U) (Kings)        | dismissed 1/4/11<br>(Ciparick, J.)                 |
| People v Norman               | 2d Dept: 73 AD3d 812 (Kings)                                 | denied<br>reconsideration<br>1/13/11<br>(Read, J.) |
| People v O'Connor             | 4th Dept: 78 AD3d 1559 (Onondaga)                            | denied 1/20/11<br>(Pigott, J.)                     |
| People v Peck                 | 2d Dept: 78 AD3d 1199 (Suffolk)                              | withdrawn<br>1/28/11<br>(Lippman, Ch. J.)          |
| People v Perez                | 2d Dept: 77 AD3d 974 (Kings)                                 | denied 1/28/11<br>(Ciparick, J.)                   |
| People v Pickney              | 2d Dept: 76 AD3d 1034 (Queens)                               | denied 1/19/11<br>(Lippman, Ch. J.)                |
| People v Pratt                | 1st Dept: 78 AD3d 507 (NY)                                   | denied 1/21/11<br>(Smith, J.)                      |
| People v Redmond<br>(David)   | 2d Dept: 73 AD3d 1217 (Orange)                               | denied 1/18/11<br>(Lippman, Ch. J.)                |
| People v Redmond<br>(David)   | 2d Dept: 41 AD3d 514 (Orange)                                | denied 1/18/11<br>(Lippman, Ch. J.)                |
| People v Reed (Cyrus)         | App Div, 4th Dept: 2010 NY Slip Op<br>85627(U) (Cattaraugus) | dismissed 1/28/11<br>(Grafteo, J.)                 |
| People v Reed (Cyrus)         | 4th Dept: 78 AD3d 1481 (Cattaraugus)                         | denied 1/28/11<br>(Grafteo, J.)                    |
| People v Rhamo                | 1st Dept: 77 AD3d 499 (Bronx)                                | denied 1/28/11<br>(Grafteo, J.)                    |
| People v Rivera (David)       | 1st Dept: 77 AD3d 478 (NY)                                   | denied 1/24/11<br>(Pigott, J.)                     |
| People v Rivera (Jose)        | 1st Dept: 78 AD3d 578 (Bronx)                                | denied 1/28/11<br>(Grafteo, J.)                    |
| People v Rivera<br>(Leonardo) | 2d Dept: 77 AD3d 974 (Suffolk)                               | denied 1/18/11<br>(Smith, J.)                      |
| People v Rodriguez            | App Term, 2d Dept: 28 Misc 3d 129(A)<br>(Richmond)           | denied 1/19/11<br>(Lippman, Ch. J.)                |
| People v Rolle                | 3d Dept: 72 AD3d 1393 (Albany)                               | denied 1/25/11<br>(Jones, J.)                      |
| People v Rose                 | 3d Dept: 72 AD3d 1341 (Albany)                               | dismissed 1/18/11<br>(Lippman, Ch. J.)             |
| People v Ryant                | 1st Dept: 78 AD3d 570 (NY)                                   | denied 1/19/11<br>(Smith, J.)                      |

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2. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

|                                |                                                       |                                                        |
|--------------------------------|-------------------------------------------------------|--------------------------------------------------------|
| People v Safford               | 4th Dept: 74 AD3d 1835 (Erie)                         | denied 1/25/11<br>(Jones, J.)                          |
| People v Sarcone               | 1st Dept: 76 AD3d 934 (NY)                            | denied 1/25/11<br>(Jones, J.)                          |
| People v Scott                 | App Div, 4th Dept, 12/14/10 (Onondaga)                | dismissed 1/26/11<br>(Pigott, J.)                      |
| People v Scribner              | 3d Dept: 77 AD3d 1022 (Tioga)                         | denied 1/13/11<br>(Read, J.)                           |
| People v Semrau                | 4th Dept: 77 AD3d 1436 (Erie)                         | denied 1/25/11<br>(Jones, J.)                          |
| People v Simms (Julius)        | 1st Dept: 78 AD3d 417 (NY)                            | denied 1/28/11<br>(Grafteo, J.)                        |
| People v Simms (Trevor)        | 1st Dept: 77 AD3d 562 (NY)                            | denied <sup>3</sup> 1/28/11<br>(Ciparick, J.)          |
| People v Smith (Daryl)         | 3d Dept: 77 AD3d 990 (Chemung)                        | denied 1/25/11<br>(Jones, J.)                          |
| People v Smith (Paul)          | App Div, 2d Dept: 2010 NY Slip Op<br>89758(U) (Kings) | dismissed 1/4/11<br>(Jones, J.)                        |
| People v Sparcino              | 4th Dept: 78 AD3d 1508 (Onondaga)                     | denied 1/26/11<br>(Pigott, J.)                         |
| People v Taylor                | 3d Dept: 70 AD3d 1066 (Washington)                    | dismissed 1/13/11<br>(Read, J.)                        |
| People v Tracy                 | 4th Dept: 77 AD3d 1402 (Oswego)                       | denied 1/25/11<br>(Jones, J.)                          |
| People v Vega                  | 1st Dept: 77 AD3d 428 (Bronx)                         | denied 1/18/11<br>(Lippman, Ch. J.)                    |
| People v Watt                  | 2d Dept: 77 AD3d 858 (Westchester)                    | denied 1/26/11<br>(Pigott, J.)                         |
| People v Wells                 | App Div, 2d Dept: 2010 NY Slip Op<br>79074(U) (Kings) | denied<br>reconsideration<br>1/25/11<br>(Ciparick, J.) |
| People v White                 | 3d Dept: 75 AD3d 1002 (Albany)                        | denied 1/13/11<br>(Read, J.)                           |
| People v Wicks                 | 3d Dept: 73 AD3d 1233 (Warren)                        | denied<br>reconsideration<br>1/20/11<br>(Jones, J.)    |
| People v Wilkov                | 1st Dept: 77 AD3d 512 (NY)                            | denied 1/25/11<br>(Jones, J.)                          |
| People v Willette              | 3d Dept: 73 AD3d 1278 (Essex)                         | denied 1/20/11<br>(Jones, J.)                          |
| People v Williams<br>(Javaar)  | 1st Dept: 79 AD3d 537 (Bronx)                         | denied 1/28/11<br>(Grafteo, J.)                        |
| People v Williams<br>(Lushawn) | 4th Dept: 78 AD3d 1508 (Erie)                         | denied 1/24/11<br>(Pigott, J.)                         |
| People v Williams<br>(Robert)  | 1st Dept: 78 AD3d 574 (NY)                            | denied 1/28/11<br>(Grafteo, J.)                        |

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3. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

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|-----------------|-----------------------------------------------------|-----------------------------------------------------------|
| People v Wilson | 3d Dept: 78 AD3d 1213 (Albany)                      | denied 1/26/11<br>(Pigott, J.)                            |
| People v Word   | App Div, 1st Dept: 2010 NY Slip Op<br>68440(U) (NY) | denied<br>reconsideration<br>1/19/11<br>(Lippman, Ch. J.) |
| People v Worley | 2d Dept: 74 AD3d 999 (Kings)                        | denied 1/20/11<br>(Jones, J.)                             |
| People v Yelder | 4th Dept: 74 AD3d 1844 (Monroe)                     | denied<br>reconsideration<br>1/13/11<br>(Read, J.)        |

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[942 NE2d 1046, 917 NYS2d 621]

MYRA LEHMAN, Appellant, v NORTH GREENWICH LANDSCAPING,  
LLC, et al., Respondents.

Argued January 5, 2011; decided February 10, 2011

**SUMMARY**

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 29, 2009. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Westchester County (Francis A. Nicolai, J.), which had denied a motion by North Greenwich Landscaping, LLC for summary judgment dismissing the complaint and all cross claims insofar as asserted against it, and (2) granted the motion.

Plaintiff commenced a personal injury action to recover damages for injuries she sustained when she allegedly slipped and fell on a patch of ice in a parking lot on property owned by defendant Horton School Associates. Defendant North Greenwich Landscaping, LLC provided snow removal services to defendant Horton pursuant to an oral agreement.

*Lehman v North Greenwich Landscaping, LLC*, 65 AD3d 1291, affirmed.

**HEADNOTE****Negligence — Snow and Ice — Duty**

In an action to recover damages for injuries sustained when plaintiff allegedly slipped and fell on a patch of ice, defendant contractor, in contracting to render snow removal services to the property owner, did not assume a duty of care toward third parties who used the property. Under the circumstances, the property owner did not relinquish its duty to inspect and safely maintain the premises.

**APPEARANCES OF COUNSEL**

*Arthur Paul Condon, Jr.*, Rye, for appellant.

*Law Office of Lori D. Fishman*, Tarrytown (*George R. Dieter* of counsel), for North Greenwich Landscaping, LLC, respondent.

*Thomas D. Hughes*, New York City, *Richard C. Rubinstein* and *David D. Hess* for Horton School Associates, respondent.

**OPINION OF THE COURT****MEMORANDUM.**

The order of the Appellate Division should be affirmed, with costs.

Defendant-respondent North Greenwich Landscaping, LLC, in contracting to render snow removal services to property owner Horton School Associates, did not assume a duty of care toward third parties who used the property (*see e.g. Eaves Brooks Costume Co. v Y.B.H. Realty Corp.*, 76 NY2d 220, 226 [1990]; *Moch Co. v Rensselaer Water Co.*, 247 NY 160, 167-168 [1928]). In the circumstances of this case, the Appellate Division correctly held that the property owner did not relinquish its duty to inspect and safely maintain the premises (*see Espinal v Melville Snow Contrs.*, 98 NY2d 136, 141 [2002]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

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[945 NE2d 445, 920 NYS2d 252]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JASON D. LIGGINS, Respondent.

Argued January 13, 2011; decided February 10, 2011

**SUMMARY**

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered July 10, 2009. The Appellate Division (1) reversed, on the law, a judgment of the Oneida County Court (Michael L. Dwyer, J.), which had convicted



defendant, upon a jury verdict, of criminal possession of a controlled substance in the third degree (two counts) and criminally using drug paraphernalia in the second degree (two counts), (2) granted that part of defendant's motion seeking to suppress tangible property, and (3) dismissed the indictment.

In a drug prosecution, the Appellate Division concluded that County Court erred in refusing to suppress evidence seized by the police as the result of a warrantless entry into defendant's apartment.

*People v Liggins*, 64 AD3d 1213, appeal dismissed.

#### HEADNOTE

##### Crimes — Appeal — Dismissal

An appeal from an order of the Appellate Division, which reversed a judgment convicting defendant of criminal possession of a controlled substance in the third degree and criminally using drug paraphernalia in the second degree, was dismissed upon the ground that the reversal by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]).

#### APPEARANCES OF COUNSEL

*Scott D. McNamara*, District Attorney, Utica (*Steven G. Cox* of counsel), for appellant.

*Bond, Schoeneck & King, PLLC*, Syracuse (*Robert H. Kirchner* and *Stephanie M. Campbell* of counsel), for respondent.

#### OPINION OF THE COURT

Appeal dismissed upon the ground that the reversal by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and JONES. Judge PIGOTT dissents and votes to reverse in an opinion.

PIGOTT, J. (dissenting). My colleagues have determined that this appeal should be dismissed on the ground that the reversal by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]). I respectfully disagree and therefore dissent from that decision. And, since we were briefed by the parties and heard oral argument on this case, I would reverse the order of the Appellate Division and reinstate the order of County Court, Oneida County.

The Appellate Division's reversal, although stated to be on the law, involved the applicability of the emergency doctrine, generally a mixed question of law and fact (*see People v Dallas*, 8 NY3d 890 [2007]). An examination of the court's opinion, however, confirms that the factual determinations alone would not have led to reversal. Rather, it was the court's conclusion, as a legal matter, that the rule of *People v Mitchell* (39 NY2d 173 [1976]) prohibited the application of the emergency doctrine, that led the Appellate Division to conclude that the case must be reversed. Thus, the order was made "upon the law and such facts which, but for the determination of law, would not have led to reversal."

Turning to the merits, a brief recitation of the facts is in order.

On the night of July 15, 2006, police responded to a report of "shots fired" at 822 Oswego Street in the City of Utica. Upon arriving at the scene, the officers observed a number of shell casings on the ground in front of the apartment building. A resident of the building told one of the officers that she heard an argument in Apartment 9 just prior to the shots being fired. The officers proceeded to Apartment 9, knocked on the door and waited several minutes until a "nervous and distraught" Laura Jones, who was talking on a cell phone, opened the door. The officers then went inside the apartment to look for the shooter or an injured victim. While doing so, an officer observed cocaine in plain view on a kitchen table. The apartment was then secured until another officer returned with a search warrant. A search of the apartment resulted in the seizure of quantities of cocaine in the kitchen and bedroom. No victim or perpetrator was found.

The suppression court sustained the warrantless search but the Appellate Division reversed, basing their decision on an interpretation of our decision in *People v Mitchell* (39 NY2d 173 [1976]), and finding that of the three elements necessary to establish the emergency exception for warrantless entry into someone's home, the People failed to meet two of them.

First, the Appellate Division reached the conclusion that the suppression court erred in finding that exigent circumstances served as an appropriate exception to the warrantless entry rule to permit the officer to conduct the minimally intrusive entry into the apartment. It based its determination on the fact that while the officer received a call of "shots fired," "[t]he People . . . failed to present any evidence concerning the source of the

report, the timing of the report [vis-à-vis] the incident, the identity or description of the perpetrator, or the existence of a possible victim” (64 AD3d 1213, 1215 [2010]). However, none of those factors, in my view, erodes the undeniable fact that there were shots fired in a residential neighborhood late at night and that it was the duty of the police to respond to such a call. The fact that, at the time, the police were unaware of the perpetrator(s) or victim(s) is the norm, not the rule in incidents such as this. Rather, the facts that were known to the police, in my view, clearly establish reasonable grounds to believe that there was an emergency at hand and an immediate need for their assistance for the protection of life or property (see *Mitchell*, 39 NY2d at 177).

The Appellate Division also ruled, as a matter of law, that the People failed to satisfy the third element of the emergency exception, i.e., that there was a reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched. Here again, the undisputed facts are that the officers, confronted with shell casings just outside the apartment building, relied upon the information supplied by a tenant that there had been an argument in Apartment 9 moments prior to the shooting. The Appellate Division rejected the People’s contention that the officer had a reasonable basis, approximating probable cause, based on these facts because “[a]part from the resident’s vague, undetailed report of an argument” there was no basis for the officer to believe that the “trouble started in” defendant’s apartment (64 AD3d at 1215). In its view, the reported argument does not establish a “direct relationship” (*Mitchell*, 39 NY2d at 179) between the defendant’s apartment and the purported emergency. The court therefore concluded that “the warrantless intrusion into defendant’s apartment was not justified under the emergency exception to the warrant requirement” (64 AD3d at 1216). As a result, all evidence gained from the apartment was ordered suppressed. In my view this was error.

As the dissent at the Appellate Division pointed out: “In recognizing the danger of delayed response, the law does not require adherence to a standard which made stricter by hindsight would preclude the police from all courses of conduct but the least intrusive” (64 AD3d at 1216 [internal quotation marks omitted], quoting *People v DePaula*, 179 AD2d 424, 426 [1st Dept 1992] and *People v Calhoun*, 49 NY2d 398, 403 [1980]). As noted in *People v DePaula* (179 AD2d 424, 426 [1992]): “[I]t

is difficult to conceive of what other action, consistent with their belief that someone inside [defendant's apartment] might be injured or threatened, could have been taken [by the officer] to provide immediate assistance.”

For these reasons, I believe this case is appealable to this Court and upon appeal the order of the Appellate Division should be reversed.

Appeal dismissed, etc.

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In the Matter of AFTON C., a Child Alleged to be Neglected. DUTCHESS COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; JAMES C. et al., Respondents. (And Four Other Proceedings.)

Submitted February 7, 2011; decided February 10, 2011

Reported below, 71 AD3d 887.

Motion by New York Civil Liberties Union for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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In the Matter of CANDIDO BAEZ, Appellant, v NORMAN R. BEZIO, Director of Special Housing Unit, New York State Department of Correctional Services, Respondent.

Submitted November 15, 2010; decided February 10, 2011

Reported below, 77 AD3d 745.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

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In the Matter of the Claim of GREGORY W. COLLINS, Claimant, v DUKES PLUMBING AND SEWER SERVICE, INC., Appellant, et al., Respondent. WORKERS' COMPENSATION BOARD, Respondent.

Submitted January 31, 2011; decided February 10, 2011

Reported below, 75 AD3d 697.

Motion by New York State AFL/CIO for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

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COR BROKERAGE, INC., Respondent, v NEW HARTFORD SHOPPING CENTER TRUST, Appellant.

Submitted December 20, 2010; decided February 10, 2011

Reported below, 78 AD3d 1611.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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JOYCE HENDERSON, Respondent, v MANHATTAN AND BRONX SURFACE TRANSIT OPERATING AUTHORITY et al., Appellants, et al., Defendants.

Submitted January 3, 2011; decided February 10, 2011

Reported below, 74 AD3d 654.

Motion to vacate this Court's December 16, 2010 dismissal order granted [*see* 15 NY3d 951 (2010)].

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In the Matter of ROMAN KEVILLY, Appellant, v SUSAN CONNELL, Superintendent, Oneida Correctional Facility, Respondent.

Submitted December 27, 2010; decided February 10, 2011

Reported below, 71 AD3d 1525.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

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In the Matter of HATTIE G. MARTIN, Deceased. MILADIN DOBRIC, Appellant; DAVID J. BARON, Respondent.

Submitted December 6, 2010; decided February 10, 2011

Reported below, 2010 NY Slip Op 68809(U).

Motion for reargument of motion for leave to appeal denied [see 15 NY3d 858 (2010)].

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PENGUIN GROUP (USA) INC., Appellant, v AMERICAN BUDDHA,  
Respondent.

Decided February 10, 2011

*See* 609 F3d 30.

On the Court's own motion, reargument granted and, upon reargument, motion by Public Citizen for leave to file a brief amicus curiae and to participate in oral argument on consideration of the certified question herein granted.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RENE  
BONILLA, Appellant.

Submitted January 18, 2011; decided February 10, 2011

Reported below, 2010 NY Slip Op 71229(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEVIN  
SMITH, Appellant.

Submitted January 18, 2011; decided February 10, 2011

Reported below, 75 AD3d 420.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. GILBERT O. CAM-  
ERON, Appellant, v DORA B. SCHIRRO et al., Respondents.

Submitted December 20, 2010; decided February 10, 2011

Reported below, 2010 NY Slip Op 86480(U); 2010 NY Slip Op 65024(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of WILLIAM R. PRAILEAU, Appellant, v POLLY HOYE, as Acting Schenectady County Court Judge, et al., Respondents.

Submitted December 20, 2010; decided February 10, 2011

Reported below, 2010 NY Slip Op 80072(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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In the Matter of SASHA B., a Child Alleged to be Neglected. ERICA B., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Submitted January 3, 2011; decided February 10, 2011

Reported below, 73 AD3d 587.

Motion to dismiss appeal granted and appeal dismissed, without costs, upon the ground that the counsel assigned by the Appellate Division has never been able to locate or contact the appellant and, thus, the appellant did not authorize prosecution of this appeal.

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FRANKLIN STRAUSS et al., Respondents, v HEMDA BILLIG, Defendant, and Third-Party Plaintiff. CASTLE VILLAGE OWNERS CORP., Third-Party Defendant-Appellant.

Submitted December 13, 2010; decided February 10, 2011

Reported below, 78 AD3d 415.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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MELISSA A. STRILCIC, Respondent, v THOMAS M. PAROLY, Appellant.

Submitted December 27, 2010; decided February 10, 2011

Reported below, 75 AD3d 542.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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[944 NE2d 645, 919 NYS2d 109]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM CAMPBELL, Appellant.

Argued January 6, 2011; decided February 15, 2011

#### SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 29, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Ronald A. Zweibel, J., at pretrial hearing; Daniel P. Conviser, J., at trial and sentence), which had convicted defendant, upon a jury verdict, of criminal sale of a controlled substance in the third degree.

*People v Campbell*, 66 AD3d 590, affirmed.

#### HEADNOTE

**Crimes — Right to Public Trial — Closure of Courtroom — Exclusion of Family Members of Defendant**

In a prosecution arising out of defendant's alleged sale of a controlled substance to an undercover officer, the record made at the *Hinton* hearing (see *People v Hinton*, 31 NY2d 71 [1972]) was adequate to support the trial judge's exercise of discretion to exclude an aunt of the defendant and her son from the courtroom during the testimony of the undercover officer on the ground that they resided near enough to the area where the undercover officer conducted ongoing drug investigations to present a risk of exposure, compromising his effectiveness and safety.

#### APPEARANCES OF COUNSEL

*Davis Polk & Wardwell LLP*, New York City (*Katharine M. Atlas* of counsel), and *Office of the Appellate Defender* (*Daniel Warshawsky* and *Richard M. Greenberg* of counsel) for appellant.



*Cyrus R. Vance, Jr., District Attorney, New York City (Ellen Stanfield Friedman and Richard Nahas of counsel), for respondent.*

### OPINION OF THE COURT

#### MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant William Campbell was arrested on July 30, 2007 and charged with criminal sale of a controlled substance in the third degree (Penal Law § 220.39 [1]) after having allegedly approached an undercover police officer to initiate a drug transaction. The parties stipulated that the courtroom should be closed to the general public during the undercover's testimony. The prosecutor, however, also sought to exclude defendant's family members planning to attend the trial. Following a *Hinton* hearing (*People v Hinton*, 31 NY2d 71 [1972], *cert denied* 410 US 911 [1973]), the trial judge ruled that defendant's grandmother, with whom he resided and who had apparently reared him, and an aunt could remain in the courtroom when the undercover testified; he excluded another aunt and one of her sons on the ground that they resided near enough to the area where the undercover officer conducted ongoing drug investigations to present a risk of exposure, compromising his effectiveness and safety. We conclude that the record made at the *Hinton* hearing was adequate to support the trial judge's exercise of discretion to exclude the aunt and her son (*People v Nieves*, 90 NY2d 426 [1997]).

Defendant's remaining contentions likewise lack merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

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[944 NE2d 1119, 919 NYS2d 480]

GRETCHEN RIVERA, an Infant by Her Mother and Natural Guardian, MARIA RIVERA, et al., Appellants, v PAUL G. KLEINMAN, M.D., et al., Respondents.

Argued January 4, 2011; decided February 15, 2011

### SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First

Judicial Department, entered November 10, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Alan Saks, J.), which had granted a motion and a cross motion by defendants for summary judgment dismissing the complaint.

*Rivera v Kleinman*, 67 AD3d 482, affirmed.

#### HEADNOTE

##### Physicians and Surgeons — Malpractice

In a medical malpractice action to recover for the pain and suffering arising out of the alleged improper positioning of a hip screw that had been implanted in the infant plaintiff during an operation to alleviate the child's birth defects, defendant doctor and defendant hospital were entitled to summary judgment dismissing the complaint. Plaintiffs' expert, in response to defendants' prima facie showing of entitlement to summary judgment, did not raise an issue of fact as to any departure from good and accepted practice in the doctor's treatment of the infant, and did not demonstrate any causal connection between the doctor's alleged departures from good and accepted practice in placing the hip screw in the infant's hip and the injuries claimed to have been suffered on account of the delayed removal of the hardware.

#### APPEARANCES OF COUNSEL

*Pagan Law Firm, P.C.*, New York City (*Tania M. Pagan* of counsel), for appellants.

*McAloon & Friedman, P.C.*, New York City (*Gina B. Di Folco* of counsel), for Paul G. Kleinman, M.D. and another, respondents.

*Garbarini & Scher, P.C.*, New York City (*William D. Buckley* of counsel), for St. Barnabas Hospital and others, respondents.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Infant plaintiff was born in October 1995 with cerebral palsy and spastic quadriplegia. In March 2003, defendant doctor operated on the infant's right and left hips, which had both dislocated as a consequence of her maladies. These surgeries, performed two weeks apart, entailed cutting and repositioning the bones that join at the hip and fixing them with a plate (with side screws) and a hip screw. This hardware was to be removed later, after the bones healed. In August 2005, plaintiff mother, on the infant's behalf and individually, sued the doctor and defendant hospital for medical malpractice with respect to the March 2003 surgeries. She ultimately focused on a claim that

the doctor had improperly positioned the screw implanted in the infant's left hip, causing pain and suffering. This screw eventually broke through the infant's skin and was taken out during emergency surgery in December 2006. Supreme Court granted the doctor's motion and the hospital's cross motion seeking summary judgment to dismiss the complaint. The Appellate Division affirmed (67 AD3d 482 [1st Dept 2009]), and so do we. In response to defendants' prima facie showing of entitlement to summary judgment, plaintiffs' expert did not raise an issue of fact as to any departure from good and accepted practice in the doctor's treatment of the infant (including the two surgeries); and did not demonstrate any causal connection between the doctor's alleged departures from good and accepted practice in placing the hip screw in the infant's left hip and the injuries claimed to have been suffered on account of the hardware's delayed removal.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

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In the Matter of ANONYMOUS, an Applicant for Admission to the Bar, Appellant.

Decided February 15, 2011

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

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ANDREW M. CUOMO, Attorney General of the State of New York, et al., Respondents, v OSMIN FERRAN, JR., et al., Defendants, and LEWIS BRESTIN et al., Appellants.

Submitted December 6, 2010; decided February 15, 2011

Reported below, 77 AD3d 698.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of JOHN DALTON, Appellant, v ANDREA EVANS, as  
Chair of the Division of Parole, Respondent.

Submitted December 27, 2010; decided February 15, 2011

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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In the Matter of VICTOR ALTHEUS DEPONCEAU, Appellant, v  
BRIAN FISCHER, as Commissioner of Correctional Services,  
Respondent.

Decided February 15, 2011

Reported below, 2010 NY Slip Op 90332(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

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GLACIAL AGGREGATES LLC, Respondent, v TOWN OF YORKSHIRE,  
Appellant.

Submitted November 22, 2010; decided February 15, 2011

Reported below, 72 AD3d 1644.

Motion to vacate the Court's October 22, 2010 dismissal order granted [*see* 15 NY3d 891 (2010)]. On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of MIKIA H. and Another. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; MONIQUE K., Appellant.

In the Matter of NOREON K. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; MONIQUE K., Appellant.

Submitted December 13, 2010; decided February 15, 2011

Reported below, 78 AD3d 1575, 1576.

Motion, insofar as it seeks leave to appeal from the Appellate Division order that affirmed the Family Court order denying a motion to vacate, dismissed upon the ground that the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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In the Matter of the Claim of LESTER A. PETERS, Appellant. JANUS ELEVATOR PRODUCTS, Respondent; COMMISSIONER OF LABOR, Respondent.

Submitted January 18, 2011; decided February 15, 2011

Reported below, 74 AD3d 1680.

Motion for reargument of motion for leave to appeal denied [see 15 NY3d 950 (2010)].

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S.M. PIRES, Appellant, v FROTA OCEANICA BRASILEIRA, S.A., Respondent, et al., Defendants.

Submitted January 3, 2011; decided February 15, 2011

Reported below, 2010 NY Slip Op 86468(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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S.M. PIRES, Appellant, v FROTA OCEANICA BRASILEIRA, S.A., Respondent, et al., Defendants.

Submitted December 6, 2010; decided February 15, 2011

Reported below, 2010 NY Slip Op 87441(U).

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as pertains to the motion in that Court for the imposition of sanctions, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the order do not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

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JAMES RECTOR, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted December 20, 2010; decided February 15, 2011

Reported below, 74 AD3d 771.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed so much of Supreme Court's order as denied appellant's motion to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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In the Matter of INJAH TAFARI, Appellant, v DONALD SELSKY, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted December 20, 2010; decided February 15, 2011

Reported below, 2010 NY Slip Op 84496(U).

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

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[944 NE2d 650, 919 NYS2d 113]

PATRIOT EXPLORATION, LLC, et al., Respondents, v THOMPSON & KNIGHT LLP, Appellant.

Decided February 17, 2011

#### SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered July 27, 2010. The Appellate Division affirmed an order of the Supreme Court, New York County (Charles E. Ramos, J.), which had denied a motion by defendant for dismissal of the action on the ground that New York is an inconvenient forum. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as affirmed by the order of this Court, properly made?"

*Patriot Exploration, LLC v Thompson & Knight LLP*, 75 AD3d 482, reversed.

#### HEADNOTE

##### Courts — Forum Non Conveniens

In a legal malpractice action, the Appellate Division majority abused its discretion in finding that traditional forum non conveniens factors warranted

denial of defendant's motion to dismiss where the case involved Texas lawyers representing Alaskan clients, whose principal places of business were in Connecticut, in a transaction with Texas companies that involved land in Texas. Further, the documentary evidence was located in Texas, as were the attorneys who allegedly committed the malpractice, and most of the potential witnesses. Accordingly, the motion was granted on condition that defendant deem the filing date of any Texas action to be the date plaintiffs filed their New York action, and that any statute of limitations defense be waived.

#### APPEARANCES OF COUNSEL

*Thompson & Knight LLP*, New York City (*E. Michael Sheehan* of counsel), for appellant.

*Bernkopf Goodman, LLP* (*Peter B. McGlynn*, of the Massachusetts bar, admitted pro hac vice, of counsel), for respondents.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be reversed with costs, and defendant's motion to dismiss the complaint granted on the conditions that defendant (1) consent to deeming the filing date of the Texas action to be as of October 27, 2008, the date respondents filed this action in New York, and (2) waive any statute of limitations defense in the Texas action. The certified question should be answered in the negative.

It is apparent from the record that defendant's forum non conveniens motion was denied on the basis of Supreme Court's mistaken understanding that plaintiffs would face a statute of limitations barrier to suit in an alternative forum. In fact, plaintiffs failed to show that any such barrier exists, and in any event, the issue can be dealt with by the imposition of conditions to which defendant has consented.

The Appellate Division majority abused its discretion in finding that traditional forum non conveniens factors warranted denial of the motion (*Islamic Republic of Iran v Pahlavi*, 62 NY2d 474, 478 [1984]). This case involves the alleged malpractice by Texas lawyers representing Alaskan clients, whose principal places of business are in Connecticut, in a transaction with Texas companies that involves land in Texas. Further, the documentary evidence is located in defendant's Texas office, as are the attorneys who allegedly committed the malpractice and most of the potential witnesses.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

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[944 NE2d 650, 919 NYS2d 114]

In the Matter of UPTOWN HOLDINGS, LLC, et al., Appellants, v  
CITY OF NEW YORK et al., Respondents.

Decided February 17, 2011

#### SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 12, 2010, in a proceeding pursuant to EDPL 207. The Appellate Division (1) denied a petition to annul a determination of the Department of Housing Preservation and Development of the City of New York which had authorized the condemnation of petitioners' properties, (2) confirmed the determination, and (3) dismissed the proceeding.

*Matter of Uptown Holdings, LLC v City of New York*, 77 AD3d 434, appeal dismissed.

#### HEADNOTE

##### Appeal — Dismissal

An appeal from an order of the Appellate Division which confirmed a determination of the Department of Housing Preservation and Development of the City of New York authorizing the condemnation of petitioners' properties, was dismissed upon the ground that no substantial constitutional question was directly involved.

#### APPEARANCES OF COUNSEL

*Feerick Lynch MacCartney, PLLC*, South Nyack (*J. David MacCartney, Jr.*, of counsel), for appellants.

*Michael A. Cardozo, Corporation Counsel*, New York City (*Fred Kolikoff* of counsel), for respondents.

#### OPINION OF THE COURT

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, PIGOTT and JONES. Judge SMITH concurs in an opinion.

SMITH, J. (concurring). I agree that no substantial constitutional issue is presented, because, as the concurring opinion in



the Appellate Division points out, this case is controlled by *Matter of Goldstein v New York State Urban Dev. Corp.* (13 NY3d 511 [2009]) and *Matter of Kaur v New York State Urban Dev. Corp.* (15 NY3d 235 [2010]). I think it necessary to point out, however, that our dismissal of this appeal does not imply endorsement of the Appellate Division majority opinion, which may be read to suggest that *Kelo v New London* (545 US 469 [2005]) should be followed by New York courts interpreting the New York Constitution (*see Goldstein*, 13 NY3d at 546 [Smith, J., dissenting] [“The good news from today’s decision is that our Court has not followed the lead of the United States Supreme Court in rendering the ‘public use’ restriction on the Eminent Domain Clause virtually meaningless”]).

Appeal dismissed, etc.

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In the Matter of AFTON C., a Child Alleged to be Neglected.  
DUTCHESS COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; JAMES C. et al., Respondents. (And Four Other Proceedings.)

Submitted February 14, 2011; decided February 17, 2011

Reported below, 71 AD3d 887.

Motion by Chemung County Department of Social Services for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

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In the Matter of AFTON C., a Child Alleged to be Neglected.  
DUTCHESS COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; JAMES C. et al., Respondents. (And Four Other Proceedings.)

Submitted February 14, 2011; decided February 17, 2011

Reported below, 71 AD3d 887.

Motion by Steuben County Department of Social Services for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

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In the Matter of AFTON C., a Child Alleged to be Neglected. DUTCHESS COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; JAMES C. et al., Respondents. (And Four Other Proceedings.)

Submitted February 14, 2011; decided February 17, 2011

Reported below, 71 AD3d 887.

Motion by Lawyers for Children for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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In the Matter of AMERICAN AIRLINES, INC., Appellant, v NEW YORK CITY TAX APPEALS TRIBUNAL et al., Respondents.

Decided February 17, 2011

Reported below, 77 AD3d 478.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of ANONYMOUS, an Attorney and Counselor-at-Law, Appellant. GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT, Respondent.

Submitted January 31, 2011; decided February 17, 2011

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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LEON CASPER, Appellant, v CUSHMAN & WAKEFIELD, Respondent.

Submitted December 20, 2010; decided February 17, 2011

Reported below, 74 AD3d 669.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

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In the Matter of DASHAWN W. and Others, Children Alleged to be Abused. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; ANTOINE N., Appellant, et al., Respondent.

Submitted November 22, 2010; decided February 17, 2011

Reported below, 73 AD3d 574.

Motion for leave to appeal dismissed upon the ground that simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

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In the Matter of the Arbitration between JOHNSON CITY PROFESSIONAL FIREFIGHTERS LOCAL 921 et al., Respondents, and VILLAGE OF JOHNSON CITY, Appellant. (And Another Proceeding.)

Submitted February 14, 2011; decided February 17, 2011

Reported below, 72 AD3d 1235.

Motion by Civil Service Employees Association, Inc., Local 1000, AFSCME, AFL-CIO for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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GILBERT LAU, Appellant, v S&M ENTERPRISES et al., Respondents.

Submitted January 3, 2011; decided February 17, 2011

Reported below, 72 AD3d 497.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the denial of appellant's motion for disqualification of respondents' counsel, dismissed upon the ground that such part of the Appellate Division order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ROBERT ALONSO and EMILIA ALONSO, Respondents.

Submitted February 14, 2011; decided February 17, 2011

Reported below, 70 AD3d 957.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. SHAUN MC-MANUS, Appellant, v MARTIN F. HORN, Commissioner of the New York City Department of Corrections, Respondent.

Submitted December 6, 2010; decided February 17, 2011

Reported below, 77 AD3d 571.

Motion for leave to appeal granted. Motion for poor person relief granted.

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[944 NE2d 1130, 919 NYS2d 491]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL EDWARD PRINDLE, Appellant.

Argued January 5, 2011; decided February 22, 2011

#### SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 5, 2009. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Joseph D. Valentino, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, attempted grand larceny in the fourth degree, and petit larceny.

*People v Prindle*, 63 AD3d 1597, modified.

#### HEADNOTE

**Crimes — Murder — Depraved Indifference Murder — Reckless Driving while Fleeing Crime Scene**

In a prosecution in which defendant was convicted of, among other things, depraved indifference murder as a result of his smashing his motor vehicle into another vehicle and killing a passenger therein during a police chase, the trial evidence, measured against the jury charge which was based on the standard set forth in *People v Register* (60 NY2d 270 [1983]), did not support the

jury's conclusion that defendant evinced a depraved indifference to human life. At most, the evidence adduced was legally sufficient to support a finding of reckless manslaughter. Defendant conceded that the evidence sustained a conviction for second degree manslaughter and his conviction was reduced accordingly.

#### APPEARANCES OF COUNSEL

*Timothy P. Donaher, Public Defender, Rochester (Drew R. DuBrin of counsel), for appellant.*

*Michael C. Green, District Attorney, Rochester (Leslie E. Swift of counsel), for respondent.*

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be modified by reducing defendant's conviction of depraved indifference murder (Penal Law § 125.25 [2]) to manslaughter in the second degree (Penal Law § 125.15 [1]), and by remitting the case to Supreme Court for resentencing and, as so modified, affirmed.\*

On October 9, 2004, defendant and a separately charged individual were in the process of stealing two snowplows located behind a business in Brighton, New York when police officers responded to the scene. Defendant immediately jumped into the driver's seat of his van while his partner sat on the passenger side. Defendant sped away and a police chase ensued, ultimately resulting in defendant smashing his van into another vehicle and killing a passenger therein.

At the conclusion of the People's case, defendant moved for a trial order of dismissal. He argued that "there has been insufficient evidence to demonstrate a depraved indifference reckless conduct on the part of [defendant]." Supreme Court denied the motion. Defendant renewed his motion at the close of trial, which the court likewise denied.

Supreme Court submitted the case to the jury and instructed it on both the elements of depraved indifference murder and the lesser included offense of second degree manslaughter. In its charge, the court explained that, to find defendant guilty of depraved indifference murder, the jury would have to find,

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\* A person is guilty of depraved indifference murder when, "[u]nder circumstances evincing a depraved indifference to human life, he recklessly engages in conduct which creates a grave risk of death to another person, and thereby causes the death of another person" (Penal Law § 125.25 [2]).

A person is guilty of second degree manslaughter when "[h]e recklessly causes the death of another person" (Penal Law § 125.15 [1]).

“under circumstances evincing a depraved indifference to human life, he . . . recklessly engage[d] in conduct which create[d] a grave risk of death to another person and thereby cause[d] the death of that person . . .

“[W]hen conduct is engaged in recklessly, under circumstances evincing a depraved indifference to human life, the law regards that conduct . . . as so serious, so egregious as to be the equivalent of intentional conduct. Conduct evincing a depraved indifference to human life must be imminently dangerous and present a very high risk of death. It is conduct which is so wanton, so deficient in moral sense and concern, so devoid of regard for the life or lives of others as to equal in blameworthiness intentional conduct which would produce the same result.

“In determining whether a person’s conduct evinced a depraved indifference to human life, a jury would have to decide whether the circumstances surrounding that conduct, when objectively viewed, made the conduct so uncaring, so callous, so dangerous and so inhuman as to demonstrate an attitude of total and utter disregard for the life of the person or persons in danger.”

Defendant made no objection to the court’s charge nor to subsequent instructions given to the jury resulting from juror inquiries.

On appeal, defendant concedes that the evidence sustains a conviction for second degree manslaughter, but disputes the legal sufficiency of his depraved indifference murder conviction. When engaging in legal sufficiency review, we generally measure the evidence against the jury charge given without objection or exception (*see People v Ford*, 11 NY3d 875, 878 [2008]; *People v Sala*, 95 NY2d 254, 260 [2000]). Supreme Court tailored its jury charge based on the standard set forth in *People v Register* (60 NY2d 270 [1983]), which, at the time of defendant’s trial, had not yet been explicitly overruled (*see e.g. People v Suarez*, 6 NY3d 202 [2005]). The *Register* standard that “depraved [indifference] murder is distinguishable from manslaughter, not by the mental element involved but by the objective circumstances in which the act occurs” (60 NY2d at 278), however, was explicitly overruled by *People v Feingold* (7 NY3d

288 [2006]), where we held for the first time that “depraved indifference to human life is a culpable mental state” (7 NY3d at 294).

Defendant argues that, even though he did not object to the charge as given, his trial order of dismissal motion adequately anticipated and preserved his argument that the evidence at trial was legally insufficient under *Feingold* (see *People v Jean-Baptiste*, 11 NY3d 539, 542 [2008]). Without passing on defendant’s argument concerning the adequacy of his trial order of dismissal motion and simply applying Supreme Court’s charge as given without exception, we conclude that the evidence adduced at trial does not support the jury’s conclusion that defendant evinced a depraved indifference to human life (cf. *People v Gomez*, 65 NY2d 9, 12 [1985] [the defendant’s conviction for two counts of depraved indifference murder legally sufficient where, after striking two cars while driving at an excessive speed, the defendant drove onto a sidewalk, killed one child, refused to apply his brakes, and killed a second child]). Here, at most, the evidence adduced was legally sufficient to support a finding of reckless manslaughter.

We have considered defendant’s remaining arguments and find that they are without merit.

PIGOTT, J. (dissenting). A young woman returning from a baby shower is dead because this defendant, who was concerned about being arrested for the theft of a \$400 snowplow blade, led police on a 2½-to-4-mile chase from the Town of Brighton into the City of Rochester, running at least five red lights, repeatedly driving at high speeds and in the lanes of oncoming traffic before plowing into the rear driver’s side of the victim’s vehicle. She did not die immediately, however, arriving at the hospital in a comatose state with a severe head injury, broken ribs and a broken pelvis, succumbing to her injuries five days later. Because I disagree with the majority’s conclusions that such conduct did not amount to depraved indifference murder under the standard delineated in *People v Register* (60 NY2d 270 [1983], *cert denied* 466 US 953 [1984]), I dissent.

On the fateful day of October 9, 2004, the occupant of an apartment overlooking the parking lot of a window cleaning business in the Town of Brighton contacted police after observing defendant and his accomplice, Jeffrey Kells, lifting a snowplow blade into the back of a van. When Officer Brad Steve from the Brighton Police Department arrived, he observed defendant and Kells jumping into a van, which had a snowplow



protruding from the rear. Officer Steve activated his lights and siren and entered the driveway. The van drove past his patrol car and sped toward the City of Rochester. The officer observed the van driving “erratically, increasing in speed, weaving inside the two lanes, [and] crossing over the double solid line numerous times.”

As the van approached one major intersection, it increased its speed, weaved into the left hand passing lane and barreled through a red light, causing the traffic with the right-of-way to come to a sudden stop. The van proceeded toward another major intersection near the Brighton/Rochester border. Officer Steve observed the van “again driving erratically, speeding, increasing speed, going around a double solid yellow line” into oncoming traffic, nearly hitting other vehicles and causing them to swerve and/or stop. Rather than stopping, however, the van raced through another red light at that intersection—where two major thoroughfares in the City of Rochester met—at approximately 65 miles per hour. In the interest of safety, the officer deactivated his lights and siren and called off the pursuit, but still followed the van at a safe distance. He also notified the Rochester Police Department of the van’s entry into the city limits.

As the van approached an Interstate overpass, still going 65 miles per hour, defendant’s “driving became worse,” with defendant driving the van in the oncoming lane of traffic the entire time, causing vehicles with the right-of-way to make evasive maneuvers or stop. The van crossed the overpass and turned onto local streets, reaching another heavily-trafficked thoroughfare. There, the van ran a third red light and struck a truck in the intersection. The defendant nevertheless continued his flight.

Officer Steve, still following the van from what he described as a safe distance, described the traffic as “heavy.” The officer then observed the van, without braking, go through a fourth red light at a major intersection; he testified that the van was “driving erratically, going around cars, crossing over a double yellow solid line, causing cars to pull over.” He did not estimate the van’s speed, although he opined that it was going over the posted speed limit.

Officer Steve maintained visual contact as the van continued erratically at a high rate of speed through a fifth red light. A vehicle, which had a green light, was making a left turn at this intersection. That vehicle’s driver observed the van traveling



over the double solid yellow line before it slammed into the rear driver's side door. It was this vehicle in which the decedent was traveling. Defendant neither braked nor skidded, and the evidence established that defendant had adequate room to navigate around the vehicle. Defendant fled the scene and was apprehended days later; Kells was arrested trying to flee.

Defendant was charged with murder in the second degree, attempted grand larceny in the fourth degree and petit larceny and, after a jury trial, was convicted of all three. The Appellate Division affirmed.

A person is guilty of depraved indifference murder when, "[u]nder circumstances evincing a depraved indifference to human life, he recklessly engages in conduct which creates a grave risk of death to another person, and thereby causes the death of another person" (Penal Law § 125.25 [2]). As the majority notes, the jury charge given by the trial court was based on the standard set forth in *Register*, which, at the time of this trial in November 2005, had not been overruled. Defendant did not object to this charge, and therefore "the legal sufficiency of defendant's conviction must be viewed in light of the court's charge as given without exception" (*People v Ford*, 11 NY3d 875, 878 [2008], *on remand* 67 AD3d 543 [2009], *lv denied* 13 NY3d 938 [2010]). As a result, the *Register* standard informs the sufficiency analysis in this case.

Under *Register*, the depraved indifference to human life element is not a mental state but rather refers to "the factual setting in which the risk creating conduct must occur," meaning that "the focus of the offense is not upon the subjective intent of the defendant . . . , but rather upon an objective assessment of the degree of risk presented by defendant's reckless conduct" (*Register*, 60 NY2d at 276-277 [citations omitted]). Viewing the evidence in the light most favorable to the People, there is clearly a "valid line of reasoning and permissible inferences [that] could lead a rational person to the conclusion" that defendant was guilty of depraved indifference murder (*see People v Williams*, 84 NY2d 925, 926 [1994] [citations omitted]).

Each time defendant blasted through a red light, each time he drove into the oncoming lane of traffic, defendant had the opportunity to reassess his conduct and place society's interests above his own. This he chose not to do, even when he collided with a pickup truck while running a red light a mere two intersections away from where the fatal incident occurred. The jury was presented with the following, uncontradicted proof: de-

fendant led police on a chase through residential and business districts at speeds as high as 65 miles per hour, ran at least five red lights, repeatedly drove in the oncoming lane of traffic, and collided with one vehicle before the incident at issue occurred. Rather than stopping his van after this initial collision, however, defendant “doubled down” and continued through two more red lights, driving into oncoming traffic. The driver of the vehicle testified that she was “significantly into” her turn when she observed the van over the double yellow line and driving in her lane. Based on this uncontradicted proof, a jury could have reasonably concluded that defendant’s conduct was “so wanton, so deficient in a moral sense of concern, so devoid of regard of the life or lives of others, and so blameworthy” as to render defendant as culpable as one whose conscious objective was to kill (*People v Russell*, 91 NY2d 280, 287 [1998]).

Contrary to the majority’s implication, this case is not factually distinct from *People v Gomez* (65 NY2d 9 [1985]). In that case, the defendant drove from a gas station into a city street at a speed of 40 miles per hour, struck a parked car and continued northbound weaving from lane to lane, striking the left side of a moving vehicle and mounting the curb of the sidewalk. The defendant drove the car partly on the sidewalk for a block and struck and killed his first victim, a boy on a bicycle. Despite his passenger’s pleading that he stop, the defendant accelerated his car and mounted the opposite sidewalk where a number of people were standing, eventually killing another child. In upholding the defendant’s conviction for depraved indifference murder relative to the first victim, this Court observed:

“As to the first murder count, defendant sped out of the gas station and entered traffic on a busy New York street at a speed in excess of 40 miles per hour. After striking two cars, he continued accelerating for nearly a block, partly on a sidewalk, until he struck the first victim. These factors, *particularly the excessive speed and the failure to brake*, satisfied the depraved indifference element” (*Gomez*, 65 NY2d at 12 [emphasis supplied]).

Here, defendant’s excessive speed, running of at least five red lights, his repeated driving in the oncoming lanes of traffic and failure to brake—such conduct occurring in residential and business districts while evading police for a distance of 2½ to 4 miles—satisfied the depraved indifference element under *Register*. If anything, defendant’s conduct in this case was more

egregious than the conduct displayed by the defendant in *Gomez*. Indeed, “[t]he risks posed by defendant’s conduct in this case and his callous indifference to them entitled the jury to conclude that his conduct placed the crime on the same level as intentional murder” (*Gomez*, 65 NY2d at 12). As a result, it is my view that defendant should not be rewarded with a reduction to the more lenient count of manslaughter in the second degree, and I would therefore affirm the judgment of conviction and sentence.

Chief Judge LIPPMAN and Judges CIPARICK, SMITH and JONES concur in memorandum; Judge PIGOTT dissents and votes to affirm in an opinion in which Judges GRAFFEO and READ concur.

Order modified, etc.

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[944 NE2d 1135, 919 NYS2d 496]

EAST HAMPTON UNION FREE SCHOOL DISTRICT, Appellant, v  
SANDPEBBLE BUILDERS, INC., Defendant, and VICTOR  
CANSECO, Respondent.

Argued January 12, 2011; decided February 22, 2011

#### SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 28, 2009. The Appellate Division, with two Justices dissenting, modified, on the law, an order of the Supreme Court, Suffolk County (Paul J. Baisley, Jr., J.; op 2007 NY Slip Op 34427[U]), which had denied a motion by defendants to dismiss the complaint as asserted against Victor Canseco individually. The modification consisted of deleting the provision of the order denying that branch of the defendants’ motion to dismiss the complaint as against defendant Victor Canseco individually, and substituting therefor a provision granting that branch of the motion. The Appellate Division affirmed the order as modified.

*East Hampton Union Free School Dist. v Sandpebble Bldrs., Inc.*, 66 AD3d 122, affirmed.

#### HEADNOTE

**Corporations — Disregarding Corporate Entity — Abuse of Corporate Form**

In an action brought by plaintiff school district against a corporation it had hired to perform construction management services, plaintiff’s cause of action

to pierce the corporate veil to hold defendant president and sole shareholder of the corporation personally liable for alleged breaches of certain corporate obligations was correctly dismissed because plaintiff failed to allege any facts indicating that the individual defendant engaged in acts amounting to an abuse or perversion of the corporate form. Since, by definition, a corporation acts through its officers and directors, to hold a shareholder/officer personally liable, a plaintiff must do more than merely allege that the individual engaged in improper acts or acted in “bad faith” while representing the corporation.

#### APPEARANCES OF COUNSEL

*Morgan, Lewis & Bockius LLP*, New York City (*Bernard J. Garbutt, III*, and *Marc Shanker* of counsel), for appellant.

*Esseks, Hefter & Angel, LLP*, Riverhead (*Theodore D. Sklar*, *Stephen R. Angel* and *Nancy Silverman* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

In this litigation brought by a school district against a corporation it had hired to perform construction management services, the school district sought to pierce the corporate veil to hold Victor Canseco, the president and sole shareholder of the corporation, personally liable for alleged breaches of certain corporate obligations. In order for a plaintiff to state a viable claim against a shareholder of a corporation in his or her individual capacity for actions purportedly taken on behalf of the corporation, plaintiff must allege facts that, if proved, indicate that the shareholder exercised complete domination and control over the corporation and “abused the privilege of doing business in the corporate form to perpetrate a wrong or injustice” (*Matter of Morris v New York State Dept. of Taxation & Fin.*, 82 NY2d 135, 142 [1993]). Since, by definition, a corporation acts through its officers and directors, to hold a shareholder/officer such as Canseco personally liable, a plaintiff must do more than merely allege that the individual engaged in improper acts or acted in “bad faith” while representing the corporation. In this case, plaintiff failed to allege any facts indicating that Canseco engaged in acts amounting to an abuse or perversion of the corporate form, much less that the school district was harmed as a result of such actions. Under the circumstances, the Appellate Division did not err in failing to direct that plaintiff be permitted to file an amended complaint as the record affords no basis to conclude that the deficiency could have been cured by repleading.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

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[944 NE2d 1142, 919 NYS2d 503]

In the Matter of the Estate of SEYMOUR HALPERN, Deceased.  
ADRIENNE HALPERN et al., Respondents; ELIZABETH HAL-  
PERN, Appellant.

Decided February 22, 2011

#### SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 17, 2010. The Appellate Division affirmed a decree of the Surrogate's Court, New York County (Kristin Booth Glen, S.) which, among other things, had admitted a document dated September 12, 1958 to probate as the last will and testament of Seymour Halpern, also known as Seymour Lionel Halpern. The Appellate Division certified the following question: "Was the order of this Court, which affirmed the order of Surrogate's Court, properly made?"

The decedent married his first wife in 1953. On September 12, 1958, he purportedly executed a document that petitioners, his daughters, seek to probate as his will. The first wife died in 1981, and in 1988, the decedent married his second wife, the objectant. On June 7, 2006, decedent died, leaving an estate valued at approximately \$28 million. At the time of his death, his family believed he died intestate, but two months after her husband's death, the objectant found an almost 50-year-old four-page document in their home. The decedent's children sought to have that document probated as his will.

*Matter of Halpern*, 76 AD3d 429, affirmed.

#### HEADNOTE

##### Wills — Execution — Validity

An order of the Appellate Division, which affirmed a decree admitting a document to probate as the last will and testament of decedent, was affirmed. When viewed in its entirety, the testimony from the attesting witness was insufficient to create a triable issue of fact as to whether decedent's will was duly executed.

#### APPEARANCES OF COUNSEL

*Duane Morris LLP*, New York City (*Thomas R. Newman* of counsel), for appellant.

*Cleary Gottlieb Steen & Hamilton LLP*, New York City (*Christopher P. Moore* and *Giannina Santo* of counsel), for respondents.

#### OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question not answered upon the ground that it is unnecessary. When viewed in its entirety, the testimony from the attesting witness is insufficient to create a triable issue of fact as to whether decedent's will was duly executed.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

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[944 NE2d 1142, 919 NYS2d 503]

In the Matter of ETERNAL FLAME OF HOPE MINISTRIES, INC., Respondent, v LORI KING, as Assessor of the Town of Highland, et al., Appellants.

Decided February 22, 2011

#### SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered August 23, 2010. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Sullivan County (Robert A. Sackett, J.), entered in a proceeding pursuant to RPTL article 7, which, among other things, had granted a motion by petitioner for summary judgment striking certain real property from the tax assessment rolls of the Town of Highland.

Petitioner not-for-profit corporation was organized in 2001 to offer "spiritual renewal in accordance with the [principles] of the Catholic Church," and to encourage artists seeking inspiration and instruction in the Catholic faith. It receives a federal income tax exemption and is classified as a public charity; contributions to petitioner are deductible pursuant to the Internal Revenue Code. Petitioner was also listed in the 2007 Official Catholic Directory as a private association affiliated with the Catholic Church. Petitioner's president is an ordained Roman Catholic priest who, in 2002, obtained a building permit from the Town of Highland, Sullivan County to construct an art studio on a 46-acre parcel of real property that he owned. The

studio, designed to resemble a chapel and adorned with religious art, was completed in December 2006 whereupon the town issued a certificate of occupancy. In February 2007, the property—consisting of the art studio, a small barn, a four-bedroom chalet, two small rural cabins and undeveloped land upon which a brook and seasonal waterfall were located—was transferred to petitioner. The art studio is used for the creation of religious art, spiritual talks and prayer, and the entire property is used regularly for spiritual retreats. Mass and prayer services are an integral part of the events at the property, and are held when visitors are present.

*Matter of Eternal Flame of Hope Ministries, Inc. v King*, 76 AD3d 775, affirmed.

#### HEADNOTE

##### **Taxation — Exemptions — Religious Organization**

An order of the Appellate Division, which affirmed an order granting summary judgment striking petitioner's real property from respondent Town's tax assessment rolls, was affirmed. Because petitioner was a religious organization utilizing the subject property to further the religious purposes for which it was organized, it was entitled to a real property tax exemption for the property (*see* RPTL 420-a [1] [a]). The respondent Town did not demonstrate an existing zoning violation so as to bar the exemption.

#### APPEARANCES OF COUNSEL

*Drew, Davidoff & Edwards Law Offices, LLP*, Monticello (*Michael Davidoff* of counsel), for appellants.

*Kalter, Kaplan, Zeigler & Forman*, Woodbourne (*Terry S. Forman* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed with costs.

Because petitioner is a religious organization utilizing the subject property to further the religious purposes for which it was organized, petitioner is entitled to a real property tax exemption for the property (*see* RPTL 420-a [1] [a]). The Town has not demonstrated an existing zoning violation so as to bar the exemption (*cf. Matter of Oxford Group-Moral Re-Armament, MRA, Inc. v Allen*, 309 NY 744 [1955]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.



On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

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In the Matter of the Claim of OTILIA CABALLERO, Appellant, v  
FABCO ENTERPRISES et al., Respondents. WORKERS' COMPEN-  
SATION BOARD, Respondent.

Submitted December 27, 2010; decided February 22, 2011

Reported below, 77 AD3d 1028.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

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JULIETTE DEJOIE CADICHON et al., Appellants, v THOMAS  
FACELLE, M.D., et al., Respondents.

Submitted January 31, 2011; decided February 22, 2011

Reported below, 71 AD3d 520.

Motions to strike material from the record on appeal and references thereto in appellants' brief granted to the extent of deeming stricken appellants' notice of motion for reargument and renewal and material in support thereof and references thereto in appellants' brief.

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In the Matter of NORMAN LEONARD COUSINS, an Attorney, Ap-  
pellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE  
FIRST JUDICIAL DEPARTMENT, Respondent.

Decided February 22, 2011

Reported below, 80 AD3d 99.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved. Judiciary Law § 90 (8) does not provide an independent predicate for an appeal as of right to the Court of Appeals.

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In the Matter of NIKOLAI GECETCHKORI, Appellant, v ANTHONY J. ANNUCCI, as Deputy Commissioner of Correctional Services, et al., Respondents.

Submitted November 22, 2010; decided February 22, 2011

Reported below, 77 AD3d 1003.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

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In the Matter of GRANGER GROUP et al., Appellants, v TOWN OF TAGHKANIC et al., Respondents, and ALAN WILZIG et al., Respondents.

Submitted January 3, 2011; decided February 22, 2011

Reported below, 77 AD3d 1137.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

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JOEL MURRAY, Appellant, v STATE OF NEW YORK, Respondent.

Submitted December 13, 2010; decided February 22, 2011

Reported below, 2010 NY Slip Op 85774(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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In the Matter of the Claim of SUE ANN PAIVANAS, Appellant, v THE RESOURCE CENTER et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted January 10, 2011; decided February 22, 2011

Reported below, 77 AD3d 993.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES  
D. CARLTON, Appellant.

Submitted December 13, 2010; decided February 22, 2011

Reported below, 78 AD3d 1654.

Motion for leave to appeal denied upon the ground that an  
appeal lies as of right (*see* CPLR 5601 [a]).

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IDELFONSO RIVERA, SR., et al., Appellants, v CITY OF NEW YORK  
et al., Respondents.

Submitted January 3, 2011; decided February 22, 2011

Reported below, 40 AD3d 334.

Motion for leave to appeal dismissed as untimely. The prior  
motion for leave to appeal made to the Appellate Division was  
untimely (*see* Karger, Powers of the New York Court of Appeals  
§ 12:3, at 436-437 [3d ed rev]).

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In the Matter of MARTIN S. STREIT, a Suspended Attorney, Ap-  
pellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE  
FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted January 18, 2011; decided February 22, 2011

Reported below, 2010 NY Slip Op 87449(U).

Motion for leave to appeal denied. Motion for a stay dismissed  
as academic.

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In the Matter of INJAH TAFARI, Appellant, v DONALD SELSKY, as  
Director of Special Housing and Inmate Disciplinary  
Programs, Respondent.

Submitted December 20, 2010; decided February 22, 2011

Reported below, 2010 NY Slip Op 89072(U).

Motion for leave to appeal dismissed upon the ground that  
the order sought to be appealed from does not finally determine  
the proceeding within the meaning of the Constitution.

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In the Matter of INJAH TAFARI, Appellant, v DONALD SELSKY, as  
Director of Special Housing and Inmate Disciplinary  
Programs, Respondent.

Submitted December 20, 2010; decided February 22, 2011

Reported below, 77 AD3d 992.

Motion for leave to appeal dismissed as untimely (*see* CPLR  
5513 [b]).

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In the Matter of INJAH TAFARI, Appellant, v DONALD SELSKY, as  
Director of Special Housing and Inmate Disciplinary  
Programs, Respondent.

Submitted December 20, 2010; decided February 22, 2011

Reported below, 76 AD3d 1144.

Motion for leave to appeal dismissed as untimely (*see* CPLR  
5513 [b]).

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In the Matter of INJAH TAFARI, Appellant, v DONALD SELSKY, as  
Director of Special Housing and Inmate Disciplinary  
Programs, Respondent.

Submitted December 20, 2010; decided February 22, 2011

Reported below, 76 AD3d 1123.

Motion for leave to appeal dismissed as untimely (*see* CPLR  
5513 [b]).

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TRIBECA LENDING CORP., Respondent, v LINDA CRAWFORD, Ap-  
pellant, et al., Defendants.

Submitted January 24, 2011; decided February 22, 2011

Reported below, 79 AD3d 1018.

Motion for leave to appeal dismissed upon the ground that  
the order sought to be appealed from does not finally determine  
the action within the meaning of the Constitution. Motion for a  
stay dismissed as academic.

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[944 NE2d 1139, 919 NYS2d 500]

## THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ELIJAH CUMMINGS, Appellant.

Argued January 12, 2011; decided February 24, 2011

## SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 22, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Ruth Pickholz, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree and criminal possession of a weapon in the third degree (two counts).

*People v Cummings*, 66 AD3d 571, affirmed.

## HEADNOTE

**Crimes — Right to Counsel — Effective Representation**

In a prosecution for burglary and weapons possession arising out of defendant's theft of two loaded pistols from a police precinct, the record demonstrated that defendant's counsel provided competent and meaningful representation throughout the proceedings. In order to prevail on a claim of ineffective assistance of counsel based on a single error or omission, a defendant must demonstrate that the error was "so egregious and prejudicial" as to deprive defendant of a fair trial. Here, counsel unsuccessfully attempted before trial to dismiss the second degree burglary charge based on the argument that the precinct, which contained dormitories for overnight use, was not a "dwelling" within the meaning of Penal Law § 140.00 (3). Moreover, to buttress their position that the police precinct met the statutory standard of a dwelling, which is not restricted to what would normally be considered a residence, the People submitted additional evidence at trial that was not before the grand jury. Viewing the performance in totality, counsel's failure to renew the dwelling argument at the close of the People's case was not so egregious as to deprive defendant of a fair trial.

## APPEARANCES OF COUNSEL

*Office of the Appellate Defender*, New York City (*Eunice C. Lee* and *Richard M. Greenberg* of counsel), for appellant.

*Cyrus R. Vance, Jr.*, *District Attorney*, New York City (*Lindsey M. Kneipper* and *Dana Poole* of counsel), for respondent.

## OPINION OF THE COURT

## MEMORANDUM.

The Appellate Division order should be affirmed.

After a trial by jury, defendant was convicted of one count of burglary in the second degree and two counts of criminal possession of a weapon in the third degree in connection with his theft of two loaded pistols from a Manhattan police precinct. Defendant argues on appeal that his trial counsel was ineffective for failing to challenge the legal sufficiency of the People's proof on the second degree burglary conviction on the ground that a police precinct containing dormitories for overnight use is not a "dwelling." A conviction of second degree burglary under Penal Law § 140.25 (2) requires proof that the defendant entered or remained unlawfully in a dwelling. A building is considered a dwelling if it is "usually occupied by a person lodging therein at night" (Penal Law § 140.00 [3]). In *People v Barney* (99 NY2d 367, 371-372 [2003]), we explained that "[b]y using the phrase 'usually occupied' to define dwelling, the Legislature clearly intended to enact a flexible standard." Accordingly, there is no requirement that the building "must always be a home or what would normally be considered a residence" (*People v Quattlebaum*, 91 NY2d 744, 748 [1998]).

The core of our inquiry in reviewing ineffective assistance of counsel claims is whether counsel's performance "viewed in totality" amounts to "meaningful representation" (*People v Baldi*, 54 NY2d 137, 147 [1981]). Moreover, our case law in this area emphasizes that our Constitution "guarantees the accused a fair trial, not necessarily a perfect one" (*People v Benevento*, 91 NY2d 708, 712 [1998]). Thus, in order to prevail on a claim of ineffective assistance of counsel based on a single error or omission, a defendant must demonstrate that the error was "so egregious and prejudicial" as to deprive defendant of a fair trial (*People v Turner*, 5 NY3d 476, 480 [2005] [internal quotation marks omitted]).

Here, the record demonstrates that defendant's counsel provided competent and meaningful representation throughout the proceedings, which included an unsuccessful pretrial attempt to dismiss the second degree burglary charge based on the dwelling argument. Further, to buttress their position that the police precinct met the statutory standard of a dwelling, the People submitted additional evidence at trial that was not before the grand jury (*see e.g. People v Parilla*, 8 NY3d 654, 660 [2007]). Viewing the performance in totality, we conclude that counsel's failure to renew the dwelling argument at the close of the People's case was not so egregious as to deprive defendant of a fair trial.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, in a memorandum.

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[945 NE2d 477, 920 NYS2d 284]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v REMY SMITH, Appellant.

Argued January 13, 2011; decided February 24, 2011

#### SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 28, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Rena K. Uviller, J.), which had convicted defendant, upon a jury verdict, of assault in the first degree (two counts), attempted coercion in the first degree, and criminal possession of a weapon in the second degree.

*People v Smith*, 61 AD3d 579, affirmed.

#### HEADNOTES

##### **Crimes — Argument and Conduct of Counsel — Restriction of Defense Counsel's Summation**

1. In a prosecution for assault and related charges arising from the shooting of the victim, defense counsel was not improperly prevented from arguing on summation that it was the victim who first produced the gun that resulted in her being shot, since to allow the requested argument would have been to permit counsel to call upon the jury to reach conclusions that were not fairly inferable from the evidence. The privilege of counsel to comment in summation on any matters of fact pertinent to questions that the jury must decide is not absolute. The privilege can never operate as a license to state to a jury facts not in evidence, or to argue theories for which there is absolutely no evidentiary support. Here, the jury heard no evidence from which it would be reasonable to conclude that the gun was first displayed by the victim. The testimony of a police officer, that the victim told him that the gun with which she was shot was "heavier" than a gun he showed her for the purpose of comparison, was irrelevant to the issue whether the defendant or the victim first produced the gun. Moreover, the officer himself clarified the term, saying "heavier, meaning larger," and a victim's recollection of the size of a gun in no way supports the theory that she first displayed it.

##### **Crimes — Instructions — Erroneous Statement About Victim's Testimony**

2. In a prosecution for assault and related charges in which defendant challenged a part of the jury charge, in light of the charge as a whole, no reasonable juror would have concluded that if he or she found the victim's testimony

credible, then he or she had to find defendant guilty without assessing whether all of the evidence was sufficient to show beyond a reasonable doubt that defendant was guilty. Where a single sentence in a jury charge is challenged by the defendant, the challenged sentence alone should not be considered in a vacuum but instead the instruction must be read as a whole to determine if it was likely to confuse the jury. Here, although the trial court inaccurately instructed the jury that if it found that the victim was “truthful and accurate in her testimony to you, [then] her testimony without any other eye witness to what happened inside the car, under the law satisfies the proof beyond a reasonable doubt,” the court immediately went on to state the principle correctly by charging that if the victim’s testimony “after your careful scrutiny does satisfy you beyond a reasonable doubt then her testimony alone can be sufficient to convict without other eye witness testimony.” Here, the court emphasized, in parts of the jury charge immediately before and after the challenged sentence, that the central duty of the jury was to decide whether the charged crimes had been proved beyond a reasonable doubt.

#### APPEARANCES OF COUNSEL

*Levitt & Kaizer*, New York City (*Richard Ware Levitt* and *Yvonne Shivers* of counsel), and *The Murphy Firm*, Baltimore, Maryland (*William H. Murphy, Jr.*, of counsel), for appellant.

*Cyrus R. Vance, Jr.*, District Attorney, New York City (*Vincent Rivelles* and *Hilary Hassler* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was convicted, after a jury trial, of two counts of assault in the first degree, and one count each of attempted coercion in the first degree and criminal possession of a weapon in the second degree, in the shooting of a friend during a dispute.

[1] On appeal, defendant challenges, under both state and federal law, the preclusion of an argument she wished to make at summation—namely that it was the victim of the shooting who first produced the gun that resulted in her being shot.\* Defendant’s challenges fail because to allow the requested summation argument would be to permit defense counsel to call upon the jury to reach conclusions that are “not fairly inferable from the evidence” (*People v Ashwal*, 39 NY2d 105, 110 [1976]). The privilege of counsel to comment in summation on any

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\* Defendant also claims that it was reversible error to preclude defense counsel from arguing at summation that the victim struggled with defendant over the gun. We do not address whether that ruling was error because the ruling was harmless. Defense counsel was permitted to argue that the gun went off accidentally, during a struggle over a handbag, and that defendant did not intend to cause serious physical injury.



matters of fact pertinent to questions that the jury must decide is not absolute. The privilege “can never operate as a license to state to a jury facts not in evidence” (*Williams v Brooklyn El. R.R. Co.*, 126 NY 96, 103 [1891]), or to argue theories for which there is absolutely no evidentiary support.

Here, regardless of whether there was evidentiary support for the argument that the victim was shot during a struggle over the gun, the jury heard no evidence from which it would be reasonable to conclude that the gun was first displayed by the victim. In particular, the testimony of a police officer, that the victim told him that the gun with which she was shot was “heavier” than a gun he showed her for the purpose of comparison, is irrelevant to the issue whether the defendant or the victim first produced the gun. Moreover, the officer himself clarified the term, saying “[h]eavier, meaning larger,” and a victim’s recollection of the size of a gun in no way supports the theory that she first displayed the gun.

[2] Defendant also challenges that part of the jury charge instructing the jury that if it found that the victim was “truthful and accurate in her testimony to you, [then] her testimony without any other eye witness to what happened inside the car, under the law satisfies the proof beyond a reasonable doubt.” Where, as here, a single sentence in a jury charge is challenged by the defendant, we “do not consider the challenged sentence alone and in a vacuum but instead must read the instruction as a whole to determine if it was likely to confuse the jury” (*People v Fields*, 87 NY2d 821, 823 [1995]). Here, although the challenged sentence itself does not accurately convey the principle that a single victim’s testimony *can* on its own prove guilt beyond a reasonable doubt, Supreme Court immediately went on to state that principle correctly. The court charged the jury that if the victim’s testimony “after your careful scrutiny does satisfy you beyond a reasonable doubt then her testimony alone *can* be sufficient to convict without other eye witness testimony” (emphasis added). Moreover, Supreme Court emphasized, in parts of the jury charge immediately before and after the challenged sentence, that the central duty of the jury was to decide whether the charged crimes had been proved beyond a reasonable doubt. In light of the charge as a whole, no reasonable juror would have concluded that if he or she found the victim’s testimony credible, then he or she had to find defendant guilty—without assessing whether all of the evidence was sufficient to show beyond a reasonable doubt that defendant was guilty.



JONES, J. (dissenting). By limiting defendant's argument on summation, the trial court impermissibly infringed on defendant's constitutional right to present an argument to the jury which was reasonably supported by the evidence. Further, by misstating the appropriate standard of proof in a portion of the jury charge (*see* majority mem at 788), the trial court unwittingly fostered a guilty verdict in accordance with the victim's testimony. Because these errors, individually and cumulatively, deprived defendant of a fair trial, I respectfully dissent.

On July 14, 2007, defendant and the victim attended the birthday party of a mutual friend at a restaurant on 14th Street and Ninth Avenue in Manhattan. As the party ended, defendant noticed that \$3,000 was missing from her pocketbook. Because the victim had held the pocketbook at one point during the evening, defendant suspected she had stolen the money. After leaving the restaurant, defendant confronted the victim with a gun in the front seat of the victim's car. Other than defendant and the victim, who was behind the wheel, there was no one else in the car. According to the victim, defendant cocked the gun as she approached her car. Once in the car, defendant demanded to search her handbag, she refused, and she was shot while they struggled. Although the victim testified that she did not touch the gun with which she was shot, a police officer testified that the victim told him that the gun at issue was "a little bit heavier" than a gun he showed her for comparison purposes. Defendant did not testify at trial.

After the People rested, defense counsel sought a ruling as to whether it would be permissible to argue during summation that there was a struggle for *the gun* before the gun went off. The court asked defense counsel to address the People's argument that "there is no evidence of any struggle over a gun." Counsel responded, "it is not an unreasonable inference during such an altercation in the car with a gun loaded that at some point she attempted . . . to pull the gun away." Supreme Court concluded that counsel would not be permitted to argue on summation that there was a struggle over the gun because there was "no evidence of that." The court only allowed counsel to argue on summation that there was a struggle over the bag and the gun went off accidentally.

Under the Sixth Amendment, a defendant in a criminal prosecution has the right to have the assistance of counsel for his defense (*see Johnson v Zerbst*, 304 US 458, 462 [1938]). This right was deemed necessary to ensure the fundamental human

rights of life and liberty (*id.*), and made obligatory on the states by the Fourteenth Amendment (see *Gideon v Wainwright*, 372 US 335 [1963]).<sup>1</sup> “[T]he right to the assistance of counsel has been understood to mean that there can be no restrictions upon the function of counsel in defending a criminal prosecution in accord with the traditions of the adversary factfinding process that has been constitutionalized in the Sixth and Fourteenth Amendments” (*Herring v New York*, 422 US 853, 857 [1975]). In short, this right ensures that criminal defendants have a full and fair opportunity to participate in the adversary factfinding process (*id.* at 858).

“[C]losing argument for the defense is a basic element of the adversary factfinding process in a criminal trial” (*id.* at 858),<sup>2</sup> and the “last . . . chance to persuade the trier of fact that there may be a reasonable doubt of the defendant’s guilt” (*id.* at 862). This Court wrote:

“It is the privilege of counsel in addressing a jury to comment upon every pertinent matter of fact bearing upon the questions which the jury have to decide. This privilege . . . is most important to preserve and . . . ought not to be narrowed by any close construction, but should be interpreted in the largest sense. The right of counsel to address the jury upon the facts is of public as well as private consequence, for its exercise has always proved one of the most effective aids in the ascertainment of truth by juries in courts of justice, and this concerns the very highest interest of the state. The jury

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1. Article I, § 6 of the New York State Constitution provides in pertinent part that a defendant “shall be allowed to appear and defend in person and with counsel.” Although “[t]he Right to Counsel Clause in the State Constitution is more restrictive than that guaranteed by the Sixth Amendment to the United States Constitution[,]” this Court, “by resting the right upon this State’s constitutional provisions guaranteeing the privilege against self-incrimination, the right to assistance of counsel and due process of law[, has] provided protection to accuseds far more expansive than the Federal counterpart” (*People v Bing*, 76 NY2d 331, 338-339 [1990] [citations and footnote omitted]).

2. As the *Herring* Court stated:

“It can hardly be questioned that closing argument serves to sharpen and clarify the issues for resolution by the trier of fact in a criminal case. For it is only after all the evidence is in that counsel for the parties are in a position to present their respective versions of the case as a whole. Only then can they argue the inferences to be drawn from all the testimony, and point out the weaknesses of their adversaries’ positions” (422 US at 862).

system would fail . . . if freedom of advocacy should be unduly hampered and counsel should be prevented from exercising within the four corners of the evidence the widest latitude by way of comment, denunciation or appeal in advocating his cause” (*Williams v Brooklyn El. R.R. Co.*, 126 NY 96, 102-103 [1891]).<sup>3</sup>

That said, “summation is not an unbridled debate in which the restraints imposed at trial are cast aside so that counsel may employ all the rhetorical devices at his command. There are certain well-defined limits” (*People v Ashwal*, 39 NY2d 105, 109 [1976]). For example, because juries must decide issues on the evidence, counsel, in summing up a case, is permitted to make any summation argument “within the four corners of the evidence” (*Williams*, 126 NY at 103). In addition, counsel must avoid making comments which have no bearing on any legitimate issue in the case (*see Ashwal*, 39 NY2d at 109). “Thus [counsel] may not refer to matters not in evidence or call upon the jury to draw conclusions which are not fairly inferable from the evidence” (*id.* at 109-110 [citations omitted]).

Finally, trial judges have great latitude in controlling the duration and limiting the scope of closing summations (*see Herring*, 422 US at 862). For example, a trial judge, in the exercise of his or her broad discretion, may seek to ensure that counsel’s argument does not stray unduly from the mark, or otherwise impede the fair and orderly conduct of the trial (*id.*).

In this case, the evidence adduced lent itself to several interpretations. For example, in accordance with the People’s theory of the case, one could reasonably view the evidence as establishing that defendant entered the victim’s car with a gun, struggled with the victim in an effort to seize the victim’s bag and then *intentionally* shot the victim. Another reasonable view of the evidence was that, even accepting the victim’s testimony as true, the gun accidentally discharged during the course of the struggle over the victim’s bag or over the gun itself. However, defense counsel was precluded from making the argument concerning a struggle over the gun because Supreme Court found that it lacked evidentiary support. The Appellate Division determined that Supreme Court’s preclusion order was a proper exercise of that court’s discretion. I disagree because the

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3. The right of counsel to address the jury upon the facts is guaranteed to the defendant and prosecutor alike (*see People v Ashwal*, 39 NY2d 105, 109 [1976]).

alternative theory defense counsel sought to advance was supported by the evidence; thus, Supreme Court lacked discretion to deprive defendant of what amounted to her only viable theory of defense (*see Chambers v Mississippi*, 410 US 284, 294 [1973] [cited for the proposition that the right to present a defense is one of the “minimum essentials of a fair trial”]).

If the jury did not believe the victim’s account of what happened, it could certainly have rejected all of her testimony, including her claim that defendant entered her car with an already cocked gun. Clearly, defense counsel’s proposed argument—that defendant and the victim struggled over the gun rather than the victim’s bag—was relevant, material, and “within the four corners of the evidence” (*Williams*, 126 NY at 103). There was evidence adduced at trial from a police officer that the victim described the gun in terms of weight, that is, it was “heavier” than the other gun the same officer presented to her for comparison purposes. Although the majority seeks to explain this away by pointing out that “the officer himself clarified the term, saying ‘[h]eavier, meaning larger’ ” (majority mem at 788), this explanation actually raises factual questions for the jury as to whether the witness held the two guns and was able to compare their weights. I submit that this evidence can reasonably be interpreted to support the view that the victim in fact held the gun, that she lied when she denied doing so, and that, therefore, she lied when she testified that defendant (1) entered her car with a cocked gun in hand, and (2) struggled over the bag rather than the gun. However, the jury did not have an opportunity to accept or reject the theory defense counsel sought to advance—an argument that could have sharpened and clarified the issues for resolution by the jury.

Thus, by upholding the lower court rulings precluding defense counsel from making the stated summation argument, the majority not only put this Court’s imprimatur on rulings that deprived defendant of the opportunity to advance a viable theory of defense, it deprived defendant of her right to fully and fairly participate in the adversarial factfinding process. Further, because defense counsel was not allowed to argue the reasonable inferences to be drawn from *all* the testimony, the jury could not adequately perform its function as trier of fact.

In declining to determine whether the trial court erred in striking defense counsel’s summation argument that the victim struggled with defendant over the gun (*see* majority mem at 787 n), the majority casts this ruling as “harmless” based on the

argument the trial court actually allowed defense counsel to make (*id.*). I do not agree that this ruling can be deemed “harmless.” The precluded argument bears directly on the question whether defendant *intended* to cause serious physical injury, an element required to prove first-degree (intentional) assault. If the jury believed that the struggle was over the gun, that would tend to disprove the mens rea necessary for intentional assault. Moreover, defense counsel, in advancing the only summation argument he was permitted to make (that the shooting was accidental), was effectively relegated to conceding the truthfulness of the victim’s account of the incident (that defendant entered the car with a gun and the struggle was over the victim’s handbag). And certainly it would be far more likely for the gun to discharge accidentally in a struggle over the weapon itself, than in a struggle over a handbag. In light of the foregoing, the challenged ruling cannot be considered harmless.

Finally, I address defendant’s challenge to a portion of the jury charge. At trial, the jury was instructed that “if you find [the victim] was truthful and accurate in her testimony to you, her testimony without any other eye witness to what happened inside the car, under the law satisfies the proof beyond a reasonable doubt.” It is undisputed that this sentence does not accurately convey accepted reasonable doubt principles, and that the trial court did not correct this portion of the charge. It is also undisputed that the trial court stated the applicable principles correctly in other parts of the jury charge.

While I am well aware of this Court’s jurisprudence holding that where a sentence in a jury charge is challenged, courts do not consider such sentence in a vacuum, but read the charge as a whole to determine if it is likely to confuse the jury, I am troubled by the fact that this portion of the charge related specifically to the victim’s testimony. This error is magnified by the fact that defendant did not testify, and the victim and defendant were the only persons present in the vehicle. Given the charging error and the trial court’s rulings as to what defense counsel was allowed to argue on summation, it is likely that the incorrect reasonable doubt standard fostered a guilty verdict.

This case concerns me for the following reasons. The trial court erroneously precluded a summation argument that was reasonably supported by the evidence. Moreover, considering the impact of the trial court’s rulings, the erroneous portion of the charge concerning reasonable doubt and the fact that this is essentially a one-witness case, defendant was placed in an untenable position upon exercising her right not to testify.

Based on the foregoing, I would reverse the order of the Appellate Division and grant defendant a new trial.

Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur; Judge JONES dissents and votes to reverse in an opinion in which Chief Judge LIPPMAN concurs.

Order affirmed in a memorandum.

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FAYE M. EATON et al., Appellants, v WAYNE TEACHERS ASSOCIATION et al., Respondents.

Submitted January 3, 2011; decided February 24, 2011

Reported below, 78 AD3d 1588.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

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RICHARD J. ERICKSON, Respondent, v CROSS READY MIX, INC., et al., Respondents, and TURNER CONSTRUCTION COMPANY, Appellant, et al., Defendants. (And a Third-Party Action.)

Submitted January 3, 2011; decided February 24, 2011

Reported below, 75 AD3d 519, 524.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

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ROBERT H. HAMILTON et al., Respondents, v DAVID MURPHY, Appellant.

Submitted January 3, 2011; decided February 24, 2011

Reported below, 79 AD3d 1210.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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DONNA HURST HEPBURN, Respondent, v DAVID HEPBURN, Appellant.

Submitted January 3, 2011; decided February 24, 2011

Reported below, 78 AD3d 1001.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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MATTHIEU MACENO, Appellant, v KETLY DUTREVIL et al., Respondents.

Submitted December 6, 2010; decided February 24, 2011

Reported below, 77 AD3d 888.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed so much of Supreme Court's order as pertains to the motion in that court for the imposition of sanctions, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the order sought to be appealed from do not finally determine the action within the meaning of the Constitution.

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CHARMAINE MANGAROO, Appellant, v JAMES BECKMAN et al., Respondents.

Submitted December 13, 2010; decided February 24, 2011

Reported below, 74 AD3d 1293.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the judgment of Supreme Court denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the Appellate Division order sought to be appealed from do not finally determine the action within the meaning of the Constitution.

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In the Matter of STEPHEN ROSENBLUM, Respondent, v NEW YORK CITY CONFLICTS OF INTEREST BOARD et al., Appellants.

Submitted January 18, 2011; decided February 24, 2011

Reported below, 75 AD3d 426.

Motion by the Association of the Bar of the City of New York for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

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**DALE R. SAN MARCO et al., Appellants, v VILLAGE/TOWN OF MOUNT KISCO, Respondent.**

Submitted January 24, 2011; decided February 24, 2011

Reported below, 57 AD3d 874.

Motion for reargument denied [*see* 16 NY3d 111 (2010)].**STATE OF NEW YORK, Respondent, v C.J. BURTH SERVICES, INC., et al., Appellants.**

Submitted January 10, 2011; decided February 24, 2011

Reported below, 79 AD3d 1298.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

**APPEALS WITHDRAWN AND DISCONTINUED**

(February 1, 2011 through February 28, 2011)

|                                                    |                        |         |
|----------------------------------------------------|------------------------|---------|
| Banc of Am. Sec. LLC v Solow Bldg. Co. II, L.L.C.  | 1st Dept: 47 AD3d 239  | 2/23/11 |
| Haque, Matter of, v Bezio                          | 4th Dept: 75 AD3d 1105 | 2/16/11 |
| People v Grimm                                     | 3d Dept: 69 AD3d 1231  | 2/14/11 |
| Strachman v Palestinian Auth.                      | 1st Dept: 73 AD3d 124  | 2/23/11 |
| Suppiah v Kalish                                   | 1st Dept: 76 AD3d 829  | 2/16/11 |
| Town of Hempstead v East Coast Resource Group, LLC | 2d Dept: 67 AD3d 777   | 2/16/11 |

**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

(February 1, 2011 through February 28, 2011)

|                   |                                                                         |                                  |
|-------------------|-------------------------------------------------------------------------|----------------------------------|
| People v Arriaga  | 2d Dept: 77 AD3d 846 (Kings)                                            | denied 2/23/11 (Ciparick, J.)    |
| People v Bork     | 4th Dept: 77 AD3d 1278 (Oneida)                                         | denied 2/24/11 (Ciparick, J.)    |
| People v Caban    | 1st Dept: 78 AD3d 403 (NY)                                              | denied 2/24/11 (Ciparick, J.)    |
| People v Caldwell | 4th Dept: 78 AD3d 1562 (Monroe)                                         | denied 2/1/11 (Smith, J.)        |
| People v Canteen  | App Term, 2d Dept: 30 Misc 3d 132(A), 2010 NY Slip Op 52351(U) (Queens) | denied 2/22/11 (Lippman, Ch. J.) |



## MEMORANDA

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|                              |                                                     |                                                  |
|------------------------------|-----------------------------------------------------|--------------------------------------------------|
| People v Cantoni             | 1st Dept: 77 AD3d 416 (NY)                          | denied 2/25/11<br>(Smith, J.)                    |
| People v Carmichael          | 1st Dept: 73 AD3d 622 (NY)                          | denied 2/24/11<br>(Pigott, J.)                   |
| People v Cocheekaran         | 1st Dept: 78 AD3d 551 (Bronx)                       | denied 2/23/11<br>(Smith, J.)                    |
| People v Collins             | 1st Dept: 77 AD3d 404 (NY)                          | denied 2/24/11<br>(Ciparick, J.)                 |
| People v Copp                | 4th Dept: 78 AD3d 1548 (Niagara)                    | denied 2/24/11<br>(Ciparick, J.)                 |
| People v Cruz                | 1st Dept: 78 AD3d 440 (NY)                          | denied 2/24/11<br>(Ciparick, J.)                 |
| People v Davis               | 3d Dept: 79 AD3d 1267 (Albany)                      | denied 2/25/11<br>(Smith, J.)                    |
| People v DiGennaro           | County Ct, 9/16/10 (Monroe)                         | denied 2/15/11<br>(Read, J.)                     |
| People v Dikshteyn           | 2d Dept: 77 AD3d 851 (Kings)                        | denied 2/23/11<br>(Ciparick, J.)                 |
| People v Dion                | County Ct, 11/5/10 (Oneida)                         | denied 2/15/11<br>(Read, J.)                     |
| People v Dunham              | 2d Dept: 78 AD3d 1073 (Westchester)                 | denied 2/24/11<br>(Grafteo, J.)                  |
| People v Escalera            | 1st Dept: 77 AD3d 510 (NY)                          | denied <sup>1</sup> 2/22/11<br>(Lippman, Ch. J.) |
| People v Escobar             | 1st Dept: 79 AD3d 469 (Bronx)                       | denied 2/25/11<br>(Pigott, J.)                   |
| People v Estrada             | 1st Dept: 78 AD3d 408 (NY)                          | denied 2/23/11<br>(Ciparick, J.)                 |
| People v Fleming             | 1st Dept: 79 AD3d 626 (NY)                          | denied 2/24/11<br>(Grafteo, J.)                  |
| People v Freeman             | 2d Dept: 79 AD3d 1064 (Queens)                      | granted 2/1/11<br>(Ciparick, J.)                 |
| People v Fuller              | App Div, 1st Dept: 2010 NY Slip Op<br>91819(U) (NY) | dismissed 2/22/11<br>(Grafteo, J.)               |
| People v Gallo               | County Ct, 12/15/10 (Erie)                          | denied 2/23/11<br>(Smith, J.)                    |
| People v Garcia              | 3d Dept: 79 AD3d 1248 (Chemung)                     | denied 2/24/11<br>(Grafteo, J.)                  |
| People v George (Lewis)      | 2d Dept: 76 AD3d 583 (Kings)                        | denied 2/15/11<br>(Read, J.)                     |
| People v George<br>(Raymond) | 3d Dept: 78 AD3d 1327 (Schoharie)                   | denied 2/24/11<br>(Ciparick, J.)                 |
| People v Gifford             | 4th Dept: 79 AD3d 1659 (Monroe)                     | denied 2/25/11<br>(Smith, J.)                    |
| People v Gray                | 2d Dept: 77 AD3d 766 (Queens)                       | denied 2/1/11<br>(Smith, J.)                     |

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1. Denied, without prejudice to renew within 30 days after the Court of Appeals renders its decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

|                              |                                                          |                                              |
|------------------------------|----------------------------------------------------------|----------------------------------------------|
| People v Griffith            | 2d Dept: 78 AD3d 1194 (Kings)                            | dismissed 2/22/11<br>(Grafteo, J.)           |
| People v Haddock             | 2d Dept: 79 AD3d 1148 (Westchester)                      | denied 2/25/11<br>(Smith, J.)                |
| People v Hall                | 2d Dept: 79 AD3d 1068 (Queens)                           | granted 2/1/11<br>(Ciparick, J.)             |
| People v Haynes              | County Ct, 8/20/10 (Erie)                                | denied 2/15/11<br>(Read, J.)                 |
| People v Herring             | App Term, 2d Dept: 29 Misc 3d 126(A)<br>(Kings)          | denied 2/24/11<br>(Lippman, Ch. J.)          |
| People v Hilder              | 3d Dept: 79 AD3d 1459 (Warren)                           | denied 2/18/11<br>(Grafteo, J.)              |
| People v Hughes              | 1st Dept: 78 AD3d 457 (NY)                               | denied 2/23/11<br>(Lippman, Ch. J.)          |
| People v Illis               | 2d Dept: 76 AD3d 1031 (Kings)                            | denied 2/23/11<br>(Ciparick, J.)             |
| People v Johnson<br>(Daimon) | 2d Dept: 78 AD3d 965 (Kings)                             | denied <sup>2</sup> 2/24/11<br>(Grafteo, J.) |
| People v Johnson (Lyle)      | 2d Dept: 76 AD3d 1031 (Rockland)                         | denied 2/22/11<br>(Lippman, Ch. J.)          |
| People v Keller              | 2d Dept: 77 AD3d 852 (Nassau)                            | denied 2/22/11<br>(Grafteo, J.)              |
| People v Kennedy             | 4th Dept: 78 AD3d 1477 (Cayuga)                          | denied 2/24/11<br>(Ciparick, J.)             |
| People v Kramtsov            | App Term, 1st Dept: 27 Misc 3d 144(A)<br>(NY)            | withdrawn<br>2/22/11<br>(Ciparick, J.)       |
| People v Kuhwaian            | 1st Dept: 77 AD3d 408 (Bronx)                            | denied 2/24/11<br>(Lippman, Ch. J.)          |
| People v Laporte             | App Div, 1st Dept: 2010 NY Slip Op<br>88586(U) (NY)      | dismissed 2/15/11<br>(Read, J.)              |
| People v Laster (Keith)      | 4th Dept: 78 AD3d 1479 (Monroe)                          | denied 2/1/11<br>(Smith, J.)                 |
| People v Laster (Keith)      | 4th Dept: 78 AD3d 1481 (Monroe)                          | denied 2/1/11<br>(Smith, J.)                 |
| People v Magliocco           | 4th Dept: 78 AD3d 1648 (Genesee)                         | denied 2/25/11<br>(Smith, J.)                |
| People v Manning             | County Ct, 10/14/10 (Erie)                               | denied 2/9/11<br>(Jones, J.)                 |
| People v Marshall            | App Term, 2d Dept: 2010 NY Slip Op<br>52388(U) (Suffolk) | denied 2/23/11<br>(Smith, J.)                |
| People v Martinez            | 3d Dept: 79 AD3d 1378 (Saratoga)                         | denied 2/23/11<br>(Smith, J.)                |
| People v Mas                 | 1st Dept: 80 AD3d 430 (NY)                               | denied 2/25/11<br>(Smith, J.)                |
| People v McCant              | 2d Dept: 79 AD3d 908 (Suffolk)                           | denied 2/18/11<br>(Grafteo, J.)              |

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2. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

## MEMORANDA

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|                       |                                                  |                                                       |
|-----------------------|--------------------------------------------------|-------------------------------------------------------|
| People v McKeon       | 4th Dept: 78 AD3d 1617 (Orleans)                 | denied 2/23/11<br>(Lippman, Ch. J.)                   |
| People v Mendez       | 4th Dept: 77 AD3d 1312 (Monroe)                  | denied 2/24/11<br>(Lippman, Ch. J.)                   |
| People v Miranda      | 1st Dept: 76 AD3d 466 (Bronx)                    | denied <sup>3</sup> 2/5/11<br>(Jones, J.)             |
| People v Mixon        | 4th Dept: 77 AD3d 1455 (Erie)                    | denied 2/24/11<br>(Lippman, Ch. J.)                   |
| People v Neal         | 1st Dept: 79 AD3d 523 (NY)                       | denied <sup>4</sup> 2/18/11<br>(Grafteo, J.)          |
| People v Nix          | 4th Dept: 78 AD3d 1698 (Monroe)                  | denied 2/22/11<br>(Grafteo, J.)                       |
| People v Nunez        | 1st Dept: 78 AD3d 503 (NY)                       | denied 2/22/11<br>(Grafteo, J.)                       |
| People v Ortiz        | 1st Dept: 78 AD3d 430 (NY)                       | denied 2/24/11<br>(Ciparick, J.)                      |
| People v Parson       | 1st Dept: 77 AD3d 524 (NY)                       | denied 2/4/11<br>(Smith, J.)                          |
| People v Payne        | 1st Dept: 79 AD3d 509 (NY)                       | denied 2/23/11<br>(Smith, J.)                         |
| People v Pearson      | 1st Dept: 78 AD3d 445 (Bronx)                    | denied 2/4/11<br>(Smith, J.)                          |
| People v Phillips     | 1st Dept: 70 AD3d 562 (Bronx)                    | denied 2/24/11<br>(Grafteo, J.)                       |
| People v Pittman      | 4th Dept: 78 AD3d 1634 (Monroe)                  | denied 2/23/11<br>(Smith, J.)                         |
| People v Porter       | 2d Dept: 77 AD3d 771 (Nassau)                    | denied 2/28/11<br>(Smith, J.)                         |
| People v Povoski      | 4th Dept: 78 AD3d 1533 (Monroe)                  | denied 2/25/11<br>(Pigott, J.)                        |
| People v Reyes        | App Div, 1st Dept: 2010 NY Slip Op 89912(U) (NY) | dismissed 2/9/11<br>(Jones, J.)                       |
| People v Rios (Elvin) | 4th Dept: 72 AD3d 1489 (Erie)                    | denied<br>reconsideration<br>2/24/11<br>(Grafteo, J.) |
| People v Rios (Elvin) | 4th Dept: 72 AD3d 1491 (Erie)                    | denied<br>reconsideration<br>2/24/11<br>(Grafteo, J.) |
| People v Rivera       | 2d Dept: 78 AD3d 1203 (Queens)                   | denied 2/24/11<br>(Grafteo, J.)                       |
| People v Rosa         | 1st Dept: 79 AD3d 490 (Bronx)                    | denied 2/24/11<br>(Grafteo, J.)                       |
| People v Santiago     | 1st Dept: 77 AD3d 407 (Bronx)                    | granted 2/3/11<br>(Pigott, J.)                        |

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3. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Brannon* (60 AD3d 498 [2009], *lv granted* 15 NY3d 747 [2010]) and *People v Fernandez* (60 AD3d 549 [2009], *lv granted* 15 NY3d 749 [2010]).

4. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Brannon* (60 AD3d 498 [2009], *lv granted* 15 NY3d 747 [2010]) and *People v Fernandez* (60 AD3d 549 [2009], *lv granted* 15 NY3d 749 [2010]).

|                               |                                                            |                                               |
|-------------------------------|------------------------------------------------------------|-----------------------------------------------|
| People v Santos               | 2d Dept: 73 AD3d 1094 (Kings)                              | denied 2/22/11<br>(Lippman, Ch. J.)           |
| People v Sarita               | 1st Dept: 77 AD3d 555 (NY)                                 | denied 2/23/11<br>(Ciparick, J.)              |
| People v Small                | 2d Dept: 74 AD3d 843 (Orange)                              | denied 2/22/11<br>(Lippman, Ch. J.)           |
| People v Smith                | 1st Dept: 79 AD3d 486 (Bronx)                              | denied 2/25/11<br>(Pigott, J.)                |
| People v Snow                 | 3d Dept: 79 AD3d 1252 (Madison)                            | denied 2/23/11<br>(Smith, J.)                 |
| People v Stanistreet          | 4th Dept: 78 AD3d 1586 (Oneida)                            | denied 2/25/11<br>(Pigott, J.)                |
| People v Stenson              | App Div, 1st Dept: 2010 NY Slip Op<br>90622(U) (NY)        | denied 2/23/11<br>(Smith, J.)                 |
| People v Steward              | 1st Dept: 78 AD3d 481 (NY)                                 | granted 2/24/11<br>(Ciparick, J.)             |
| People v Storm-Eggink         | County Ct, 9/29/10 (Albany)                                | denied 2/18/11<br>(Grafteo, J.)               |
| People v Surdis               | 3d Dept: 77 AD3d 1018 (Ulster)                             | denied 2/24/11<br>(Lippman, Ch. J.)           |
| People v Taylor               | 2d Dept: 78 AD3d 865 (Richmond)                            | denied 2/23/11<br>(Grafteo, J.)               |
| People v Terry                | 2d Dept: 78 AD3d 1207 (Queens)                             | denied 2/23/11<br>(Grafteo, J.)               |
| People v Thomas               | 4th Dept: 77 AD3d 1325 (Oswego)                            | denied 2/23/11<br>(Ciparick, J.)              |
| People v Thorsen<br>(Timothy) | App Div, 3d Dept: 2010 NY Slip Op<br>81400(U) (Rensselaer) | dismissed 2/15/11<br>(Read, J.)               |
| People v Thorsen<br>(Timothy) | App Div, 3d Dept: 2010 NY Slip Op<br>80130(U) (Rensselaer) | denied 2/16/11<br>(Read, J.)                  |
| People v Tyrell               | App Term, 1st Dept: 30 Misc 3d 128(A)<br>(NY)              | denied 2/24/11<br>(Grafteo, J.)               |
| People v Vargus               | 1st Dept: 79 AD3d 526 (NY)                                 | denied 2/23/11<br>(Grafteo, J.)               |
| People v Vitarelli            | 2d Dept: 77 AD3d 778 (Westchester)                         | denied 2/22/11<br>(Lippman, Ch. J.)           |
| People v Washington           | 4th Dept: 77 AD3d 1456 (Monroe)                            | denied 2/22/11<br>(Lippman, Ch. J.)           |
| People v Watkins<br>(Judson)  | 4th Dept: 79 AD3d 1648 (Onondaga)                          | denied 2/23/11<br>(Smith, J.)                 |
| People v Watkins<br>(Steven)  | 2d Dept: 77 AD3d 857 (Kings)                               | denied <sup>5</sup> 2/23/11<br>(Ciparick, J.) |
| People v Watson               | App Div, 2d Dept: 2010 NY Slip Op<br>91633(U) (Orange)     | dismissed 2/10/11<br>(Ciparick, J.)           |
| People v Weems                | County Ct, 10/20/10 (Wayne)                                | denied 2/24/11<br>(Lippman, Ch. J.)           |

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5. Denied, without prejudice to renew within 30 days after the Court of Appeals renders its decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

## MEMORANDA

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|                    |                                                      |                                            |
|--------------------|------------------------------------------------------|--------------------------------------------|
| People v Whaley    | App Div, 2d Dept: 2011 NY Slip Op 60458(U) (Suffolk) | dismissed 2/17/11 (Jones, J.)              |
| People v Wiggins   | 2d Dept: 78 AD3d 1208 (Suffolk)                      | denied 2/24/11 (Grafteo, J.)               |
| People v Willis    | 4th Dept: 78 AD3d 1604 (Niagara)                     | denied 2/24/11 (Lippman, Ch. J.)           |
| People v Wongshing | App Div, 1st Dept: 2010 NY Slip Op 89191(U) (NY)     | denied 2/24/11 (Grafteo, J.)               |
| People v Woods     | 2d Dept: 77 AD3d 690 (Richmond)                      | denied <sup>6</sup> 2/23/11 (Ciparick, J.) |
| People v Wright    | 1st Dept: 78 AD3d 474 (NY)                           | granted 2/24/11 (Ciparick, J.)             |
| People v Younes    | App Term, 1st Dept: 30 Misc 3d 128(A) (NY)           | denied 2/25/11 (Smith, J.)                 |

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[946 NE2d 740, 921 NYS2d 641]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v BARAK CORNELL, Respondent.

Decided March 24, 2011

## SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered July 9, 2010. The Appellate Division (1) reversed, on the law, a judgment of the Chautauqua County Court (John T. Ward, J.), which had convicted defendant, upon his plea of guilty, of arson in the second degree, (2) vacated the plea, and (3) remitted the matter to County Court for further proceedings on the indictment.

*People v Cornell*, 75 AD3d 1157, affirmed.

## HEADNOTE

**Crimes — Plea of Guilty — Failure to Advise Defendant of Postrelease Supervision**

The defendant's conviction was correctly reversed and his guilty plea vacated, even in the absence of a postallocation motion, where the record did not make clear that at the time defendant took his plea, he was aware that

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6. Denied, without prejudice to renew within 30 days after the Court of Appeals renders its decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

the terms of the court's promised sentence included a period of postrelease supervision (PRS). A trial court has the constitutional duty to advise a defendant of the direct consequences of a guilty plea, including any period of PRS that will be imposed as part of the sentence, and the record must be clear that the plea represents a voluntary and intelligent choice among the alternative courses of action open to the defendant. Where a trial judge does not fulfill the obligation to advise a defendant of postrelease supervision during the plea allocution, the defendant may challenge the plea as not knowing, voluntary and intelligent on direct appeal, notwithstanding the absence of a postallocation motion.

#### APPEARANCES OF COUNSEL

*David W. Foley, District Attorney, Mayville (Lynn S. Schaffer of counsel), for appellant.*

*Lipsitz Green Scime Cambria LLP, Buffalo (Timothy P. Murphy of counsel), for respondent.*

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed.

A trial court has the constitutional duty to advise a defendant of the direct consequences of a guilty plea, including any period of postrelease supervision (PRS) that will be imposed as part of the sentence (*see People v Catu*, 4 NY3d 242, 244-245 [2005]). “Although the court is not required to engage in any particular litany when allocuting the defendant, ‘due process requires that the record must be clear that the plea represents a voluntary and intelligent choice among the alternative courses of action open to the defendant’ ” (*id.* at 245, quoting *People v Ford*, 86 NY2d 397, 403 [1995]). “[T]he failure of a court to advise of postrelease supervision requires reversal of the conviction” (*id.* at 245). Further, “where a trial judge does not fulfill the obligation to advise a defendant of postrelease supervision during the plea allocution, the defendant may challenge the plea as not knowing, voluntary and intelligent on direct appeal, notwithstanding the absence of a postallocation motion” (*People v Louree*, 8 NY3d 541, 545-546 [2007]).

Here, the record does not make clear, as required by *Catu*, that at the time defendant took his plea, he was aware that the terms of the court's promised sentence included a period of PRS. Accordingly, the Appellate Division correctly determined that defendant's conviction must be reversed and that his guilty plea be vacated even in the absence of a postallocation motion.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

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[946 NE2d 738, 921 NYS2d 640]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT KELLY, Appellant.

Argued February 17, 2011; decided March 24, 2011

### SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 8, 2009. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Charles J. Heffernan, J., at hearing and trial; John P. Walsh, J., at sentence), which had convicted defendant, upon a jury verdict, of robbery in the first degree and burglary in the first degree.

*People v Kelly*, 68 AD3d 895, affirmed.

### HEADNOTE

#### Crimes — Appeal — Preservation of Issue for Review

In a criminal prosecution during which a juror, after five hours of deliberation, communicated to the court concern about child care issues, defendant's contention that his constitutional and statutory rights to a jury trial were violated by the trial court's failure to instruct the jury to cease deliberations while a court officer spoke to the juror in private, was not preserved for appellate review. Moreover, there was no mode of proceedings error dispensing with the preservation requirement because the brief, momentary separation of the juror from deliberations was not the type of violation contemplated by the "continuously kept together" language of CPL 310.10 (1).

### APPEARANCES OF COUNSEL

*Appellate Advocates*, New York City (Warren S. Landau and Lynn W.L. Fahey of counsel), for appellant.

*Charles J. Hynes*, District Attorney, Brooklyn (Anthea H. Bruffee, Leonard Joblove and Ann Bordley of counsel), for respondent.

### OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Following a jury trial, defendant Robert Kelly was convicted of charges of robbery in the first degree and burglary in the first degree arising out of an incident that occurred on May 31, 2005.

Following five hours of deliberations, a juror communicated to the trial court concern regarding child care issues. After consulting with counsel for the People and defendant on how to resolve the issue, the trial court directed its court officer to speak to the juror privately, but did not direct the jury to stop deliberating, nor command the court officer to provide such instructions. The court officer reported the particular child care issue to the court and the jury was dismissed for the evening. Deliberations resumed for the following day and a half, and defendant was convicted. The Appellate Division affirmed the conviction and a Judge of this Court granted defendant leave to appeal.

Defendant's contention that the trial court's failure to instruct the jury to cease deliberations violated his federal and state constitutional rights to a jury trial and the requirements of CPL 310.10 is not preserved for appellate review (*see People v Patterson*, 39 NY2d 288 [1976]; *People v Ramon*, 291 AD2d 511 [2002]; *People v Johnson*, 224 AD2d 635 [1996]). Moreover, there was no mode of proceedings error dispensing with the preservation requirement because the brief, momentary separation of the juror from deliberations was not the type of violation contemplated by the "continuously kept together" language of CPL 310.10 (*see* CPL 310.10 [1]; *Johnson*, 224 AD2d at 635; *People v Lee*, 205 AD2d 558, 559 [2d Dept 1994]).

Defendant's *Apprendi* challenge to New York's persistent violent felony offender statute is also unpreserved (*see People v Rosen*, 96 NY2d 329, 335 [2001]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

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In the Matter of AAA CARTING AND RUBBISH REMOVAL, INC., Appellant, v TOWN OF SOUTHEAST et al., Respondents.

Submitted March 14, 2011; decided March 24, 2011

Reported below, 74 AD3d 959.

Motions to strike portions of appellant's brief granted to the



extent of deeming stricken Addendum 1 and Addendum 2 to appellant's brief and references thereto in that brief.

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In the Matter of AFTON C., a Child Alleged to be Neglected.  
DUTCHESS COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; JAMES C. et al., Respondents. (And Four Other Proceedings.)

Submitted February 22, 2011; decided March 24, 2011

Reported below, 71 AD3d 887.

Motion by Saratoga County Department of Social Services et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

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In the Matter of AFTON C., a Child Alleged to be Neglected.  
DUTCHESS COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; JAMES C. et al., Respondents. (And Four Other Proceedings.)

Submitted March 7, 2011; decided March 24, 2011

Reported below, 71 AD3d 887.

Motion to strike portions of the briefs of respondent James C. and the child Trevor C. denied.

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In the Matter of JEFFREY BAKER, Respondent, v POUGHKEEPSIE CITY SCHOOL DISTRICT et al., Appellants.

Submitted February 7, 2011; decided March 24, 2011

Reported below, 73 AD3d 916.

Motion by the New York State School Boards Association, Inc. for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein granted, three copies of the brief to be served and an original and 19 copies filed within 30 days.

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LISA HUMBERTSON BRADY, Individually and as Administrator of the Estate of PAUL R. BRADY, Deceased, Appellant, v VILLAGE OF MALVERNE et al., Respondents, et al., Defendants.

Submitted January 10, 2011; decided March 24, 2011

Reported below, 76 AD3d 691.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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JOSE CARIDE et al., Respondents, v ALEJANDRO ALONSO et al., Appellants. (And a Third-Party Action.)

Submitted December 20, 2010; decided March 24, 2011

Reported below, 78 AD3d 466.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the judgment of Supreme Court, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the Appellate Division order sought to be appealed from do not finally determine the combined action and proceeding within the meaning of the Constitution.

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COMMODITY FUTURES TRADING COMMISSION, Respondent, v STEPHEN WALSH et al., Defendants, and JANET WALSH, Appellant.

SECURITIES AND EXCHANGE COMMISSION, Respondent, v WG TRADING INVESTORS, L.P., et al., Defendants, ROBIN GREENWOOD, Relief Defendant, and JANET WALSH, Appellant.

Submitted February 22, 2011; decided March 24, 2011

See 618 F3d 218.

Motion by Elliott Scheinberg, Esq. et al. for leave to appear amici curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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GLORIA DOOMES, Appellant, v BEST TRANSIT CORP. et al., Defendants, and WARRICK INDUSTRIES, INC., Doing Business as GOSHEN COACH, Respondent.

ANA JIMINIAN, Appellant, v BEST TRANSIT CORP. et al., Defendants, and WARRICK INDUSTRIES, INC., Doing Business as GOSHEN COACH, Respondent.

KELLI RIVERA, Appellant, v BEST TRANSIT CORP. et al., Defendants, and WARRICK INDUSTRIES, INC., Doing Business as GOSHEN COACH, Respondent.

Submitted February 28, 2011; decided March 24, 2011

Reported below, 68 AD3d 504.

Motion by American Bus Association, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

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TAMMY D. JOHNSON et al., Appellants, v CITY OF NEW YORK et al., Respondents. (And Another Action.)

Submitted December 20, 2010; decided March 24, 2011

Reported below, 65 AD3d 476.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 15 NY3d 676 (2010)].

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In the Matter of the Arbitration between JOHNSON CITY PROFESSIONAL FIREFIGHTERS LOCAL 921 et al., Respondents, and VILLAGE OF JOHNSON CITY, Appellant. (And Another Proceeding.)

Submitted February 28, 2011; decided March 24, 2011

Reported below, 72 AD3d 1235.

Motion by Professional Fire Fighters Association, I.A.F.F., AFL-CIO for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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NYCTL 1998-2 TRUST et al., Plaintiffs, v ANDREA ELLEN SACK, Appellant, et al., Defendants. GUILA FEINBERG, Nonparty Respondent.

Submitted January 3, 2011; decided March 24, 2011

Reported below, 78 AD3d 915.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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LOUIS F. ORTIZ, Appellant, v VARSITY HOLDINGS, LLC, et al., Respondents.

Submitted February 22, 2011; decided March 24, 2011

Reported below, 75 AD3d 538.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEFFREY AUBREY, Appellant.

Submitted March 14, 2011; decided March 24, 2011

Reported below, 73 AD3d 1393.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RUDY HERNANDEZ, Appellant.

Submitted March 7, 2011; decided March 24, 2011

Reported below, 61 AD3d 993.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed as untimely.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DARNELL LEADER, Appellant.

Submitted March 21, 2011; decided March 24, 2011

Reported below, 2010 NY Slip Op 87637(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALICIA LEWIE, Appellant.

Submitted March 21, 2011; decided March 24, 2011

Reported below, 67 AD3d 1056.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SERGIO RODRIGUEZ, Appellant.

Submitted March 7, 2011; decided March 24, 2011

Reported below, 79 AD3d 644.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NYDIA SANTIAGO, Appellant.

Submitted February 22, 2011; decided March 24, 2011

Reported below, 77 AD3d 407.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY STEWARD, Appellant.

Submitted March 21, 2011; decided March 24, 2011

Reported below, 78 AD3d 481.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NAFIS WRIGHT, Appellant.

Submitted March 21, 2011; decided March 24, 2011

Reported below, 78 AD3d 474.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

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In the Matter of CARLOS RUEDA, M.D., Chairman, Department of Psychiatry, Montefiore North Medical Center, Respondent, v CHARMAINE D., Appellant.

Submitted March 7, 2011; decided March 24, 2011

Reported below, 76 AD3d 443.

Motion by New York State Psychiatric Association, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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In the Matter of CARLOS RUEDA, M.D., Chairman, Department of Psychiatry, Montefiore North Medical Center, Respondent, v CHARMAINE D., Appellant.

Submitted March 14, 2011; decided March 24, 2011

Reported below, 76 AD3d 443.

Motion by New York City Health and Hospitals Corporation

for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

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CHRISTOPHER SCOTT, Appellant, v ROCKAWAY PRATT, LLC, Respondent.

Submitted February 22, 2011; decided March 24, 2011

Reported below, 77 AD3d 60.

Motion for poor person relief granted.

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In the Matter of WORLD TRADE CENTER BOMBING LITIGATION.  
STEERING COMMITTEE et al., Respondents, v PORT AUTHORITY OF  
NEW YORK AND NEW JERSEY, Appellant.

Submitted March 21, 2011; decided March 24, 2011

Reported below, 51 AD3d 337.

Motion by Defense Association of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

Chief Judge LIPPMAN taking no part.

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[946 NE2d 169, 921 NYS2d 181]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HADJI  
S. HILL, Appellant.

Argued February 10, 2011; decided March 29, 2011

#### SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered October 2, 2009. The Appellate Division affirmed a judgment of the Monroe County Court (Patricia D. Marks, J.), which had convicted defendant, upon his plea of guilty, of manslaughter in the first degree.

*People v Hill*, 66 AD3d 1471, reversed.

#### HEADNOTE

##### **Crimes — Plea of Guilty — Withdrawal of Plea**

In a homicide prosecution in which defendant pleaded guilty to first-degree manslaughter, but denied that he intended to cause serious physical injury to

the victim, it could not be said that defendant's guilty plea was the product of a voluntary and rational choice notwithstanding the trial court's further inquiry with respect to the intent element. At the plea proceeding, defendant acknowledged stabbing the victim but denied that he intended to cause serious physical injury, thus negating the intent element of first-degree manslaughter. That deficiency was not cured by the judge's further inquiry in which defendant was asked if he understood that "considering the nature and extent of the injury that ultimately caused the death and the penetration of the wound, that the jury [was] likely to conclude there was an intent to cause death, if not serious physical injury," to which defendant replied "Yes." Absent a recitation as to every element of the crime, the Court may accept an *Alford* plea (see *North Carolina v Alford*, 400 US 25 [1970]) provided it is the product of a voluntary and rational choice and there is strong evidence of actual guilt. There is no such thing as a "limited" *Alford* colloquy or plea, and while the medical evidence provided strong proof of defendant's actual guilt, the record did not establish that he was aware of the nature and character of an *Alford* plea. It was not enough that defendant made concessions from which such a choice might be inferred, especially since the colloquy showed that he may have thought that his knowledge that the knife "could have caused damage" was an admission of guilt.

#### APPEARANCES OF COUNSEL

*Timothy P. Donaher, Public Defender, Rochester (Janet C. Somes of counsel), for appellant.*

*Michael C. Green, District Attorney, Rochester (Leslie E. Swift of counsel), for respondent.*

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be reversed, defendant's plea vacated, and the case remitted to County Court for further proceedings on the indictment.

On November 19, 2005, defendant Hadji Hill pulled a switchblade knife from his pocket and stabbed his uncle in the chest, killing him. This incident took place in defendant's apartment. Defendant was arrested and charged with second-degree intentional murder (Penal Law § 125.25 [1]). On the day a jury trial was scheduled to commence, the trial judge was informed that defendant was prepared to plead guilty to first-degree manslaughter (Penal Law § 125.20), with a promised sentence of 15 years of imprisonment and five years of postrelease supervision. During the plea allocution, however, defendant insisted that he did not intend to kill or harm his uncle. The courtroom was evidently packed with defendant's relatives, including his uncle's family, at the time. The judge then conducted a further inquiry to elicit from defendant a recital of the circumstances and details of the crime.



During the ensuing colloquy, defendant told the judge that he had gotten into an argument and “struggle” with his uncle; he claimed that he “put the knife out just to keep [his uncle] back, but at that same time [his uncle] was coming back into [him] and [the knife] stuck [his uncle].” In response to the judge’s statement that he would “have to admit that [he] intended to cause serious physical injury by using a switchblade knife,” defendant conceded he knew that contact with a switchblade “could have caused damage”; and he acknowledged that the medical evidence would show that the knife penetrated his uncle’s body through several layers of muscle and tissue, broke a rib bone and pierced his heart, creating a two-inch laceration that caused his uncle to bleed to death. The judge asked defendant if he understood that “considering the nature and extent of the injury that ultimately caused the death and the penetration of the wound, that the jury [was] likely to conclude there was an intent to cause death, if not serious physical injury,” and he responded “Yes.” The judge then stated, “And so you’re giving up your right to raise any defenses . . . and accepting that evidence and . . . this plea because of that?” Defendant again answered “Yes,” and pleaded guilty to first-degree manslaughter. The judge accepted his plea.

While awaiting sentence, defendant sent a letter to the judge, asking to withdraw his plea. He argued that his attorney “led [him] to believe that it was in [his] family’s best interest that [he] cop out to 15 years in prison, which turned out to be untrue according to [his] family.” In addition, defendant’s mother wrote to the judge, complaining that her son’s attorney had “tricked” him into taking the plea. The uncle’s widow also wrote, explaining the traumatic effect of her husband’s death on his family, and stating that while she chose to forgive her nephew, he deserved the maximum sentence for his crime.

At sentencing, the judge asked defendant if there was anything he wanted to add to the statements in his letter. Defendant replied, “No. I mean, I should do some time for my uncle. It wasn’t intentional. Sentence just seemed excessive, that’s all”; and later that he “didn’t intend to kill [his] uncle,” who was his “best friend,” and that he “didn’t intend to cause any harm to [his] uncle,” but rather “pulled the knife out just to merely keep him away . . . from coming back and attacking . . . again.” The judge denied defendant’s motion to withdraw his plea, and imposed the bargained-for sentence.

Defendant appealed, arguing that his plea was not knowing, voluntary and intelligent. The Appellate Division concluded

that the plea was valid because the trial judge made the requisite further inquiry to make sure there was no justification defense and conducted what was essentially “a limited *Alford* colloquy with respect to the intent element, thus rendering unnecessary an admission of intent by defendant” (66 AD3d 1471, 1472 [4th Dept 2009]; see *North Carolina v Alford*, 400 US 25 [1970]). We disagree.

At the plea proceeding, defendant denied that he intended to cause serious physical injury to his uncle, thus negating the intent element of first-degree manslaughter. This deficiency was not cured by the judge’s further inquiry. “Even absent a recitation as to every essential element, the court may still accept the plea—now an *Alford* plea” (*Matter of Silmon v Travis*, 95 NY2d 470, 474 n 1 [2000]); however, “*Alford* pleas are—and should be—rare” (*id.* at 474), and are “allowed only when, as in *Alford* itself, [they are] the product of a voluntary and rational choice, and the record before the court contains strong evidence of actual guilt” (*id.* at 475). Accordingly, there is no such thing as a “limited” *Alford* colloquy or plea. While the medical evidence in this case provided strong proof of defendant’s actual guilt, the record does not establish that he was aware of the nature and character of an *Alford* plea. He was not, for example, asked if he wished to plead guilty to first-degree manslaughter to avoid the risk of conviction upon a trial of the more serious crime of second-degree murder (see *People v Serrano*, 15 NY2d 304, 310 [1965]). It is not enough that defendant made concessions from which such a choice might be inferred, especially since the colloquy shows that he may have thought that his knowledge that the switchblade knife “could have caused damage” was an admission of guilt. On these facts, we therefore cannot say that defendant’s guilty plea was “the product of a voluntary and rational choice” (*Silmon*, 95 NY2d at 475).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

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[945 NE2d 1027, 920 NYS2d 776]

WILLIAM B. CLARKE, Respondent, v RAFAEL RODRIGUEZ, Appellant.

Decided March 29, 2011

**SUMMARY**

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 4, 2010. The Appellate Division affirmed so much of a judgment of the Supreme Court, Kings County (David I. Schmidt, J.), entered after a nonjury trial, and upon a decision of that Court (Richard N. Allman, Special Ref.), as was in favor of plaintiff and against defendant, directing specific performance of a contract for the sale of real property.

*Clarke v Rodriguez*, 73 AD3d 677, affirmed.

**HEADNOTE****Evidence — Documentary Evidence — Specific Performance**

In an action for specific performance of a contract, a photocopy of the contract was admissible as secondary evidence of its contents where there was support in the record for the affirmed finding that the original contract was in the possession or control of defendant and, upon due notice, defendant failed to produce the original. Moreover, as there was support for the undisturbed finding of Supreme Court that defendant frustrated plaintiff's efforts to perform the contract, plaintiff was entitled to the remedy of specific performance.

**APPEARANCES OF COUNSEL**

*Law Offices of Thomas Weiss, P.C.*, Hempstead (*Thomas Weiss* of counsel), for appellant.

*Ramo, Nashak, Brown & Garibaldi LLP*, Glendale (*Gregory J. Brown* of counsel), for respondent.

**OPINION OF THE COURT****MEMORANDUM.**

The order of the Appellate Division should be affirmed, with costs.

There is support in the record for the affirmed finding that the original contract was in the possession or control of defendant. Upon due notice, defendant failed to produce the original. Accordingly, plaintiff sufficiently explained the unavailability of the original contract and, therefore, a photocopy was admissible as secondary evidence of its contents (*see Schozer v William*

*Penn Life Ins. Co. of N.Y.*, 84 NY2d 639, 643-644 [1994]). Moreover, as there is support for the undisturbed finding of Supreme Court that defendant frustrated plaintiff's efforts to perform the contract, plaintiff is entitled to the remedy of specific performance (see *Kooleraire Serv. & Installation Corp. v Board of Educ. of City of N.Y.*, 28 NY2d 101, 106 [1971]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

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[945 NE2d 1028, 920 NYS2d 777]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIRAY M. PAIGE, Appellant.

Decided March 29, 2011

#### SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered October 28, 2010. The Appellate Division affirmed a judgment of the Franklin County Court (Robert G. Main, Jr., J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the third degree and obstructing governmental administration in the second degree.

When three State Troopers seeking to execute an arrest warrant knocked on the door of the warrant subject's residence, defendant refused to let them in. Defendant opened the door partway and, in response to a State Police Investigator's questions, confirmed that it was the residence of the subject of the warrant. Defendant told the investigator that the person they were looking for was not there and that she had gone out with her mother, but he was not sure where she was. While being questioned, defendant looked back over his shoulder into the apartment. The investigator twice told defendant that he believed the subject was in the apartment, that they needed to execute the warrant and that defendant faced arrest if he did not allow them into the residence. Instead of again denying that the subject was in the apartment, defendant twice responded that he would not let the troopers in. As the investigator then

began to turn to go to his vehicle and get the warrant, defendant slammed the door. Given defendant's inability to tell the troopers where the subject was, his confirmation that it was her residence and his act of looking back over his shoulder into the apartment, the investigator believed that the subject was in the residence and that defendant slammed the door to prevent the troopers from executing the warrant. Finding the door locked, the troopers then kicked it open, entered the apartment and placed defendant, who was headed toward the bedroom, in custody. A search of the bedroom revealed a quantity of cocaine.

*People v Paige*, 77 AD3d 1193, affirmed.

#### HEADNOTE

##### **Crimes — Unlawful Search and Seizure — Execution of Arrest Warrant**

The determinations of the courts below as to whether an officer had a reasonable belief that the subject of the arrest warrant was in the home so as to demand entry into the residence was a mixed question of law and fact, which was supported by record evidence and was beyond further review by the Court of Appeals.

#### APPEARANCES OF COUNSEL

*Gregory D. LaDuke*, Lake Placid, for appellant.

*Derek P. Champagne*, District Attorney, Malone (*Glenn MacNeill* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed.

Whether an officer had a reasonable belief that the subject of the arrest warrant was in the home so as to demand entry into the residence is a mixed question of law and fact, which, if supported by record evidence, is beyond further review by this Court (*see generally People v Francois*, 14 NY3d 732 [2010]). We conclude that record evidence exists to support the determinations of the courts below.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

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In the Matter of ROBERT BOEHM et al., Appellants, v ANDREA EVANS, as Chair of the New York State Division of Parole, Respondent.

Submitted January 31, 2011; decided March 29, 2011

Reported below, 79 AD3d 1445.

Motion by the New York Civil Liberties Union Foundation for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein dismissed as academic.

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In the Matter of CAIN KEEL L. and Another, Infants. DERZERINA L., Appellant; THE NEW YORK FOUNDLING HOSPITAL, Respondent.

Submitted January 31, 2011; decided March 29, 2011

Reported below, 78 AD3d 541.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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MARIA CALDERON, Appellant, v EVERGREEN OWNERS, INC., et al., Respondents.

Submitted January 24, 2011; decided March 29, 2011

Reported below, 70 AD3d 742.

Motion for reargument of motion for leave to appeal denied [see 14 NY3d 708 (2010)].

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GRIFFITH OIL COMPANY, INC., et al., Respondents, v NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA., Appellant, et al., Defendants.

Decided March 29, 2011

Reported below, 68 AD3d 1622.

Appeal withdrawn pursuant to stipulation of the parties.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. KENNETH BAZIL,  
Appellant, v LUIS MARSHALL, Respondent.

Decided March 29, 2011

Reported below, 77 AD3d 982.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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RANDY RATAJCZAK, as Administrator of the Estate of MARY RATAJCZAK, Deceased, Respondent, v MAHMOOD YOONESSI, M.D., et al., Appellants. (And a Third-Party Action.)

Submitted January 18, 2011; decided March 29, 2011

Motion for reconsideration of this Court's November 23, 2010 dismissal order denied [*see* 15 NY3d 913 (2010)]. Motion, insofar as it seeks disqualification of Chief Judge LIPPMAN, dismissed upon the ground that the Court of Appeals has no authority to entertain the motion made on nonstatutory grounds. The application seeking recusal is referred to the Chief Judge for his individual consideration and determination. Chief Judge LIPPMAN denies the referred motion for recusal.

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In the Matter of NORMA WARRIOR, Respondent, v ROBERT E. BEATMAN, SR., Appellant.

Submitted January 24, 2011; decided March 29, 2011

Reported below, 79 AD3d 1770.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge PIGOTT taking no part.

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[947 NE2d 139, 922 NYS2d 248]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v  
MICHAEL BRUNNER, Appellant.

Argued February 16, 2011; decided March 31, 2011

**SUMMARY**

APPEAL, by permission of the Chief Judge of the Court of Appeals, from on order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 10, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Renee A. White, J.), which had convicted defendant, upon a jury trial, of criminal sale of a controlled substance in the third degree, criminal possession of a controlled substance in the third degree, and resisting arrest.

*People v Brunner*, 67 AD3d 464, affirmed.

**HEADNOTE****Crimes — Right to Counsel — Effective Representation — Failure to Raise Speedy Trial Issue**

Although a single mistake by a defense counsel may, in a rare case, be so significant that it deprives a defendant of his constitutional right to effective legal representation, the failure of defendant's counsel to make a CPL 30.30 application did not render counsel's otherwise competent performance constitutionally deficient given that the governing law was unfavorable. Although defendant's arguments concerning the timeliness of the prosecution were substantial, there was nothing clear cut about his CPL 30.30 claim where the record of pretrial proceedings was complex and spawned a dispute over the extent to which six discrete time periods were excludable from the readiness calculation. Had a CPL 30.30 application been filed in the trial court, its success would have depended on the resolution of several novel issues. Significantly, one of the contentions made by defendant on appeal had been rejected by the Appellate Division in a decision issued before defendant's case went to trial. As to other time segments in issue, the applicability of various exclusions was debatable.

**APPEARANCES OF COUNSEL**

*Office of the Appellate Defender*, New York City (*Eunice C. Lee* and *Richard M. Greenberg* of counsel), for appellant.

*Cyrus R. Vance, Jr.*, *District Attorney*, New York City (*Jared Wolkowitz* and *Mary C. Farrington* of counsel), for respondent.

**OPINION OF THE COURT****MEMORANDUM.**

The order of the Appellate Division should be affirmed.



After a jury trial, defendant was convicted of criminal sale of a controlled substance, criminal possession of a controlled substance and resisting arrest. On direct appeal, he argued that his trial counsel had been ineffective for failing to file a CPL 30.30 motion to dismiss the indictment, a contention that the Appellate Division rejected.

We have recognized that, in a rare case, a single mistake by defense counsel may be so significant that we can conclude that defendant was deprived of his constitutional right to effective legal representation (*see People v Caban*, 5 NY3d 143 [2005]; *People v Turner*, 5 NY3d 476, 478 [2005]). In *Turner*, we determined that defendant had a meritorious record-based ineffective assistance of counsel claim because defense counsel had objected to the submission of a lesser-included offense but had neglected to raise a “clear-cut and completely dispositive” statute of limitations defense relating to that charge (*id.* at 481).

In this case, although defendant’s arguments concerning the timeliness of the prosecution are substantial, there is nothing clear cut about his CPL 30.30 claim. The record of pretrial proceedings is complex and has spawned a dispute over the extent to which six discrete time periods were excludable from the readiness calculation. Had a CPL 30.30 application been filed in the trial court, its success would have depended on the resolution of several novel issues. Significantly, although the question remains open in this Court, one of the contentions made by defendant on appeal—involving a substantial number of the disputed days—had been rejected by the Appellate Division in a decision issued before this case went to trial (and trial counsel may have relied on this negative precedent in deciding not to pursue the motion) (*see People v Matthews*, 227 AD2d 313 [1st Dept 1996], *lv denied* 88 NY2d 989 [1996]). As to other time segments in issue, the applicability of various exclusions is debatable. Given that the governing law was unfavorable, we cannot say on this record that the failure to make a CPL 30.30 application rendered counsel’s otherwise competent performance constitutionally deficient. We have considered defendant’s remaining arguments and find them to be without merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

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[946 NE2d 172, 921 NYS2d 184]

61 WEST 62 OWNERS CORP., Respondent, v CGM EMP LLC et al., Appellants, and WEST 63 EMPIRE ASSOCIATES LLC, Respondent, et al., Defendant.

Decided March 31, 2011

### SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court entered August 24, 2010. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Debra A. James, J.; op 2009 NY Slip Op 31739[U]), which had denied a motion by plaintiff for a preliminary injunction, and (2) remanded the matter for an appropriate provisional remedy. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the order of the Supreme Court, properly made?”

Plaintiff was the owner of a residential cooperative apartment building. In 2008, defendants began to operate a bar on the rooftop of a 12-story building adjacent to the cooperative. Less than a year later, the plaintiff commenced the present action, alleging that defendants “play or permit to be played music at extremely loud levels,” thus tormenting the cooperative’s residents whose apartments are near the bar, and that the pounding and other noise often continued until 3:00 A.M. Plaintiff sought a permanent injunction to prohibit the congregating of persons in the nonenclosed areas of the rooftop, as well as the emanating of noise at unlawfully loud levels in violation of the New York City Noise Control Code. Plaintiff moved by show cause order for a preliminary injunction prohibiting the bar’s use of the open roof deck as well as the excessive noise attendant thereto. In response, defendant submitted an affidavit stating, among other things, that the bar had never been issued any violations for noise by the New York City Department of Environmental Protection.

61 W. 62 Owners Corp. v CGM EMP LLC, 77 AD3d 330, modified.

### HEADNOTE

#### Injunctions — Preliminary Injunction

An order of the Appellate Division, which reversed an order denying a motion for a preliminary injunction and remanded the matter for an appropriate provisional remedy, was modified by remitting to the Appellate Division for

the exercise of its discretion. The failure of authorities to issue a violation of the municipal noise control ordinance, by itself, did not preclude plaintiff from establishing that it was likely to succeed on the merits. However, in light of the record, it could not be said that the imposition of a provisional remedy was required as a matter of law.

#### APPEARANCES OF COUNSEL

*Windels Marx Lane & Mittendorf, LLP*, New York City (*Bruce F. Bronster* and *Gregory J. Kerr* of counsel), for appellants.

*Wolf Haldenstein Adler Freeman & Herz LLP*, New York City (*Steven D. Sladkus* and *Christopher Cobb* of counsel), for 61 West 62 Owners Corp., respondent.

*Cozen O'Connor*, New York City (*Michael C. Schmidt* and *Menachem J. Kastner* of counsel), for West 63 Empire Associates LLC, respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by remitting to the Appellate Division for further proceedings in accordance with this memorandum and, as so modified, affirmed. The certified question should be answered in the negative.

The failure of authorities to issue a violation of the New York City Noise Control Code (*see* Administrative Code of City of NY § 24-201 *et seq.*), by itself, does not preclude plaintiff from establishing that it is likely to succeed on the merits. However, it cannot be said on this record that the imposition of a provisional remedy is required as a matter of law. Therefore, the case should be remitted to the Appellate Division for the exercise of its discretion.

We have considered appellants' other contention, and determine that it lacks merit.\*

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

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\* Respondent West 63 Empire Associates LLC is not eligible for affirmative relief in this appeal and we express no view on the arguments it has made in that regard (*see Matter of Visiting Nurse Serv. of N.Y. Home Care v New York State Dept. of Health*, 5 NY3d 499, 507 [2005]).

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified, etc.

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In the Matter of the Claim of MARIA M. ALMONTE, Appellant.  
COMMISSIONER OF LABOR, Respondent.

Decided March 31, 2011

Reported below, 65 AD3d 729.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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VICTOR BATSCHEVER et al., Appellants, v JAFAR JAFAR et al.,  
Respondents.

Submitted February 14, 2011; decided March 31, 2011

Reported below, 2010 NY Slip Op 82900(U); 73 AD3d 1108.

Motion for reargument of motion for leave to appeal denied [see 16 NY3d 731 (2011)].

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In the Matter of the Claim of MARIE L. GENTILE, as Widow of  
JAY ALAN GENTILE, Deceased, Appellant, v SOVEREIGN MOTOR CARS et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted February 7, 2011; decided March 31, 2011

Reported below, 77 AD3d 1027.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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JACKSON & NASH LLP, Appellant, v E. TIMOTHY MCAULIFFE  
PLLC et al., Respondents. (And a Third-Party Action.)

Decided March 31, 2011

Reported below, 79 AD3d 663.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action with the meaning of the Constitution.

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In the Matter of NEW CREEK BLUEBELT, PHASE 4. CITY OF NEW YORK, Respondent; GAETANO DEMETRIO, Appellant.

Submitted January 31, 2011; decided March 31, 2011

Reported below, 79 AD3d 888.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of NEW YORK CITY HEALTH AND HOSPITALS CORPORATION, Appellant, v NEW YORK STATE COMMISSION OF CORRECTION, Respondent.

Submitted January 18, 2011; decided March 31, 2011

Reported below, 76 AD3d 453.

Motion by the Legal Aid Society of the City of New York and Prisoners' Legal Services of New York for leave to file a joint brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a joint brief amici curiae on the appeal herein granted, three copies of the brief to be served and an original and 19 copies filed within 30 days.

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In the Matter of DAVID A. RIGLE, Appellant, v RICHARD F. DAINES, as Commissioner of Health, et al., Respondents.

Decided March 31, 2011

Reported below, 78 AD3d 1249.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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ROCK CITY SOUND, INC., Respondent, v BASHIAN & FARBER, LLP,  
et al., Appellants.

Submitted February 14, 2011; decided March 31, 2011

Reported below, 74 AD3d 1168.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of ROSEMARIE B., Petitioner, v CAROL C., Appellant, and RONNIE C. et al., Respondents.

Submitted January 3, 2011; decided March 31, 2011

Reported below, 78 AD3d 1575.

Motion for leave to appeal dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511).

Judge PIGOTT taking no part.

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In the Matter of INJAH TAFARI, Appellant, v LUCIEN J. LECLAIRE, as Acting Commissioner of Correctional Services, Respondent.

Submitted February 14, 2011; decided March 31, 2011

Reported below, 79 AD3d 1465.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE  
OF COURT OF APPEALS OR ON CONSENT**

(March 1, 2011 through March 31, 2011)

|                                                                           |                                       |         |
|---------------------------------------------------------------------------|---------------------------------------|---------|
| Jackson, Matter of, v Walsh                                               | 4th Dept: 2010 NY Slip<br>Op 91671(U) | 3/31/11 |
| Manko v Lenox Hill Hosp.                                                  | 2d Dept: 2010 NY Slip<br>Op 81686(U)  | 3/11/11 |
| Sea Trade Mar. Corp. v<br>Hellenic Mut. War Risks<br>Assn. (Bermuda) Ltd. | 1st Dept: 79 AD3d 601                 | 3/23/11 |

MEMORANDA

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**APPEALS WITHDRAWN AND DISCONTINUED**

(March 1, 2011 through March 31, 2011)

|                                                   |                       |         |
|---------------------------------------------------|-----------------------|---------|
| ABN AMRO Bank, N.V. v<br>MBIA Inc.                | 1st Dept: 81 AD3d 237 | 3/1/11  |
| Williams v New York City<br>Health & Hosps. Corp. | 1st Dept: 79 AD3d 440 | 3/21/11 |

**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

(March 1, 2011 through March 31, 2011)

|                              |                                                  |                                  |
|------------------------------|--------------------------------------------------|----------------------------------|
| People v Acosta              | App Div, 1st Dept: 2010 NY Slip Op 90150(U) (NY) | denied 3/2/11 (Smith, J.)        |
| People v Aguilar             | 2d Dept: 79 AD3d 899 (Kings)                     | denied 3/8/11 (Pigott, J.)       |
| People v Alcantara           | 2d Dept: 78 AD3d 721 (Kings)                     | denied 3/23/11 (Read, J.)        |
| People v Alexander (Anthony) | 2d Dept: 79 AD3d 1059 (Suffolk)                  | denied 3/2/11 (Smith, J.)        |
| People v Alexander (Paul)    | App Div, 1st Dept: 2010 NY Slip Op 90616(U) (NY) | denied 3/23/11 (Read, J.)        |
| People v Allen (Brandon)     | 4th Dept: 78 AD3d 1521 (Monroe)                  | denied 3/3/11 (Jones, J.)        |
| People v Allen (Garner)      | 2d Dept: 77 AD3d 965 (Suffolk)                   | denied 3/2/11 (Lippman, Ch. J.)  |
| People v Allende             | 1st Dept: 78 AD3d 553 (NY)                       | denied 3/3/11 (Jones, J.)        |
| People v Alston              | 1st Dept: 79 AD3d 462 (NY)                       | denied 3/7/11 (Jones, J.)        |
| People v Alvarado            | 1st Dept: 71 AD3d 498 (Bronx)                    | denied 3/15/11 (Jones, J.)       |
| People v Alvarez             | 2d Dept: 76 AD3d 1098 (Queens)                   | granted 3/7/11 (Lippman, Ch. J.) |
| People v Amico               | 2d Dept: 78 AD3d 1190 (Queens)                   | denied 3/2/11 (Smith, J.)        |
| People v Andrews             | 3d Dept: 78 AD3d 1229 (Chemung)                  | denied 3/24/11 (Read, J.)        |
| People v Andrus              | 4th Dept: 77 AD3d 1283 (Steuben)                 | denied 3/23/11 (Read, J.)        |
| People v Andujar             | 1st Dept: 79 AD3d 428 (NY)                       | denied 3/3/11 (Jones, J.)        |
| People v Anthoulis           | 2d Dept: 78 AD3d 854 (Queens)                    | denied 3/24/11 (Read, J.)        |
| People v Argendorf           | 2d Dept: 76 AD3d 1100 (Suffolk)                  | denied 3/23/11 (Read, J.)        |
| People v Arujo               | 1st Dept: 79 AD3d 550 (Bronx)                    | denied 3/10/11 (Pigott, J.)      |
| People v Barnes              | 1st Dept: 79 AD3d 490 (NY)                       | denied 3/9/11 (Pigott, J.)       |

|                                |                                                        |                                                     |
|--------------------------------|--------------------------------------------------------|-----------------------------------------------------|
| People v Beam                  | 2d Dept: 78 AD3d 1067 (Orange)                         | denied 3/9/11<br>(Pigott, J.)                       |
| People v Bedessie              | 2d Dept: 78 AD3d 960 (Queens)                          | granted 3/4/11<br>(Ciparick, J.)                    |
| People v Beltran<br>(Brunildo) | 1st Dept: 78 AD3d 405 (NY)                             | denied 3/3/11<br>(Jones, J.)                        |
| People v Beltran<br>(Dalvin)   | 3d Dept: 79 AD3d 1525 (Sullivan)                       | denied 3/28/11<br>(Grafteo, J.)                     |
| People v Benton                | 4th Dept: 78 AD3d 1545 (Erie)                          | denied 3/2/11<br>(Ciparick, J.)                     |
| People v Berry                 | 3d Dept: 78 AD3d 1226 (Schenectady)                    | denied 3/2/11<br>(Jones, J.)                        |
| People v Bigwarfe              | County Ct, 10/6/10 (St. Lawrence)                      | denied 3/1/11<br>(Jones, J.)                        |
| People v Binghampton           | 1st Dept: 79 AD3d 472 (Bronx)                          | denied <sup>1</sup> 3/2/11<br>(Ciparick, J.)        |
| People v Blair<br>(Nascimento) | 2d Dept: 78 AD3d 1068 (Westchester)                    | denied 3/3/11<br>(Ciparick, J.)                     |
| People v Blair<br>(Raymond)    | App Div, 4th Dept, 12/28/10 (Wayne)                    | dismissed 3/8/11<br>(Lippman, Ch. J.)               |
| People v Bolden                | 3d Dept: 78 AD3d 1419 (Albany)                         | denied 3/23/11<br>(Read, J.)                        |
| People v Bowman<br>(Edward)    | 1st Dept: 77 AD3d 559 (NY)                             | denied 3/7/11<br>(Pigott, J.)                       |
| People v Bowman<br>(Tymel)     | 3d Dept: 79 AD3d 1368 (Broome)                         | denied 3/14/11<br>(Pigott, J.)                      |
| People v Brandel               | App Term, 2d Dept: 30 Misc 3d 134(A)<br>(Orange)       | denied 3/31/11<br>(Smith, J.)                       |
| People v Bridgewater           | App Div, 1st Dept: 2010 NY Slip Op<br>89171(U) (Bronx) | denied 3/25/11<br>(Grafteo, J.)                     |
| People v Brink                 | 4th Dept: 78 AD3d 1483 (Ontario)                       | denied<br>reconsideration<br>3/17/11<br>(Smith, J.) |
| People v Brisson               | 4th Dept: 79 AD3d 1773 (Onondaga)                      | denied 3/7/11<br>(Jones, J.)                        |
| People v Brock                 | 1st Dept: 81 AD3d 464 (NY)                             | withdrawn<br>3/31/11<br>(Smith, J.)                 |
| People v Bronaugh              | 1st Dept: 76 AD3d 932 (NY)                             | denied 3/2/11<br>(Lippman, Ch. J.)                  |
| People v Brooks                | 2d Dept: 71 AD3d 1043 (Orange)                         | denied 3/15/11<br>(Jones, J.)                       |
| People v Brown<br>(Anthony)    | App Div, 2d Dept: 2011 NY Slip Op<br>62098(U) (Kings)  | dismissed 3/31/11<br>(Smith, J.)                    |
| People v Brown<br>(Dennis)     | App Div, 2d Dept: 2011 NY Slip Op<br>62098(U) (Kings)  | dismissed 3/31/11<br>(Smith, J.)                    |

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1. Denied, without prejudice to renew within 30 days after the Court of Appeals renders its decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).



## MEMORANDA

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|                              |                                                          |                                                  |
|------------------------------|----------------------------------------------------------|--------------------------------------------------|
| People v Brown<br>(Edward)   | 2d Dept: 78 AD3d 856 (Kings)                             | denied <sup>2</sup> 3/3/11<br>(Jones, J.)        |
| People v Brown (Rod)         | 1st Dept: 77 AD3d 446 (NY)                               | denied 3/1/11<br>(Lippman, Ch. J.)               |
| People v Bryan               | 4th Dept: 78 AD3d 1692 (Orleans)                         | denied 3/3/11<br>(Jones, J.)                     |
| People v Bryant              | 1st Dept: 77 AD3d 485 (NY)                               | denied 3/29/11<br>(Lippman, Ch. J.)              |
| People v Bunn                | 2d Dept: 79 AD3d 1143 (Dutchess)                         | denied 3/2/11<br>(Smith, J.)                     |
| People v Busanet             | 1st Dept: 79 AD3d 600 (NY)                               | denied 3/8/11<br>(Pigott, J.)                    |
| People v Caldavado           | 2d Dept: 78 AD3d 962 (Queens)                            | denied 3/16/11<br>(Grafteo, J.)                  |
| People v Campbell            | 3d Dept: 79 AD3d 1458 (Warren)                           | denied 3/16/11<br>(Pigott, J.)                   |
| People v Cepeda              | App Term, 1st Dept: 30 Misc 3d 129(A)<br>(Bronx)         | denied 3/23/11<br>(Read, J.)                     |
| People v Cerda               | 1st Dept: 78 AD3d 539 (NY)                               | denied 3/28/11<br>(Grafteo, J.)                  |
| People v Chiarappa           | 4th Dept: 78 AD3d 1614 (Onondaga)                        | denied 3/23/11<br>(Read, J.)                     |
| People v Chinn               | App Div, 4th Dept, 8/19/10 (Onondaga)                    | dismissed 3/28/11<br>(Grafteo, J.)               |
| People v Cioto               | 3d Dept: 80 AD3d 875 (Ulster)                            | denied 3/28/11<br>(Grafteo, J.)                  |
| People v Claderaro           | 2d Dept: 78 AD3d 962 (Queens)                            | denied 3/16/11<br>(Grafteo, J.)                  |
| People v Clark               | 2d Dept: 78 AD3d 858 (Queens)                            | denied <sup>3</sup> 3/28/11<br>(Lippman, Ch. J.) |
| People v Clarkson            | 4th Dept: 78 AD3d 1573 (Cayuga)                          | denied 3/1/11<br>(Jones, J.)                     |
| People v Clifton             | 1st Dept: 79 AD3d 625 (NY)                               | denied 3/7/11<br>(Jones, J.)                     |
| People v Coleman<br>(Ariana) | 1st Dept: 77 AD3d 591 (NY)                               | denied 3/1/11<br>(Jones, J.)                     |
| People v Coleman<br>(Nathan) | 1st Dept: 78 AD3d 457 (NY)                               | denied 3/23/11<br>(Read, J.)                     |
| People v Contant (Isan)      | 2d Dept: 77 AD3d 967 (Rockland)                          | denied 3/28/11<br>(Lippman, Ch. J.)              |
| People v Contant (Isan)      | App Div, 2d Dept: 2011 NY Slip Op<br>60810(U) (Rockland) | dismissed 3/29/11<br>(Lippman, Ch. J.)           |
| People v Copeman             | 3d Dept: 77 AD3d 1187 (St. Lawrence)                     | withdrawn 3/2/11<br>(Ciparick, J.)               |

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2. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]).

3. Denied, without prejudice to renew within 30 days after the Court of Appeals renders its decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

|                              |                                                        |                                                      |
|------------------------------|--------------------------------------------------------|------------------------------------------------------|
| People v Cordero             | 2d Dept: 78 AD3d 859 (Kings)                           | denied 3/10/11<br>(Pigott, J.)                       |
| People v Cowan               | 2d Dept: 77 AD3d 850 (Nassau)                          | denied 3/16/11<br>(Pigott, J.)                       |
| People v Culbero             | App Div, 1st Dept: 2010 NY Slip Op<br>91312(U) (NY)    | denied 3/28/11<br>(Grafteo, J.)                      |
| People v Curnen              | 2d Dept: 78 AD3d 1192 (Putnam)                         | denied 3/3/11<br>(Ciparick, J.)                      |
| People v Daniels<br>(Bernie) | 4th Dept: 78 AD3d 1592 (Genesee)                       | denied 3/30/11<br>(Lippman, Ch. J.)                  |
| People v Daniels<br>(Burnie) | 4th Dept: 78 AD3d 1592 (Genesee)                       | denied 3/30/11<br>(Lippman, Ch. J.)                  |
| People v Davis               | 4th Dept: 77 AD3d 1287 (Monroe)                        | denied 3/28/11<br>(Lippman, Ch. J.)                  |
| People v DeLee               | 4th Dept: 79 AD3d 1664 (Onondaga)                      | denied 3/9/11<br>(Pigott, J.)                        |
| People v Dempsey             | 4th Dept: 79 AD3d 1776 (Monroe)                        | denied 3/28/11<br>(Grafteo, J.)                      |
| People v Dewese              | 2d Dept: 77 AD3d 970 (Queens)                          | denied<br>reconsideration<br>3/30/11<br>(Pigott, J.) |
| People v Dickinson           | 3d Dept: 78 AD3d 1237 (Washington)                     | granted 3/30/11<br>(Lippman, Ch. J.)                 |
| People v Duff                | 2d Dept: 79 AD3d 1063 (Kings)                          | denied 3/28/11<br>(Grafteo, J.)                      |
| People v Duffner             | 3d Dept: 77 AD3d 987 (Albany)                          | denied 3/1/11<br>(Jones, J.)                         |
| People v Dushain             | App Div, 1st Dept, 12/16/10 (NY)                       | denied 3/29/11<br>(Jones, J.)                        |
| People v Elliott             | 1st Dept: 76 AD3d 915 (NY)                             | denied 3/2/11<br>(Lippman, Ch. J.)                   |
| People v Ellis               | 1st Dept: 77 AD3d 496 (Bronx)                          | denied 3/1/11<br>(Jones, J.)                         |
| People v Evans               | 2d Dept: 78 AD3d 1074 (Queens)                         | denied 3/29/11<br>(Lippman, Ch. J.)                  |
| People v Extale              | 4th Dept: 78 AD3d 1519 (Monroe)                        | granted 3/11/11<br>(Grafteo, J.)                     |
| People v Fernandez           | 2d Dept: 78 AD3d 726 (Queens)                          | denied 3/28/11<br>(Lippman, Ch. J.)                  |
| People v Fields              | 2d Dept: 79 AD3d 1147 (Westchester)                    | denied <sup>4</sup> 3/25/11<br>(Grafteo, J.)         |
| People v Fitzpatrick         | 2d Dept: 78 AD3d 1194 (Kings)                          | denied 3/28/11<br>(Lippman, Ch. J.)                  |
| People v Forbes              | App Div, 1st Dept: 2010 NY Slip Op<br>90790(U) (Bronx) | dismissed 3/15/11<br>(Ciparick, J.)                  |

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4. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

## MEMORANDA

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|                              |                                                        |                                                               |
|------------------------------|--------------------------------------------------------|---------------------------------------------------------------|
| People v Gangar              | 3d Dept: 79 AD3d 1262 (Schenectady)                    | denied 3/23/11<br>(Read, J.)                                  |
| People v Gantt               | 1st Dept: 77 AD3d 568 (NY)                             | denied 3/1/11<br>(Jones, J.)                                  |
| People v Garcia              | 1st Dept: 78 AD3d 461 (Bronx)                          | denied 3/2/11<br>(Jones, J.)                                  |
| People v Gibson              | 2d Dept: 77 AD3d 851 (Kings)                           | denied 3/1/11<br>(Ciparick, J.)                               |
| People v Grant               | 1st Dept: 77 AD3d 558 (NY)                             | denied 3/1/11<br>(Ciparick, J.)                               |
| People v Gregory             | 3d Dept: 78 AD3d 1246 (Washington)                     | denied 3/23/11<br>(Read, J.)                                  |
| People v Guzman<br>(Arcadio) | 1st Dept: 78 AD3d 568 (Bronx)                          | denied 3/7/11<br>(Jones, J.)                                  |
| People v Guzman<br>(Raymond) | 4th Dept: 70 AD3d 1332 (Monroe)                        | denied 3/25/11<br>(Grafteo, J.)                               |
| People v Haddock             | 3d Dept: 80 AD3d 885 (Albany)                          | denied 3/31/11<br>(Smith, J.)                                 |
| People v Harper              | 2d Dept: 78 AD3d 964 (Queens)                          | denied 3/3/11<br>(Ciparick, J.)                               |
| People v Harrington          | App Div, 3d Dept: 2011 NY Slip Op<br>61371(U) (Warren) | dismissed 3/30/11<br>(Pigott, J.)                             |
| People v Harris              | 2d Dept: 79 AD3d 1069 (Queens)                         | denied 3/8/11<br>(Jones, J.)                                  |
| People v Herman              | 4th Dept: 78 AD3d 1686 (Oneida)                        | denied 3/8/11<br>(Pigott, J.)                                 |
| People v Hicks               | 2d Dept: 78 AD3d 1075 (Nassau)                         | denied 3/2/11<br>(Ciparick, J.)                               |
| People v Higgins             | 1st Dept: 79 AD3d 543 (NY)                             | denied 3/8/11<br>(Pigott, J.)                                 |
| People v Highsmith           | 4th Dept: 79 AD3d 1741 (Erie)                          | denied 3/14/11<br>(Pigott, J.)                                |
| People v Hightower           | App Term, 1st Dept: 29 Misc 3d 131(A)<br>(NY)          | denied 3/2/11<br>(Smith, J.)                                  |
| People v Hill                | 4th Dept: 72 AD3d 1657 (Monroe)                        | denied leave<br>upon<br>reconsideration<br>3/3/11 (Jones, J.) |
| People v Hirro               | 2d Dept: 78 AD3d 862 (Queens)                          | denied 3/2/11<br>(Jones, J.)                                  |
| People v Hirsch              | County Ct, 1/24/11 (Monroe)                            | withdrawn<br>3/31/11<br>(Smith, J.)                           |
| People v Hook                | 3d Dept: 76 AD3d 1140 (Warren)                         | denied 3/28/11<br>(Lippman, Ch. J.)                           |
| People v Huffman             | 1st Dept: 78 AD3d 547 (NY)                             | denied 3/2/11<br>(Ciparick, J.)                               |
| People v Huggins             | 1st Dept: 79 AD3d 543 (NY)                             | denied 3/8/11<br>(Pigott, J.)                                 |
| People v Ingram              | 2d Dept: 80 AD3d 713 (Dutchess)                        | denied 3/29/11<br>(Smith, J.)                                 |

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|--------------------------------|--------------------------------------------------------|-------------------------------------------|
| People v Ivery                 | 3d Dept: 80 AD3d 874 (Broome)                          | denied 3/28/11<br>(Grafteo, J.)           |
| People v Jackson               | App Term, 2d Dept: 27 Misc 3d 5<br>(Kings)             | granted 3/3/11<br>(Jones, J.)             |
| People v James                 | 2d Dept: 78 AD3d 862 (Kings)                           | denied 3/1/11<br>(Ciparick, J.)           |
| People v Jams                  | 3d Dept: 79 AD3d 1264 (Albany)                         | denied 3/3/11<br>(Ciparick, J.)           |
| People v Jenkins               | 1st Dept: 80 AD3d 434 (Bronx)                          | denied 3/10/11<br>(Pigott, J.)            |
| People v Jesus                 | 4th Dept: 79 AD3d 1773 (Ontario)                       | denied 3/14/11<br>(Pigott, J.)            |
| People v Johnson<br>(Donnell)  | 2d Dept: 76 AD3d 1103 (Queens)                         | denied 3/18/11<br>(Smith, J.)             |
| People v Johnson<br>(Jamar)    | 3d Dept: 79 AD3d 1264 (Albany)                         | denied 3/3/11<br>(Ciparick, J.)           |
| People v Johnson<br>(Keyshawn) | 1st Dept: 80 AD3d 424 (NY)                             | denied 3/10/11<br>(Pigott, J.)            |
| People v Johnson<br>(Vincent)  | 2d Dept: 79 AD3d 1072 (Queens)                         | denied <sup>5</sup> 3/7/11<br>(Jones, J.) |
| People v Jones (Kumar)         | 4th Dept: 79 AD3d 1773 (Ontario)                       | denied 3/14/11<br>(Pigott, J.)            |
| People v Jones<br>(Octavious)  | 3d Dept: 79 AD3d 1244 (Ulster)                         | denied 3/8/11<br>(Pigott, J.)             |
| People v Jones (Qoya)          | 3d Dept: 77 AD3d 1178 (Albany)                         | denied 3/1/11<br>(Jones, J.)              |
| People v Jones (Qumar)         | 4th Dept: 79 AD3d 1773 (Ontario)                       | denied 3/14/11<br>(Pigott, J.)            |
| People v Jones<br>(Timothy)    | 4th Dept: 78 AD3d 1545 (Erie)                          | denied 3/2/11<br>(Ciparick, J.)           |
| People v Jordan                | 4th Dept: 79 AD3d 1718 (Niagara)                       | denied 3/31/11<br>(Pigott, J.)            |
| People v Kelly                 | 4th Dept: 79 AD3d 1642 (Oneida)                        | denied 3/31/11<br>(Pigott, J.)            |
| People v Kennedy               | App Div, 1st Dept: 2010 NY Slip Op<br>86410(U) (Bronx) | denied 3/1/11<br>(Ciparick, J.)           |
| People v Ketteles              | 2d Dept: 78 AD3d 1076 (Kings)                          | denied 3/23/11<br>(Read, J.)              |
| People v Kettrels              | 2d Dept: 78 AD3d 1076 (Kings)                          | denied 3/23/11<br>(Read, J.)              |
| People v Kopolovicz            | 2d Dept: 78 AD3d 1076 (Kings)                          | denied 3/28/11<br>(Lippman, Ch. J.)       |
| People v Laboy-Vega            | 3d Dept: 78 AD3d 1422 (Broome)                         | denied 3/3/11<br>(Jones, J.)              |
| People v Lee (Omar)            | 3d Dept: 80 AD3d 877 (Schenectady)                     | denied 3/2/11<br>(Smith, J.)              |
| People v Lee (Omar)            | 3d Dept: 80 AD3d 1072 (Schenectady)                    | denied 3/17/11<br>(Smith, J.)             |

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5. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]).

## MEMORANDA

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|-------------------------------|-----------------------------------------------|-------------------------------------|
| People v Lee (Omari)          | 3d Dept: 80 AD3d 877 (Schenectady)            | denied 3/2/11<br>(Smith, J.)        |
| People v Lee (Omari)          | 3d Dept: 80 AD3d 1072 (Schenectady)           | denied 3/17/11<br>(Smith, J.)       |
| People v Lopez                | 1st Dept: 80 AD3d 528 (Bronx)                 | denied 3/31/11<br>(Smith, J.)       |
| People v Lowe                 | 4th Dept: 79 AD3d 1676 (Monroe)               | denied 3/17/11<br>(Smith, J.)       |
| People v "Luck"               | 4th Dept: 78 AD3d 1635 (Erie)                 | denied 3/2/11<br>(Jones, J.)        |
| People v Lyon                 | 3d Dept: 76 AD3d 1121 (Saratoga)              | denied 3/2/11<br>(Jones, J.)        |
| People v Mack (Laron)         | App Term, 1st Dept: 29 Misc 3d 140(A)<br>(NY) | denied 3/3/11<br>(Jones, J.)        |
| People v Mack<br>(Roosevelt)  | 1st Dept: 78 AD3d 520 (NY)                    | denied 3/24/11<br>(Read, J.)        |
| People v Maine                | 3d Dept: 78 AD3d 1241 (Albany)                | denied 3/31/11<br>(Lippman, Ch. J.) |
| People v Mainville            | 3d Dept: 78 AD3d 1421 (Clinton)               | denied 3/3/11<br>(Jones, J.)        |
| People v Manners              | 1st Dept: 77 AD3d 560 (NY)                    | denied 3/1/11<br>(Ciparick, J.)     |
| People v Matthews             | 1st Dept: 77 AD3d 493 (NY)                    | denied 3/29/11<br>(Lippman, Ch. J.) |
| People v Maxwell              | 4th Dept: 78 AD3d 1635 (Erie)                 | denied 3/7/11<br>(Jones, J.)        |
| People v Mayo                 | 2d Dept: 77 AD3d 683 (Suffolk)                | denied 3/7/11<br>(Jones, J.)        |
| People v McCoy                | 1st Dept: 81 AD3d 409 (NY)                    | denied 3/28/11<br>(Grafteo, J.)     |
| People v McDuffie             | 4th Dept: 77 AD3d 1360 (Erie)                 | denied 3/3/11<br>(Lippman, Ch. J.)  |
| People v McKelvey             | 1st Dept: 79 AD3d 510 (NY)                    | denied 3/3/11<br>(Jones, J.)        |
| People v McLean               | 2d Dept: 77 AD3d 684 (Queens)                 | denied 3/9/11<br>(Read, J.)         |
| People v McNair               | 2d Dept: 79 AD3d 908 (Dutchess)               | denied 3/9/11<br>(Pigott, J.)       |
| People v McPherson            | 4th Dept: 79 AD3d 1756 (Steuben)              | denied 3/29/11<br>(Jones, J.)       |
| People v Mercado              | 1st Dept: 77 AD3d 501 (Bronx)                 | denied 3/2/11<br>(Jones, J.)        |
| People v Michik               | County Ct, 1/31/11 (Madison)                  | denied 3/31/11<br>(Grafteo, J.)     |
| People v Miller               | 2d Dept: 78 AD3d 733 (Richmond)               | denied 3/3/11<br>(Ciparick, J.)     |
| People v Miranda<br>(Eduardo) | 2d Dept: 76 AD3d 1105 (Kings)                 | denied 3/2/11<br>(Jones, J.)        |
| People v Miranda<br>(Israel)  | 4th Dept: 77 AD3d 1323 (Monroe)               | denied 3/23/11<br>(Read, J.)        |

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|------------------------------|---------------------------------------------------------|-------------------------------------|
| People v Moore               | 2d Dept: 77 AD3d 685 (Queens)                           | denied 3/9/11<br>(Read, J.)         |
| People v Morrice             | 4th Dept: 78 AD3d 1534 (Ontario)                        | denied 3/7/11<br>(Pigott, J.)       |
| People v Morrison            | 4th Dept: 78 AD3d 1615 (Monroe)                         | denied 3/7/11<br>(Pigott, J.)       |
| People v Mosby               | 3d Dept: 78 AD3d 1371 (Tompkins)                        | denied 3/24/11<br>(Read, J.)        |
| People v Mosher              | 3d Dept: 79 AD3d 1272 (Saratoga)                        | denied 3/8/11<br>(Pigott, J.)       |
| People v Moultrie            | App Term, 1st Dept: 29 Misc 3d 135(A)<br>(NY)           | denied 3/1/11<br>(Ciparick, J.)     |
| People v Mungro              | 4th Dept: 74 AD3d 1902 (Erie)                           | granted 3/15/11<br>(Jones, J.)      |
| People v Muniz               | App Div, 3d Dept: 2010 NY Slip Op<br>85655(U) (Chemung) | dismissed 3/16/11<br>(Pigott, J.)   |
| People v Nathan              | 2d Dept: 79 AD3d 910 (Dutchess)                         | denied 3/10/11<br>(Pigott, J.)      |
| People v Newkirk             | 3d Dept: 75 AD3d 853 (Albany)                           | denied 3/1/11<br>(Lippman, Ch. J.)  |
| People v Norman              | 1st Dept: 77 AD3d 497 (NY)                              | denied 3/1/11<br>(Jones, J.)        |
| People v Nunez               | App Div, 1st Dept: 2010 NY Slip Op<br>89171(U) (Bronx)  | denied 3/25/11<br>(Grafteo, J.)     |
| People v O                   | 3d Dept: 80 AD3d 877 (Schenectady)                      | denied 3/2/11<br>(Smith, J.)        |
| People v Olmstead            | 3d Dept: 77 AD3d 1179 (St. Lawrence)                    | denied 3/25/11<br>(Grafteo, J.)     |
| People v Ortega              | 1st Dept: 79 AD3d 459 (NY)                              | denied 3/2/11<br>(Ciparick, J.)     |
| People v Ortiz               | 1st Dept: 80 AD3d 516 (NY)                              | denied 3/28/11<br>(Grafteo, J.)     |
| People v Owens               | 4th Dept: 78 AD3d 1509 (Monroe)                         | denied 3/23/11<br>(Read, J.)        |
| People v Pagan               | 1st Dept: 81 AD3d 86 (NY)                               | granted 3/14/11<br>(Grafteo, J.)    |
| People v Parker (John)       | App Div, 2d Dept: 2010 NY Slip Op<br>83639(U) (Queens)  | denied 3/9/11<br>(Read, J.)         |
| People v Parker (Vernon)     | 1st Dept: 80 AD3d 493 (NY)                              | denied 3/28/11<br>(Lippman, Ch. J.) |
| People v Paul (Gordon)       | 4th Dept: 78 AD3d 1684 (Wyoming)                        | denied 3/2/11<br>(Ciparick, J.)     |
| People v Paul (Shondell)     | 4th Dept: 78 AD3d 1635 (Onondaga)                       | denied 3/1/11<br>(Ciparick, J.)     |
| People v Perino              | 1st Dept: 76 AD3d 456 (Bronx)                           | granted 3/3/11<br>(Jones, J.)       |
| People v Phelan              | 3d Dept: 77 AD3d 987 (Albany)                           | denied 3/1/11<br>(Jones, J.)        |
| People v Phillips<br>(James) | 2d Dept: 82 AD3d 1011 (Orange)                          | granted 3/31/11<br>(Grafteo, J.)    |

## MEMORANDA

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|--------------------------------|--------------------------------------------------------|----------------------------------------------|
| People v Phillips<br>(Ricardo) | App Term, 2d Dept: 29 Misc 3d 143(A)<br>(Kings)        | denied 3/3/11<br>(Ciparick, J.)              |
| People v Pichardo              | 4th Dept: 79 AD3d 1649 (Monroe)                        | denied 3/8/11<br>(Smith, J.)                 |
| People v Picone                | County Ct, 10/12/10 (Erie)                             | denied 3/7/11<br>(Jones, J.)                 |
| People v Pinales               | 1st Dept: 77 AD3d 481 (Bronx)                          | denied 3/23/11<br>(Read, J.)                 |
| People v Plunkett              | 4th Dept: 77 AD3d 1442 (Herkimer)                      | granted 3/29/11<br>(Lippman, Ch. J.)         |
| People v Povoski               | 4th Dept: 79 AD3d 1653 (Monroe)                        | denied 3/31/11<br>(Pigott, J.)               |
| People v Powell                | App Div, 1st Dept: 2010 NY Slip Op<br>76715(U) (Bronx) | denied 3/29/11<br>(Lippman, Ch. J.)          |
| People v Price                 | 1st Dept: 77 AD3d 528 (NY)                             | denied 3/1/11<br>(Jones, J.)                 |
| People v Race                  | 3d Dept: 78 AD3d 1217 (Clinton)                        | denied 3/2/11<br>(Jones, J.)                 |
| People v Ragbirsingh           | 2d Dept: 78 AD3d 738 (Queens)                          | denied <sup>6</sup> 3/2/11<br>(Ciparick, J.) |
| People v Ramos                 | 2d Dept: 77 AD3d 773 (Westchester)                     | denied 3/1/11<br>(Jones, J.)                 |
| People v Rasako                | 1st Dept: 78 AD3d 498 (NY)                             | denied 3/3/11<br>(Jones, J.)                 |
| People v Rayford               | 2d Dept: 80 AD3d 780 (Orange)                          | denied 3/25/11<br>(Grafteo, J.)              |
| People v Reeves                | 3d Dept: 78 AD3d 1332 (Greene)                         | denied 3/28/11<br>(Lippman, Ch. J.)          |
| People v Reyes                 | 1st Dept: 77 AD3d 488 (NY)                             | denied 3/1/11<br>(Jones, J.)                 |
| People v Richardson            | App Div, 1st Dept: 2010 NY Slip Op<br>90779(U) (NY)    | denied 3/16/11<br>(Pigott, J.)               |
| People v Riddick               | 1st Dept: 79 AD3d 472 (Bronx)                          | denied <sup>7</sup> 3/2/11<br>(Ciparick, J.) |
| People v Riley                 | 2d Dept: 79 AD3d 911 (Kings)                           | denied 3/25/11<br>(Grafteo, J.)              |
| People v Rivera                | 2d Dept: 78 AD3d 1202 (Queens)                         | denied 3/3/11<br>(Ciparick, J.)              |
| People v Rizzo                 | 4th Dept: 78 AD3d 1641 (Erie)                          | denied 3/3/11<br>(Jones, J.)                 |
| People v Roberts               | 1st Dept: 78 AD3d 533 (NY)                             | denied 3/28/11<br>(Lippman, Ch. J.)          |

6. Denied, without prejudice to renew within 30 days after the Court of Appeals renders its decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

7. Denied, without prejudice to renew within 30 days after the Court of Appeals renders its decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

|                                  |                                                        |                                                      |
|----------------------------------|--------------------------------------------------------|------------------------------------------------------|
| People v Robinson                | 2d Dept: 78 AD3d 1204 (Queens)                         | denied 3/7/11<br>(Jones, J.)                         |
| People v Rodriguez<br>(Jonathan) | App Div, 1st Dept: 2011 NY Slip Op<br>63459(U) (NY)    | dismissed 3/22/11<br>(Ciparick, J.)                  |
| People v Rodriguez<br>(Jorge)    | 1st Dept: 80 AD3d 482 (NY)                             | denied 3/28/11<br>(Grafteo, J.)                      |
| People v Rodriguez<br>(Manuel)   | 1st Dept: 82 AD3d 418 (NY)                             | granted 3/7/11<br>(Grafteo, J.)                      |
| People v Rodriguez<br>(Ronald)   | 2d Dept: 77 AD3d 975 (Nassau)                          | denied 3/7/11<br>(Pigott, J.)                        |
| People v Rosado<br>(Robert)      | App Term, 1st Dept: 30 Misc 3d 132(A)<br>(NY)          | denied 3/8/11<br>(Smith, J.)                         |
| People v Rosado<br>(Steve)       | App Div, 1st Dept: 2010 NY Slip Op<br>84914(U) (NY)    | dismissed 3/9/11<br>(Read, J.)                       |
| People v Rush                    | 3d Dept: 79 AD3d 1522 (St. Lawrence)                   | denied 3/8/11<br>(Smith, J.)                         |
| People v Sadiq                   | 3d Dept: 77 AD3d 985 (Broome)                          | withdrawn<br>3/10/11 (Read, J.)                      |
| People v Salsbery                | 4th Dept: 78 AD3d 1624 (Oswego)                        | denied 3/2/11<br>(Ciparick, J.)                      |
| People v Salvagni                | 4th Dept: 79 AD3d 1647 (Niagara)                       | denied 3/29/11<br>(Smith, J.)                        |
| People v Santiago                | 4th Dept: 78 AD3d 1545 (Monroe)                        | denied 3/28/11<br>(Lippman, Ch. J.)                  |
| People v Schenk                  | 4th Dept: 77 AD3d 1417 (Erie)                          | denied<br>reconsideration<br>3/8/11 (Smith, J.)      |
| People v Scott (Henry)           | App Div, 4th Dept, 12/14/10 (Onondaga)                 | denied<br>reconsideration<br>3/16/11<br>(Pigott, J.) |
| People v Scott (Malik)           | 2d Dept: 80 AD3d 717 (Kings)                           | denied 3/31/11<br>(Smith, J.)                        |
| People v Seals                   | 2d Dept: 78 AD3d 742 (Kings)                           | denied 3/3/11<br>(Jones, J.)                         |
| People v Serrano                 | 2d Dept: 79 AD3d 772 (Kings)                           | denied 3/7/11<br>(Jones, J.)                         |
| People v Sharpe                  | 2d Dept: 79 AD3d 773 (Queens)                          | denied 3/8/11<br>(Smith, J.)                         |
| People v Shomo                   | App Div, 1st Dept: 2011 NY Slip Op<br>60893(U) (NY)    | dismissed 3/25/11<br>(Jones, J.)                     |
| People v Simmons                 | 1st Dept: 79 AD3d 431 (NY)                             | denied 3/29/11<br>(Lippman, Ch. J.)                  |
| People v Simon                   | 4th Dept: 78 AD3d 1635 (Erie)                          | denied 3/2/11<br>(Jones, J.)                         |
| People v Simpson<br>(Theodore)   | App Div, 1st Dept: 2010 NY Slip Op<br>79752(U) (Bronx) | dismissed 3/29/11<br>(Lippman, Ch. J.)               |
| People v Simpson<br>(Theodore)   | App Div, 1st Dept: 2010 NY Slip Op<br>91825(U) (Bronx) | dismissed 3/29/11<br>(Lippman, Ch. J.)               |
| People v Sims                    | 2d Dept: 78 AD3d 971 (Kings)                           | denied 3/31/11<br>(Lippman, Ch. J.)                  |



## MEMORANDA

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|                              |                                                       |                                     |
|------------------------------|-------------------------------------------------------|-------------------------------------|
| People v Singleton           | 4th Dept: 78 AD3d 1490 (Ontario)                      | denied 3/3/11<br>(Ciparick, J.)     |
| People v Small               | 4th Dept: 79 AD3d 1807 (Cayuga)                       | denied 3/7/11<br>(Jones, J.)        |
| People v Smith<br>(Jonathan) | 4th Dept: 79 AD3d 1718 (Erie)                         | denied 3/29/11<br>(Lippman, Ch. J.) |
| People v Smith (Kijuan)      | 1st Dept: 77 AD3d 564 (NY)                            | denied 3/2/11<br>(Jones, J.)        |
| People v Smith (Marvin)      | 2d Dept: 77 AD3d 980 (Westchester)                    | denied 3/1/11<br>(Ciparick, J.)     |
| People v Sookoo              | App Div, 1st Dept: 2010 NY Slip Op<br>87886(U) (NY)   | denied 3/23/11<br>(Read, J.)        |
| People v Sosa-Rodriguez      | 2d Dept: 78 AD3d 1206 (Suffolk)                       | denied 3/2/11<br>(Ciparick, J.)     |
| People v Speight             | 2d Dept: 78 AD3d 1082 (Kings)                         | denied 3/24/11<br>(Read, J.)        |
| People v Stauffer            | 4th Dept: 79 AD3d 1831 (Ontario)                      | denied 3/25/11<br>(Grafteo, J.)     |
| People v Strong              | 2d Dept: 80 AD3d 717 (Nassau)                         | denied 3/25/11<br>(Grafteo, J.)     |
| People v Stroud              | 4th Dept: 79 AD3d 1789 (Erie)                         | denied 3/7/11<br>(Smith, J.)        |
| People v Stuart              | 4th Dept: 79 AD3d 1676 (Monroe)                       | denied 3/28/11<br>(Grafteo, J.)     |
| People v Taylor              | 2d Dept: 79 AD3d 944 (Queens)                         | denied 3/31/11<br>(Smith, J.)       |
| People v Terpening           | 3d Dept: 79 AD3d 1367 (Ulster)                        | denied 3/29/11<br>(Jones, J.)       |
| People v Terrell             | 2d Dept: 78 AD3d 865 (Nassau)                         | denied 3/9/11<br>(Pigott, J.)       |
| People v Thomas              | 4th Dept: 79 AD3d 1832 (Monroe)                       | denied 3/28/11<br>(Grafteo, J.)     |
| People v Thompson            | App Div, 2d Dept: 2010 NY Slip Op<br>76490(U) (Kings) | dismissed 3/7/11<br>(Smith, J.)     |
| People v Timmons             | 3d Dept: 78 AD3d 1241 (Albany)                        | denied 3/31/11<br>(Lippman, Ch. J.) |
| People v Toxtle              | 2d Dept: 79 AD3d 950 (Nassau)                         | denied 3/28/11<br>(Grafteo, J.)     |
| People v Valentino           | App Term, 1st Dept: 29 Misc 3d 142(A)<br>(NY)         | denied 3/29/11<br>(Jones, J.)       |
| People v Velasquez           | 1st Dept: 79 AD3d 602 (NY)                            | denied 3/28/11<br>(Grafteo, J.)     |
| People v Velez<br>(Michael)  | App Div, 1st Dept: 2010 NY Slip Op<br>83781(U) (NY)   | dismissed 3/1/11<br>(Jones, J.)     |
| People v Velez<br>(Michael)  | App Div, 1st Dept: 2010 NY Slip Op<br>91826(U) (NY)   | dismissed 3/1/11<br>(Jones, J.)     |
| People v Villalobos          | 1st Dept: 79 AD3d 548 (NY)                            | denied 3/28/11<br>(Lippman, Ch. J.) |
| People v Waddell             | 3d Dept: 78 AD3d 1325 (Broome)                        | denied 3/1/11<br>(Lippman, Ch. J.)  |

|                                 |                                                        |                                                               |
|---------------------------------|--------------------------------------------------------|---------------------------------------------------------------|
| People v Walker                 | 1st Dept: 77 AD3d 442 (NY)                             | denied 3/9/11<br>(Read, J.)                                   |
| People v Ware                   | 2d Dept: 78 AD3d 743 (Kings)                           | denied <sup>8</sup> 3/2/11<br>(Jones, J.)                     |
| People v Washington<br>(Dennis) | 4th Dept: 78 AD3d 1531 (Erie)                          | denied 3/1/11<br>(Jones, J.)                                  |
| People v Washington<br>(Omar)   | 2d Dept: 71 AD3d 1064 (Westchester)                    | denied 3/23/11<br>(Read, J.)                                  |
| People v Watts                  | 4th Dept: 78 AD3d 1593 (Niagara)                       | denied 3/2/11<br>(Jones, J.)                                  |
| People v Weekfall               | 1st Dept: 79 AD3d 625 (NY)                             | denied 3/7/11<br>(Jones, J.)                                  |
| People v Williams<br>(Clarence) | 1st Dept: 78 AD3d 160 (NY)                             | denied 3/28/11<br>(Lippman, Ch. J.)                           |
| People v Williams<br>(Diane)    | 1st Dept: 78 AD3d 459 (NY)                             | denied 3/28/11<br>(Lippman, Ch. J.)                           |
| People v Williams<br>(Donnie)   | 1st Dept: 77 AD3d 508 (Bronx)                          | denied 3/23/11<br>(Read, J.)                                  |
| People v Williams (Jace)        | App Div, 4th Dept, 1/6/11 (Erie)                       | dismissed 3/10/11<br>(Pigott, J.)                             |
| People v Williams (Jerry)       | 1st Dept: 77 AD3d 557 (NY)                             | denied 3/2/11<br>(Jones, J.)                                  |
| People v Williams<br>(Miles)    | App Term, 1st Dept: 29 Misc 3d 143(A)<br>(NY)          | denied 3/7/11<br>(Jones, J.)                                  |
| People v Wilson                 | 2d Dept: 77 AD3d 858 (Queens)                          | denied 3/7/11<br>(Smith, J.)                                  |
| People v Woods                  | 2d Dept: 79 AD3d 1155 (Kings)                          | denied 3/29/11<br>(Smith, J.)                                 |
| People v Workman                | 4th Dept: 72 AD3d 1640 (Erie)                          | denied leave<br>upon<br>reconsideration<br>3/1/11 (Jones, J.) |
| People v Worrell                | 1st Dept: 78 AD3d 160 (NY)                             | denied 3/28/11<br>(Lippman, Ch. J.)                           |
| People v Wright                 | 2d Dept: 77 AD3d 691 (Kings)                           | denied 3/23/11<br>(Read, J.)                                  |
| People v Young                  | 4th Dept: 77 AD3d 1456 (Monroe)                        | denied 3/9/11<br>(Read, J.)                                   |
| People v Zakrzewski             | App Div, 3d Dept: 2010 NY Slip Op<br>88357(U) (Albany) | denied 3/3/11<br>(Ciparick, J.)                               |
| People v Ziegler                | 1st Dept: 78 AD3d 545 (NY)                             | denied 3/2/11<br>(Ciparick, J.)                               |

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8. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]).

**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL****Decisions of Appellate Division Justices\***

(March 1, 2011 through March 31, 2011)

|                                 |                                 |                                  |
|---------------------------------|---------------------------------|----------------------------------|
| People v Williams<br>(Marcelle) | 4th Dept: 79 AD3d 1648 (Monroe) | granted 3/25/11<br>(Scudder, J.) |
| People v Williams<br>(Marcelle) | 4th Dept: 79 AD3d 1653 (Monroe) | granted 3/25/11<br>(Scudder, J.) |

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[947 NE2d 1182, 923 NYS2d 404]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDRE STEWART, Appellant.

Argued February 15, 2011; decided April 5, 2011

**SUMMARY**

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 19, 2009. The Appellate Division affirmed an order of the Supreme Court, New York County (Bruce Allen, J.), which had denied defendant's CPL article 440 motion to vacate his judgment of conviction and sentence.

*People v Stewart*, 67 AD3d 553, affirmed.

**HEADNOTE****Crimes — Appeal — Matters Reviewable**

On defendant's appeal from the Appellate Division's affirmance of the denial of his CPL 440.10 motion to vacate his judgment of conviction and sentence, the Court of Appeals was foreclosed from addressing the merits of defendant's argument that his plea of guilty was involuntary because the trial court failed to advise him of the specific term of postrelease supervision during the plea proceeding. When sufficient facts appear on the record to permit the question to be reviewed, the sufficiency of a plea allocution can be reviewed only by direct appeal. A claim that defendant's plea was not knowing, voluntary and intelligent because he was not apprised of the specific term of postrelease supervision that would be imposed at sentence is indistinguishable from a challenge to the adequacy of the plea allocution and is reviewable on direct appeal. Here, where justification for defendant's failure to pursue that issue in a direct appeal was absent, such a claim could not be raised in a CPL 440.10 motion.

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\* Includes only applications that were granted.

## APPEARANCES OF COUNSEL

*Legal Aid Society*, New York City (Alan S. Axelrod and Steven Banks of counsel), for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (Susan Axelrod and Vincent Rivellese of counsel), for respondent.

## OPINION OF THE COURT

## MEMORANDUM.

The order of the Appellate Division should be affirmed.

In 2003, when defendant pleaded guilty to attempted robbery in the first degree, the court advised him that he would receive a 3½-year prison term with “maximum post-release supervision time.” At sentencing, the court pronounced the determinate sentence along with a five-year term of postrelease supervision. Defendant did not object to the imposition of postrelease supervision at sentencing nor did he pursue a direct appeal. However, in 2008, he filed a CPL 440.10 motion seeking vacatur of his plea based on *People v Catu* (4 NY3d 242 [2005]), contending that his plea was involuntary because the court failed to advise him of the specific term of postrelease supervision during the plea proceeding. Supreme Court denied the motion, relying on *People v Louree* (8 NY3d 541 [2007]) for the proposition that defendant’s *Catu* claim could not be raised in a CPL 440.10 motion. The Appellate Division affirmed, as do we.

In *Louree*, we held that when “a trial judge does not fulfill the obligation to advise a defendant of postrelease supervision during the plea allocution, the defendant may challenge the plea as not knowing, voluntary and intelligent on direct appeal” because the error is evident from the transcript of the plea proceeding (*id.* at 545-546). *Catu* claims have therefore been treated no differently than any other failure to advise a defendant of a direct consequence of a plea under the rule articulated in *People v Ford* (86 NY2d 397 [1995]). We further observed in *Louree* that, since the omission is clear from the face of the trial record, a *Catu* claim generally cannot be raised in a CPL 440.10 motion (*Louree*, 8 NY3d at 546 n; see CPL 440.10 [2] [c]).

Defendant’s contention that *Louree* changed the law concerning the types of claims that may be brought in a CPL 440.10 collateral proceeding is without merit. As far back as 1986, this Court had made clear that “[w]hen, as will usually be the case, sufficient facts appear on the record to permit the question to be reviewed, sufficiency of the plea allocution can be reviewed

only by direct appeal” (*People v Cooks*, 67 NY2d 100, 104 [1986] [emphasis added]; see also, *People v Angelakos*, 70 NY2d 670 [1987]). A *Catu* claim is indistinguishable from a challenge to the adequacy of the plea allocation and, as we stated previously, it is reviewable on direct appeal. In the absence of justification for a defendant’s failure to pursue this issue in a direct appeal (which is absent here), such a claim may not be raised in a CPL 440.10 motion. We are therefore foreclosed from addressing defendant’s argument on the merits.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

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[947 NE2d 146, 922 NYS2d 255]

In the Matter of STATE OF NEW YORK, Respondent, v ANDREW O., Appellant.

Argued February 8, 2011; decided April 5, 2011

#### SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered December 3, 2009. The Appellate Division affirmed an order of the Supreme Court, Saratoga County (Harry W. Seibert, J.), entered in a proceeding pursuant to Mental Hygiene Law article 10, which had found respondent to be a dangerous sex offender and confined him to a secure facility.

*Matter of State of New York v Andrew O.*, 68 AD3d 1161, reversed.

#### HEADNOTE

##### **Witnesses — Expert Witness — Religious Belief of Witness**

In a proceeding seeking the civil management of a detained sex offender pursuant to article 10 of the Mental Hygiene Law, a new trial was required where the State’s attorney attacked the offender’s expert’s credibility on the basis of his religious beliefs and affiliation. Any attempt to discredit or otherwise penalize a witness because of his religious beliefs is improper, because those factors are irrelevant to the issue of credibility. Except under extraordinary circumstances, such questioning must be deemed sufficiently prejudicial to require a new trial, at least where the trial judge fails to give a prompt and clear corrective instruction. Here, the trial boiled down to a battle of the experts in which the offender’s expert was portrayed as unreliable because he adhered to an out-of-the-mainstream religion and it was

impossible to know whether or to what extent the jury's assessment of the expert's testimony was prejudiced as a result. Moreover, the trial judge did not handle the episode promptly and forcefully; rather, he overruled objections to the improper cross-examination. Additionally, the judge failed to sustain an objection to the State's attorney's admonition to the jurors that they would be at fault if the offender molested another child. Instead of striking and directing the jurors to disregard this inflammatory commentary, he merely reminded them that argument is not testimony.

#### APPEARANCES OF COUNSEL

*Mental Hygiene Legal Service*, Albany (*Shannon Stockwell* and *Sheila E. Shea* of counsel), for appellant.

*Eric T. Schneiderman*, Attorney General, Albany (*Kathleen M. Treasure*, *Barbara D. Underwood* and *Andrea Oser* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and a new trial ordered.

On August 15, 2007, the Attorney General filed a petition in Supreme Court against Andrew O., a detained sex offender, seeking his civil management pursuant to article 10 of the Mental Hygiene Law (*see* Mental Hygiene Law § 10.03 [g]; § 10.06 [a]). Supreme Court subsequently found probable cause to believe that Andrew O. was a sex offender requiring civil management (*see* Mental Hygiene Law § 10.06 [g], [k]; § 10.03 [q]). At the ensuing jury trial, Andrew O.'s expert—his only witness—testified that Andrew O. did not suffer from a mental abnormality within the meaning of article 10 (*see* Mental Hygiene Law §§ 10.07, 10.03 [i]). The State's attorney attacked the expert's credibility on the basis of his religious beliefs and affiliation, among other things. For example, during cross-examination, he asked the expert, a psychologist, about his religion of Yoism, which the expert described as similar to Unitarianism; this religion's basic tenets; and whether Yoism was based upon a historical text. Andrew O.'s counsel objected repeatedly and fruitlessly to this line of questioning. When he subsequently moved to strike all statements related to Yoism, the trial judge denied the motion on the ground that the expert was one of this religion's cofounders and not merely a follower.

During his closing statement, the State's attorney reprised the theme of the expert's religious beliefs, telling the jurors that they would "want to know" about the expert's religion "because

that would have an impact on [their] decision whether to consider that doctor's opinion as being valid"; and that they would "want to know if that doctor had founded a religion [and] the saints of that religion were Bob Marley, and Timothy Leary, and Bob Dylan." He also warned the jurors that there was "a child out there" who would be affected by their decision, and asked rhetorically if they "want[ed] another victim to have to come in [in order] to find mental abnormality." When Andrew O.'s counsel objected, the trial judge told the jurors that "[w]hat the lawyers say to you, what the lawyers say to each other, or say to me is not evidence"; and that the only evidence to be considered in rendering a verdict was the testimony received and exhibits admitted.

The jury determined that Andrew O. was a detained sex offender who suffers from a mental abnormality (*see* Mental Hygiene Law § 10.07 [d]); and after a bench trial, Supreme Court concluded that Andrew O. was a dangerous sex offender requiring confinement, and so committed him to a secure treatment facility (*see* Mental Hygiene Law § 10.07 [f]; § 10.03 [e]). Upon Andrew O.'s appeal of the jury verdict, the Appellate Division affirmed, with one Justice dissenting. The majority considered the cross-examination of the expert about his religious beliefs to be improper, but harmless "within the context of the entire trial" (68 AD3d 1161, 1166 [3d Dept 2009]). Further, the majority did not view the inappropriate remarks made by the State's attorney during summation sufficient, either individually or in the aggregate, to compromise Andrew O.'s right to a fair trial in light of the judge's instruction. The dissenting Justice concluded that the religious inquiry could have substantially influenced the jury's verdict since the expert's credibility was critical to Andrew O.'s case.

The outcome of this appeal is controlled by our decision in *People v Wood* (66 NY2d 374 [1985]). In that case, the defendant met a woman at a bar, had sex with her, and then decided to kill her, apparently for no reason; after succeeding in that effort but failing to take his own life, he was arrested and pleaded insanity. His principal expert was a psychiatrist who chose to affirm rather than swear to tell the truth. The prosecutor challenged the psychiatrist's affirmation, suggesting that his failure to "swear to God to tell the truth, nothing but the truth" meant that he was lying on the stand; and went so far as to ask the psychiatrist, "Do you believe in God, period?" (66 NY2d at 377.) Defense counsel's multiple objections were repeatedly overruled. The trial court later provided a corrective instruction,



telling the jurors that whether the psychiatrist swore or affirmed was irrelevant. The jury convicted, and the defendant appealed.

The Appellate Division affirmed over a two-Justice dissent, concluding that while the examination of the psychiatrist's religious views was inappropriate, it was harmless. We reversed, stating that

“[w]hile we decline to hold that such questioning constitutes error per se, we hold that, *except under extraordinary circumstances*, it must be deemed sufficiently prejudicial to require a new trial, at least where the trial judge fails to give a prompt and clear corrective instruction” (66 NY2d at 376 [emphasis added]).

As we observed, “[w]ith limited exceptions . . . , any attempt to discredit or otherwise penalize a witness because of his religious beliefs . . . is improper, because those factors are irrelevant to the issue of credibility” (*id.* at 378).

The State contends that there are extraordinary circumstances here principally because the evidence of Andrew O.'s mental abnormality was overwhelming. The trial, however, boiled down to a battle of the experts in which Andrew O.'s expert was portrayed as unreliable because he adhered to an out-of-the-mainstream religion. It is impossible to know whether or to what extent the jury's assessment of the expert's testimony was prejudiced as a result. And importantly, the trial judge did not “act as a saving grace, handling the episode promptly and forcefully” (*id.* at 380 [internal quotation marks omitted]); indeed, he overruled objections to the improper cross-examination. Additionally, the judge failed to sustain an objection to the State's attorney's admonition to the jurors that they would be at fault if Andrew O. molested another child. Rather than striking and directing the jurors to disregard this inflammatory commentary, he merely reminded them that argument is not testimony. Finally, we have considered Andrew O.'s remaining contentions alleging evidentiary error and find them to be without merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

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[947 NE2d 153, 922 NYS2d 262]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TER-  
ENCE G. JORDAN, Appellant.

Argued February 15, 2011; decided April 5, 2011

### SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 4, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (James A. Yates, J.), which had resentenced defendant, as a second felony offender, to a term of three years' imprisonment and five years' postrelease supervision.

On January 27, 2000, defendant pleaded guilty to assault in the second degree. In exchange for his guilty plea, defendant was promised a determinate sentence of three years' imprisonment, and on March 6, 2000, the court imposed the promised term. No mention was made, either at the plea allocution or at the sentencing proceeding, that defendant would be subject to any period of postrelease supervision (PRS). Despite being given written notice of his right to appeal from the judgment, defendant did not do so. In 2002, defendant was released from prison and began serving a term of PRS. In 2007, while still under PRS, he moved to set aside the sentence on the ground that he was not advised at the time of sentencing that his sentence included a period of PRS. The court had defendant produced so it could formally pronounce the PRS component.

*People v Jordan*, 65 AD3d 428, affirmed.

### HEADNOTE

#### Crimes — Appeal — Matters Reviewable

In a criminal proceeding in which defendant was resentenced by adding a term of postrelease supervision that had been mistakenly omitted at the time of his first sentencing, the Appellate Division correctly held that defendant, who appealed from the resentencing asking that the conviction and sentence entered on his guilty plea be vacated, could not challenge his plea on appeal from the resentencing proceeding. CPL 450.30 (3) provides that “when a resentence occurs more than thirty days after the original sentence, a defendant who has not previously filed a notice of appeal from the judgment may not appeal from the judgment, but only from the resentence.” Defendant’s appeal seeking immediate relief from an underlying judgment of conviction was not one “only from the resentence.”

### APPEARANCES OF COUNSEL

*Legal Aid Society*, New York City (*Elon D. Harpaz*, *Kristina Schwarz* and *Steven Banks* of counsel), for appellant.

*Cyrus R. Vance, Jr., District Attorney, New York City (Vincent Rivelles and Susan Axelrod of counsel), for respondent.*

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed.

In 2000, defendant pleaded guilty to assault in the second degree and was sentenced to three years of imprisonment. After our decision in *People v Catu* (4 NY3d 242 [2005]), he was resentenced by Supreme Court, which pronounced a term of postrelease supervision that had been mistakenly omitted at the time of the first sentencing. Defendant appealed from the resentencing to the Appellate Division, asking that the conviction and sentence entered on his guilty plea be vacated.

The Appellate Division correctly held that defendant could not challenge his plea on appeal from a resentencing proceeding. CPL 450.30 (3) provides that “when a resentence occurs more than thirty days after the original sentence, a defendant who has not previously filed a notice of appeal from the judgment may not appeal from the judgment, but only from the resentence.” An appeal such as this one seeking immediate relief from an underlying judgment of conviction is not one “only from the resentence.”

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

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[947 NE2d 153, 922 NYS2d 262]

In the Matter of COMMISSIONER OF SOCIAL SERVICES, on Behalf  
of MAUDLYN V.R., Respondent, v PAUL C., Appellant.

Decided April 5, 2011

#### SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 11, 2010. The Appellate Division (1) affirmed an order of the Family Court, New York County (Jody Adams, J.), entered in a proceeding pursuant to Family Court Act article 4, which had denied in part respondent father’s objections to a December 2006 support order directing him to pay

child support, and (2) affirmed a subsequent order of the same court which had denied all of the father's objections to a November 2007 order denying his motion for summary judgment and to a January 2008 child support order directing him to pay child support without a deviation from the Child Support Standards Act guidelines. The following question was certified by the Appellate Division: "Was the order of the Family Court, as affirmed by this Court, properly made?"

*Matter of Commissioner of Social Servs. v Paul C.*, 73 AD3d 469, affirmed.

#### HEADNOTE

##### **Parent and Child — Support — Mother Receiving Public Assistance**

In a child support proceeding, the courts below correctly held that the Commissioner of Social Services was not required to prove that the award of public assistance to the mother was justified. Although the father suggested that he could bear the burden of proving that the mother had undisclosed resources available for support of the child, he failed to make an adequate offer of proof on that issue.

#### APPEARANCES OF COUNSEL

*Barry A. Elisofon*, Brooklyn, for appellant.

*Michael A. Cardozo*, Corporation Counsel, New York City (*Julie Steiner* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question not answered upon the ground it is unnecessary.

In this child support proceeding, the courts below correctly held that the Commissioner of Social Services was not required to prove that the award of public assistance to the mother was justified. The father suggested that he could bear the burden of proving that the mother had undisclosed resources available for support of the child, but failed to make an adequate offer of proof on this issue.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

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In the Matter of BOARD OF COMMISSIONERS OF GREAT NECK PARK  
DISTRICT OF TOWN OF NORTH HEMPSTEAD, Respondent, v  
KINGS POINT HEIGHTS, LLC, Appellant.

Submitted February 7, 2011; decided April 5, 2011

Reported below, 74 AD3d 804.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

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In the Matter of OTTO HARNISCHFEGER et al., Respondents, v  
DAVID MOORE, Chief of Police of Rochester Police Department, et al., Appellants.

Submitted February 7, 2011; decided April 5, 2011

Reported below, 79 AD3d 1706.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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LESLIE KAHN, Appellant, v NEW YORK CITY DEPARTMENT OF  
EDUCATION et al., Respondents.

Submitted February 22, 2011; decided April 5, 2011

Reported below, 79 AD3d 521.

Motion by the New York State United Teachers for leave to file an affirmation amicus curiae on the motion for leave to appeal herein granted and the affirmation is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein granted, three copies of the brief to be served and an original and 19 copies filed within 30 days.

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LESLIE KAHN, Appellant, v NEW YORK CITY DEPARTMENT OF  
EDUCATION et al., Respondents.

Submitted February 22, 2011; decided April 5, 2011

Reported below, 79 AD3d 521.

Motion by the Council of School Supervisors and Administrators for leave to file an affirmation *amicus curiae* on the motion for leave to appeal herein granted and the affirmation is accepted as filed, and for leave to file a brief *amicus curiae* on the appeal herein granted, three copies of the brief to be served and an original and 19 copies filed within 30 days.

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JANULYN McKANIC, Appellant, v AMIGOS DEL MUSEO DEL BARRIO, Respondent.

Decided April 5, 2011

Reported below, 74 AD3d 639.

Appeal dismissed, without costs, by the Court of Appeals, *sua sponte*, upon the ground that no substantial constitutional question is directly involved.

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JAMES L. MELCHER, Appellant, v APOLLO MEDICAL FUND MANAGEMENT L.L.C. et al., Respondents.

Submitted February 14, 2011; decided April 5, 2011

Reported below, 2011 NY Slip Op 60045(U); 2010 NY Slip Op 84265(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

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In the Matter of DANNY MONTES, Appellant, v NORMAN BEZIO, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted January 31, 2011; decided April 5, 2011

Reported below, 79 AD3d 1567.

Motion for leave to appeal granted. Motion for poor person relief granted.

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In the Matter of ORANGE COUNTY DEPARTMENT OF SOCIAL SERVICES, on Behalf of DORIS ZIERAN, Respondent, v MARK MARVIN, Appellant.

Decided April 5, 2011

Reported below, 78 AD3d 838.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of DAVID RIKARD, Appellant, v SHEILA MATSON, Respondent. (And Four Other Related Proceedings.)

Submitted February 14, 2011; decided April 5, 2011

Reported below, 80 AD3d 968.

Motion to vacate stay granted.

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In the Matter of the Claim of ROCIO ZAMORA, Respondent, v NEW YORK NEUROLOGIC ASSOCIATES et al., Appellants. WORKERS' COMPENSATION BOARD, Appellant.

Submitted February 28, 2011; decided April 5, 2011

Reported below, 79 AD3d 1471.

Motion to dismiss appeal by New York Neurologic Associates et al. denied.

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In the Matter of ROCIO ZAMORA, Respondent, v NEW YORK NEUROLOGIC ASSOCIATES et al., Appellants. WORKERS' COMPENSATION BOARD, Appellant.

Submitted February 14, 2011; decided April 5, 2011

Reported below, 79 AD3d 1471.

Motion to dismiss appeal by Workers' Compensation Board denied.

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[947 NE2d 157, 922 NYS2d 266]

TRUDI L. BRONSON, Appellant, v ALLEN J. HANSEL, Respondent.

Decided April 28, 2011

#### SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 30, 2010. The Appellate Division, with two Justices

dissenting, affirmed an order of the Supreme Court, Orleans County (James P. Punch, J.), which had granted a motion by defendant for summary judgment dismissing the complaint.

Plaintiff commenced an action seeking damages for injuries she sustained in a motor vehicle accident. Prior to that time, however, plaintiff had signed a "Release of All Claims" in consideration of \$1,039.82, releasing all claims "growing out of any and all known and unknown, foreseen and unforeseen[,] bodily and personal injuries and property damage and the consequences thereof resulting from the accident." The release further provided that plaintiff "declare(s) and represent(s) that there may be unknown or unanticipated injuries resulting from the . . . accident . . . and[,] in making [the r]elease[,] it is understood and agreed that [it] is intended to include such injuries." Plaintiff thereafter had an MRI that revealed a herniated disc in her cervical spine.

*Bronson v Hansel*, 79 AD3d 1603, affirmed.

#### HEADNOTE

##### **Release — Avoidance — Personal Injury Action**

In a personal injury action, defendant was correctly granted summary judgment dismissing the complaint. In support of his motion for summary judgment, defendant proffered a prima facie case that the action should be barred on the ground of release and plaintiff, in opposition, failed to raise a triable issue of fact that the release should be set aside on the ground of mutual mistake or because the settlement was not fairly and knowingly made.

#### APPEARANCES OF COUNSEL

*Cellino & Barnes, P.C.*, Buffalo (*Gregory V. Pajak* and *Ellen B. Sturm* of counsel), for appellant.

*Brown & Kelly, LLP*, Buffalo (*Patricia S. Ciccarelli* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed with costs.

In support of his motion for summary judgment, defendant proffered a prima facie case that the action should be barred on the ground of release. In opposition, plaintiff failed to raise a triable issue of fact that the release should be set aside on the ground of mutual mistake (*see Mangini v McClurg*, 24 NY2d 556, 563-566 [1969]) or because the settlement was not "fairly and knowingly made" (*Farrington v Harlem Sav. Bank*, 280 NY 1, 4 [1939]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

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In the Matter of FELIPE CONCEPCION, Appellant, v ROBERT T. JOHNSON, Respondent.

Decided April 28, 2011

Reported below, 2010 NY Slip Op 67286(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

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FARRAH DONALD, Appellant, v STATE OF NEW YORK, Respondent.

Submitted April 18, 2011; decided April 28, 2011

Reported below, 73 AD3d 1465.

Motion by Sidney Burch et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

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GLORIA DOOMES, Appellant, v BEST TRANSIT CORP. et al., Defendants, and WARRICK INDUSTRIES, INC., Doing Business as GOSHEN COACH, Respondent.

ANA JIMINIAN, Appellant, v BEST TRANSIT CORP. et al., Defendants, and WARRICK INDUSTRIES, INC., Doing Business as GOSHEN COACH, Respondent.

KELLI RIVERA, Appellant, v BEST TRANSIT CORP. et al., Defendants, and WARRICK INDUSTRIES, INC., Doing Business as GOSHEN COACH, Respondent.

Submitted April 18, 2011; decided April 28, 2011

Reported below, 68 AD3d 504.

Motion by United Motorcoach Association, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the



proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

---

BRYN KELSEY, Respondent, v AILEEN McNALLY, Appellant.

Submitted February 22, 2011; decided April 28, 2011

Reported below, 77 AD3d 1230.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this action commenced in a Justice Court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

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In the Matter of LEON R. KOZIOL, a Suspended Attorney, Appellant. GRIEVANCE COMMITTEE OF THE FIFTH JUDICIAL DISTRICT, Respondent.

Submitted January 31, 2011; decided April 28, 2011

Reported below, 76 AD3d 1136; 70 AD3d 1516.

Motion, insofar as it seeks leave to appeal from the February 2010 order of the Appellate Division, Fourth Department, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from the September 2010 order of the Appellate Division, Third Department, denied. Motion for a stay dismissed as academic.

Chief Judge LIPPMAN taking no part.

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In the Matter of JEAN OCCHIOGROSSO et al., Appellants, v NEW YORK STATE OFFICE OF CHILDREN AND FAMILY SERVICES et al., Respondents.

Submitted March 7, 2011; decided April 28, 2011

Reported below, 72 AD3d 1092.

Motion for reargument of motion for leave to appeal denied [*see* 16 NY3d 703 (2011)].

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUIS  
ALVAREZ, Appellant.

Submitted March 28, 2011; decided April 28, 2011

Reported below, 76 AD3d 1098.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL MUNGRO, Appellant.

Submitted April 11, 2011; decided April 28, 2011

Reported below, 74 AD3d 1902.

Motion for assignment of counsel granted and Charles J. Greenberg, Esq., PO Box 102, Buffalo, New York 14207-0102 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEBRA PAGAN, Appellant.

Submitted April 4, 2011; decided April 28, 2011

Reported below, 81 AD3d 86.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FREDERICK E. WALKER, Appellant.

Submitted April 18, 2011; decided April 28, 2011

Reported below, 78 AD3d 1671.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed as academic upon the ground that a Justice of the Appellate Division granted defendant leave to appeal by order dated April 14, 2011.

---

JOSEPH PERL et al., Appellants, v MEHMOOD MEHER et al.,  
Respondents.

Submitted April 11, 2011; decided April 28, 2011

Reported below, 74 AD3d 930.

Motion by New Yorkers for Fair Automobile Insurance Reform for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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JOSEPH PERL et al., Appellants, v MEHMOOD MEHER et al.,  
Respondents.

Submitted April 11, 2011; decided April 28, 2011

Reported below, 74 AD3d 930.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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YENEM CORP., Appellant, v 281 BROADWAY HOLDINGS et al.,  
Respondents. (And Other Actions.)

RANDALL CO., LLC, Appellant, v 281 BROADWAY HOLDINGS et al.,  
Respondents, et al., Defendants. 281 BROADWAY HOLDINGS  
LLC et al., Third-Party Plaintiffs-Respondents, v HUNTER-  
ATLANTIC, INC., Third-Party Defendant-Respondent, et al.,  
Third-Party Defendants.

Submitted April 25, 2011; decided April 28, 2011

Reported below, 76 AD3d 225.

Motion by City of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

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**APPEALS WITHDRAWN AND DISCONTINUED**

(April 1, 2011 through April 30, 2011)

|                                                               |                       |         |
|---------------------------------------------------------------|-----------------------|---------|
| American Home Assur. Co. v<br>Nausch, Hogan & Murray,<br>Inc. | 1st Dept: 71 AD3d 550 | 4/25/11 |
| People v Rodriguez                                            | 1st Dept: 73 AD3d 541 | 4/4/11  |

**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

(April 1, 2011 through April 30, 2011)

|                           |                                    |                                                                   |
|---------------------------|------------------------------------|-------------------------------------------------------------------|
| People v Anderson         | 4th Dept: 79 AD3d 1738 (Erie)      | denied 4/19/11<br>(Ciparick, J.)                                  |
| People v Andrews          | 1st Dept: 80 AD3d 529 (Bronx)      | denied 4/22/11<br>(Read, J.)                                      |
| People v Archie           | 4th Dept: 78 AD3d 1560 (Cayuga)    | denied 4/4/11<br>(Pigott, J.)                                     |
| People v Arnold           | 4th Dept: 81 AD3d 1276 (Ontario)   | denied 4/6/11<br>(Smith, J.)                                      |
| People v Ayuso            | 2d Dept: 80 AD3d 708 (Queens)      | denied 4/6/11<br>(Smith, J.)                                      |
| People v B                | 3d Dept: 79 AD3d 1531 (Albany)     | denied 4/21/11<br>(Ciparick, J.)                                  |
| People v Barresi          | 2d Dept: 80 AD3d 709 (Kings)       | denied 4/7/11<br>(Jones, J.)                                      |
| People v Beaver           | 3d Dept: 76 AD3d 384 (Columbia)    | leave denied<br>upon<br>reconsideration<br>4/20/11<br>(Jones, J.) |
| People v Beecham          | 2d Dept: 74 AD3d 1216 (Suffolk)    | denied<br>reconsideration<br>4/18/11<br>(Ciparick, J.)            |
| People v Beharry          | 1st Dept: 77 AD3d 475 (Bronx)      | denied 4/7/11<br>(Read, J.)                                       |
| People v Bilal            | 2d Dept: 79 AD3d 900 (Westchester) | denied 4/7/11<br>(Jones, J.)                                      |
| People v Bogan            | 1st Dept: 80 AD3d 450 (Bronx)      | denied 4/20/11<br>(Jones, J.)                                     |
| People v Borrero          | 2d Dept: 79 AD3d 767 (Kings)       | denied 4/14/11<br>(Smith, J.)                                     |
| People v Box              | County Ct, 2/3/11 (Monroe)         | denied 4/22/11<br>(Read, J.)                                      |
| People v Brown<br>(Bobby) | 2d Dept: 78 AD3d 723 (Westchester) | denied 4/7/11<br>(Read, J.)                                       |
| People v Brown (David)    | 4th Dept: 81 AD3d 1305 (Ontario)   | denied 4/21/11<br>(Grafteo, J.)                                   |

## MEMORANDA

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|-------------------------|---------------------------------------------------------|-------------------------------------|
| People v Brown (Malik)  | 2d Dept: 79 AD3d 1142 (Kings)                           | denied 4/5/11<br>(Jones, J.)        |
| People v Buggsward      | App Div, 2d Dept: 2011 NY Slip Op<br>62302(U) (Suffolk) | dismissed 4/8/11<br>(Pigott, J.)    |
| People v Byrd           | 2d Dept: 80 AD3d 774 (Kings)                            | denied 4/1/11<br>(Pigott, J.)       |
| People v Caldwell       | 3d Dept: 80 AD3d 998 (Washington)                       | denied 4/6/11<br>(Smith, J.)        |
| People v Camaccho       | 4th Dept: 81 AD3d 1260 (Monroe)                         | denied 4/14/11<br>(Smith, J.)       |
| People v Cambell        | 1st Dept: 81 AD3d 495 (NY)                              | denied 4/14/11<br>(Smith, J.)       |
| People v Cardenas       | 3d Dept: 79 AD3d 1258 (Rensselaer)                      | denied 4/22/11<br>(Read, J.)        |
| People v Carlucci       | 2d Dept: 80 AD3d 621 (Westchester)                      | denied 4/1/11<br>(Pigott, J.)       |
| People v Carmana        | 2d Dept: 81 AD3d 661 (Queens)                           | denied 4/21/11<br>(Grafteo, J.)     |
| People v Chandler       | 2d Dept: 79 AD3d 1059 (Queens)                          | denied 4/19/11<br>(Ciparick, J.)    |
| People v Clivilles      | App Term, 1st Dept: 29 Misc 3d 140(A)<br>(NY)           | denied 4/18/11<br>(Ciparick, J.)    |
| People v Cloyd          | 4th Dept: 78 AD3d 1669 (Yates)                          | denied 4/7/11<br>(Jones, J.)        |
| People v Coleman        | App Div, 1st Dept: 2010 NY Slip Op<br>91822(U) (NY)     | dismissed 4/18/11<br>(Pigott, J.)   |
| People v Coles          | 3d Dept: 78 AD3d 1382 (Albany)                          | denied 4/18/11<br>(Ciparick, J.)    |
| People v Colon          | App Div, 3d Dept: 2010 NY Slip Op<br>89070(U) (Albany)  | denied 4/21/11<br>(Grafteo, J.)     |
| People v Cooper (Atooo) | 4th Dept: 79 AD3d 1684 (Jefferson)                      | denied 4/4/11<br>(Lippman, Ch. J.)  |
| People v Cooper (Kevin) | 1st Dept: 78 AD3d 593 (NY)                              | denied 4/1/11<br>(Lippman, Ch. J.)  |
| People v Cordoba        | 1st Dept: 80 AD3d 461 (NY)                              | denied 4/6/11<br>(Smith, J.)        |
| People v Cortese        | 3d Dept: 79 AD3d 1281 (St. Lawrence)                    | denied 4/18/11<br>(Ciparick, J.)    |
| People v Cosby (Pierre) | 4th Dept: 82 AD3d 63 (Onondaga)                         | denied 4/20/11<br>(Pigott, J.)      |
| People v Cosby (Pierre) | 4th Dept: 82 AD3d 70 (Onondaga)                         | denied 4/20/11<br>(Pigott, J.)      |
| People v Crayton        | 1st Dept: 80 AD3d 478 (NY)                              | denied 4/21/11<br>(Grafteo, J.)     |
| People v Creer          | App Term, 1st Dept: 31 Misc 3d 1<br>(Bronx)             | dismissed 4/22/11<br>(Read, J.)     |
| People v Crichlow       | 2d Dept: 79 AD3d 1144 (Kings)                           | denied 4/5/11<br>(Jones, J.)        |
| People v Crump          | 4th Dept: 77 AD3d 1335 (Jefferson)                      | denied 4/26/11<br>(Lippman, Ch. J.) |

|                                 |                                      |                                                 |
|---------------------------------|--------------------------------------|-------------------------------------------------|
| People v Cruz (Geraldo)         | 2d Dept: 79 AD3d 1145 (Suffolk)      | granted 4/18/11<br>(Pigott, J.)                 |
| People v Cruz<br>(Oscarlito)    | 1st Dept: 81 AD3d 497 (NY)           | denied 4/21/11<br>(Grafteo, J.)                 |
| People v Curry                  | 4th Dept: 81 AD3d 1315 (Onondaga)    | denied 4/21/11<br>(Grafteo, J.)                 |
| People v Dabo                   | 1st Dept: 82 AD3d 485 (NY)           | denied 4/27/11<br>(Grafteo, J.)                 |
| People v Davenport              | 4th Dept: 81 AD3d 1386 (Erie)        | denied 4/21/11<br>(Grafteo, J.)                 |
| People v Davis                  | 4th Dept: 81 AD3d 1321 (Erie)        | denied 4/14/11<br>(Smith, J.)                   |
| People v Davis-Wright           | 4th Dept: 79 AD3d 1675 (Monroe)      | denied 4/19/11<br>(Ciparick, J.)                |
| People v Dean                   | 4th Dept: 78 AD3d 1569 (Monroe)      | denied 4/21/11<br>(Lippman, Ch. J.)             |
| People v Desmarat               | 2d Dept: 76 AD3d 1030 (Kings)        | denied 4/7/11<br>(Read, J.)                     |
| People v DeVane                 | 4th Dept: 78 AD3d 1586 (Jefferson)   | denied 4/7/11<br>(Read, J.)                     |
| People v Diaz                   | 1st Dept: 80 AD3d 514 (NY)           | denied 4/27/11<br>(Grafteo, J.)                 |
| People v Dishaw                 | 3d Dept: 81 AD3d 1035 (St. Lawrence) | denied 4/22/11<br>(Read, J.)                    |
| People v Dollar                 | 2d Dept: 79 AD3d 1062 (Kings)        | denied 4/22/11<br>(Read, J.)                    |
| People v Dorsey                 | 2d Dept: 74 AD3d 836 (Kings)         | denied 4/20/11<br>(Smith, J.)                   |
| People v Drennan                | 4th Dept: 81 AD3d 1279 (Wayne)       | denied 4/20/11<br>(Jones, J.)                   |
| People v Dugan                  | 4th Dept: 74 AD3d 1816 (Erie)        | denied 4/8/11<br>(Read, J.)                     |
| People v Duncan                 | 2d Dept: 78 AD3d 1193 (Westchester)  | denied 4/21/11<br>(Grafteo, J.)                 |
| People v Edwards                | 2d Dept: 81 AD3d 848 (Kings)         | denied 4/20/11<br>(Pigott, J.)                  |
| People v Eight                  | 3d Dept: 80 AD3d 1002 (Schenectady)  | denied 4/5/11<br>(Jones, J.)                    |
| People v Elder (Jarvis)         | 4th Dept: 71 AD3d 1483 (Niagara)     | denied<br>reconsideration<br>4/7/11 (Jones, J.) |
| People v Elder (Jarvis)         | 4th Dept: 71 AD3d 1484 (Niagara)     | denied<br>reconsideration<br>4/7/11 (Jones, J.) |
| People v Elshabazz<br>(Elhajji) | 4th Dept: 81 AD3d 1429 (Erie)        | denied 4/14/11<br>(Smith, J.)                   |
| People v Elshabazz<br>(Elhajji) | 4th Dept: 81 AD3d 1430 (Erie)        | denied 4/14/11<br>(Smith, J.)                   |
| People v Elwood                 | 3d Dept: 80 AD3d 988 (Chenango)      | denied 4/15/11<br>(Pigott, J.)                  |

## MEMORANDA

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|                             |                                                         |                                    |
|-----------------------------|---------------------------------------------------------|------------------------------------|
| People v Esdaille           | 2d Dept: 79 AD3d 1064 (Kings)                           | denied 4/8/11<br>(Pigott, J.)      |
| People v Espinal            | 1st Dept: 77 AD3d 529 (NY)                              | denied 4/11/11<br>(Read, J.)       |
| People v Fisher             | 4th Dept: 78 AD3d 1605 (Monroe)                         | granted 4/4/11<br>(Pigott, J.)     |
| People v Flynn              | County Ct, 12/30/10 (Onondaga)                          | denied 4/21/11<br>(Ciparick, J.)   |
| People v Gallegos           | App Term, 2d Dept: 30 Misc 3d 138(A)<br>(Queens)        | denied 4/21/11<br>(Grafteo, J.)    |
| People v Garay              | App Div, 2d Dept: 2011 NY Slip Op<br>63290(U) (Suffolk) | dismissed 4/21/11<br>(Grafteo, J.) |
| People v Garcia             | 4th Dept: 78 AD3d 1634 (Cayuga)                         | denied 4/6/11<br>(Smith, J.)       |
| People v George             | 2d Dept: 78 AD3d 728 (Orange)                           | denied 4/5/11<br>(Smith, J.)       |
| People v Giuca              | 2d Dept: 78 AD3d 729 (Kings)                            | denied 4/4/11<br>(Lippman, Ch. J.) |
| People v Glashen            | 2d Dept: 79 AD3d 770 (Westchester)                      | denied 4/4/11<br>(Lippman, Ch. J.) |
| People v Gonzalez           | 1st Dept: 77 AD3d 488 (NY)                              | denied 4/7/11<br>(Read, J.)        |
| People v Grant              | 1st Dept: 77 AD3d 488 (Bronx)                           | denied 4/7/11<br>(Read, J.)        |
| People v Gray               | 2d Dept: 79 AD3d 1067 (Suffolk)                         | denied 4/12/11<br>(Jones, J.)      |
| People v Hai Guang<br>Zheng | 2d Dept: 69 AD3d 878 (Queens)                           | denied 4/19/11<br>(Ciparick, J.)   |
| People v Hansen             | 4th Dept: 79 AD3d 1773 (Ontario)                        | denied 4/4/11<br>(Lippman, Ch. J.) |
| People v Harris             | 1st Dept: 80 AD3d 533 (NY)                              | denied 4/21/11<br>(Grafteo, J.)    |
| People v Harvey             | 1st Dept: 80 AD3d 464 (NY)                              | denied 4/15/11<br>(Pigott, J.)     |
| People v Hernandez          | 1st Dept: 80 AD3d 540 (Bronx)                           | denied 4/14/11<br>(Smith, J.)      |
| People v Hopkins            | County Ct, 12/20/10 (Madison)                           | denied 4/7/11<br>(Jones, J.)       |
| People v Horton             | 4th Dept: 79 AD3d 1614 (Monroe)                         | denied 4/5/11<br>(Jones, J.)       |
| People v Howe               | 1st Dept: 82 AD3d 407 (NY)                              | denied 4/21/11<br>(Grafteo, J.)    |
| People v Ivey               | 3d Dept: 79 AD3d 1531 (Albany)                          | denied 4/21/11<br>(Ciparick, J.)   |
| People v Jackson            | 4th Dept: 79 AD3d 1831 (Monroe)                         | denied 4/7/11<br>(Read, J.)        |
| People v Jacob              | 2d Dept: 81 AD3d 977 (Nassau)                           | denied 4/20/11<br>(Smith, J.)      |

|                             |                                                         |                                                                   |
|-----------------------------|---------------------------------------------------------|-------------------------------------------------------------------|
| People v Jarvis             | 4th Dept: 78 AD3d 1634 (Monroe)                         | denied<br>reconsideration<br>4/21/11<br>(Grafteo, J.)             |
| People v Jay                | 3d Dept: 80 AD3d 787 (Albany)                           | denied 4/21/11<br>(Ciparick, J.)                                  |
| People v Jean               | 2d Dept: 81 AD3d 662 (Kings)                            | denied 4/11/11<br>(Smith, J.)                                     |
| People v Jenkins (Farel)    | 2d Dept: 81 AD3d 662 (Kings)                            | denied 4/20/11<br>(Pigott, J.)                                    |
| People v Jenkins (Terry)    | 4th Dept: 79 AD3d 1767 (Erie)                           | denied 4/22/11<br>(Read, J.)                                      |
| People v Johnson            | 1st Dept: 82 AD3d 415 (NY)                              | denied <sup>1</sup> 4/20/11<br>(Smith, J.)                        |
| People v Jones              | 2d Dept: 78 AD3d 732 (Suffolk)                          | denied 4/7/11<br>(Read, J.)                                       |
| People v Jordan             | 1st Dept: 81 AD3d 528 (NY)                              | denied 4/15/11<br>(Pigott, J.)                                    |
| People v Kennard            | App Div, 3d Dept: 2011 NY Slip Op<br>65217(U) (Chemung) | denied 4/21/11<br>(Grafteo, J.)                                   |
| People v Khan               | 1st Dept: 82 AD3d 44 (NY)                               | granted 4/8/11<br>(Ciparick, J.)                                  |
| People v King<br>(Lashawna) | 2d Dept: 79 AD3d 907 (Queens)                           | denied 4/19/11<br>(Ciparick, J.)                                  |
| People v King (Richard)     | 3d Dept: 79 AD3d 1277 (Delaware)                        | denied 4/18/11<br>(Ciparick, J.)                                  |
| People v Klem               | 2d Dept: 80 AD3d 777 (Suffolk)                          | denied 4/1/11<br>(Pigott, J.)                                     |
| People v Knox               | 3d Dept: 80 AD3d 887 (Chemung)                          | denied 4/19/11<br>(Ciparick, J.)                                  |
| People v Krafft             | County Ct, 12/20/10 (Cattaraugus)                       | denied 4/7/11<br>(Jones, J.)                                      |
| People v Krzanowski         | County Ct, 11/19/10 (Albany)                            | denied 4/4/11<br>(Lippman, Ch. J.)                                |
| People v Lagas              | 3d Dept: 76 AD3d 384 (Columbia)                         | denied leave<br>upon<br>reconsideration<br>4/20/11<br>(Jones, J.) |
| People v Laporte            | App Div, 1st Dept: 2010 NY Slip Op<br>88586(U) (NY)     | denied<br>reconsideration<br>4/22/11<br>(Read, J.)                |
| People v Lawton             | 2d Dept: 81 AD3d 663 (Queens)                           | denied 4/15/11<br>(Pigott, J.)                                    |
| People v Lindsey            | 2d Dept: 74 AD3d 988 (Nassau)                           | denied 4/21/11<br>(Ciparick, J.)                                  |
| People v Mackey             | 4th Dept: 79 AD3d 1680 (Steuben)                        | denied 4/21/11<br>(Ciparick, J.)                                  |

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1. Denied with leave to renew within 30 days after the Court's decision in *People v Wright* (78 AD3d 474 [2010]), *lv granted* 16 NY3d 801 [2011]) or *People v Steward* (78 AD3d 481 [2010], *lv granted* 16 NY3d 800 [2011]), whichever is later.



## MEMORANDA

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|                           |                                                       |                                                   |
|---------------------------|-------------------------------------------------------|---------------------------------------------------|
| People v Manning          | 1st Dept: 78 AD3d 585 (NY)                            | denied 4/7/11<br>(Read, J.)                       |
| People v Marshall         | 2d Dept: 81 AD3d 853 (Kings)                          | denied 4/11/11<br>(Lippman, Ch. J.)               |
| People v Martin           | 4th Dept: 79 AD3d 1793 (Seneca)                       | denied 4/18/11<br>(Ciparick, J.)                  |
| People v Mauhamet C.      | 1st Dept: 81 AD3d 518 (Bronx)                         | denied 4/20/11<br>(Pigott, J.)                    |
| People v McCloskey        | 2d Dept: 78 AD3d 1077 (Nassau)                        | denied 4/1/11<br>(Pigott, J.)                     |
| People v McDonald         | 2d Dept: 79 AD3d 771 (Queens)                         | denied 4/7/11<br>(Read, J.)                       |
| People v McPherson        | App Div, 1st Dept: 2011 NY Slip Op 63417(U) (NY)      | dismissed 4/11/11<br>(Smith, J.)                  |
| People v Medina-Deleon    | App Div, 1st Dept: 2011 NY Slip Op 64374(U) (NY)      | dismissed 4/11/11<br>(Smith, J.)                  |
| People v Mendez           | 1st Dept: 80 AD3d 523 (NY)                            | denied 4/21/11<br>(Grafteo, J.)                   |
| People v Mendoza          | 2d Dept: 79 AD3d 910 (Queens)                         | denied 4/19/11<br>(Ciparick, J.)                  |
| People v Meytin           | App Term, 1st Dept: 30 Misc 3d 128(A) (NY)            | denied 4/5/11<br>(Jones, J.)                      |
| People v “Mickey”         | 4th Dept: 81 AD3d 1291 (Erie)                         | denied 4/15/11<br>(Pigott, J.)                    |
| People v Miller (Jeffery) | 4th Dept: 73 AD3d 1435 (Monroe)                       | granted 4/15/11<br>(Read, J.)                     |
| People v Miller (Jeffrey) | 2d Dept: 81 AD3d 854 (Kings)                          | denied 4/21/11<br>(Grafteo, J.)                   |
| People v Miller (Marcus)  | 4th Dept: 81 AD3d 1282 (Oswego)                       | denied 4/11/11<br>(Smith, J.)                     |
| People v Miller (Vincent) | 1st Dept: 80 AD3d 451 (NY)                            | denied 4/19/11<br>(Ciparick, J.)                  |
| People v Miller (William) | 3d Dept: 82 AD3d 1278 (Ulster)                        | denied 4/20/11<br>(Smith, J.)                     |
| People v Molina           | 3d Dept: 79 AD3d 1371 (Chemung)                       | denied 4/20/11<br>(Ciparick, J.)                  |
| People v Mompoint         | 1st Dept: 81 AD3d 455 (NY)                            | denied 4/21/11<br>(Grafteo, J.)                   |
| People v Mora             | App Div, 1st Dept: 2010 NY Slip Op 88531(U) (Bronx)   | denied <sup>2</sup> 4/15/11<br>(Pigott, J.)       |
| People v Mosby            | App Div, 3d Dept: 2011 NY Slip Op 65214(U) (Tompkins) | dismissed 4/11/11<br>(Read, J.)                   |
| People v Moye             | 1st Dept: 81 AD3d 408 (NY)                            | denied 4/7/11<br>(Jones, J.)                      |
| People v Muniz            | App Div, 3d Dept: 2010 NY Slip Op 85655(U) (Chemung)  | denied reconsideration<br>4/19/11<br>(Pigott, J.) |

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<sup>2</sup>. Denied with leave to renew within 30 days after the Court renders a decision in *People v Gardner* (2010 NY Slip Op 66809[U] [2010], *lv granted* 15 NY3d 920 [2010]) and *People v Ventura* (2009 NY Slip Op 82726[U] [2009], *lv granted* 14 NY3d 894 [2010]).

|                            |                                                        |                                    |
|----------------------------|--------------------------------------------------------|------------------------------------|
| People v Murphy<br>(Harry) | App Term, 2d Dept: 29 Misc 3d 79<br>(Dutchess)         | denied 4/8/11<br>(Pigott, J.)      |
| People v Murphy<br>(Kevin) | 3d Dept: 79 AD3d 1451 (Albany)                         | denied 4/15/11<br>(Pigott, J.)     |
| People v Nelson            | 4th Dept: 79 AD3d 1738 (Erie)                          | denied 4/19/11<br>(Ciparick, J.)   |
| People v Nilsen            | 4th Dept: 79 AD3d 1759 (Monroe)                        | denied 4/7/11<br>(Read, J.)        |
| People v Ortiz             | 2d Dept: 80 AD3d 628 (Kings)                           | denied 4/1/11<br>(Pigott, J.)      |
| People v Paulin            | 1st Dept: 78 AD3d 557 (Bronx)                          | denied 4/8/11<br>(Read, J.)        |
| People v Perkins           | App Div, 3d Dept: 2011 NY Slip Op<br>60555(U) (Albany) | denied 4/21/11<br>(Grafteo, J.)    |
| People v Pierre            | 1st Dept: 80 AD3d 441 (NY)                             | denied 4/4/11<br>(Lippman, Ch. J.) |
| People v Pitts             | 2d Dept: 76 AD3d 984 (Kings)                           | denied 4/7/11<br>(Read, J.)        |
| People v Poole             | 4th Dept: 79 AD3d 1685 (Orleans)                       | denied 4/1/11<br>(Lippman, Ch. J.) |
| People v Ramos             | 2d Dept: 78 AD3d 1080 (Westchester)                    | denied 4/1/11<br>(Pigott, J.)      |
| People v Ramsey            | 1st Dept: 77 AD3d 489 (Bronx)                          | denied 4/7/11<br>(Read, J.)        |
| People v Rangel            | 1st Dept: 81 AD3d 527 (Bronx)                          | denied 4/20/11<br>(Pigott, J.)     |
| People v Redd              | 2d Dept: 81 AD3d 751 (Kings)                           | denied 4/14/11<br>(Smith, J.)      |
| People v Redmon            | 2d Dept: 81 AD3d 752 (Kings)                           | denied 4/20/11<br>(Smith, J.)      |
| People v Resto             | 4th Dept: 79 AD3d 1682 (Monroe)                        | denied 4/1/11<br>(Pigott, J.)      |
| People v Richardson        | 4th Dept: 78 AD3d 1666 (Genesee)                       | denied 4/7/11<br>(Read, J.)        |
| People v Rivers            | 2d Dept: 81 AD3d 858 (Kings)                           | denied 4/21/11<br>(Grafteo, J.)    |
| People v Roberts           | 3d Dept: 80 AD3d 787 (Albany)                          | denied 4/21/11<br>(Ciparick, J.)   |
| People v Rockefeller       | 3d Dept: 79 AD3d 1527 (Albany)                         | denied 4/5/11<br>(Jones, J.)       |
| People v Rodriguez         | 1st Dept: 81 AD3d 404 (NY)                             | denied 4/22/11<br>(Read, J.)       |
| People v Rogers            | 4th Dept: 81 AD3d 1320 (Niagara)                       | denied 4/20/11<br>(Pigott, J.)     |
| People v Romero            | 2d Dept: 78 AD3d 740 (Kings)                           | denied 4/1/11<br>(Lippman, Ch. J.) |
| People v Roppoccio         | App Term, 2d Dept: 30 Misc 3d 134(A)<br>(Westchester)  | denied 4/14/11<br>(Smith, J.)      |
| People v Rosario           | 2d Dept: 80 AD3d 784 (Nassau)                          | denied 4/11/11<br>(Smith, J.)      |

|                              |                                                         |                                              |
|------------------------------|---------------------------------------------------------|----------------------------------------------|
| People v Rozenberg           | 2d Dept: 80 AD3d 785 (Kings)                            | denied 4/22/11<br>(Read, J.)                 |
| People v Scott               | 2d Dept: 81 AD3d 988 (Kings)                            | denied <sup>3</sup> 4/21/11<br>(Grafteo, J.) |
| People v Secrist             | 4th Dept: 74 AD3d 1853 (Cattaraugus)                    | denied 4/21/11<br>(Grafteo, J.)              |
| People v Shaw                | 1st Dept: 80 AD3d 465 (NY)                              | denied 4/22/11<br>(Read, J.)                 |
| People v Smith<br>(Preston)  | App Div, 4th Dept: 2010 NY Slip Op<br>86968(U) (Monroe) | denied 4/21/11<br>(Grafteo, J.)              |
| People v Smith<br>(Tyheem)   | 1st Dept: 78 AD3d 609 (NY)                              | denied 4/4/11<br>(Lippman, Ch. J.)           |
| People v Soares              | 2d Dept: 80 AD3d 631 (Queens)                           | denied 4/14/11<br>(Pigott, J.)               |
| People v Solomon             | 1st Dept: 78 AD3d 521 (NY)                              | denied 4/4/11<br>(Lippman, Ch. J.)           |
| People v Sosa                | 1st Dept: 81 AD3d 464 (NY)                              | granted 4/1/11<br>(Smith, J.)                |
| People v Stiles              | 4th Dept: 78 AD3d 1570 (Cayuga)                         | denied 4/7/11<br>(Jones, J.)                 |
| People v Summers             | 1st Dept: 80 AD3d 520 (NY)                              | denied 4/21/11<br>(Ciparick, J.)             |
| People v Taylor              | App Div, 4th Dept, 3/9/11 (Erie)                        | dismissed 4/22/11<br>(Lippman, Ch. J.)       |
| People v Thurman             | 4th Dept: 79 AD3d 1662 (Erie)                           | denied 4/5/11<br>(Grafteo, J.)               |
| People v Tolbert             | 1st Dept: 81 AD3d 455 (NY)                              | denied 4/21/11<br>(Grafteo, J.)              |
| People v Torro-Torres        | 4th Dept: 81 AD3d 1291 (Erie)                           | denied 4/15/11<br>(Pigott, J.)               |
| People v Townsend            | 2d Dept: 81 AD3d 673 (Queens)                           | denied 4/21/11<br>(Grafteo, J.)              |
| People v Trinvil             | 1st Dept: 79 AD3d 596 (NY)                              | denied 4/19/11<br>(Ciparick, J.)             |
| People v Valdez<br>(Ernesto) | 1st Dept: 81 AD3d 550 (NY)                              | denied 4/21/11<br>(Grafteo, J.)              |
| People v Valdez              | App Div, 1st Dept: 2010 NY Slip Op<br>88531(U) (Bronx)  | denied <sup>4</sup> 4/15/11<br>(Pigott, J.)  |
| People v VanDeViver          | App Div, 4th Dept, 2/9/11 (Oswego)                      | dismissed 4/21/11<br>(Grafteo, J.)           |
| People v Vause               | App Term, 2d Dept: 29 Misc 3d 144(A)<br>(Suffolk)       | denied 4/22/11<br>(Read, J.)                 |
| People v Velasquez           | 2d Dept: 79 AD3d 1153 (Queens)                          | denied 4/5/11<br>(Jones, J.)                 |

3. Denied with leave to renew within 30 days after the Court renders a decision in *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Sharlow* (75 AD3d 568 [2010], *lv granted* 15 NY3d 924 [2010]), *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]) and *People v Rodriguez* (82 AD3d 418 [2011], *lv granted* 16 NY3d 836 [2011]).

4. Denied with leave to renew within 30 days after the Court renders a decision in *People v Gardner* (2010 NY Slip Op 66809[U] [2010], *lv granted* 15 NY3d 920 [2010]) and *People v Ventura* (2009 NY Slip Op 82726[U] [2009], *lv granted* 14 NY3d 894 [2010]).

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|-----------------------------|-------------------------------------|----------------------------------------------|
| People v Washburn           | 3d Dept: 76 AD3d 1120 (Columbia)    | denied 4/7/11<br>(Read, J.)                  |
| People v Washington         | 4th Dept: 78 AD3d 1587 (Monroe)     | denied 4/7/11<br>(Read, J.)                  |
| People v Waters             | 3d Dept: 80 AD3d 1002 (Schenectady) | denied 4/5/11<br>(Jones, J.)                 |
| People v Welsh              | 1st Dept: 80 AD3d 456 (NY)          | denied 4/1/11<br>(Pigott, J.)                |
| People v Wentworth          | 1st Dept: 77 AD3d 519 (Bronx)       | denied 4/7/11<br>(Jones, J.)                 |
| People v White<br>(Dequana) | 4th Dept: 81 AD3d 1260 (Niagara)    | denied 4/14/11<br>(Smith, J.)                |
| People v White<br>(Dequana) | 4th Dept: 81 AD3d 1263 (Niagara)    | denied 4/14/11<br>(Smith, J.)                |
| People v Williams           | 2d Dept: 81 AD3d 756 (Kings)        | denied <sup>5</sup> 4/21/11<br>(Grafteo, J.) |
| People v Willis             | 4th Dept: 79 AD3d 1739 (Livingston) | denied 4/5/11<br>(Jones, J.)                 |
| People v Wystozaly          | 3d Dept: 80 AD3d 894 (Otsego)       | denied 4/19/11<br>(Pigott, J.)               |

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**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**  
**Decisions of Appellate Division Justices\***

(April 1, 2011 through April 30, 2011)

|                 |                                 |                                  |
|-----------------|---------------------------------|----------------------------------|
| People v Walker | 4th Dept: 78 AD3d 1671 (Monroe) | granted 4/14/11<br>(Lindley, J.) |
|-----------------|---------------------------------|----------------------------------|

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[948 NE2d 920, 924 NYS2d 314]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TERRELL GILFORD, Appellant.

Argued March 23, 2011; decided May 3, 2011

**SUMMARY**

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme

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<sup>5</sup>. Denied with leave to renew within 30 days after the Court renders a decision in *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Sharlow* (75 AD3d 568 [2010], *lv granted* 15 NY3d 924 [2010]), *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]) and *People v Rodriguez* (82 AD3d 418 [2011], *lv granted* 16 NY3d 836 [2011]).

\* Includes only applications that were granted.

Court in the First Judicial Department, entered September 1, 2009. The Appellate Division modified, as a matter of discretion in the interest of justice, a judgment of the Supreme Court, Bronx County (Caesar Cirigliano, J.), which had convicted defendant, after a nonjury trial, of manslaughter in the first degree, assault in the first degree, and criminal possession of a weapon in the fourth degree. The modification consisted of reducing the assault conviction to attempted assault in the first degree. The Appellate Division affirmed the judgment as modified.

*People v Gilford*, 65 AD3d 840, affirmed.

#### HEADNOTE

##### **Crimes — Appeal — Matters Reviewable—Identification of Defendant**

In a homicide prosecution arising from a fight, the determinations of the hearing court, undisturbed by the Appellate Division, that showup identifications were reasonable under the circumstances and not unduly suggestive, were mixed questions of law and fact supported by evidence in the record and thus beyond further review by the Court of Appeals. The due-process inquiry for showups calls upon the suppression court to decide whether the showup was reasonable under the circumstances—i.e., justified by exigency or temporal and spatial proximity—and, if so, whether the showup as conducted was unduly suggestive. Here, the judge at the suppression hearing found that the chain of events leading to the showup was unbroken, related in temporal and geographic proximity and driven by the exigency of the victim's critical condition, and that the showup took place within a short period of time after the commission of the crime and in close proximity to the scene of the crime. In addition the judge found that the showup, during which defendant was identified in front of a police car while in handcuffs, was not unduly suggestive.

#### APPEARANCES OF COUNSEL

*Office of the Appellate Defender*, New York City (Rosemary Herbert and Richard M. Greenberg of counsel), for appellant.

*Robert T. Johnson*, District Attorney, Bronx (Justin J. Braun, Andrew S. Holland, Joseph N. Ferdenzi and Nancy D. Killian of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed.

At 2:00 A.M. on Monday, March 8, 2004, a fight erupted on the dance floor at "Skate Key," a now-defunct indoor roller skating rink in the Bronx. By the time the combatants were spent or separated, James Earl Jones had suffered what turned out to be a mortal stab wound in the chest, and Kyle Williams had

suffered potentially life-threatening stab wounds in the stomach and back. A female witness who was standing within inches of Jones when he was stabbed helped him outside where he collapsed in the street. She immediately and spontaneously identified defendant Terrell Gilford as Jones's attacker to a police sergeant assigned to the area outside Skate Key, who asked if anyone knew who stabbed the victim. Defendant fled on foot, with the sergeant and witness in pursuit.

Two uniformed police officers, who were notified at 2:15 A.M. of an assault in progress, joined in the chase in their patrol car and finally caught up with defendant a few blocks away from Skate Key. They handcuffed defendant with his hands behind his back and placed him in the back seat of their cruiser. The sergeant instructed these two officers to transport defendant to the nearby hospital where Jones had been taken by ambulance, and to conduct a showup. At the time, the sergeant suspected that Jones was "probably going to lose his life."

When the two officers reached the hospital, one of them stayed with defendant in the car, which was parked in the emergency room parking lot. The other officer went into the hospital where he learned Jones's name, and discovered that he was "unconscious" and "being worked on," rendering a showup impossible. On his way out of the emergency room, though, he ran into the witness and a male companion, who were walking quickly in his direction. In light of their distraught and rushed appearance (the witness appeared to have been crying), the officer, acting on a hunch, asked them why they were there. When the witness responded that "her friend" James Jones had been stabbed, the officer asked the two of them "if they knew anything about what had happened at the Skate Key and they said that they did." He then "asked them if they would be able [to] in any way . . . identify any suspects involved in the case and they also said they would." The officer did not know that the witness had already identified defendant to the sergeant as Jones's attacker.

The officer radioed for a patrol car. He explained to the witness and her companion that he would place them in this car to "view someone" or to "show [them] someone who might have been involved in the incident." Once this patrol car arrived, the witness and her companion climbed inside, and the officer told them that he was going to "put a bright light on the individual [whom he] would show them and that at any time if they identified that person they should let [him] know." The officer next

called on the operator of the newly-arrived patrol car to turn on the “take-down” lights on top of the vehicle. At the officer’s signal, his fellow officer then guided defendant, who remained rear-handcuffed, to the lighted area and stood next to him. When the officer asked the witness and her companion if they could identify defendant, the witness said, “[T]hat’s him,” and her companion agreed. The witness related to the officer that “the person [whom he] had shown them was responsible for injuring Mr. James Jones, specifically stabbing him”; the stabbing took place inside Skate Key; “there was a confrontation amongst people”; and defendant “had a knife and . . . had stabbed [Jones].” Her companion added “that there was a fight and . . . he also observed [defendant] to have a knife in his possession.” This showup took place at about 2:45 A.M., no more than 45 minutes after the crime.

On April 1, 2004, the grand jury indicted defendant for a litany of crimes in connection with the fight at Skate Key. Defendant moved to suppress the showup identifications. Defense counsel argued that there were no exigent circumstances with respect to the witness or her companion; that the officer improperly conducted a joint or simultaneous showup with the witness—who had already identified defendant just minutes before—and her companion; that the officer told them that defendant was a “suspect”; that defendant was “spotlighted” by “take-down” lights; and that defendant was removed from a police car, wearing handcuffs, and flanked by police officers in plain view of the witness and her companion. Defense counsel further maintained that the showup was impermissibly duplicative because the police officers had to have known that a showup was unnecessary to establish probable cause since defendant was already under arrest.

The judge denied defendant’s motion, citing *People v Duuvon* (77 NY2d 541 [1991]). He found that the “chain of events” in this case was “unbroken,” related in temporal and geographic proximity and, in addition, driven by the exigency of the victim’s critical condition; and that “the show-up took place within a short period of time after the commission of the crime and in close proximity to the scene of the crime.” Further, he concluded, the showup was conducted to “preserv[e] . . . the witnesses’ ‘fresh memories’ of the event,” and “[t]he fact that [defendant] was identified in front of a police car while in handcuffs [did] not render the show-up unduly suggestive.”

Defendant subsequently waived his right to a jury and was tried in a bench trial before the same judge who presided over



the suppression hearing. At the trial, the witness made an in-court identification of defendant as Jones's attacker; Williams testified that defendant had stabbed him in the stomach. The judge acquitted defendant of the most serious of the charges facing him for Jones's death—second-degree murder—but convicted him of first-degree manslaughter. The judge also acquitted defendant of the most serious of the charges with respect to Williams—attempted murder in the second degree—but convicted him of first-degree assault.

On appeal, the Appellate Division upheld defendant's first-degree manslaughter conviction. Exercising its interest-of-justice jurisdiction, the court reviewed defendant's unpreserved challenge to the first-degree assault conviction and reduced it to first-degree attempted assault (65 AD3d 840, 841 [1st Dept 2009]). Finally, the court found "no basis for suppression of the showup or in-court identifications, because the showup was within permissibly close temporal and geographic proximity to the crime, took place shortly after the witness had already made a reliable identification, and was conducted in a manner that was not unduly suggestive" (*id.* at 841-842 [citations omitted]).

The due-process inquiry for showups calls upon the suppression court to decide whether the showup was reasonable under the circumstances—i.e., justified by exigency or temporal and spatial proximity—and, if so, whether the showup as conducted was unduly suggestive (*People v Ortiz*, 90 NY2d 533, 537 [1997]). Whether a showup is reasonable under the circumstances and/or unduly suggestive are mixed questions of law and fact. As a result, the determination of the hearing court in this case, undisturbed by the Appellate Division and supported by evidence in the record, is beyond our further review.

Finally, defendant's claim that the evidence was insufficient to show his intent to cause serious physical injury to Williams is unpreserved.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

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[948 NE2d 1290, 925 NYS2d 6]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PEDRO MELENDEZ, Appellant.

Argued March 22, 2011; decided May 3, 2011

### SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 18, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Peter J. Benitez, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree.

*People v Melendez*, 71 AD3d 530, affirmed.

### HEADNOTE

#### Crimes — Appeal — Preservation of Issue for Review — Alibi Defense

In a criminal prosecution, defendant's claim that the trial court erred in not unequivocally conveying to the jury that the People were required to disprove defendant's alibi defense beyond a reasonable doubt was unpreserved. Defense counsel neither objected to the court's proposed charge nor voiced an objection to the charge after it was given to the jury, thereby failing to alert the trial court to his claim that the charge, which provided that the People could meet their burden with respect to the alibi defense by proving beyond a reasonable doubt that defendant committed the crime, did not adequately instruct the jury that the People bore the burden of disproving a defendant's alibi defense.

### APPEARANCES OF COUNSEL

*Office of the Appellate Defender*, New York City (*Lisa A. Packard* and *Richard M. Greenberg* of counsel), for appellant.

*Robert T. Johnson*, *District Attorney*, Bronx (*Rafael Curbelo*, *Jennifer Marinaccio* and *Joseph N. Ferdenzi* of counsel), for respondent.

### OPINION OF THE COURT

#### MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant's claim that the trial court erred in not unequivocally conveying to the jury that the People were required to disprove defendant's alibi defense beyond a reasonable doubt (see *People v Victor*, 62 NY2d 374 [1984]) is unpreserved.

During the charge conference, defense counsel asked the court to deliver an alibi charge, arguing that the People must disprove

alibi beyond a reasonable doubt. The court agreed to give the charge, noting that the pattern Criminal Jury Instruction had been amended to provide that the People could meet that burden by proving beyond a reasonable doubt that defendant committed the crime. The following day, the court showed the parties its proposed alibi charge, and again pointed out that the charge had recently been modified. Defense counsel neither objected to the court's proposed charge nor voiced an objection to the charge after it was given to the jury, thereby failing to alert the trial court to his current claim that the amended charge did not adequately instruct the jury that the People bear the burden of disproving a defendant's alibi defense (*see People v Whalen*, 59 NY2d 273, 279-280 [1983]).

Likewise unpreserved are defendant's contentions that the alibi charge and certain of the prosecutor's comments during summation shifted the burden of proof to defendant (*see* CPL 470.05 [2]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

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MANINDER BHUGRA, Appellant, v MASSACHUSETTS CASUALTY INSURANCE COMPANY et al., Defendants, and DISABILITY MANAGEMENT SERVICES, Respondent.

Decided May 3, 2011

Reported below, 80 AD3d 489.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

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In the Matter of MICHELLE C. HISSAM, Appellant, v MATTHEW P. MANCINI, Respondent. (And Another Related Proceeding.)

Submitted March 7, 2011; decided May 3, 2011

Reported below, 80 AD3d 802.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed that part of Family Court's order that dismissed appellant's contempt application, dismissed upon the ground that such portion of the order does

not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge PIGOTT taking no part.

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DONNA PRINCE LYNCH, Individually and as Parent and Natural Guardian of PHILIP LAWRENCE LYNCH, and as Administratrix of the Estate of TIMOTHY JOHN LYNCH, Deceased, et al., Respondent, v MIKE WATERS, as Fire Coordinator of County of Onondaga, et al., Respondents. MIKE WATERS, as Fire Coordinator of County of Onondaga, et al., Third-Party Plaintiffs-Respondents, v THE POMPEY HILL FIRE DISTRICT et al., Third-Party Defendants-Respondents, and THE VILLAGE OF MANLIUS et al., Third-Party Defendants-Appellants.

Submitted February 22, 2011; decided May 3, 2011

Reported below, 79 AD3d 1709.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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FAHIM MAJAWALLA, as Executor of YUSUF K. MAJAWALLA, Deceased, et al., Respondents, v UTICA FIRST INSURANCE COMPANY, Appellant.

Submitted March 14, 2011; decided May 3, 2011

Reported below, 71 AD3d 958.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of the Claim of KHAWAR MAQSOOD, Appellant, v McROBERTS PROTECTIVE AGENCY et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted March 21, 2011; decided May 3, 2011

Reported below, 79 AD3d 1547.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine

the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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SCOTT MARTZLOFF et al., Individually and as Parents and Natural Guardians of VICTORIA MARTZLOFF, an Infant, Appellants, v RUSH-HENRIETTA CENTRAL SCHOOL DISTRICT, Respondent.

Submitted March 28, 2011; decided May 3, 2011

Reported below, 81 AD3d 1291.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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NY SMS WATERPROOFING, INC., Respondent, v CONGREGATION MACHNE CHAIM, INC., Appellant.

Submitted March 21, 2011; decided May 3, 2011

Reported below, 81 AD3d 617.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of the Claim of GERARD O'CONNOR, Appellant, v NEW YORK CITY BOARD OF EDUCATION, Respondent. WORKERS' COMPENSATION BOARD, Respondent.

Submitted March 7, 2011; decided May 3, 2011

Reported below, 78 AD3d 1383.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SCOTT LIDEN, Appellant.

Submitted March 7, 2011; decided May 3, 2011

Reported below, 79 AD3d 598.

Motion for leave to appeal granted. Motion for poor person relief granted.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. BERNARD DE-  
VEAUX, Appellant, v DONALD SAWYER, as Executive Director  
of Central New York Psychiatric Center, et al., Respondents.

Submitted February 28, 2011; decided May 3, 2011

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of the individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

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In the Matter of the Claim of ROBIN L. ROSS, Appellant. STAR-  
WOOD HOTELS & RESORTS WORLDWIDE, INC., Respondent;  
COMMISSIONER OF LABOR, Respondent.

Submitted February 28, 2011; decided May 3, 2011

Reported below, 2011 NY Slip Op 60556(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying appellant's motion for reconsideration, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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In the Matter of the Estate of KEVIN W. STANLEY, Deceased.  
DIANE R. STANLEY, as Executrix of KEVIN W. STANLEY,  
Deceased, Appellant; LAWRENCE J. MATTAR, ESQ., as Guardian  
ad Litem for ASHLEY STANLEY, a Minor, et al., Respondents.

In the Matter of the Estate of KATHLEEN A. STANLEY, Deceased.  
RICHARD T. STANLEY, as Administrator of the Estate of  
KATHLEEN A. STANLEY, Deceased, Appellant; LAWRENCE J.  
MATTAR, ESQ., as Guardian ad Litem for ASHLEY STANLEY, a  
Minor, et al., Respondents.

Submitted February 14, 2011; decided May 3, 2011

Reported below, 79 AD3d 1620, 1624, 1625.

Motion for leave to appeal dismissed upon the ground that

the orders sought to be appealed from do not finally determine the proceedings within the meaning of the Constitution.

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UNION CARBIDE CORPORATION, Appellant, v AFFILIATED FM INSURANCE COMPANY et al., Defendants, and CONTINENTAL CASUALTY COMPANY et al., Respondents.

Submitted April 4, 2011; decided May 3, 2011

Reported below, 68 AD3d 534.

Motion for reargument denied [*see* 16 NY3d 419 (2011)].

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[949 NE2d 479, 925 NYS2d 388]

In the Matter of EDDY MARTE et al., Appellants, v CAROL BERKMAN, Justice of the Supreme Court, State of New York, et al., Respondents.

Argued March 22, 2011; decided May 5, 2011

#### SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 16, 2010, in a proceeding pursuant to CPLR article 78. The Appellate Division denied an application in the nature of prohibition seeking, on the ground of double jeopardy, to prevent the retrial of petitioners before respondent Supreme Court Justice under New York County indictment No. 2420/08, and dismissed the proceeding. The following question was certified by the Appellate Division: “Was the order of this Court, which denied petitioner’s writ of prohibition and dismissed the Article 78 proceeding, properly made?”

*Matter of Marte v Berkman*, 70 AD3d 493, affirmed.

#### HEADNOTE

##### Crimes — Trial — Mistrial — Consent of Defendant

In a CPLR article 78 proceeding in the nature of prohibition seeking to prevent the retrial of defendants, there was no basis in the record to disturb the factual finding of the Appellate Division that defendants impliedly consented to the mistrial at their criminal trial. After the jury submitted a note stating that a verdict had been reached on two counts but that it was at an impasse on others, and the trial judge, at an *O’Rama* conference to determine how it could respond to the note, indicated that he intended to take a partial verdict and declare a mistrial on the undecided charges, defense

counsel either responded “no” or remained silent when asked if they wanted to be heard. After the court took the partial verdict but before it discharged the jury, the judge again inquired of defense counsel if there was anything they wanted to put on the record. Neither attorney responded. Thus, there was ample basis on the record for the trial court to conclude that defendants agreed that a mistrial on the undecided charges was the appropriate course of action. Nothing at the *O’Rama* conference could have led counsel to reasonably believe that the court was deferring its decision, and counsels’ objections to the mistrial after the jury was discharged did not mean that implied consent could not be found as a matter of law. The purpose of an *O’Rama* conference is for the attorneys to advise the court concerning the appropriate response to a jury note in order to assist the court in averting error.

#### APPEARANCES OF COUNSEL

*David Segal*, New York City, for Eddy Marte, appellant.

*Robert Blossner*, New York City, for Luis Marte, appellant.

*Eric T. Schneiderman*, *Attorney General*, New York City (*Michael J. Siudzinski* of counsel), for Carol Berkman, respondent.

*Cyrus R. Vance, Jr.*, *District Attorney*, New York City (*Martin J. Foncello* and *Alice Wiseman* of counsel), for New York County District Attorney, respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The judgment of the Appellate Division should be affirmed, without costs, and the certified question not answered upon the ground that it is unnecessary.

“While express consent to a mistrial is preferable, defendant’s consent may in some cases be implied from the circumstances leading up to the dismissal of the jury” and the question of whether the defense consented to a mistrial involves a factual determination by the lower courts that may not be disturbed by this Court if there is any support for that finding in the record (*People v Ferguson*, 67 NY2d 383, 388-389 [1986]). In this case, there is record support for the Appellate Division conclusion that defendants impliedly consented to the mistrial. The jury submitted a note stating that a verdict had been reached on two counts and that it was at an impasse on others. At the *O’Rama* conference conducted to determine how the court should respond to this note, the trial judge indicated that he intended to take a partial verdict and declare a mistrial on the undecided charges. When he then asked defense counsel if they wanted to be heard, counsel for Eddy Marte responded “no” and counsel for the codefendant remained silent. After the court took the partial verdict but before it discharged the jury,

the judge again inquired of defense counsel if there was anything they wanted to put on the record. Neither attorney responded. Thus, there was ample basis on the record for the trial court to conclude that defendants agreed that a mistrial on the undecided charges was the appropriate course of action.

Contrary to the conclusion reached by the dissent, nothing that occurred at the conference could have led counsel to reasonably believe that the court was deferring a decision concerning the proper response to the note. When the prosecutor agreed that a mistrial was warranted and the defense voiced no disagreement—despite being asked their views—there was no reason for the court to deviate from its initial inclination.

Defendants' contention that there could not have been implied consent as a matter of law because they objected to the mistrial after the jury was discharged lacks merit. The purpose of an *O'Rama* conference is for the attorneys to advise the court concerning the appropriate response to a jury note in order to assist the court in averting error. The dissent overlooks this principle. Under its analysis, defense attorneys would have no obligation to meaningfully participate in *O'Rama* conferences but could simply say nothing when a trial judge articulates a proposed response, leaving the false impression of acquiescence even while anticipating a subsequent objection. If this were permissible, attorneys could—by their silence—lull the court into taking actions that could not later be undone.

Our *O'Rama* jurisprudence compels rejection of this approach. If defendants believed, as they now assert, that the court should have taken the partial verdict followed by an *Allen* charge directing the jury to continue deliberations, the time to offer that suggestion was at the *O'Rama* conference. Similarly, if defense counsel were unprepared to consent or object to a mistrial during the conference because they did not yet know what the verdict would be, this too should have been conveyed to the court at the conference.\* This would have put the court on notice that the defense did not agree that the tenor and length of deliberations, coupled with the jury's declaration concerning its inability to reach agreement, warranted a mistrial (had such no-

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\* The dissent speculates that counsel may have intended to listen to the interaction between the court and the jury during the ensuing proceedings before deciding whether to consent to the mistrial. While this is certainly possible—and it would have been a reasonable strategy—it is not supported by anything in the record. Moreover, if this was the case, counsels' failure to speak up and articulate this intention at the *O'Rama* conference is both inexplicable and inexcusable.



tice been given, the court might have altered course in a number of ways, including revisiting its decision to accept the partial verdict). Certainly, once the verdict was announced and defense counsel nonetheless remained mute when asked their views, the inference that defense counsel concurred with the court's decision to grant a mistrial was even more apparent. Moreover, in a case like this where the court informed defense counsel in advance how it planned to respond to the jury note, it is particularly appropriate for a reviewing court to focus on "the circumstances leading up to the dismissal of the jury" (*Ferguson* at 388), not statements defense counsel made after the jury had been discharged.

Because we find no basis to disturb the Appellate Division's factual finding of implied consent, we have no occasion to address the People's alternative argument that there was manifest necessity for the mistrial. In that regard, however, we note that there is a relationship between the deficiencies in the record highlighted by the dissent and defense counsels' response when the court expressed its intent to declare a mistrial. Had either attorney addressed a concern relating to that decision at that time, an inquiry concerning the nature of the jury's impasse and the likelihood of ever reaching a verdict on the undecided counts would undoubtedly have ensued—creating a record that would facilitate appellate review.

CIPARICK, J. (dissenting). Although a defendant's consent to a mistrial "may in some cases be implied from the circumstances" (*People v Ferguson*, 67 NY2d 383, 388 [1986]), this is not such a case.

Summarizing the record, the majority states that "the trial judge indicated that he intended to . . . declare a mistrial" (majority mem at 875). In fact, the court only announced its "inclination" to declare a mistrial during an *O'Rama* conference addressing a jury note which stated that the jury had reached a verdict on two of the charges, but was otherwise at an "impasse." At that point, the court had not inquired whether the jury might still be able to reach a verdict on the remaining counts in a reasonable period of time (*see* CPL 310.70 [1] [a]; 310.60 [1] [a]; *Matter of Rivera v Firetog*, 11 NY3d 501, 506 [2008]), and there is no consideration of this question on the record. Thus, when the court stated its inclination, defense counsel may have reasonably inferred that the court was deferring any decision pending further interaction with the jury. Further, counsel may have been waiting to view that interaction before deciding whether to consent.

When the jury was brought in, it returned a partial verdict acquitting both defendants of two of the three counts in the indictment, attempt to commit robbery in the first degree and attempt to commit robbery in the second degree. The foreperson confirmed that the jury “had not reached a decision” on the third count in the indictment or the three lesser included counts. After taking the partial verdict and hearing that the jury was otherwise “undecided,” the court asked counsel if they had “anything for the record.” They did not. It was not obvious, however, that the court’s next step would be to declare a mistrial without further inquiry. That only became evident when the court proceeded to briefly thank the jurors and discharge them. The court never gave defense counsel an opportunity to respond to its decision to declare a mistrial, and defendants, petitioners here, cannot be said to have implicitly consented.

The majority’s reliance on *Ferguson* (67 NY2d 383 [1986]) is misplaced. In that case, the judge informed the attorneys that a juror was hospitalized, there were no alternates, and she was considering a mistrial—a decision based entirely on the juror’s absence, and so plainly not contingent on anything further happening in the courtroom. When proceedings recommenced, the court unequivocally stated that it was going to declare a mistrial, and defense counsel failed to object (*id.* at 387). In that context, we held that the defendant’s consent could be implied. We have never suggested, however, that a defendant can implicitly consent to the declaration of a mistrial before the court definitively determines its course. Although defense counsel here must have realized at some point while the court was thanking and dismissing the jury that there would be no verdict on the third count, that is not the type of silence in the face of a clear opportunity for consent that may substitute for explicit consent (*cf. Ferguson*, 67 NY2d at 388-389). In any event, the court thanked and dismissed the jury in a few short sentences, after which defense counsel promptly approached the bench and requested that the jury be held. In effect, this constituted a timely objection.

In the absence of defendants’ consent, we must consider whether the constitutional bar to placing a defendant twice in jeopardy for the same offense prevents petitioners from being retried (*see* NY Const, art I, § 6; US Const 5th Amend; *Matter of Davis v Brown*, 87 NY2d 626, 629-630 [1996]). A defendant may be reprosecuted only if the trial court properly took “all the circumstances into consideration” and found “manifest necessity”

for a declaration of mistrial (*Matter of Rivera*, 11 NY3d at 506, quoting *United States v Perez*, 9 Wheat [22 US] 579, 580 [1824]). The “classic example” of manifest necessity is “a genuinely deadlocked jury” (*id.*).

“To justify a mistrial on deadlock grounds, it must be ‘clear that the jury is hopelessly deadlocked and that there is no reasonable probability it can agree’ ” (*id.*, quoting *People v Baptiste*, 72 NY2d 356, 360 [1988]; see also CPL 310.70 [1] [a]; 310.60 [1] [a] [A court may declare a mistrial “only when . . . (t)he jury has deliberated for an extensive period of time . . . and the court is satisfied that . . . agreement is unlikely within a reasonable time”]). We afford great deference to a trial court’s determination that a mistrial is necessary (see *Matter of Rivera*, 11 NY3d at 507; *Baptiste*, 72 NY2d at 360), and have “repeatedly stressed that no per se rules or mechanical formulas apply to mistrial determinations” (*Matter of Rivera*, 11 NY3d at 509). The trial court should consider “ ‘the length and complexity of the trial, the length of the deliberations, the extent and nature of the communications between the court and the jury, and the potential effects of requiring further deliberation’ ” (*id.* at 507, quoting *Matter of Plummer v Rothwax*, 63 NY2d 243, 251 [1984]), as well as “appropriate alternatives” (*id.*, quoting *Hall v Potoker*, 49 NY2d 501, 505 [1980]).

Our case law illustrates various ways in which these factors can combine to produce satisfactory assurance that a mistrial is necessary. In *Matter of Plummer*, for example, we upheld a mistrial declaration that followed only 4½ hours of deliberation (63 NY2d at 251). That case, however, was “simple,” the trial lasted just over an afternoon, and “the Judge questioned the jury through its foreperson who insisted that further deliberations would be fruitless” (*id.* at 252). Alternately, in *Matter of Rivera*, although the judge never questioned the jury, the deliberations lasted almost six days—longer than the trial—during which the jury sent out three deadlock notes (11 NY3d at 508).

Here, the jury deliberated for only two days following an eight-day trial, with an alternate juror being seated at approximately 12:30 P.M. on the second day of deliberations. Before the alternate was seated, the jury sent out several notes requesting a variety of records, witness testimony, and legal instruction. Just before noon on the second day of deliberations, a Friday, the jury sent out a note saying it had reached a verdict on one count and was “close to a decision” on another, but was “evenly split on the remaining counts and . . . at an impasse.”

The court responded by giving a modified *Allen* charge. Shortly thereafter, the jury requested “guidance” on the lesser included charges and the court provided some. The alternate juror was then seated, and the court instructed the jury to “begin deliberations anew in regard to” the new juror. Late that afternoon, after three more notes requesting clarification and testimony, the jury sent out a note saying it had reached a verdict on two of the charges, but was “at an impasse” on the remaining charges. It was in response to this note that the court, without further inquiry or instruction, took a partial verdict and declared a mistrial on the remaining counts.

This record does not support a finding that there was “no reasonable probability” that the jurors would reach an agreement.\* Although the jury said it was at an impasse and the foreperson announced while giving the partial verdict that it was “undecided” on the remaining counts, the court never inquired whether further deliberation might be productive. Given the brevity of the deliberations, relative to the length and complexity of the trial, some further inquiry was required, particularly since the jury had been actively requesting evidence and legal instruction as late as 3:00 P.M. that afternoon.

That two of the jurors wanted to conclude deliberations that Friday due to personal engagements the following week did not compel a mistrial. Although courts must be wary of extending deliberations to the point of exerting coercive pressure on jurors (see *Arizona v Washington*, 434 US 497, 509-510 [1978]; *Matter of Plummer*, 63 NY2d at 250), the court here had noncoercive alternatives: it could have held the jury later on Friday; it could have investigated the duration of the jurors’ personal commitments the following week and adjourned the proceedings accordingly; or it could even have continued with 11 jurors with defense consent.

Because Supreme Court never adequately determined that the jury was hopelessly deadlocked and there was no reasonable probability it would reach a verdict, and because it appears that further deliberation was possible without fear of coercing a verdict, there was no manifest necessity for the court to declare a mistrial. Since petitioners never consented to the mistrial, in

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\* The majority suggests that if defense counsel had requested that the court create a record demonstrating manifest necessity, it might have done so (majority mem at 877). The question, however, is whether the trial court abused its discretion by declaring a mistrial based on the record before it (see *Matter of Rivera*, 11 NY3d at 507).

my view, defendants cannot be retried. Accordingly, I would reverse the judgment of the Appellate Division and grant the petition.

Judges GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum; Judge CIPARICK dissents and votes to reverse in an opinion in which Chief Judge LIPPMAN concurs.

Judgment affirmed, etc.

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[947 NE2d 1188, 923 NYS2d 409]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROLANDO HERRERA, Appellant.

Decided May 5, 2011

#### SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 23, 2010. The Appellate Division (1) reversed, on the law and the facts, an order of the Supreme Court, Bronx County (Caesar Cirigliano, J.; op 19 Misc 3d 1140[A], 2008 NY Slip Op 51077[U]), which had granted a motion by defendant to suppress physical evidence and a statement by the defendant, (2) denied the motion, and (3) reinstated the criminal complaint.

While the arresting detective and his partner were on motor patrol one evening, the detective observed in the light of the street lamps a shiny, silver-colored metallic object clipped to defendant's right rear pants pocket. In addition to the object's curved clip on the outside of the pocket, the top of the object visibly protruded above the top of the pocket. Based on his training and experience, involving 50 to 60 arrests for weapon possession, the detective believed the object to be a gravity knife or a small-caliber handgun. After stopping his car, the detective and his partner approached defendant and asked him to stop. The officers did not draw their guns. When he was two to three feet behind defendant, the detective pulled the shiny object out of defendant's pocket. He did not frisk defendant or question him before taking the object, which proved to be an illegal gravity knife. The detective and his partner placed defendant under arrest and drove him to the precinct station. While in transit, defendant spontaneously stated that he had been keeping the knife for his own safety, based on his belief that someone he

knew was trying to kill him. Defendant was charged with criminal possession of a weapon in the fourth degree and unlawful possession of a knife.

*People v Herrera*, 76 AD3d 891, affirmed.

#### HEADNOTE

##### Crimes — Unlawful Search and Seizure

In a prosecution for criminal possession of a weapon and unlawful possession of a knife, an order of the Appellate Division, which reversed an order granting a motion by defendant to suppress physical evidence and a statement by the defendant, denied the motion, and reinstated the criminal complaint, was affirmed (*see People v Fernandez*, 16 NY3d 596 [2011]).

#### APPEARANCES OF COUNSEL

*Bronx Defenders*, Bronx (*Matthew Caldwell* and *Robin S. Steinberg* of counsel), for appellant.

*Robert T. Johnson*, District Attorney, Bronx (*Stanley R. Kaplan* of counsel), for respondent.

#### OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed (*see People v Fernandez*, 16 NY3d 596 [2011] [decided today]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT. Judge JONES dissents for reasons stated in his dissenting opinion in *People v Fernandez* (16 NY3d 596, 603 [2011] [decided today]).

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ISIDRO ABASCAL, Appellant, v CITY OF NEW YORK, Respondent.

Submitted March 28, 2011; decided May 5, 2011

Reported below, 78 AD3d 582; 2011 NY Slip Op 64065(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

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ABN AMRO BANK, N.V., et al., Appellants, et al., Plaintiffs, v  
MBIA INC. et al., Respondents.

Submitted May 2, 2011; decided May 5, 2011

Reported below, 81 AD3d 237.

Motion by New York Civil Liberties Union et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

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ABN AMRO BANK, N.V., et al., Appellants, et al., Plaintiffs, v  
MBIA INC. et al., Respondents.

Submitted May 2, 2011; decided May 5, 2011

Reported below, 81 AD3d 237.

Motion by Patrick J. Borchers et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

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ABN AMRO BANK, N.V., et al., Appellants, et al., Plaintiffs, v  
MBIA INC. et al., Respondents.

Submitted May 2, 2011; decided May 5, 2011

Reported below, 81 AD3d 237.

Motion by Aurelius Capital Master Ltd. et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

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In the Matter of RAMON ALVAREZ, Appellant, v NEW YORK STATE  
DIVISION OF PAROLE et al., Respondents.

Submitted April 11, 2011; decided May 5, 2011

Reported below, 63 AD3d 1402.

Motion for reargument of motion for leave to appeal denied [*see* 14 NY3d 708 (2010)]. Motion for poor person relief dismissed as academic.

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In the Matter of MICHAEL CHENKIN, Appellant, v NEW YORK  
CITY COUNCIL, Respondent.

Submitted March 28, 2011; decided May 5, 2011

Reported below, 72 AD3d 548.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 16 NY3d 703 (2011)].

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CHRISTOPHER COLEMAN, Appellant, v PUTNAM HOSPITAL CENTER  
et al., Respondents, et al., Defendant.

Submitted February 22, 2011; decided May 5, 2011

Reported below, 74 AD3d 1009.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of CHRISTOPHER CULVER, Respondent, v KRISTI  
VANPATTEN CULVER, Appellant.

Submitted April 4, 2011; decided May 5, 2011

Reported below, 82 AD3d 1296.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (CPLR 5601 [a]). Motion for a stay dismissed as academic.

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FARRAH DONALD, Appellant, v STATE OF NEW YORK, Respondent.

Submitted May 2, 2011; decided May 5, 2011

Reported below, 73 AD3d 1465.

Motion by Legal Aid Society, Criminal Appeals Bureau and Parole Revocation Defense Unit, for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

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EUROVISION 426 DEVELOPMENT, LLC, Respondent, v 26-01 ASTORIA DEVELOPMENT, LLC, Appellant, et al., Defendant.

Submitted March 14, 2011; decided May 5, 2011

Reported below, 80 AD3d 656.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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ROBERT H. HAMILTON et al., Respondents, v DAVID MURPHY, Appellant.

Submitted April 4, 2011; decided May 5, 2011

Reported below, 79 AD3d 1210.

Motion for reargument of motion for leave to appeal denied [*see* 16 NY3d 794 (2011)].

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In the Matter of TOMMY R. JACKSON, Appellant, v STATE OF NEW YORK, Respondent.

Submitted March 28, 2011; decided May 5, 2011

Motion for leave to appeal dismissed upon the ground that this motion does not properly lie to the Court of Appeals directly from the judgment of Supreme Court (*see* CPLR 5602). Motion for poor person relief dismissed as academic.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AARON RICHARD FISHER, Appellant.

Submitted May 2, 2011; decided May 5, 2011

Reported below, 78 AD3d 1605.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID LANCE PAULIN, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JESUS PRATTS, Appellant.

Submitted May 2, 2011; decided May 5, 2011

Reported below, *People v Paulin*, 74 AD3d 685; *People v Pratts*, 74 AD3d 536.

Motion by New York City Bar Association for leave to appear amicus curiae on the appeals herein granted only to the extent that the proposed brief is accepted as filed.

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DONNA PONHOLZER et al., Respondents, v EDWARD D. SIMMONS, M.D., et al., Appellants.

Submitted March 7, 2011; decided May 5, 2011

Reported below, 78 AD3d 1495.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of JENNIFER SNIFFEN, Respondent, v ARTHUR WEYGANT, Appellant. (And Two Other Related Proceedings.)

Submitted March 28, 2011; decided May 5, 2011

Reported below, 81 AD3d 1054.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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[948 NE2d 923, 924 NYS2d 317]

JOYCE HENDERSON, Respondent, v MANHATTAN AND BRONX SURFACE TRANSIT OPERATING AUTHORITY et al., Appellants, et al., Defendants.

Decided May 10, 2011

#### SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order

of that Court, entered June 24, 2010. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Paul A. Victor, J.; op 29 Misc 3d 1204[A], 2009 NY Slip Op 52778[U]), which had denied defendants' motion to vacate an order of that court granting plaintiff's motion to strike their answer unless they fully complied with certain discovery demands within 60 days after service of the order and paid a \$1,000 penalty to plaintiff. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as affirmed by this Court, properly made?"

In a civil action, the Appellate Division concluded that defendants-appellants did not fully comply with a discovery order as their submission of discovery responses mere days before the court-ordered deadline frustrated the purpose of the order, i.e., to have discovery completed within a certain time frame; that they failed to produce a witness by the court-ordered deposition deadline; and that they had not paid a monetary penalty. Further, they failed to proffer reasonable excuses for their delays and noncompliance. The Appellate Division held that defendants-appellants' conduct, in conjunction with their failure to comply with prior discovery orders despite plaintiff's repeated demands, constituted willful, contumacious, and bad faith behavior warranting the striking of their answer.

*Henderson v Manhattan & Bronx Surface Tr. Operating Auth.*, 74 AD3d 654, affirmed.

#### HEADNOTE

**Disclosure — Penalty for Failure to Disclose — Striking Answer**

In a civil action, appellants failed to comply with a conditional order. Therefore, the courts below did not err in striking their answer.

#### APPEARANCES OF COUNSEL

*Office of Wallace D. Gossett*, Brooklyn (*Lawrence Heisler* of counsel), for appellants.

*Lipsig Shapey Manus & Moverman, PC.*, New York City (*Jillian Rosen* of counsel), and *Pollack, Pollack, Isaac & DeCicco, LLP*, New York City (*Brian J. Isaac* of counsel), for respondent.

#### OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and the certified question answered in the affirmative. Appellants failed to comply with the conditional or-

der. Therefore, the courts below did not err in striking appellants' answer.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

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JOHN L. BELL, Individually and as Shareholder of NORPCO RESTAURANT, INC. and BUTCHER BLOCK OF ALBANY, INC., Appellant, v DAVID R. WHITE et al., Respondents.

Submitted February 28, 2011; decided May 10, 2011

Reported below, 77 AD3d 1241.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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CHRISTINA M. DeLORENZO, Respondent, v PETER A. DeLORENZO, Appellant.

Submitted March 21, 2011; decided May 10, 2011

Reported below, 81 AD3d 1110.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge PIGOTT taking no part.

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In the Matter of DERRICK C. and Others, Infants. JEFFERSON COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; STEVEN C., Appellant.

Submitted April 4, 2011; decided May 10, 2011

Reported below, 2011 NY Slip Op 66451(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

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HABITAT, LTD., Appellant, v ART OF THE MUSE, INC., Doing Business as OLY STUDIO, et al., Respondents.

Submitted April 4, 2011; decided May 10, 2011

Reported below, 81 AD3d 594.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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In the Matter of REGAN HORIKE, Respondent, v MARK FREEDMAN, Appellant. (And Another Related Proceeding.)

Submitted March 28, 2011; decided May 10, 2011

Reported below, 81 AD3d 1091.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the Family Court order denying appellant's application, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portion of the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution.

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In the Matter of JOHN JAY COLLEGE OF CRIMINAL JUSTICE OF THE CITY UNIVERSITY OF NEW YORK. RIVER CENTER LLC et al., Appellants, v DORMITORY AUTHORITY OF THE STATE OF NEW YORK, Respondent.

Submitted January 31, 2011; decided May 10, 2011

Reported below, 74 AD3d 460.

Motions, insofar as they seek leave to appeal from so much of the Appellate Division order as affirmed Supreme Court's order denying River Center LLC's motion to reopen, dismissed upon the ground that such portion of the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution; motions for leave to appeal otherwise denied.

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In the Matter of JOHN JAY COLLEGE OF CRIMINAL JUSTICE OF THE CITY UNIVERSITY OF NEW YORK. RIVER CENTER LLC et al., Appellants, v DORMITORY AUTHORITY OF THE STATE OF NEW YORK, Respondent.

Submitted February 7, 2011; decided May 10, 2011

Reported below, 74 AD3d 460.

Motion by the Real Estate Board of the State of New York, Inc. for leave to file a brief amicus curiae in support of the mo-

tion for leave to appeal herein granted and the brief is accepted as filed.

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RESAT KELES, Appellant, v THE TRUSTEES OF COLUMBIA UNIVERSITY IN THE CITY OF NEW YORK et al., Respondents.

Submitted March 28, 2011; decided May 10, 2011

Reported below, 2010 NY Slip Op 91306(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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CARY KITTNER, Individually and as Assignee of Stuart Quimby, et al., Appellants, v EASTERN MUTUAL INSURANCE COMPANY, Respondent.

Submitted February 28, 2011; decided May 10, 2011

Reported below, 80 AD3d 843.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

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AMERICO PELLECHIA, Appellant, v PARTNER AVIATION ENTERPRISES, INC., Doing Business as EMPIRE AIRWAYS, Respondent.

Submitted March 21, 2011; decided May 10, 2011

Reported below, 80 AD3d 740.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

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THE PEOPLE OF THE STATE OF NEW YORK ex rel. GLENN E. VAN NORSTRAND, Appellant, v HAROLD D. GRAHAM, Superintendent, Auburn Correctional Facility, Respondent.

Submitted March 21, 2011; decided May 10, 2011

Reported below, 81 AD3d 1248, 1249.

Motion, insofar as it seeks leave to appeal from the Appellate Division order dismissing the appeal from the order of Supreme Court that denied appellant's motion for a stay and reconsideration, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge PIGOTT taking no part.

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PROGRESSIVE NORTHEASTERN INSURANCE COMPANY, Plaintiff, v  
STATE FARM INSURANCE COMPANIES et al., Defendants,  
GABE'S AUTO, Appellant, and CHARTER OAK FIRE INSURANCE  
COMPANY, Respondent.

Decided May 10, 2011

Reported below, 81 AD3d 1376.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

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MIRNA SAMUEL et al., Appellants, v MACY'S NORTHEAST, INC.,  
Respondent.

Submitted March 7, 2011; decided May 10, 2011

Reported below, 26 Misc 3d 140(A).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a]).

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VISTRA TRUST COMPANY (JERSEY) LIMITED, as Trustee of the AL-  
SAM, COLLEEN and LOGANY SETTLEMENTS, et al., Respon-  
dents, v MARCO STOFFEL et al., Appellants.

Submitted March 21, 2011; decided May 10, 2011

Reported below, 2011 NY Slip Op 64349(U); 2010 NY Slip Op 86464(U).

On the Court's own motion, appeal, insofar as taken from the Appellate Division order denying reargument or, in the alterna-

tive, leave to appeal to the Court of Appeals, dismissed, without costs, upon the ground that such order does not finally determine the action within the meaning of the Constitution; appeal otherwise dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed, without costs, upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motions for poor person relief and a stay dismissed as academic.

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**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE  
OF COURT OF APPEALS OR ON CONSENT**

(May 1, 2011 through May 31, 2011)

|                             |                                      |         |
|-----------------------------|--------------------------------------|---------|
| Abreu, Matter of, v Fischer | 3d Dept: 2011 NY Slip<br>Op 61282(U) | 5/13/11 |
| Abreu, Matter of, v Fischer | 3d Dept: 2011 NY Slip<br>Op 61283(U) | 5/13/11 |
| Abreu, Matter of, v Fischer | 3d Dept: 2011 NY Slip<br>Op 61284(U) | 5/13/11 |

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**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**

(May 1, 2011 through May 31, 2011)

|                     |                                                        |                                  |
|---------------------|--------------------------------------------------------|----------------------------------|
| People v Albertorio | App Term, 2d Dept: 31 Misc 3d 127(A)<br>(Queens)       | denied 5/18/11<br>(Smith, J.)    |
| People v Alexander  | App Div, 1st Dept: 2010 NY Slip Op<br>90616(U) (NY)    | dismissed 5/9/11<br>(Read, J.)   |
| People v Alexis     | 1st Dept: 82 AD3d 637 (NY)                             | denied 5/25/11<br>(Smith, J.)    |
| People v Almonte    | 1st Dept: 81 AD3d 564 (NY)                             | denied 5/26/11<br>(Pigott, J.)   |
| People v Anderson   | 4th Dept: 81 AD3d 1305 (Erie)                          | denied 5/3/11<br>(Read, J.)      |
| People v Annan      | App Div, 3d Dept: 2011 NY Slip Op<br>70731(U) (Albany) | dismissed 5/11/11<br>(Jones, J.) |
| People v Antonio    | 2d Dept: 80 AD3d 773 (Queens)                          | denied 5/18/11<br>(Smith, J.)    |



## MEMORANDA

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|                              |                                                          |                                                       |
|------------------------------|----------------------------------------------------------|-------------------------------------------------------|
| People v Archer              | 2d Dept: 82 AD3d 781 (Kings)                             | denied 5/19/11<br>(Smith, J.)                         |
| People v Aubrey              | 3d Dept: 73 AD3d 1393 (Clinton)                          | denied 5/25/11<br>(Grafteo, J.)                       |
| People v Bailey              | 2d Dept: 81 AD3d 741 (Nassau)                            | denied 5/13/11<br>(Pigott, J.)                        |
| People v Banah               | 4th Dept: 82 AD3d 1663 (Onondaga)                        | denied 5/25/11<br>(Grafteo, J.)                       |
| People v Banks               | App Div, 1st Dept: 2011 NY Slip Op<br>60880(U) (NY)      | denied 5/10/11<br>(Read, J.)                          |
| People v Baptiste            | App Div, 2d Dept: 2011 NY Slip Op<br>67233(U) (Rockland) | dismissed 5/12/11<br>(Lippman, Ch. J.)                |
| People v Barrett             | App Div, 1st Dept: 2011 NY Slip Op<br>60880(U) (NY)      | denied 5/10/11<br>(Read, J.)                          |
| People v Bell                | 2d Dept: 82 AD3d 997 (Orange)                            | denied 5/18/11<br>(Smith, J.)                         |
| People v Benekin             | 1st Dept: 80 AD3d 466 (NY)                               | denied 5/9/11<br>(Lippman, Ch. J.)                    |
| People v Blake               | App Div, 1st Dept: 2011 NY Slip Op<br>60880(U) (NY)      | denied 5/10/11<br>(Read, J.)                          |
| People v Blinker             | 2d Dept: 80 AD3d 619 (Kings)                             | denied 5/25/11<br>(Ciparick, J.)                      |
| People v Boyd                | App Div, 1st Dept: 2011 NY Slip Op<br>60880(U) (NY)      | denied 5/10/11<br>(Read, J.)                          |
| People v Bramble             | 2d Dept: 81 AD3d 968 (Kings)                             | denied 5/25/11<br>(Grafteo, J.)                       |
| People v Bridgewater         | App Div, 1st Dept: 2010 NY Slip Op<br>89171(U) (Bronx)   | denied<br>reconsideration<br>5/25/11<br>(Grafteo, J.) |
| People v Brody               | 2d Dept: 82 AD3d 784 (Queens)                            | denied 5/13/11<br>(Pigott, J.)                        |
| People v Brown               | 2d Dept: 82 AD3d 901 (Kings)                             | denied 5/25/11<br>(Grafteo, J.)                       |
| People v Butler              | 1st Dept: 81 AD3d 484 (NY)                               | denied 5/19/11<br>(Jones, J.)                         |
| People v Cardenas            | 2d Dept: 82 AD3d 902 (Queens)                            | denied 5/25/11<br>(Grafteo, J.)                       |
| People v Carrasquillo        | 2d Dept: 82 AD3d 1259 (Kings)                            | denied 5/25/11<br>(Grafteo, J.)                       |
| People v Cascio              | 4th Dept: 79 AD3d 1809 (Erie)                            | denied 5/10/11<br>(Smith, J.)                         |
| People v Castillo            | App Div, 2d Dept: 2011 NY Slip Op<br>65822(U) (Kings)    | dismissed 5/23/11<br>(Grafteo, J.)                    |
| People v Charley             | 2d Dept: 80 AD3d 622 (Westchester)                       | denied 5/24/11<br>(Pigott, J.)                        |
| People v Cinto               | 2d Dept: 80 AD3d 775 (Kings)                             | denied 5/25/11<br>(Ciparick, J.)                      |
| People v Clark<br>(Alphonso) | County Ct, 3/15/11 (Erie)                                | denied 5/13/11<br>(Smith, J.)                         |

|                               |                                                       |                                                        |
|-------------------------------|-------------------------------------------------------|--------------------------------------------------------|
| People v Clark (Gary)         | 4th Dept: 82 AD3d 1674 (Orleans)                      | denied 5/23/11<br>(Grafteo, J.)                        |
| People v Clark (Robert)       | 2d Dept: 80 AD3d 710 (Suffolk)                        | denied 5/9/11<br>(Read, J.)                            |
| People v Cobb                 | 2d Dept: 77 AD3d 673 (Kings)                          | denied<br>reconsideration<br>5/25/11<br>(Ciparick, J.) |
| People v Cohens               | 4th Dept: 81 AD3d 1442 (Cayuga)                       | denied 5/3/11<br>(Read, J.)                            |
| People v Coldallah<br>(Rakem) | 4th Dept: 81 AD3d 1246 (Niagara)                      | denied 5/9/11<br>(Read, J.)                            |
| People v Coldallah<br>(Rakem) | 4th Dept: 81 AD3d 1248 (Niagara)                      | denied 5/9/11<br>(Read, J.)                            |
| People v Colon                | 2d Dept: 80 AD3d 623 (Kings)                          | denied 5/3/11<br>(Read, J.)                            |
| People v Cornish              | App Div, 3d Dept: 2011 NY Slip Op<br>63157(U) (Tioga) | denied 5/25/11<br>(Ciparick, J.)                       |
| People v Correa               | 2d Dept: 73 AD3d 942 (Westchester)                    | denied 5/18/11<br>(Jones, J.)                          |
| People v Cortez               | 2d Dept: 81 AD3d 742 (Nassau)                         | denied 5/18/11<br>(Smith, J.)                          |
| People v Cruz                 | 2d Dept: 79 AD3d 1059 (Queens)                        | denied 5/12/11<br>(Lippman, Ch. J.)                    |
| People v Damon                | 2d Dept: 78 AD3d 860 (Kings)                          | denied 5/9/11<br>(Lippman, Ch. J.)                     |
| People v Dawson               | 4th Dept: 79 AD3d 1610 (Genesee)                      | denied 5/19/11<br>(Jones, J.)                          |
| People v Del                  | 1st Dept: 81 AD3d 468 (NY)                            | denied 5/25/11<br>(Ciparick, J.)                       |
| People v Deuras               | 1st Dept: 82 AD3d 528 (NY)                            | denied 5/25/11<br>(Grafteo, J.)                        |
| People v Diaz                 | 2d Dept: 81 AD3d 848 (Queens)                         | denied 5/23/11<br>(Pigott, J.)                         |
| People v Dickson              | 3d Dept: 82 AD3d 1289 (Tompkins)                      | denied 5/27/11<br>(Grafteo, J.)                        |
| People v Dinh                 | 2d Dept: 79 AD3d 1147 (Queens)                        | denied 5/11/11<br>(Smith, J.)                          |
| People v Donahue              | 4th Dept: 81 AD3d 1348 (Erie)                         | denied 5/27/11<br>(Grafteo, J.)                        |
| People v Donohue              | 4th Dept: 81 AD3d 1348 (Erie)                         | denied 5/27/11<br>(Grafteo, J.)                        |
| People v Edney                | 2d Dept: 79 AD3d 770 (Nassau)                         | denied 5/3/11<br>(Read, J.)                            |
| People v Estela               | 1st Dept: 80 AD3d 526 (NY)                            | denied 5/17/11<br>(Jones, J.)                          |
| People v Evans                | 3d Dept: 81 AD3d 1040 (Broome)                        | denied 5/17/11<br>(Pigott, J.)                         |
| People v Feliciano            | App Term, 1st Dept: 31 Misc 3d 128(A)<br>(NY)         | denied 5/27/11<br>(Grafteo, J.)                        |

## MEMORANDA

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|                                |                                                     |                                        |
|--------------------------------|-----------------------------------------------------|----------------------------------------|
| People v Ferguson              | County Ct, 1/26/11 (Erie)                           | denied 5/25/11<br>(Ciparick, J.)       |
| People v Fields                | App Div, 1st Dept: 2011 NY Slip Op<br>60880(U) (NY) | denied 5/10/11<br>(Read, J.)           |
| People v Flores (Carlos)       | App Term, 2d Dept: 30 Misc 3d 130(A)<br>(Queens)    | dismissed 5/18/11<br>(Lippman, Ch. J.) |
| People v Flores (Carlos)       | App Term, 2d Dept: 30 Misc 3d 135(A)<br>(Queens)    | denied 5/11/11<br>(Lippman, Ch. J.)    |
| People v Flores<br>(Ricardo)   | 1st Dept: 82 AD3d 488 (NY)                          | denied 5/19/11<br>(Smith, J.)          |
| People v Fortune               | 1st Dept: 81 AD3d 409 (NY)                          | denied 5/23/11<br>(Jones, J.)          |
| People v Gammon                | App Term, 2d Dept: 30 Misc 3d 46<br>(Suffolk)       | granted 5/9/11<br>(Lippman, Ch. J.)    |
| People v George                | 2d Dept: 79 AD3d 1148 (Kings)                       | granted 5/18/11<br>(Pigott, J.)        |
| People v Graham<br>(Katherine) | 4th Dept: 77 AD3d 1454 (Oswego)                     | denied 5/9/11<br>(Read, J.)            |
| People v Graham<br>(Richard)   | 4th Dept: 77 AD3d 1454 (Oswego)                     | denied 5/9/11<br>(Read, J.)            |
| People v Grant                 | App Div, 1st Dept: 2011 NY Slip Op<br>62749(U) (NY) | denied 5/13/11<br>(Pigott, J.)         |
| People v Gravy                 | 3d Dept: 78 AD3d 1324 (Albany)                      | denied 5/9/11<br>(Lippman, Ch. J.)     |
| People v Green                 | 4th Dept: 81 AD3d 1246 (Monroe)                     | denied 5/24/11<br>(Read, J.)           |
| People v Gross<br>(Gordon)     | 4th Dept: 79 AD3d 1652 (Onondaga)                   | denied 5/27/11<br>(Pigott, J.)         |
| People v Gross<br>(Gordon)     | 4th Dept: 79 AD3d 1660 (Wayne)                      | denied 5/27/11<br>(Pigott, J.)         |
| People v Guillory<br>(Kareem)  | 4th Dept: 81 AD3d 1394 (Ontario)                    | denied 5/25/11<br>(Grafteo, J.)        |
| People v Guillory<br>(Kareem)  | 4th Dept: 81 AD3d 1395 (Ontario)                    | denied 5/25/11<br>(Grafteo, J.)        |
| People v Hall                  | 4th Dept: 82 AD3d 1619 (Onondaga)                   | denied 5/25/11<br>(Smith, J.)          |
| People v Hampton               | 1st Dept: 73 AD3d 442 (NY)                          | denied 5/18/11<br>(Jones, J.)          |
| People v Harris                | App Div, 1st Dept: 2011 NY Slip Op<br>62941(U) (NY) | dismissed 5/9/11<br>(Read, J.)         |
| People v Hernandez             | 4th Dept: 79 AD3d 1683 (Oneida)                     | denied 5/25/11<br>(Ciparick, J.)       |
| People v Holden                | 2d Dept: 82 AD3d 1007 (Kings)                       | denied 5/26/11<br>(Pigott, J.)         |
| People v Holman                | 2d Dept: 79 AD3d 1150 (Dutchess)                    | denied 5/3/11<br>(Read, J.)            |
| People v Holmes<br>(Marvin)    | 1st Dept: 82 AD3d 441 (NY)                          | denied 5/26/11<br>(Pigott, J.)         |
| People v Holmes<br>(Willie)    | 4th Dept: 79 AD3d 1681 (Monroe)                     | granted 5/25/11<br>(Ciparick, J.)      |

|                                 |                                                         |                                     |
|---------------------------------|---------------------------------------------------------|-------------------------------------|
| People v Hotaling               | 2d Dept: 80 AD3d 777 (Dutchess)                         | denied 5/17/11<br>(Jones, J.)       |
| People v Howard                 | App Term, 1st Dept: 29 Misc 3d 140(A)<br>(NY)           | denied 5/9/11<br>(Lippman, Ch. J.)  |
| People v Hoyte                  | 2d Dept: 79 AD3d 1071 (Westchester)                     | denied 5/18/11<br>(Jones, J.)       |
| People v Hurlbert               | 4th Dept: 81 AD3d 1430 (Yates)                          | denied 5/11/11<br>(Smith, J.)       |
| People v Jackson                | 4th Dept: 81 AD3d 1320 (Monroe)                         | denied 5/27/11<br>(Grafteo, J.)     |
| People v Jacques                | 4th Dept: 79 AD3d 1812 (Oswego)                         | denied 5/25/11<br>(Read, J.)        |
| People v Johnson<br>(Allan)     | 2d Dept: 83 AD3d 733 (Queens)                           | denied 5/27/11<br>(Grafteo, J.)     |
| People v Johnson<br>(Isaiah)    | 2d Dept: 77 AD3d 972 (Nassau)                           | denied 5/26/11<br>(Ciparick, J.)    |
| People v Johnson<br>(Lawrence)  | 2d Dept: 80 AD3d 714 (Queens)                           | denied 5/3/11<br>(Read, J.)         |
| People v Johnson<br>(Leslie)    | 4th Dept: 81 AD3d 1428 (Onondaga)                       | denied 5/10/11<br>(Read, J.)        |
| People v Johnson<br>(Robert)    | App Div, 1st Dept: 2011 NY Slip Op<br>60880(U) (NY)     | denied 5/10/11<br>(Read, J.)        |
| People v Johnson<br>(Robert)    | 2d Dept: 81 AD3d 663 (Dutchess)                         | denied 5/25/11<br>(Ciparick, J.)    |
| People v Jones                  | 3d Dept: 77 AD3d 1170 (Albany)                          | denied 5/9/11<br>(Lippman, Ch. J.)  |
| People v Josey                  | 2d Dept: 82 AD3d 1009 (Nassau)                          | denied 5/23/11<br>(Pigott, J.)      |
| People v Kelly<br>(Christopher) | 2d Dept: 79 AD3d 771 (Queens)                           | denied 5/25/11<br>(Ciparick, J.)    |
| People v Kelly (Gary)           | 1st Dept: 82 AD3d 508 (NY)                              | denied 5/13/11<br>(Pigott, J.)      |
| People v Kennedy                | 3d Dept: 78 AD3d 1233 (Chemung)                         | denied 5/9/11<br>(Read, J.)         |
| People v Khatib                 | 2d Dept: 81 AD3d 852 (Kings)                            | denied 5/26/11<br>(Smith, J.)       |
| People v Kin Wong               | 1st Dept: 81 AD3d 421 (NY)                              | denied 5/26/11<br>(Ciparick, J.)    |
| People v Knowles                | 3d Dept: 79 AD3d 16 (Schenectady)                       | denied 5/18/11<br>(Jones, J.)       |
| People v Kramtsov               | App Term, 1st Dept: 30 Misc 3d 128(A)<br>(NY)           | denied 5/25/11<br>(Ciparick, J.)    |
| People v Kulakov                | App Div, 3d Dept: 2011 NY Slip Op<br>70668(U) (Clinton) | dismissed 5/24/11<br>(Ciparick, J.) |
| People v Kurkowski              | 4th Dept: 83 AD3d 1595 (Erie)                           | denied 5/10/11<br>(Grafteo, J.)     |
| People v Lang                   | 1st Dept: 81 AD3d 538 (Bronx)                           | denied 5/19/11<br>(Jones, J.)       |
| People v Latimer                | 2d Dept: 79 AD3d 1074 (Orange)                          | denied 5/3/11<br>(Read, J.)         |

## MEMORANDA

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|                    |                                                   |                                                     |
|--------------------|---------------------------------------------------|-----------------------------------------------------|
| People v Lewis     | 3d Dept: 80 AD3d 872 (Clinton)                    | denied 5/17/11<br>(Smith, J.)                       |
| People v Llewellyn | 2d Dept: 80 AD3d 778 (Suffolk)                    | denied 5/9/11<br>(Read, J.)                         |
| People v Lloyd     | App Term, 2d Dept: 29 Misc 3d 143(A)<br>(Nassau)  | denied 5/18/11<br>(Jones, J.)                       |
| People v Lopez     | 2d Dept: 82 AD3d 906 (Kings)                      | denied 5/25/11<br>(Grafteo, J.)                     |
| People v Lumnah    | 3d Dept: 81 AD3d 1175 (Tioga)                     | denied 5/26/11<br>(Smith, J.)                       |
| People v Marino    | 1st Dept: 81 AD3d 426 (Bronx)                     | denied 5/12/11<br>(Pigott, J.)                      |
| People v Marshall  | App Term, 2d Dept: 30 Misc 3d 145(A)<br>(Suffolk) | denied<br>reconsideration<br>5/18/11<br>(Smith, J.) |
| People v Martell   | 1st Dept: 81 AD3d 466 (NY)                        | denied 5/9/11<br>(Read, J.)                         |
| People v Mays      | 2d Dept: 76 AD3d 983 (Nassau)                     | denied<br>reconsideration<br>5/11/11<br>(Smith, J.) |
| People v McCall    | 2d Dept: 80 AD3d 626 (Queens)                     | denied 5/13/11<br>(Smith, J.)                       |
| People v McLain    | 3d Dept: 80 AD3d 992 (Broome)                     | denied 5/26/11<br>(Ciparick, J.)                    |
| People v McLeod    | App Term, 2d Dept: 29 Misc 3d 143(A)<br>(Kings)   | denied 5/9/11<br>(Lippman, Ch. J.)                  |
| People v McMillon  | 4th Dept: 77 AD3d 1375 (Monroe)                   | denied 5/9/11<br>(Lippman, Ch. J.)                  |
| People v Medina    | 2d Dept: 81 AD3d 853 (Kings)                      | denied 5/9/11<br>(Pigott, J.)                       |
| People v Melendez  | 1st Dept: 80 AD3d 534 (Bronx)                     | denied 5/25/11<br>(Ciparick, J.)                    |
| People v Miller    | 3d Dept: 78 AD3d 1324 (Albany)                    | denied 5/9/11<br>(Lippman, Ch. J.)                  |
| People v Moghaddam | 2d Dept: 56 AD3d 801 (Orange)                     | denied 5/18/11<br>(Pigott, J.)                      |
| People v Moore     | 4th Dept: 81 AD3d 1325 (Allegany)                 | denied 5/17/11<br>(Jones, J.)                       |
| People v Morales   | 2d Dept: 82 AD3d 793 (Kings)                      | denied 5/19/11<br>(Smith, J.)                       |
| People v Morel     | 1st Dept: 81 AD3d 547 (NY)                        | denied 5/3/11<br>(Read, J.)                         |
| People v Munoz     | 1st Dept: 82 AD3d 413 (NY)                        | denied 5/9/11<br>(Pigott, J.)                       |
| People v Murray    | 2d Dept: 82 AD3d 794 (Kings)                      | denied 5/27/11<br>(Grafteo, J.)                     |
| People v Nathaniel | App Term, 1st Dept: 29 Misc 3d 140(A)<br>(NY)     | denied 5/9/11<br>(Lippman, Ch. J.)                  |
| People v Noll      | 2d Dept: 82 AD3d 1266 (Suffolk)                   | denied 5/27/11<br>(Grafteo, J.)                     |

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| People v Nowakowski        | App Term, 2d Dept: 30 Misc 3d 138(A) (Kings)           | denied 5/23/11 (Jones, J.)                   |
| People v Nunez (Anthony)   | App Div, 1st Dept: 2010 NY Slip Op 89171(U) (Bronx)    | denied reconsideration 5/25/11 (Grafteo, J.) |
| People v Nunez (Ricardo)   | 2d Dept: 82 AD3d 1128 (Queens)                         | denied 5/26/11 (Smith, J.)                   |
| People v Ocasio            | 4th Dept: 81 AD3d 1469 (Monroe)                        | denied 5/9/11 (Pigott, J.)                   |
| People v O'Keefe           | 1st Dept: 81 AD3d 525 (NY)                             | denied 5/9/11 (Read, J.)                     |
| People v Orridge           | 1st Dept: 80 AD3d 427 (NY)                             | denied 5/3/11 (Read, J.)                     |
| People v Ortiz             | 1st Dept: 81 AD3d 513 (NY)                             | denied 5/13/11 (Smith, J.)                   |
| People v Parks             | 4th Dept: 82 AD3d 1657 (Erie)                          | denied 5/25/11 (Grafteo, J.)                 |
| People v Paul              | 2d Dept: 82 AD3d 1267 (Kings)                          | denied 5/26/11 (Pigott, J.)                  |
| People v Pearce            | 2d Dept: 81 AD3d 856 (Nassau)                          | denied 5/9/11 (Read, J.)                     |
| People v Pendelton         | 3d Dept: 81 AD3d 1037 (Schenectady)                    | denied 5/23/11 (Jones, J.)                   |
| People v Pender            | 2d Dept: 81 AD3d 664 (Nassau)                          | denied 5/26/11 (Ciparick, J.)                |
| People v Perkins           | App Div, 2d Dept: 2011 NY Slip Op 68429(U) (Queens)    | dismissed 5/23/11 (Grafteo, J.)              |
| People v Perry             | 2d Dept: 81 AD3d 665 (Kings)                           | granted 5/9/11 (Grafteo, J.)                 |
| People v Pickens           | 2d Dept: 81 AD3d 986 (Kings)                           | denied 5/23/11 (Jones, J.)                   |
| People v Pitt              | App Div, 3d Dept: 2010 NY Slip Op 90381(U) (Schoharie) | denied 5/9/11 (Read, J.)                     |
| People v Pittman           | 4th Dept: 78 AD3d 1634 (Monroe)                        | denied reconsideration 5/19/11 (Smith, J.)   |
| People v Poole             | 4th Dept: 81 AD3d 1314 (Monroe)                        | denied 5/13/11 (Pigott, J.)                  |
| People v Porter            | 3d Dept: 82 AD3d 1412 (Tompkins)                       | denied 5/27/11 (Grafteo, J.)                 |
| People v Quinones          | 1st Dept: 83 AD3d 431 (NY)                             | denied 5/26/11 (Smith, J.)                   |
| People v Reid              | App Div, 1st Dept: 2011 NY Slip Op 60880(U) (NY)       | denied 5/10/11 (Read, J.)                    |
| People v Reynolds          | 3d Dept: 81 AD3d 1166 (Clinton)                        | denied 5/17/11 (Smith, J.)                   |
| People v Rios              | 1st Dept: 81 AD3d 489 (Bronx)                          | denied 5/26/11 (Ciparick, J.)                |
| People v Rodriguez (Angel) | 1st Dept: 81 AD3d 431 (Bronx)                          | denied 5/26/11 (Ciparick, J.)                |

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|----------------------------------|------------------------------------------------------------|-------------------------------------------------------------------|
| People v Rodriguez<br>(Bernardo) | App Term, 1st Dept: 31 Misc 3d 128(A)<br>(NY)              | denied 5/27/11<br>(Grafteo, J.)                                   |
| People v Rodriguez<br>(Jose)     | 2d Dept: 78 AD3d 1204 (Nassau)                             | denied 5/27/11<br>(Pigott, J.)                                    |
| People v Rogers                  | 3d Dept: 81 AD3d 1185 (Broome)                             | denied 5/13/11<br>(Pigott, J.)                                    |
| People v Romano                  | App Term, 1st Dept: 29 Misc 3d 9 (NY)                      | denied 5/17/11<br>(Smith, J.)                                     |
| People v Safford                 | 4th Dept: 74 AD3d 1835 (Erie)                              | leave denied<br>upon<br>reconsideration<br>5/17/11<br>(Jones, J.) |
| People v Salva                   | 1st Dept: 80 AD3d 498 (NY)                                 | denied 5/3/11<br>(Read, J.)                                       |
| People v Scott (Keith)           | 1st Dept: 82 AD3d 655 (NY)                                 | denied 5/27/11<br>(Grafteo, J.)                                   |
| People v Scott (Rubin)           | 1st Dept: 81 AD3d 521 (NY)                                 | denied 5/25/11<br>(Ciparick, J.)                                  |
| People v Shaw (David)            | App Div, 3d Dept: 2010 NY Slip Op<br>65355(U) (Rensselaer) | denied 5/24/11<br>(Read, J.)                                      |
| People v Shaw (David)            | App Div, 3d Dept: 2010 NY Slip Op<br>79431(U) (Rensselaer) | dismissed 5/9/11<br>(Read, J.)                                    |
| People v Shaw (John)             | 4th Dept: 79 AD3d 1738 (Niagara)                           | denied 5/3/11<br>(Read, J.)                                       |
| People v Shepard                 | 1st Dept: 80 AD3d 421 (NY)                                 | denied 5/3/11<br>(Read, J.)                                       |
| People v Sherrod                 | 4th Dept: 82 AD3d 1624 (Erie)                              | denied 5/26/11<br>(Pigott, J.)                                    |
| People v Sierra                  | 2d Dept: 80 AD3d 786 (Queens)                              | denied 5/25/11<br>(Ciparick, J.)                                  |
| People v Silva                   | 1st Dept: 82 AD3d 581 (NY)                                 | denied 5/27/11<br>(Grafteo, J.)                                   |
| People v Simcoe                  | 4th Dept: 82 AD3d 1719 (Niagara)                           | denied 5/19/11<br>(Smith, J.)                                     |
| People v Simpkins                | 2d Dept: 81 AD3d 860 (Kings)                               | denied 5/13/11<br>(Pigott, J.)                                    |
| People v Sir D                   | 2d Dept: 79 AD3d 1150 (Dutchess)                           | denied 5/3/11<br>(Read, J.)                                       |
| People v Smith (Bryan)           | 1st Dept: 81 AD3d 454 (NY)                                 | denied 5/13/11<br>(Pigott, J.)                                    |
| People v Smith (Jerry)           | 1st Dept: 81 AD3d 511 (NY)                                 | denied 5/17/11<br>(Pigott, J.)                                    |
| People v Smith (Owen)            | 2d Dept: 82 AD3d 1267 (Kings)                              | denied 5/26/11<br>(Pigott, J.)                                    |
| People v Smith (Richard)         | 3d Dept: 81 AD3d 1034 (Albany)                             | denied 5/3/11<br>(Read, J.)                                       |
| People v Snead                   | 1st Dept: 82 AD3d 552 (NY)                                 | denied 5/25/11<br>(Grafteo, J.)                                   |
| People v Solomon<br>(Yonas)      | 3d Dept: 78 AD3d 1426 (Schenectady)                        | denied 5/17/11<br>(Jones, J.)                                     |

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| People v Solomon (Yonos) | 3d Dept: 78 AD3d 1426 (Schenectady)                | denied 5/17/11 (Jones, J.)                 |
| People v Spinelli        | 2d Dept: 79 AD3d 1152 (Queens)                     | denied 5/18/11 (Pigott, J.)                |
| People v Stevens         | 3d Dept: 80 AD3d 791 (Cortland)                    | denied 5/10/11 (Read, J.)                  |
| People v Sudol           | App Term, 2d Dept: 30 Misc 3d 134(A) (Westchester) | denied 5/3/11 (Read, J.)                   |
| People v Swan            | 4th Dept: 81 AD3d 1278 (Cayuga)                    | denied 5/11/11 (Smith, J.)                 |
| People v Sweeney         | 4th Dept: 79 AD3d 1789 (Erie)                      | denied 5/9/11 (Lippman, Ch. J.)            |
| People v Tabb            | 4th Dept: 81 AD3d 1322 (Niagara)                   | denied 5/17/11 (Jones, J.)                 |
| People v Taylor          | 3d Dept: 82 AD3d 1291 (Ulster)                     | denied 5/27/11 (Grafteo, J.)               |
| People v Thomas (James)  | 3d Dept: 81 AD3d 997 (St. Lawrence)                | denied 5/3/11 (Read, J.)                   |
| People v Thomas (Juri)   | 4th Dept: 79 AD3d 1809 (Erie)                      | denied 5/11/11 (Lippman, Ch. J.)           |
| People v Thompson        | App Div, 2d Dept: 2010 NY Slip Op 76490(U) (Kings) | denied reconsideration 5/17/11 (Smith, J.) |
| People v Tills           | 4th Dept: 82 AD3d 1657 (Erie)                      | denied 5/25/11 (Grafteo, J.)               |
| People v Tsys            | App Term, 2d Dept: 29 Misc 3d 143(A) (Dutchess)    | denied 5/9/11 (Lippman, Ch. J.)            |
| People v Tucker          | App Div, 1st Dept: 2011 NY Slip Op 60880(U) (NY)   | denied 5/10/11 (Read, J.)                  |
| People v Vincent         | 2d Dept: 80 AD3d 633 (Kings)                       | denied 5/25/11 (Ciparick, J.)              |
| People v Volfson         | 3d Dept: 79 AD3d 1532 (Sullivan)                   | denied 5/9/11 (Lippman, Ch. J.)            |
| People v Wallace         | 2d Dept: 79 AD3d 1075 (Kings)                      | denied 5/3/11 (Read, J.)                   |
| People v Washington      | 2d Dept: 81 AD3d 991 (Queens)                      | denied 5/17/11 (Pigott, J.)                |
| People v Watson          | 2d Dept: 79 AD3d 912 (Kings)                       | denied 5/16/11 (Pigott, J.)                |
| People v Watt            | 2d Dept: 82 AD3d 912 (Westchester)                 | denied 5/23/11 (Pigott, J.)                |
| People v Webb            | 4th Dept: 81 AD3d 1299 (Monroe)                    | denied 5/17/11 (Pigott, J.)                |
| People v Wesolowski      | 4th Dept: 70 AD3d 1302 (Allegany)                  | denied 5/11/11 (Lippman, Ch. J.)           |
| People v Willi           | 3d Dept: 80 AD3d 884 (Saratoga)                    | denied 5/9/11 (Lippman, Ch. J.)            |
| People v William         | 1st Dept: 81 AD3d 453 (NY)                         | granted 5/27/11 (Grafteo, J.)              |



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| People v Williams<br>(Annis)   | App Term, 2d Dept: 30 Misc 3d 138(A)<br>(Queens)       | denied 5/9/11<br>(Pigott, J.)       |
| People v Williams (Cal)        | 4th Dept: 81 AD3d 1281 (Onondaga)                      | denied 5/26/11<br>(Ciparick, J.)    |
| People v Williams<br>(Darrell) | 1st Dept: 82 AD3d 563 (NY)                             | denied 5/20/11<br>(Smith, J.)       |
| People v Williams<br>(Deancy)  | 2d Dept: 81 AD3d 993 (Kings)                           | denied 5/12/11<br>(Smith, J.)       |
| People v Wilson (Kim)          | App Div, 4th Dept, 5/2/11 (Monroe)                     | dismissed 5/24/11<br>(Ciparick, J.) |
| People v Wilson<br>(Michael)   | App Div, 1st Dept: 2011 NY Slip Op<br>62748(U) (Bronx) | denied 5/12/11<br>(Smith, J.)       |
| People v Wilson<br>(Reginald)  | 2d Dept: 82 AD3d 797 (Westchester)                     | denied 5/20/11<br>(Smith, J.)       |
| People v Witkowski             | 2d Dept: 82 AD3d 913 (Queens)                          | denied 5/27/11<br>(Grafteo, J.)     |
| People v Woods                 | 2d Dept: 82 AD3d 1277 (Kings)                          | denied 5/25/11<br>(Grafteo, J.)     |
| People v Young (John)          | 3d Dept: 81 AD3d 995 (Schenectady)                     | denied 5/23/11<br>(Jones, J.)       |
| People v Young<br>(Marvin)     | 2d Dept: 78 AD3d 744 (Kings)                           | denied 5/9/11<br>(Read, J.)         |
| People v Zohri                 | 1st Dept: 82 AD3d 493 (NY)                             | denied 5/26/11<br>(Smith, J.)       |

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## DIGEST-INDEX

### ABUSE OF PROCESS.

*See* PROCESS; TORTS.

### ACCOUNTS AND ACCOUNTING.

*See, also*, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles.

WHEN REMEDY APPROPRIATE.

1. In an action by plaintiff school district against former and current members of the district's board of education for their allegedly lax management during the period that certain district employees stole approximately \$11,000,000 in district funds, plaintiff's allegations did not state a cognizable cause of action for an accounting against defendant, a former board member who was a member during a time period that funds were being stolen but had left the board before the criminal activities came to light. The equitable remedy of an accounting is designed to require a person in possession of financial records to produce them, demonstrate how money was expended and return pilfered funds in his or her possession. There was no allegation here that defendant received any of the stolen monies or possessed any relevant documentary proof that plaintiff itself had not acquired. Since the State Comptroller was able to trace countless financial transactions in order to determine how the vast bulk of the stolen monies was used and the identity of the individuals who received the funds, there was no apparent need for an accounting against defendant. *Roslyn Union Free School Dist. v Barkan*, 16 NY3d 643.

### ACTIONS.

*See, also*, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles.

COMMENCEMENT.

1. Failure to File Summons and Complaint within Limitations Period — No Discretion to Excuse Error.—In determining defendant health care center's motion to dismiss a medical malpractice action in which plaintiff served on defendant a summons and complaint without an index number, Supreme Court did not have discretion pursuant to CPLR 2001 to disregard plaintiff's error in failing to purchase an index number and file a summons and complaint with the County Clerk to commence the lawsuit (*see* CPLR 304) within the applicable statute of limitations. The purpose of the 2007 amendments to section 2001 was to allow trial courts to fix or, where nonprejudicial, overlook defects in the filing process, including the failure to acquire or purchase an index number, so long as the applicable fees were eventually paid. However, as the legislative history emphasized, the amendments were not meant to excuse a complete failure to file within the statute of limitations. Thus, a mistake in the method of filing is subject to correction in the court's discretion, while a mistake in what is filed is not. Here, the closest plaintiff came to proper commencement within the limitations period was including a proposed complaint as part of his petition to file a late notice of claim. However, in the absence of a summons, there was a complete failure to file within the statute of limitations. *Goldenberg v Westchester County Health Care Corp.*, 16 NY3d 323.

### ADMINISTRATIVE LAW.

HEARING.

1. Substantial Evidence.—In a proceeding in which respondent firefighter sought benefits pursuant to General Municipal Law § 207-a, the parties' collective bargain-

**ADMINISTRATIVE LAW—Cont'd**

ing agreement (CBA) and State Administrative Procedure Act § 306 required respondent hearing officer to defer to petitioner fire district's denial of the firefighter's benefits if petitioner's determination was supported by substantial evidence. Here the CBA required the hearing officer to "conduct the hearing in accordance with the established rules of evidence, consistent with the [New York State] Administrative Procedure Act," and that Act provides, in relevant part, that "[n]o decision, determination or order shall be made except upon consideration of the record as a whole or such portion thereof as may be cited by any party to the proceeding and as supported by and in accordance with substantial evidence" (State Administrative Procedure Act § 306 [1]). Therefore, in accordance with that standard and in light of the CBA's terms, the independent hearing officer was required to give deference to the employer's decision, and the firefighter bore the burden of establishing that his employer's denial determination had not been supported by substantial evidence. *Matter of Ridge Rd. Fire Dist. v Schiano*, 16 NY3d 494.

**JUDICIAL REVIEW.**

**2. Substantial Evidence.**—In a proceeding in which respondent firefighter sought benefits pursuant to General Municipal Law § 207-a, Supreme Court correctly held that respondent hearing officer's decision, which determined that petitioner fire district's denial of section 207-a benefits was not based on substantial evidence, was arbitrary and capricious. The fire district's evidence consisted of testimony from its medical expert that the firefighter's back injury was not causally related to an incident at work, but was instead attributed to prior events. There was testimony that the firefighter initially did not relate the version of events he later claimed was the cause of his injury. The fire district offered further testimony that the equipment that allegedly malfunctioned, leading to the firefighter's injury, was examined and found to be functioning properly. That evidence was significant in light of the testimony by the firefighter's neurosurgeon that if the accident did not occur in the manner claimed, then he would not causally relate the injury to a work-related incident. Accordingly, there was substantial evidence supporting the denial of benefits, and the hearing officer's conclusion to the contrary was irrational as a matter of law. Moreover, it was of no consequence that there was evidence supporting the firefighter's contention. The applicable standard was whether the denial of benefits was supported by substantial evidence and since there was substantial evidence supporting both sides' positions, the hearing officer acted arbitrarily in deciding that none supported the fire district's. *Matter of Ridge Rd. Fire Dist. v Schiano*, 16 NY3d 494.

**ADMINISTRATORS.**

*See* EXECUTORS AND ADMINISTRATORS.

**AGENCY.**

*See* BROKERS; INSURANCE; PRINCIPAL AND AGENT.

**ALIMONY.**

*See* HUSBAND AND WIFE.

**ANNULMENT OF MARRIAGE.**

*See* MARRIAGE.

**APPEAL.**

*See, also*, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

**DISMISSAL.**

**1.** An appeal from an order of the Appellate Division which confirmed a determination of the Department of Housing Preservation and Development of the City of New York authorizing the condemnation of petitioners' properties, was dismissed upon the ground that no substantial constitutional question was directly involved. *Matter of Uptown Holdings, LLC v City of New York*, 16 NY3d 764.

**APPEAL—Cont'd**

## PRESERVATION OF ISSUE FOR REVIEW.

2. In a proceeding seeking sex offender civil management of respondent pursuant to Mental Hygiene Law article 10, the issue of whether an individual must be a detained sex offender on the date when the Attorney General files a sex offender civil management petition against the individual in order to remain subject to civil management under article 10, which was raised by respondent in Supreme Court but not in the Appellate Division, was preserved for review by the Court of Appeals. The Court of Appeals will consider a question that has been raised in the tribunal of original jurisdiction even though it may not have been argued in the Appellate Division. *Matter of State of New York v Rashid*, 16 NY3d 1.

**ARBITRATION.**

*See, also*, INSURANCE.

## AWARD IN EXCESS OF ARBITRATOR'S POWERS.

1. Arbitrator Must Consider and Determine Merits of Retaliation Defense Raised under Civil Service Law § 75-b.—The arbitrator's finding that he did not have authority under the parties' collective bargaining agreement (CBA) to consider petitioner correction officer's asserted retaliatory defense under Civil Service Law § 75-b in a disciplinary proceeding was in excess of an explicit limitation on the arbitrator's power, warranting vacatur of the arbitration award terminating petitioner's employment. Civil Service Law § 75-b requires an arbitrator to consider and determine the merits of an employee's retaliatory defense where such a defense is raised, regardless of the terms of the CBA, which here limited the arbitrator's authority "to determinations of guilt or innocence and the appropriateness of proposed penalties." It was not enough for the arbitrator to hear evidence of retaliation in the context of determining witness credibility and deciding guilt, since a disciplinary action may be retaliatory even where an employee is guilty of the alleged infraction. Under Civil Service Law § 75-b (3), an arbitrator is required to dismiss a disciplinary action based solely on retaliatory motive, regardless of the employee's guilt or innocence (*see* Civil Service Law § 75-b [2] [a]; [3] [a]). A separate determination regarding the employer's motivation in bringing the action is critical to ensure the effectiveness of the whistleblower protections embodied in Civil Service Law § 75-b. *Matter of Kowaleski (New York State Dept. of Correctional Servs.)*, 16 NY3d 85.

**ARTICLE 78 PROCEEDING.**

*See* PROCEEDING AGAINST BODY OR OFFICER.

**BANKS AND BANKING.**

*See, also*, BILLS, NOTES AND CHECKS.

**BILLS, NOTES AND CHECKS.**

*See, also*, BANKS AND BANKING.

**CERTIORARI.**

*See* PROCEEDING AGAINST BODY OR OFFICER.

**CHIROPRACTORS.**

*See* LICENSES; PHYSICIANS AND SURGEONS.

**CHURCHES.**

*See* RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

**CITIES.**

*See* MUNICIPAL CORPORATIONS.

**CIVIL RIGHTS.**

## DISCRIMINATION IN EMPLOYMENT.

1. Retaliation against Employee Who Opposed Discrimination.—Sufficient evidence supported a jury verdict finding that plaintiff, a member of the New York City

**CIVIL RIGHTS—Cont'd**

Police Department, was subjected to retaliation by defendant commanding officer where plaintiff suffered a number of adverse employment actions after filing a complaint on behalf of another member of the police department alleging discrimination on the basis of his perceived sexual orientation. The New York City Human Rights Law, which makes it an unlawful discriminatory practice to retaliate against any person who has opposed discrimination based on a person's perceived sexual orientation (Administrative Code of City of NY § 8-107 [1] [a]; [7]), must be construed broadly in favor of discrimination plaintiffs (*see* Administrative Code § 8-130). Applying a broad interpretation of the word "opposed" to plaintiff's claim, the evidence supported a finding that he opposed discrimination against the other department member. Defendants conceded that the filing of the discrimination complaint was a protected activity. Given the evidence that plaintiff was contacted about the complaint by someone who worked directly for the commanding officer identified in the complaint, the jury could have found that the commanding officer knew of the complaint and that plaintiff was thereafter subjected to undesirable changes to his geographical assignments and hours of work, shunning by the commanding officer and his subordinates and a transfer to a less desirable job than he had expected. *Albunio v City of New York*, 16 NY3d 472.

**2. Retaliation against Employee Who Opposed Discrimination.**—Sufficient evidence supported a jury verdict finding that plaintiff, a captain in the New York City Police Department, "opposed" defendant commanding officer's discrimination against a fellow officer on the basis of his perceived sexual orientation and was subjected to retaliation in violation of Administrative Code of City of NY § 8-107 (7). The New York City Human Rights Law, which makes it an unlawful discriminatory practice to retaliate against any person who has opposed discrimination based on a person's perceived sexual orientation (Administrative Code of City of NY § 8-107 [1] [a]; [7]), must be construed broadly in favor of discrimination plaintiffs (*see* Administrative Code § 8-130). Here, there was evidence that plaintiff recommended the fellow officer for a position and the commanding officer made statements which plaintiff perceived to be discriminatory. Upon being confronted with the accusation that she utilized poor judgment in requesting that individual, plaintiff verbally defended the recommendation by stating that she thought the fellow officer was the better candidate for the job and that she would recommend him again. Thereafter plaintiff was forced into a less desirable job assignment. Applying a broad interpretation of the word "opposed" to plaintiff's claim, the evidence supported a finding that she opposed discrimination against the fellow officer, notwithstanding that she neither filed a discrimination complaint nor explicitly accused anyone of discrimination before her forced transfer. While plaintiff did not say that the fellow officer was a discrimination victim, the jury could have found that both she and her commanding officer knew that he was, and that plaintiff made clear her disapproval of that discrimination. *Albunio v City of New York*, 16 NY3d 472.

**CIVIL SERVICE.**

*See, also*, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles.

**COMPENSATION AND BENEFITS.**

**1. Wage Freeze Legislation — Effect upon Contractual Step Increases.**—Upon the lifting of a wage freeze imposed for more than three years by the Buffalo Fiscal Stability Authority (BFSA), a public benefit corporation created to assist in achieving fiscal stability in the City of Buffalo, city employees and the members of petitioner unions were only entitled to a one-step salary increase and not entitled to advance the four salary steps that they would have received under collective bargaining agreements had the wage freeze not been imposed. The legislation which created the BFSA and empowered it to impose a wage freeze on city employees plainly permits the BFSA to suspend all salary and wage increases, including any "step-ups" and "increments" (Public Authorities Law § 3858 [2] [c] [i]). It further provides that "no retroactive pay adjustments of any kind shall accrue or be deemed to accrue during the period of wage freeze" (Public Authorities Law § 3858 [2] [c]).

**CIVIL SERVICE—Cont'd**

[iii]). The term “retroactive pay adjustments of any kind” must be read broadly and section 3858 (2) (c) (iii) refers back to section 3858 (2) (c) (i), which defines the type of adjustments, including differentials, step-ups and increments, that the BFSa is empowered to suspend. The use of the term “accrue” in section 3858 (2) (c) (iii) provides further evidence of the Legislature’s intent under section 3858 (2) (c) (i) that step increases and increments were suspended and did not accrue during the wage freeze. In addition to the specific language of the statutory provisions, the intent of the Legislature, set forth in Public Authorities Law § 3850-a, supported the City’s position. The entire purpose of the statute was to place the City of Buffalo on sound financial ground over the long term by empowering the BFSa to freeze wages and salary increments until the City’s growth and stability were renewed. *Matter of Meegan v Brown*, 16 NY3d 395.

**EXAMINATIONS.**

**2. Special Eligible List for Individuals in Military Service.**—Military Law § 243 (7) required respondent New York City Department of Citywide Administrative Services to place petitioner, who passed a civil service examination to become a firefighter, on a “special eligible list” from which he could be certified for appointment after his military duty ended, and respondent had no discretion to refuse to add petitioner to the special eligible list on the ground that he had not met the qualifications for appointment when his name was first reached on the examination’s eligible list. Here petitioner complied with the requirements of Military Law § 243 (7) where his name appeared on the examination’s eligible list, he was “reached for certification” while he was serving in the military, and he timely submitted the paperwork necessary for placement on a special eligible list after his discharge. Although petitioner did not meet the qualifications for firefighter appointment when his name was first reached on the examination’s eligible list as he had not then completed two years of military service, section 243 (7) makes no exception for those who do not meet qualifications at the time their names are reached and gives respondent no discretion to refuse to put names on a special eligible list. Moreover, while Civil Service Law § 50 (4) gives respondent discretion not to certify names of people who do not meet qualifications, that discretion is exercisable at the time when a decision about certification is made. Here, petitioner had completed his military service and had the necessary qualifications by the time his name was or should have been reached on the special list. *Matter of Woods v New York City Dept. of Citywide Admin. Servs.*, 16 NY3d 505.

**RETIREMENT AND PENSION BENEFITS.**

**3. Accidental Disability Retirement — Police Officer.**—Only the Board of Trustees of the Police Pension Fund can act under the “safeguards” statute (Administrative Code of City of NY § 13-254) which, in summary, provides that a disability pensioner found to be able to work shall be put on a civil service list, and his or her pension reduced based on outside earnings and the amount “earned . . . or earnable” in any city job that he or she is offered. Accordingly, the accidental disability retirement of petitioner, a New York City police officer, was improperly terminated where the trustees voted to bring petitioner “back off disability” through the safeguards statute following a Medical Board finding that he had recovered from his injury; petitioner was found medically disqualified for a police officer position due to cocaine use; the New York City Law Department advised the Pension Fund that, notwithstanding petitioner’s medical disqualification, he was no longer deemed to be disabled, and no longer entitled to a disability pension; and the Pension Fund’s Director of Pension Payroll advised petitioner of the suspension of his pension benefit. There was no indication in the record that prior to the suspension of petitioner’s pension benefit the trustees ever considered or acted on the Law Department’s advice. Application of the confusing safeguards statute was something the trustees were required to address. The advice of the City’s Law Department should have been weighed in deciding the question, but the decision was the trustees’, subject to appropriate judicial review. Moreover, it cannot be said that the Board of Trustees revoked petitioner’s pension by its vote to bring petitioner “back off disability” through the safeguards statute, which offers no grounds, at least on the facts as

**CIVIL SERVICE—Cont'd**

they existed, for terminating benefits rather than reducing them. *Matter of Seiferheld v Kelly*, 16 NY3d 561.

**CLUBS.**

*See* ASSOCIATIONS.

**CONDEMNATION.**

*See* EMINENT DOMAIN.

**CONFLICT OF LAWS.****LAW GOVERNING CONTRACT ACTIONS.**

1. Insurance Liquidation Proceeding.—In a liquidation proceeding involving an insurance carrier that was headquartered in New York and authorized to conduct business throughout the United States and in Canada, an individual choice-of-law analysis was required to determine which jurisdiction's substantive law should govern for each insurance policy in dispute, notwithstanding that the insurer had been adjudged insolvent and placed in liquidation in New York. The "center of gravity" or "grouping of contacts" is the appropriate analytical approach to choice-of-law questions in contract cases, and in the context of liability insurance contracts, the jurisdiction with the most significant relationship to the transaction and the parties will generally be the jurisdiction which the parties understood was to be the principal location of the insured risk. "Grouping-of-contacts" analysis to determine which jurisdiction's laws governed the claims submitted was not precluded simply because the insurer had been adjudged insolvent in New York. Further, under Insurance Law § 7433 (a), which requires an insured's proof of claim in a liquidation proceeding to contain a statement "that the sum claimed is justly owing from the insurer to the claimant" (Insurance Law § 7433 [a] [1]), determining the "sum" of a claim "justly owing from the insurer" requires a choice-of-law analysis because the methodology of calculating an insured's loss can differ from one jurisdiction to the next. Moreover, an individual choice-of-law analysis on each of the policies would not create "subclasses" among the class of policyholders here in violation of Insurance Law § 7434 (a) (1), which merely governs the distribution of assets in a liquidation proceeding, not the allowed sum. Insurance Law article 74 recognizes that the allowance of claims and the distribution of the liquidated assets are two separate functions. *Matter of Midland Ins. Co.*, 16 NY3d 536.

2. Insurance Liquidation Proceeding.—To the extent that *Matter of Midland Ins. Co.* (269 AD2d 50 [1st Dept 2000]) stands for the proposition that New York substantive law must apply to all claims in the Midland Insurance Company liquidation, that holding is no longer good authority. *Matter of Midland Ins. Co.*, 16 NY3d 536.

**CONTRACTS.**

*See, also*, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles.

**AGREEMENT FOR BENEFIT OF THIRD PERSONS.**

1. Lack of Relationship between Parties.—Plaintiff, the purchaser of a painting, failed to state a cause of action for breach of contract against defendant appraiser on the theory that it was an intended third-party beneficiary to an appraisal contract between defendant and the person to whom defendant presented an appraisal letter since plaintiff failed to allege a relationship between the parties. The complaint only offered conclusory allegations without pleading the pertinent terms of the purported agreement, leaving the court to speculate as to the parties involved and the conditions under which the alleged appraisal contract was formed. Consequently, by failing to plead the salient terms of a valid and binding contract, plaintiff could not show that the contract was intended for its immediate benefit. *Mandarin Trading Ltd. v Wildenstein*, 16 NY3d 173.

**CORPORATIONS.****DISREGARDING CORPORATE ENTITY.**

1. Abuse of Corporate Form.—In an action brought by plaintiff school district against a corporation it had hired to perform construction management services,



**CORPORATIONS—Cont'd**

plaintiff's cause of action to pierce the corporate veil to hold defendant president and sole shareholder of the corporation personally liable for alleged breaches of certain corporate obligations was correctly dismissed because plaintiff failed to allege any facts indicating that the individual defendant engaged in acts amounting to an abuse or perversion of the corporate form. Since, by definition, a corporation acts through its officers and directors, to hold a shareholder/officer personally liable, a plaintiff must do more than merely allege that the individual engaged in improper acts or acted in "bad faith" while representing the corporation. *East Hampton Union Free School Dist. v Sandpebble Bldrs., Inc.*, 16 NY3d 775.

**COUNTIES.**

*See, also*, MUNICIPAL CORPORATIONS.

**COURT OF CLAIMS.**

*See* STATE.

**COURTS.****FORUM NON CONVENIENS.**

1. In a legal malpractice action, the Appellate Division majority abused its discretion in finding that traditional forum non conveniens factors warranted denial of defendant's motion to dismiss where the case involved Texas lawyers representing Alaskan clients, whose principal places of business were in Connecticut, in a transaction with Texas companies that involved land in Texas. Further, the documentary evidence was located in Texas, as were the attorneys who allegedly committed the malpractice, and most of the potential witnesses. Accordingly, the motion was granted on condition that defendant deem the filing date of any Texas action to be the date plaintiffs filed their New York action, and that any statute of limitations defense be waived. *Patriot Exploration, LLC v Thompson & Knight LLP*, 16 NY3d 762.

**JURISDICTION.**

2. Long-Arm Jurisdiction — Copyright Infringement.—Under the circumstances of a copyright infringement case involving the uploading of copyrighted printed literary works onto the Internet, the situs of injury for purposes of determining long-arm jurisdiction under CPLR 302 (a) (3) (ii) was the location of the principal place of business of the plaintiff copyright holder. A plaintiff relying on CPLR 302 (a) (3) (ii) to establish personal jurisdiction over an out-of-state defendant must show, among other things, that the tortious act caused injury in New York. A New York copyright owner alleging infringement sustains an in-state injury pursuant to the statute when its printed literary work is uploaded without permission onto the Internet for public access. The Internet's digital environment poses a unique threat to the rights of copyright owners, and the crux of an infringement claim is not merely the unlawful uploading, but the instantaneous availability of the copyrighted works to anyone in the world. Moreover, given the multifaceted nature of rights granted to copyright owners, including the right to reproduce, distribute, perform, display or prepare derivative works, infringement of a copyright may result in more than an indirect financial loss, such as diminishment of the incentive to create, and produce harm irreparable in light of possible market confusion. The location of the infringement in online cases is of little import inasmuch as the primary aim of the infringer is to make the works available to anyone with access to the Internet. In addition, the absence of any evidence of actual downloading of copyrighted material by New York users is not fatal to a finding that the alleged injury occurred in New York. *Penguin Group (USA) Inc. v American Buddha*, 16 NY3d 295.

**COVENANTS.****COVENANT OF GOOD WILL ACCOMPANYING SALE OF BUSINESS.**

1. "Implied Covenant" Not to Solicit Former Customers — Scope of Rule.— Under New York common law, a seller has an implied covenant not to solicit former

**COVENANTS—Cont'd**

customers, which arises upon the sale of the “good will” of a business, and the determination as to whether the seller has improperly solicited former clients is made on a case-by-case basis considering the principles underlying the rule in *Mohawk Maintenance Co. v Kessler* (52 NY2d 276 [1981]) and the factors involved within the relevant industry that may impair the “good will” conveyed by the original seller. An implied covenant is based on the rationale that a seller may not destroy or depreciate that which he or she has sold and since the sale of the good will of a business is, in effect, an attempt to transfer the loyalties of the business’ customers, it is a fraud on the contract for the seller to improperly solicit former customers. The seller’s implied covenant is a permanent covenant and not subject to divestiture, but it is more limited in scope than an express or restrictive covenant. Notwithstanding the implied covenant, the seller of a business is free to subsequently compete with the purchaser and even accept the trade of his former customers, provided that he does not actively solicit such trade; this is particularly relevant where the seller remains in the industry. The implied covenant bars a seller from taking affirmative steps to directly communicate with former customers. On the other hand, absent an express or restrictive covenant not to compete, a seller of good will who lawfully competes with a purchaser may advertise to the public, so long as the advertisement is general in nature and not specifically aimed at the seller’s former customers. *Bessemer Trust Co., N.A. v Branin*, 16 NY3d 549.

2. “Implied Covenant” Not to Solicit Former Customers — Responding to Inquiries from Former Customers.—While the “implied covenant” not to solicit former customers bars a seller of the “good will” of a business from taking affirmative steps to directly communicate with former customers, a seller may answer factual inquiries from a former client, made on the former client’s own initiative, so long as the seller’s responses do not go beyond the scope of the specific information sought. In the context of the financial services industry, a former client, contemplating the transfer of his or her business from the purchaser of an investment management firm back to the seller, might appropriately seek factual information pertaining to investment strategy, resources available to the seller, personnel and fee structure. Nevertheless, the implied covenant places some limitations on a seller’s right to answer all the questions posed by a former client. A seller of good will engages in improper solicitation when the seller disparages the purchaser of his or her business, even if prompted to do so. In relinquishing the good will of his or her business to a purchaser, a seller loses the right to explain why he or she believes his or her products or services are superior. This rule comports with the purpose of the implied covenant, which precludes a seller from destroying or depreciating that which he or she has sold. *Bessemer Trust Co., N.A. v Branin*, 16 NY3d 549.

3. “Implied Covenant” Not to Solicit Former Customers — Assisting New Employer in Solicitation.—While the “implied covenant” not to solicit former customers bars a seller of the “good will” of a business from taking affirmative steps to directly communicate with former customers, a seller who subsequently joins a competing firm may assist the new employer in the active development of a plan to respond to inquiries from a former client where the former client, in exercising due diligence, requests further information. In the context of the financial services industry, a seller of an investment management firm and its good will is free to convey to his or her new employer information such as a former client’s investment preferences, financial goals and tolerance of risk. However, that seller may not convey information that is proprietary to the purchaser of good will. A seller may also aid his or her new employer in preparing for a “sales pitch” meeting requested by a former client and may be present when such meeting takes place, although the implied covenant restricts the seller’s involvement to responses to factual matters. *Bessemer Trust Co., N.A. v Branin*, 16 NY3d 549.

**CRIMES.**

*See, also*, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles.

**CRIMES—Cont'd****APPEAL.**

**1. Preservation of Issue for Review — Right to Speedy Trial.**—On a speedy trial motion pursuant to CPL 30.30, defendant failed to preserve his argument, made for the first time on appeal, that the People should be charged with the 13-day period between August 17, 2005, when the grand jury minutes were ordered to be produced for inspection, and August 30, 2005, when the People provided the grand jury minutes to the trial court. Defendant argued before Supreme Court that the 42-day period between August 17, 2005 and September 28, 2005, when the court decided the motion, was chargeable to the People. However, once the People set forth the statutory exclusions on which they intended to rely by responding that the entire 42-day period was excludable pursuant to CPL 30.30 (4) (a), defendant failed to identify the specific legal and factual impediments to those exclusions, specifically the argument that the 13-day period should be charged to the People for their failure to timely provide the grand jury minutes. It was defendant's duty to draw the court's attention to the discrete periods he later claimed on appeal were chargeable to the People pursuant to CPL 30.30 and to explain why. Defendant's failure to preserve his legal argument in Supreme Court precluded any further discussion or consideration of the merits of his claims. *People v Beasley*, 16 NY3d 289.

**2. Denial of Motion to Vacate Judgment.**—In a criminal prosecution where Supreme Court denied defendant's motion pursuant to CPL 440.10 to vacate his conviction on the grounds of ineffective assistance of counsel without consideration of the merits and the Appellate Division denied his application for leave to appeal the denial of this motion, attorney affirmations provided with respect to the motion were never properly considered by any court and were not part of the record on defendant's direct appeal to the Appellate Division from the conviction. Although the attorney's affirmations were not dispositive of the ineffective assistance claim, they plainly were relevant. However, because the Appellate Division denied defendant leave on his article 440 motion, the Court of Appeals was limited to a review of the record before it. This problem can be remedied in similar future situations if the Appellate Division grants leave to appeal from the denial of the CPL 440.10 motion and consolidates it with the direct appeal. *People v Evans*, 16 NY3d 571.

**3. Matters Appealable — Dismissal of Indictments Based on Failure to Disclose Exculpatory Evidence.**—In a criminal prosecution, the People had the right to appeal from an order of Supreme Court that dismissed the indictments, with prejudice, upon a finding that the People's failure to meet their obligation to disclose exculpatory evidence prejudiced defendants such that a fair trial was impossible, notwithstanding that Supreme Court premised the dismissal on the language of CPL 240.70. CPL 450.20 provides the People with a right to appeal from an order dismissing an accusatory instrument entered pursuant to certain CPL provisions, including CPL 210.20, but omits an order imposing discovery sanctions pursuant to CPL 240.70. There is no express grant of dismissal power in CPL 240.70, and that statute's catchall language allowing the court to "take any other appropriate action" does not, in and of itself, empower the court to dismiss an indictment. That power emanates from CPL 210.20, which provides for dismissal of an indictment when "[t]here exists some other jurisdictional or legal impediment to conviction of the defendant for the offense charged" (CPL 210.20 [1] [h]). Here, although Supreme Court did not expressly refer to CPL 210.20 (1) (h), in that court's view, the impossibility of a fair trial created by the *Brady* violation presented a "legal impediment to conviction" within the meaning of CPL 210.20 (1) (h). Thus, Supreme Court's order dismissing the indictments was issued pursuant to CPL 210.20 and was appealable under CPL 450.20. *People v Alonso*, 16 NY3d 581.

**4. Academic and Moot Questions.**—In a prosecution in which defendant pleaded guilty to attempted robbery in the first degree, his challenge to his adjudication as a second violent felony offender and the sentence that was originally imposed was moot because County Court resentenced him as a first felony offender in a postjudgment proceeding that was not a subject of this appeal. Moreover, defendant failed to preserve his argument that the guilty plea became involuntary after he was subsequently resentenced for a prior, unrelated criminal offense. *People v Ashley*, 16 NY3d 725.

**CRIMES—Cont'd**

**5. Dismissal.**—An appeal from an order of the Appellate Division, which reversed a judgment convicting defendant of criminal possession of a controlled substance in the third degree and criminally using drug paraphernalia in the second degree, was dismissed upon the ground that the reversal by the Appellate Division was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal” (CPL 450.90 [2] [a]). *People v Liggins*, 16 NY3d 748.

**6. Preservation of Issue for Review.**—In a criminal prosecution during which a juror, after five hours of deliberation, communicated to the court concern about child care issues, defendant’s contention that his constitutional and statutory rights to a jury trial were violated by the trial court’s failure to instruct the jury to cease deliberations while a court officer spoke to the juror in private, was not preserved for appellate review. Moreover, there was no mode of proceedings error dispensing with the preservation requirement because the brief, momentary separation of the juror from deliberations was not the type of violation contemplated by the “continuously kept together” language of CPL 310.10 (1). *People v Kelly*, 16 NY3d 803.

**7. Matters Reviewable.**—On defendant’s appeal from the Appellate Division’s affirmation of the denial of his CPL 440.10 motion to vacate his judgment of conviction and sentence, the Court of Appeals was foreclosed from addressing the merits of defendant’s argument that his plea of guilty was involuntary because the trial court failed to advise him of the specific term of postrelease supervision during the plea proceeding. When sufficient facts appear on the record to permit the question to be reviewed, the sufficiency of a plea allocution can be reviewed only by direct appeal. A claim that defendant’s plea was not knowing, voluntary and intelligent because he was not apprised of the specific term of postrelease supervision that would be imposed at sentence is indistinguishable from a challenge to the adequacy of the plea allocution and is reviewable on direct appeal. Here, where justification for defendant’s failure to pursue that issue in a direct appeal was absent, such a claim could not be raised in a CPL 440.10 motion. *People v Stewart*, 16 NY3d 839.

**8. Matters Reviewable.**—In a criminal proceeding in which defendant was resentenced by adding a term of postrelease supervision that had been mistakenly omitted at the time of his first sentencing, the Appellate Division correctly held that defendant, who appealed from the resentencing asking that the conviction and sentence entered on his guilty plea be vacated, could not challenge his plea on appeal from the resentencing proceeding. CPL 450.30 (3) provides that “when a resentence occurs more than thirty days after the original sentence, a defendant who has not previously filed a notice of appeal from the judgment may not appeal from the judgment, but only from the resentence.” Defendant’s appeal seeking immediate relief from an underlying judgment of conviction was not one “only from the resentence.” *People v Jordan*, 16 NY3d 845.

**9. Matters Reviewable — Identification of Defendant.**—In a homicide prosecution arising from a fight, the determinations of the hearing court, undisturbed by the Appellate Division, that showup identifications were reasonable under the circumstances and not unduly suggestive, were mixed questions of law and fact supported by evidence in the record and thus beyond further review by the Court of Appeals. The due-process inquiry for showups calls upon the suppression court to decide whether the showup was reasonable under the circumstances—i.e., justified by exigency or temporal and spatial proximity—and, if so, whether the showup as conducted was unduly suggestive. Here, the judge at the suppression hearing found that the chain of events leading to the showup was unbroken, related in temporal and geographic proximity and driven by the exigency of the victim’s critical condition, and that the showup took place within a short period of time after the commission of the crime and in close proximity to the scene of the crime. In addition the judge found that the showup, during which defendant was identified in front of a police car while in handcuffs, was not unduly suggestive. *People v Gilford*, 16 NY3d 864.

**10. Preservation of Issue for Review — Alibi Defense.**—In a criminal prosecution, defendant’s claim that the trial court erred in not unequivocally conveying to the

**CRIMES—Cont'd**

jury that the People were required to disprove defendant's alibi defense beyond a reasonable doubt was unpreserved. Defense counsel neither objected to the court's proposed charge nor voiced an objection to the charge after it was given to the jury, thereby failing to alert the trial court to his claim that the charge, which provided that the People could meet their burden with respect to the alibi defense by proving beyond a reasonable doubt that defendant committed the crime, did not adequately instruct the jury that the People bore the burden of disproving a defendant's alibi defense. *People v Melendez*, 16 NY3d 868.

**ARGUMENT AND CONDUCT OF COUNSEL.**

**11. Restriction of Defense Counsel's Summation.**—In a prosecution for assault and related charges arising from the shooting of the victim, defense counsel was not improperly prevented from arguing on summation that it was the victim who first produced the gun that resulted in her being shot, since to allow the requested argument would have been to permit counsel to call upon the jury to reach conclusions that were not fairly inferable from the evidence. The privilege of counsel to comment in summation on any matters of fact pertinent to questions that the jury must decide is not absolute. The privilege can never operate as a license to state to a jury facts not in evidence, or to argue theories for which there is absolutely no evidentiary support. Here, the jury heard no evidence from which it would be reasonable to conclude that the gun was first displayed by the victim. The testimony of a police officer, that the victim told him that the gun with which she was shot was "heavier" than a gun he showed her for the purpose of comparison, was irrelevant to the issue whether the defendant or the victim first produced the gun. Moreover, the officer himself clarified the term, saying "heavier, meaning larger," and a victim's recollection of the size of a gun in no way supports the theory that she first displayed it. *People v Smith*, 16 NY3d 786.

**DISORDERLY CONDUCT.**

**12. Sufficiency of Evidence.**—In a prosecution arising from an altercation involving defendant, his wife and two police officers, the evidence was legally sufficient to sustain defendant's convictions for disorderly conduct based on proof that his conduct recklessly created a risk of public inconvenience, annoyance or alarm within the meaning of Penal Law § 240.20. In assessing whether disruptive behavior proscribed by Penal Law § 240.20 reaches the point of a potential or immediate public problem, factors to be considered include the time and place of the episode, the nature and character of the conduct, the number of other people in the vicinity and whether they are drawn to the disturbance. There is no per se requirement that members of the public must be involved or react to the incident. Rather, the attention generated by a defendant's activities, or the lack thereof, is a relevant factor to be considered in the public dimension calculus. Here, the commotion, which began in a hotel parking lot and then extended into a public street, occurred during the early morning hours when peace and quiet would be expected, a number of people were in the immediate vicinity, and it could be inferred that guests were sleeping in the nearby hotel. Moreover, defendant's conduct quickly escalated into a very vocal and aggressive confrontation, and, despite three warnings from one of the police officers, he became increasingly agitated and belligerent, repeatedly shouting obscenities at his wife and the police officer. *People v Weaver*, 16 NY3d 123.

**EAVESDROPPING WARRANTS.**

**13. Showing of Necessity — Futility of Normal Investigative Procedures.**—In a prosecution involving labor racketeering, there was record support for the findings of the courts below that the People's application for an eavesdropping warrant complied with CPL 700.15 (4) and 700.20 (2) (d), and that normal investigative procedures were unlikely to succeed. An investigator explained that physical surveillance would rarely allow the investigators to hear the subjects' conversations without risk of discovery and the use of undercover officers would not have exposed the full scope of defendants' activities. The application explained the futility of conducting a grand jury investigation because many of the witnesses were participants in the criminal conduct who would be unlikely to testify out of fear of



**CRIMES—Cont'd**

retaliation. Furthermore, the issuance of grand jury subpoenas would publicize the investigation, thereby foreclosing the use of other conventional investigatory techniques. In addition, the execution of search warrants would compromise the confidentiality of the investigation, increasing the likelihood that its targets would destroy inculpatory records. Having supported their application with reasons why normal investigative techniques would be ineffective, it was of no moment that the prosecution also utilized their experiences from another investigation to support their assertion that normal investigative techniques would be generally unproductive; it cannot be said the prosecution relied solely on past investigations. Defendants also were unable to demonstrate that, because normal investigatory measures had succeeded in another investigation, the warrant application here failed to establish that normal investigative measures were unlikely to succeed. *People v Rabb*, 16 NY3d 145.

**14. Showing of Necessity — Wiretapping Not First Step of Investigation.**—In a prosecution involving labor racketeering, there was record support for the findings of the courts below that the People's application for an eavesdropping warrant complied with CPL 700.15 (4) and 700.20 (2) (d), and that the investigators did not resort to wiretapping as a routine, initial step in their investigation of defendants' activities. The application revealed that an investigation of another organization led the investigators to defendants; that an analysis of cell phone records revealed numerous calls from defendants to construction companies with ties to organized crime; and that there had been collusive efforts between defendants and the organization that had originally been targeted. It was reasonable for the investigators to surmise that the originally targeted organization and defendants' organization, although rivals, joined forces when the opportunities presented themselves and that those organizations shared similar objectives. The investigators thereafter tried to identify one of the defendants by surveilling meetings that had been set up on intercepted calls but those efforts proved unsuccessful. Thus, there was plainly record support that the investigators did not resort to eavesdropping as a first step in its investigation of defendants, and the factual determinations by the lower courts were not further reviewable by the Court of Appeals. *People v Rabb*, 16 NY3d 145.

**ESCAPE.**

**15. Juvenile Delinquents — What Constitutes "Detention Facility" under Second Degree Felony Escape Statute.**—Family Court properly granted respondent juvenile's motion to dismiss the petition alleging that he committed acts which, if committed by an adult, would have constituted the crime of escape in the second degree, because the nonsecure juvenile detention facility from which he absconded pending adjudication on a prior juvenile delinquency petition did not constitute a "detention facility" within the proscription of Penal Law § 205.10 (1). While the facility from which respondent absconded fell within the literal description of "detention facility" in Penal Law § 205.00 (1) (a) and (b), Family Court Act article 3, which specifically governs the disposition and treatment of juveniles detained while awaiting adjudication on delinquency charges, distinguishes between secure detention facilities and nonsecure detention facilities. A nonsecure detention facility is "characterized by the absence of physically restricti[ve] construction, hardware and procedures" (Family Ct Act § 301.2 [5]), and has been specifically held, in the context of psychiatric commitment, not to constitute a detention facility within the meaning of Penal Law § 205.00 (1). Inasmuch as nonsecure psychiatric facilities and nonsecure juvenile detention facilities are both designed to detain but not imprison, and to rehabilitate rather than punish, and neither has as a principal end the protection of the public, it would be incongruous to apply Penal Law § 205.10 here in a disparate manner from how the statute has been applied in the context of an alleged escape from a nonsecure psychiatric facility. *Matter of Dylan C.*, 16 NY3d 614.

**EVIDENCE.**

**16. Hearsay Evidence — Statement Germane to Medical Diagnosis and Treatment.**—In the prosecution of defendant arising from allegations that he placed the legs and feet of a three-year-old boy into a tub filled with scalding hot water, caus-

**CRIMES—Cont'd**

ing second and third degree burns, Supreme Court properly allowed the treating emergency room pediatrician to testify concerning the child's statement to her that defendant would not let him out of the tub, notwithstanding that the statement was not included in the child's medical records and the child did not testify at trial. An exception to the hearsay rule exists for statements expressive of a patient's present condition made to a physician for the purpose of treatment. Here, the pediatrician, after observing the burns, asked the child how he was injured to determine the time and mechanism of the injury so as to administer the appropriate type of treatment. She then posed the question as to why he did not get out of the tub to try to ascertain whether he had a predisposing condition that may have prevented him from doing so. Thus, the child's statement in response to the question was germane to his medical diagnosis and treatment. *People v Duhs*, 16 NY3d 405.

**17. Hearsay — Statements Relevant to Diagnosis and Treatment.**—In the prosecution of defendant on sodomy and related charges for acts that had occurred years before the 13-year-old complainant first reported the abuse, the testimony of the pediatric nurse-practitioner who examined the complainant the day after he had reported the abuse fell within the exception to the hearsay rule for statements relevant to diagnosis and treatment and did not improperly bolster the complainant's credibility. To the extent that the complainant's responses to the nurse-practitioner's inquiries about why he was at the child advocacy center where she was employed were germane to diagnosis and treatment—and she testified that they were—those responses were properly admitted as an exception to the hearsay rule. Without the complainant's explanation of what he claimed to have happened and when, the nurse-practitioner would hardly have known where to begin her examination. Moreover, the nurse-practitioner did not identify who the complainant said touched him; she acknowledged that she did not know whether the complainant was being truthful; the testimony about the nature of the alleged abuse consisted of a single question and a brief answer; and her observations of the complainant's demeanor and manner were relevant to her medical decisions about the necessity for counseling or psychological therapy or other treatment. The nurse-practitioner's testimony rounded out the narrative of the immediate aftermath of the complainant's disclosure to his mother and, more importantly, addressed the negative inference that jurors might have drawn from the absence of medical evidence of abuse. Assuming that the jury believed that the nurse-practitioner accurately perceived the complainant's state of mind, there were any number of different explanations for why he was nervous and uncomfortable, none conclusively bearing on credibility. *People v Spicola*, 16 NY3d 441.

**18. Victim's Prior Sexual Conduct — Interests of Justice Exception — Evidence Must be Relevant to Defense.**—In a prosecution for rape and related crimes, the trial court properly exercised its discretion in determining that evidence of the complainant's prior sexual conduct on the same evening at the party where she was allegedly raped by the defendant was inadmissible under the Rape Shield Law's "interests of justice" exception (CPL 60.42 [5]). If evidence of a complainant's sexual conduct is relevant to a defense, it may be admissible in the interests of justice. However, if such evidence does not tend to establish a defense to the crime, it must be precluded because it will only harass the victim and possibly confuse the jurors. Here, the trial court determined that evidence relative to any prior sexual conduct of the complainant with any of the other individuals who were present at the party where the alleged rape occurred would be relevant to the defense only if the People introduced evidence of the complainant's bruising and attributed that bruising to the defendant. Such evidence would have been relevant to the charges of forcible and statutory rape, but the People decided not to offer evidence of bruising. In addition, although the People presented proof that the complainant was crying when she emerged from the bedroom with defendant to buttress their proof of forcible compulsion, there was no need to resolve whether the trial court abused its discretion in declining to admit, pursuant to CPL 60.42 (5), evidence that the complainant was crying because she had sex with another person at the party. Such evidence would have been probative, if at all, of only the forcible rape charge and defendant was acquitted of that count. *People v Scott*, 16 NY3d 589.

**CRIMES—Cont'd****FITNESS TO PROCEED TO TRIAL.**

**19.** In a criminal prosecution, the record provided no basis for finding defendant incompetent to stand trial as a matter of law. At the competency hearing, four experts, including one doctor who had previously found defendant unfit, concluded that defendant was competent. Even the defense expert who found defendant unfit agreed that defendant understood the nature of the charges and the potential penalties. Though it appeared unusual that defendant, after initially being declared unfit to stand trial by two experts, was returned as competent after only two weeks of treatment at a secure psychiatric facility, that may have been the result of error in the initial determinations. Accordingly, there was no basis to disturb the affirmed findings that defendant's failure to communicate with his attorney was volitional and that his depression did not prevent him from participating in his defense (*see* CPL 730.10 [1]). *People v Frazier*, 16 NY3d 36.

**20.** In the prosecution of defendant arising from defendant's actions in threatening and then subsequently stabbing his wife, Supreme Court did not abuse its discretion in finding that defendant, who had suffered a series of strokes over an 11-year period prior to the criminal incidents that affected his ability to communicate, was fit for trial. The key inquiry in determining whether a criminal defendant is fit for trial is whether the defendant has sufficient present ability to consult with his or her lawyer with a reasonable degree of rational understanding—and whether the defendant has a rational as well as factual understanding of the proceedings against him or her. A finding of trial competency is within the sound discretion of the trial court and involves a legal and not a medical determination. Defendant was not per se unfit for trial given the nature and permanency of his brain injury. That defendant's experts took diametrically opposite positions from the People's experts on the issue of comprehension was a dispute to be resolved by the trial court after considering all available evidence. Here, the trial court concluded that defendant's expert witnesses performed abstract tests that did not properly determine whether defendant had legal competency for trial purposes, whereas the People's experts found that defendant evinced an understanding of the purpose of a trial, the actors in a trial, their roles, the nature of the charges against him, and the severity of a potential conviction and sentence. Moreover, the trial court factored its own personal observations of defendant in reaching its conclusions. Although defense counsel stated that defendant's condition impaired his power to communicate with counsel and undermined his ability to intelligently assist in his own defense, a defense counsel's representation regarding his or her client's fitness for trial is not dispositive, but merely a factor to be considered by the trial court. *People v Phillips*, 16 NY3d 510.

**HARMLESS AND PREJUDICIAL ERROR.**

**21.** Introduction of Defendant's Improperly Obtained Statement.—In a prosecution for murder and other crimes arising out of the fatal shooting of a store owner during an attempted robbery, the introduction of a statement made by defendant that had been improperly obtained in violation of defendant's right to counsel constituted harmless error since there was no reasonable possibility that the introduction of that statement affected defendant's conviction in light of the other evidence that overwhelmingly established his guilt. The People's proof demonstrated that defendant had spontaneously and unequivocally told at least three acquaintances that he shot the store owner during the failed robbery, and none of those individuals had any apparent motive to lie about defendant's admissions. Defendant's admissions to his friends were confirmed by forensic evidence at trial. In addition, while defendant was incarcerated in another state for an unrelated crime, he confessed to another inmate that he had killed the store owner and had lied to the police when he told them that his accomplice was the shooter. Moreover, defendant's improperly obtained statement was partially exculpatory, and inasmuch as the jury found defendant guilty of shooting the store owner, it necessarily disbelieved the contents of the improperly obtained statement, thereby diminishing the statement's importance in the overall context of the case. *People v Lopez*, 16 NY3d 375.

**INDICTMENT.**

**22.** Multiplicitous Counts — Sexual Abuse.—Where the evidence before a grand jury shows a single, uninterrupted attack in which the attacker gropes several parts



**CRIMES—Cont'd**

of a victim's body, the attacker may be charged with only one count of sexual abuse. An indictment is multiplicitous when a single offense is charged in more than one count, and while there is no infallible formula for deciding how many crimes are committed in a particular sequence of events, as a general rule, where a defendant violates a single provision of the Penal Law, in an uninterrupted course of conduct directed at a single victim, he or she commits a single crime. Here, although there may have been multiple occurrences of "[s]exual contact" (Penal Law § 130.00 [3]) based on alleged groping of the breasts and buttocks of the two victims, there was but a single, uninterrupted occurrence of forcible compulsion committed against each victim under Penal Law § 130.65 (1), which provides that "[a] person is guilty of sexual abuse in the first degree when he or she subjects another person to sexual contact . . . [b]y forcible compulsion." Thus, the indictment charging two counts of sexual abuse for each victim, the first alleging forcible hand-to-breast contact, the second hand-to-buttocks, was multiplicitous as the record clearly showed a single crime of sexual abuse against each victim. *People v Alonzo*, 16 NY3d 267.

**INSTRUCTIONS.**

**23. Possession of Forged Instrument.**—In the prosecution of defendant for criminal possession of a forged instrument in the second degree arising from his arrest for driving with a suspended license and the subsequent inventory search of the borrowed car he was driving which revealed two forged bank cards, one located in a jacket on the backseat and one in the side pocket of the driver's door, Supreme Court's jury charge properly conveyed that knowing possession of the cards was required. Supreme Court accurately instructed the jury that "to possess," as that term is used in the definition of second-degree criminal possession of a forged instrument, means to have physical possession of or "to exert a knowing dominion or control over" the forged instrument. Moreover, the charge was not in error merely because it failed to append the word "knowing" each time the word "possession" was used. A reasonable juror, hearing the whole charge, would have understood that the Penal Law § 170.27 presumption, which provides that a person who possesses two or more forged instruments purporting to be credit or debit cards knows that they are forged and intends to defraud, deceive or injure another, only applies if the person knowingly possesses the cards. *People v Muhammad*, 16 NY3d 184.

**24. Erroneous Statement About Victim's Testimony.**—In a prosecution for assault and related charges in which defendant challenged a part of the jury charge, in light of the charge as a whole, no reasonable juror would have concluded that if he or she found the victim's testimony credible, then he or she had to find defendant guilty without assessing whether all of the evidence was sufficient to show beyond a reasonable doubt that defendant was guilty. Where a single sentence in a jury charge is challenged by the defendant, the challenged sentence alone should not be considered in a vacuum but instead the instruction must be read as a whole to determine if it was likely to confuse the jury. Here, although the trial court inaccurately instructed the jury that if it found that the victim was "truthful and accurate in her testimony to you, [then] her testimony without any other eye witness to what happened inside the car, under the law satisfies the proof beyond a reasonable doubt," the court immediately went on to state the principle correctly by charging that if the victim's testimony "after your careful scrutiny does satisfy you beyond a reasonable doubt then her testimony alone can be sufficient to convict without other eye witness testimony." Here, the court emphasized, in parts of the jury charge immediately before and after the challenged sentence, that the central duty of the jury was to decide whether the charged crimes had been proved beyond a reasonable doubt. *People v Smith*, 16 NY3d 786.

**INSURANCE FRAUD.**

**25.** In the prosecution of defendant chief operating officer and executive vice-president of a managed health care provider arising from his alleged submission of marketing plans to Medicaid that he knew contained materially false information, counts of the indictment charging insurance fraud in the first degree (Penal Law § 176.30) were properly dismissed since defendant did not commit a "fraudulent in-

**CRIMES—Cont'd**

surance act.” A “fraudulent insurance act,” as defined by Penal Law § 176.05 (1), is limited to certain defined commercial and personal insurance, and the marketing plans allegedly submitted by defendant did not fall under this definition. While the Legislature amended section 176.05 to include a new subdivision defining “fraudulent health care insurance act” (Penal Law § 176.05 [2]), it failed to amend the substantive offense provisions, including section 176.30, which all contain the core requirement that the defendant commit a “fraudulent insurance act.” Thus, the Legislature plainly failed to criminalize the conduct at issue, and the statutory infirmity cannot be overlooked, nor can it be remedied through statutory interpretation. *People v Boothe*, 16 NY3d 195.

**JURORS.**

**26. Discharge of Juror — Challenge to Sworn Juror for Cause.**—In a prosecution for rape and related crimes where the People had asked the prospective jurors, during jury selection, whether the lack of DNA evidence would “affect anybody’s decision in this matter?” and, after being sworn, a juror stated to the court that he thought there should be DNA evidence, the trial court did not err when it made a limited inquiry about the juror’s statement and then granted the People’s request to remove the juror. Pursuant to CPL 270.15 (4), a court may allow a challenge of a sworn juror for cause, prior to the time a witness is sworn at the trial, where the challenge is made upon a ground that was not known to the challenging party before the juror was sworn. Although the trial court failed to make a probing inquiry regarding the sworn juror’s ability to render an impartial verdict, its discharge was authorized by CPL 270.15 (4). Furthermore, a trial court should lean toward disqualifying a prospective juror of dubious impartiality, rather than testing the bounds of discretion by permitting such a juror to serve. *People v Scott*, 16 NY3d 589.

**27. Selection of Jury — Challenge for Cause — Former Professional Relationship with Prosecutor.**—In a criminal prosecution, the trial court did not err when it denied defendant’s challenge for cause to a prospective juror who advised the court that the prosecutor “took a case for me for my son” about 13 or 14 years earlier when asked whether any of the jurors knew the prosecutor. Because the professional relationship between the prosecutor and prospective juror was distant in time and limited in nature, it was not an abuse of discretion for the trial court to permit the juror to serve. *People v Scott*, 16 NY3d 589.

**JUSTIFICATION.**

**28. Defense Requires Two “Evils.”**—In a prosecution for various crimes arising from a series of events in which the intoxicated defendant entered an acquaintance’s turned-off, double-parked and overloaded box truck that was facing downhill with its keys in the ignition, and the truck descended the hill, striking cars and three pedestrians, there was no reasonable view of the evidence that would have supported a justification charge relative to the crimes of manslaughter in the second degree and assault in the second degree. To be entitled to the “choice-of-evils” defense under Penal Law § 35.05 (2), which provides that, under certain circumstances, conduct that would otherwise constitute an offense is justified when it is necessary as an emergency measure to avoid imminent injury about to occur through no fault of the actor, there must be two “evils.” Here, while the People claimed that defendant entered the truck in order to play a trick on the driver by moving the truck to the bottom of the hill, defendant testified that he entered the truck as it was already descending the hill and attempted to steer and stop the truck. Even under the defendant’s scenario, there was no “evil” on his part. According to defendant, he was not committing any offense when he jumped into a runaway vehicle to prevent it doing harm to others. *People v Rodriguez*, 16 NY3d 341.

**29. Failure to Give Justification Charge — Harmless Error.**—In a prosecution for various crimes arising from a series of events in which the intoxicated defendant entered an acquaintance’s turned-off, double-parked and overloaded box truck that was facing downhill with its keys in the ignition, and the truck descended the hill, striking cars and three pedestrians, the trial court’s error in denying defendant’s request for a justification charge under Penal Law § 35.05 (2) relative to the counts

**CRIMES—Cont'd**

of operating a motor vehicle while intoxicated was harmless. Penal Law § 35.05 (2), often referred to as the “choice-of-evils” defense, provides that, under certain circumstances, conduct that would otherwise constitute an offense is justified when it is necessary as an emergency measure to avoid imminent injury about to occur through no fault of the actor. Here, defendant testified that he jumped into a runaway vehicle to prevent it doing harm to others. If defendant elected to operate the truck while under the influence of alcohol, in an attempt to prevent injury, he faced the choice of two evils: drive while intoxicated or risk a runaway truck causing injury. However, the trial court’s error in failing to grant a justification charge with respect to the operating a motor vehicle while intoxicated counts was harmless as evidenced by the jury’s conviction of defendant of second-degree manslaughter and second-degree assault, which required the jury to conclude that the truck was not moving before defendant entered it. Because the jury concluded that defendant caused the truck to move, the jury never would have considered his “choice-of-evils” defense on the charge of driving while intoxicated. As a result, the error of not giving the justification charge with respect to the vehicular manslaughter and vehicular assault counts, which included as an element the operation of a motor vehicle while intoxicated, was also harmless. *People v Rodriguez*, 16 NY3d 341.

**MURDER.**

**30. Depraved Indifference Murder — Reckless Driving while Fleeing Crime Scene.**—In a prosecution in which defendant was convicted of, among other things, depraved indifference murder as a result of his smashing his motor vehicle into another vehicle and killing a passenger therein during a police chase, the trial evidence, measured against the jury charge which was based on the standard set forth in *People v Register* (60 NY2d 270 [1983]), did not support the jury’s conclusion that defendant evinced a depraved indifference to human life. At most, the evidence adduced was legally sufficient to support a finding of reckless manslaughter. Defendant conceded that the evidence sustained a conviction for second degree manslaughter and his conviction was reduced accordingly. *People v Prindle*, 16 NY3d 768.

**PLEA OF GUILTY.**

**31. Failure to Inform Defendant That Sex Offender Management and Treatment Act Applied to Conviction.**—Defendant’s guilty plea to sexual abuse in the first degree was not automatically invalidated by the failure to warn him during plea allocation that he may be subject to the Sex Offender Management and Treatment Act (SOMTA) (Mental Hygiene Law § 10.01 *et seq.*) since the SOMTA consequences of his conviction were collateral rather than direct consequences of his plea. Direct consequences, whose omission from a plea colloquy makes the plea per se invalid, have a definite, immediate and largely automatic effect on a defendant’s punishment. SOMTA’s consequences, which could potentially subject a defendant to further supervision or confinement after his prison term expires, are collateral consequences of a plea. Like the Sex Offender Registration Act, SOMTA is a remedial statute designed to prevent a future crime and requires administrative agencies outside of the court’s control to make important decisions and recommendations. Furthermore, SOMTA consequences of a defendant’s plea are far from automatic. *People v Harnett*, 16 NY3d 200.

**32. Failure to Inform Defendant That Sex Offender Management and Treatment Act Applied to Conviction.**—Defendant, who argued that his guilty plea to sexual abuse in the first degree should be invalidated because the failure to warn him during plea allocation that he may be subject to the Sex Offender Management and Treatment Act (SOMTA) (Mental Hygiene Law § 10.01 *et seq.*) rendered the plea proceedings fundamentally unfair, did not make the factual showing that would justify plea withdrawal. Where collateral consequences of a plea are an issue, claims that nondisclosure rendered the plea involuntary are best evaluated on a case by case basis in the context of a motion to withdraw the plea. Since SOMTA consequences can include extended confinement, withdrawal of a plea may be warranted where the defendant can show that the prospect of SOMTA confinement was realistic enough that it would have caused him to reject an otherwise acceptable plea

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bargain and that he was not aware of SOMTA, i.e., through his attorney, prior to pleading guilty. Here, defendant did not move to withdraw his plea, did not assert that he had been made the subject of a SOMTA proceeding and it was unclear whether SOMTA would have been a significant factor in the evaluation of a plea bargain. While it is recommended that trial courts explain the possible effects of SOMTA to anyone pleading guilty to an offense that may result in SOMTA proceedings, not every failure to make such an explanation entitles the defendant to take his plea back. *People v Harnett*, 16 NY3d 200.

**33. Failure to Advise Defendant of Postrelease Supervision.**—The defendant's conviction was correctly reversed and his guilty plea vacated, even in the absence of a postallocation motion, where the record did not make clear that at the time defendant took his plea, he was aware that the terms of the court's promised sentence included a period of postrelease supervision (PRS). A trial court has the constitutional duty to advise a defendant of the direct consequences of a guilty plea, including any period of PRS that will be imposed as part of the sentence, and the record must be clear that the plea represents a voluntary and intelligent choice among the alternative courses of action open to the defendant. Where a trial judge does not fulfill the obligation to advise a defendant of postrelease supervision during the plea allocution, the defendant may challenge the plea as not knowing, voluntary and intelligent on direct appeal, notwithstanding the absence of a postallocation motion. *People v Cornell*, 16 NY3d 801.

**34. Withdrawal of Plea.**—In a homicide prosecution in which defendant pleaded guilty to first-degree manslaughter, but denied that he intended to cause serious physical injury to the victim, it could not be said that defendant's guilty plea was the product of a voluntary and rational choice notwithstanding the trial court's further inquiry with respect to the intent element. At the plea proceeding, defendant acknowledged stabbing the victim but denied that he intended to cause serious physical injury, thus negating the intent element of first-degree manslaughter. That deficiency was not cured by the judge's further inquiry in which defendant was asked if he understood that "considering the nature and extent of the injury that ultimately caused the death and the penetration of the wound, that the jury [was] likely to conclude there was an intent to cause death, if not serious physical injury," to which defendant replied "Yes." Absent a recitation as to every element of the crime, the Court may accept an *Alford* plea (see *North Carolina v Alford*, 400 US 25 [1970]) provided it is the product of a voluntary and rational choice and there is strong evidence of actual guilt. There is no such thing as a "limited" *Alford* colloquy or plea, and while the medical evidence provided strong proof of defendant's actual guilt, the record did not establish that he was aware of the nature and character of an *Alford* plea. It was not enough that defendant made concessions from which such a choice might be inferred, especially since the colloquy showed that he may have thought that his knowledge that the knife "could have caused damage" was an admission of guilt. *People v Hill*, 16 NY3d 811.

**POSSESSION OF FORGED INSTRUMENT.**

**35. Sufficiency of Evidence.**—The evidence at trial was legally sufficient to establish that defendant, who was arrested for driving with a suspended license after being stopped in a borrowed car, committed criminal possession of a forged instrument in the second degree (Penal Law § 170.25) by knowingly possessing two forged bank cards found in the course of inventorying the car, one in a jacket on the backseat and one in the side pocket of the driver's door. Knowing possession of tangible property may in the appropriate circumstances be inferred from evidence showing that defendant exercised dominion or control over the property by a sufficient level of control over the area in which the property is found. Here, a rational trier of fact could have inferred beyond a reasonable doubt from the evidence, including the fact that defendant had strewn his belongings through the car he was driving, that defendant must have known the cards were in the car. *People v Muhammad*, 16 NY3d 184.

**RIGHT OF CONFRONTATION.**

**36. Inability to Recall Unavailable Witness.**—The inability to recall the prosecution's key witness, who made certain out-of-court statements after the

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completion of her cross examination at defendant's trial regarding events she had omitted from her prior interviews and trial testimony, did not violate defendant's rights under the Confrontation Clause (US Const 6th Amend; NY Const, art I, § 6). Pursuant to the Confrontation Clause, an accused has the right "to be confronted with the witnesses against him," including the right to cross-examine those witnesses, and this involves the admission of out-of-court statements and restrictions imposed by law or by the trial court on the scope of cross-examination. However, the right of confrontation does not include a right to recall a witness and confront the witness about things he or she did or said after the witness's cross-examination, conducted without any restriction of which the defendant complains, was already completed. Here, the witness's unavailability was neither imposed by law nor restricted by the trial court. Defendant exercised his right to cross-examine the witness regarding her direct testimony. The witness became unavailable—due to mental illness—only after the conclusion of her testimony. Moreover, the testimony of another witness and the parties' stipulation revealed the key witness's out-of-court statements concerning defendant's friend, who had been implicated with defendant in the shooting of the victim, giving the key witness a "gun or guns" as he ran past her after the shooting. Those statements alerted defendant to the new information that afforded defendant the opportunity to attack the key witness's credibility, but he did not challenge the statements because they tended to help him. Accordingly, there was no violation of defendant's right to confront his accuser, and the trial court did not abuse its discretion in denying defendant's motion for a mistrial or to strike the key witness's testimony. *People v Montes*, 16 NY3d 250.

**37. Testimonial Statements — Primary Purpose Test.**—In the prosecution of defendant arising from allegations that he placed the legs and feet of a three-year-old boy into a tub filled with scalding hot water, causing second and third degree burns, the admission at trial of the treating emergency room pediatrician's testimony concerning the child's statement to her that defendant would not let him out of the tub did not violate defendant's constitutional right to confront the witnesses against him where the child did not testify. The Confrontation Clause prohibits the admission of testimonial statements of a witness who does not appear at trial unless the witness was unavailable to testify and defendant had a prior opportunity for cross-examination. It is the testimonial character of a statement that separates it from other hearsay that is not subject to the Confrontation Clause. Statements are testimonial where the circumstances indicate that there is no ongoing emergency and the primary purpose of the interrogation is to establish or prove past events potentially relevant to later criminal prosecution, i.e., to create an out-of-court substitute for trial testimony. In contrast, statements made in the course of interrogation under circumstances objectively indicating that the primary purpose of the interrogation is to meet an ongoing emergency are nontestimonial. Applying the "primary purpose" test here, the child's statement was not of a testimonial character, since the primary purpose of the pediatrician's inquiry as to how he was injured and why he did not get out of the tub was to determine the time and mechanism of the injury and potential predisposing conditions for appropriate treatment. That the pediatrician may have also inquired to fulfill her legal and ethical duty to report child abuse was of no moment as her paramount duty was to render medical assistance to the child. *People v Duhs*, 16 NY3d 405.

**RIGHT TO COUNSEL.**

**38. Substitution of Assigned Counsel.**—Supreme Court did not abuse its discretion in denying defendant's motion to substitute assigned counsel, made on the morning of jury selection, as defendant failed to proffer specific allegations in the form, pro se motion of a seemingly serious request that would have required the court to engage in a minimal inquiry. An indigent defendant's right to counsel does not encompass counsel of one's own choosing. Whether counsel is substituted is within the discretion and responsibility of the trial judge, and a court's duty to consider such a motion is invoked only where a defendant makes a seemingly serious request. If a defendant makes specific factual allegations of serious complaints about counsel, the court must make at least a minimal inquiry, and discern meritorious complaints from disingenuous applications by inquiring as to the nature of the



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disagreement or its potential for resolution. Here, defendant's form motion did not contain any specific factual allegations that would indicate a serious conflict with counsel, despite being provided the space to develop such a complaint. Moreover, Supreme Court did engage in a colloquy with defense counsel, who stated that he was not seeking to be replaced and further explained his belief that defendant's motion was based on "frustration" regarding how fingerprint evidence had been addressed, and properly exercised its discretion by considering the timing of the motion and expressing its confidence in the abilities of defense counsel. *People v Porto*, 16 NY3d 93.

**39. Substitution of Assigned Counsel.**—Supreme Court did not abuse its discretion in denying defendant's motion to substitute assigned counsel, made on the morning of his sentencing after he learned that the court would enhance his sentence for failure to comply with plea offer conditions, as the court engaged in sufficient minimal inquiry by directing questions to both defendant and defense counsel and found no further facts to support defendant's allegation that he was coerced into accepting the plea offer. An indigent defendant's right to counsel does not encompass counsel of one's own choosing. Whether counsel is substituted is within the discretion and responsibility of the trial judge, and a court's duty to consider such a motion is invoked only where a defendant makes a seemingly serious request. If a defendant makes specific factual allegations of serious complaints about counsel, the court must make at least a minimal inquiry and upon such review counsel may be substituted only where "good cause" is shown, considering the timing of the defendant's request, its effect on the progress of the case and whether present counsel will likely provide the defendant with meaningful assistance. Here, defendant never indicated any dissatisfaction with counsel until the morning of sentencing. Supreme Court engaged in sufficient minimal inquiry by directing questions to both defendant and defense counsel, but counsel consistently evaded expounding upon the motion. Supreme Court also properly considered the progress of the case, referring to prior assurances by defendant that he would plead guilty and comply with conditions of the plea offer. Moreover, it could be inferred from the record that the motion was a possible delay tactic. *People v Porto*, 16 NY3d 93.

**40. Representation on Unrelated Matter.**—A police officer who wishes to question a person in police custody about an unrelated matter must make a reasonable inquiry concerning the defendant's representational status when the circumstances indicate that there is a probable likelihood that an attorney has entered the custodial matter, and the accused is actually represented on the custodial charge. The rule established by *People v Rogers* (48 NY2d 167 [1979]) states that when an attorney undertakes representation in a matter for which the defendant is in custody, all questioning is barred unless the police obtain a counseled waiver. Either actual or constructive knowledge of that representation by interrogating police officers suffices to perpetuate the indelible right to counsel once attached. Society's interest in protecting individual constitutional rights would be devalued if the police were allowed to question an incarcerated individual under circumstances where it would be reasonable for the interrogating officer to expect that it is highly likely that the accused has an attorney on the custodial matter. Here, where defendant was in custody in another state on a drug charge after he had been arraigned and was unable to post bail, his indelible right to counsel was violated when a police officer from New York questioned him about an unrelated New York murder, because the officer was chargeable with knowledge that an attorney had entered the case to represent defendant on the drug charge and a valid waiver was not secured before questioning commenced. The fact that bail had been set indicated that defendant had been arraigned and arraignment undoubtedly signified that defendant's right to counsel had attached, making it probable that defendant had been assigned or retained counsel. Rather than avoiding the topic, the officer should have inquired into defendant's representational status. *People v Lopez*, 16 NY3d 375.

**41. Effective Representation — Failure to Raise Limitations Defense.**—In a prosecution in which defendant was charged with murder and manslaughter counts, defendant was not deprived of effective representation by counsel's failure to raise the

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defense of the statute of limitations as to the manslaughter count, notwithstanding that there was no dispute that the manslaughter count was barred by the statute of limitations, since, based on the record before the Court of Appeals, counsel's failure to raise the defense reflected a legitimate trial strategy of a reasonably competent attorney. At trial, defendant was facing second-degree murder charges with an admission that he had fired the shot that caused the victim's death. Therefore, had the manslaughter count been dismissed prior to verdict, the trier of fact would have been left with murder as the only choice if defendant were to be found criminally responsible for the homicide. Accordingly, allowing the trial court to consider the manslaughter count would be a legitimate strategy, and it was clear from the record that defense counsel wanted the court, in this bench trial, to do just that. Moreover, counsel was not ineffective for failing to move to reopen the suppression hearing since it was clear that that would not have resulted in a different ruling. *People v Evans*, 16 NY3d 571.

**42. Effective Representation.**—In a prosecution for burglary and weapons possession arising out of defendant's theft of two loaded pistols from a police precinct, the record demonstrated that defendant's counsel provided competent and meaningful representation throughout the proceedings. In order to prevail on a claim of ineffective assistance of counsel based on a single error or omission, a defendant must demonstrate that the error was "so egregious and prejudicial" as to deprive defendant of a fair trial. Here, counsel unsuccessfully attempted before trial to dismiss the second degree burglary charge based on the argument that the precinct, which contained dormitories for overnight use, was not a "dwelling" within the meaning of Penal Law § 140.00 (3). Moreover, to buttress their position that the police precinct met the statutory standard of a dwelling, which is not restricted to what would normally be considered a residence, the People submitted additional evidence at trial that was not before the grand jury. Viewing the performance in totality, counsel's failure to renew the dwelling argument at the close of the People's case was not so egregious as to deprive defendant of a fair trial. *People v Cummings*, 16 NY3d 784.

**43. Effective Representation — Failure to Raise Speedy Trial Issue.**—Although a single mistake by a defense counsel may, in a rare case, be so significant that it deprives a defendant of his constitutional right to effective legal representation, the failure of defendant's counsel to make a CPL 30.30 application did not render counsel's otherwise competent performance constitutionally deficient given that the governing law was unfavorable. Although defendant's arguments concerning the timeliness of the prosecution were substantial, there was nothing clear cut about his CPL 30.30 claim where the record of pretrial proceedings was complex and spawned a dispute over the extent to which six discrete time periods were excludable from the readiness calculation. Had a CPL 30.30 application been filed in the trial court, its success would have depended on the resolution of several novel issues. Significantly, one of the contentions made by defendant on appeal had been rejected by the Appellate Division in a decision issued before defendant's case went to trial. As to other time segments in issue, the applicability of various exclusions was debatable. *People v Brunner*, 16 NY3d 820.

**RIGHT TO PUBLIC TRIAL.**

**44. Harmless Error Analysis.**—A violation of the right to an open trial is not subject to harmless error analysis and a per se rule of reversal irrespective of prejudice is the only realistic means to implement that important constitutional guarantee. Here, defendant's right to a public trial was violated when the trial judge sua sponte closed the courtroom, specifically ejecting defendant's father during voir dire without considering any alternative accommodations. It could not be said that the closing of the courtroom was so inconsequential that it was trivial. There was extensive questioning of prospective jurors in open court about such matters as their familiarity with the neighborhood of the crime and their experiences with police officers. The ability of the public to observe questioning of that sort was important, both so that the judge, the lawyers and the prospective jurors would be conscious that they were observed, and so that the public could evaluate

**CRIMES—Cont'd**

the fairness of the jury selection process. Accordingly, defendant's conviction was reversed and a new trial ordered. *People v Martin*, 16 NY3d 607.

**45. Removal of Defendant's Father during Voir Dire.**—In a criminal prosecution, defendant's right to a public trial was violated when the trial judge sua sponte closed the courtroom, specifically ejecting defendant's father during voir dire without considering any alternative accommodations. The right to a public trial extends to the voir dire, and while trial courts have discretion to close the courtroom, that discretion must be exercised only when unusual circumstances necessitate it. Although the trial judge here was concerned that there would not be enough seats in the courtroom for potential jurors and that defendant's father might influence them, neither of those concerns, without more, rose to the level of an overriding interest that was likely to be prejudiced. Absent a specific threat that a spectator may influence a prospective juror, it was improper to close the courtroom for that reason. The need for judicial efficiency and the conservation of judicial resources does not trump the constitutional right to a public trial, and while the court has the inherent discretionary power to monitor admittance to the courtroom to prevent overcrowding, that power does not extend to excluding specific members of the public. Accordingly, the trial court's failure to consider any alternate accommodations violated defendant's right to an open trial, regardless of the reasons for closure. *People v Martin*, 16 NY3d 607.

**46. Closure of Courtroom — Exclusion of Family Members of Defendant.**—In a prosecution arising out of defendant's alleged sale of a controlled substance to an undercover officer, the record made at the *Hinton* hearing (see *People v Hinton*, 31 NY2d 71 [1972]) was adequate to support the trial judge's exercise of discretion to exclude an aunt of the defendant and her son from the courtroom during the testimony of the undercover officer on the ground that they resided near enough to the area where the undercover officer conducted ongoing drug investigations to present a risk of exposure, compromising his effectiveness and safety. *People v Campbell*, 16 NY3d 756.

**RIGHT TO SPEEDY TRIAL.**

**47. Excludable Time — Relation Back of Subsequent Indictment to Original Accusatory Instrument.**—In a criminal prosecution premised on allegations that defendant punched the complainant in the face several times and took his camera, theft-related charges based on that incident that were included in an indictment filed over a year after defendant first appeared in Criminal Court on a desk appearance ticket charging him with assault were not barred by the speedy trial provisions of CPL 30.30. CPL 30.30 (1) and (4) set forth the time frame, beginning with the commencement of the action, within which the People must answer ready for trial and specify certain time periods that must be excluded from the calculation of the People's readiness time. Where a defendant is served with an appearance ticket, the commencement date of the action is the date of defendant's first criminal court appearance in response to the ticket (see CPL 30.30 [5] [b]). Once the action has been commenced, it "includes the filing of all further accusatory instruments directly derived from the initial one" (CPL 1.20 [16] [b]). In determining whether the People have complied with the time limitations, the provisions of CPL 30.30 should be interpreted as a rational, integral whole. Here, defendant did not allege any speedy trial violation as to the assault-related counts. Consequently, since the parties agreed that the charges were sufficiently related to require the same commencement date for speedy trial purposes, they were likewise sufficiently related for purposes of applying excludable time. *People v Farkas*, 16 NY3d 190.

**SENTENCE.**

**48. Concurrent and Consecutive Terms — Sentences for Burglary and Grand Larceny.**—In a criminal prosecution wherein defendant was convicted of burglary in the second degree and grand larceny in the third degree based on evidence that he had broken into two separate apartments and stole several thousand dollars worth of personal property from each, the Appellate Division erred in concluding that, since larceny was the only crime that satisfied the intent element of burglary, the sentences for the burglary and grand larceny convictions must be concurrent.



**CRIMES—Cont'd**

Concurrent sentences are required under the provisions of Penal Law § 70.25 (2) when the actus reus, i.e., the wrongful deed that comprises the physical components of a crime, is a single inseparable act that violates more than one statute. A court must look to the statutory definitions of the crimes to determine whether the actus reus element is the same for both offenses or if the actus reus for one offense is a material element of the second offense. Consecutive sentences are authorized where there is some overlap in the elements of multiple offenses if it is established that the acts or omissions committed were separate and distinct. Here, the burglary and larceny offenses did not contain the same actus reus. Second-degree burglary is defined as knowingly entering or remaining unlawfully in a dwelling with the intent to commit a crime therein (Penal Law § 140.25 [2]), which defendant completed when he entered each apartment with the intent to commit a crime. Defendant committed grand larceny in the third degree (Penal Law § 155.35 [1]) through his separate act of stealing property valued at over \$3,000. *People v Frazier*, 16 NY3d 36.

**49. Persistent Violent Felony Offender — Constitutionality of Sentencing Scheme.**—Defendant's challenge to the constitutionality of the sentencing scheme under which he was sentenced as a persistent violent felony offender failed under the line of precedent following the United States Supreme Court decision in *Almendarez-Torres v United States* (523 US 224 [1998]). *People v Frazier*, 16 NY3d 36.

**50. Concurrent and Consecutive Terms — Separate Acts — Murder of Bystander and Attempted Murder of Surviving Victim through Successively Fired Gunshots.**—In a prosecution arising from defendant's participation in a shooting in which 10 shots were fired, two of which struck and killed a bystander, the trial court was authorized to impose sentences for second degree murder of the bystander and second degree attempted murder of a surviving victim to run consecutively. Under Penal Law § 70.25 (2), sentences imposed for two or more offenses may not run consecutively where a single act constitutes two offenses, or where a single act constitutes one of the offenses and a material element of the other. The Penal Law defines an "act" as a "bodily movement" (Penal Law § 15.00 [1]), which has been interpreted to mean the actus reus of a crime. Here, the actus reus of the murder was the firing of the two shots that caused the death of the bystander, and the actus reus of the attempted murder was the firing of the eight other shots which "tend[ed] to effect" the death of the surviving victim (Penal Law § 125.25 [1]; § 110.00). Although all 10 shots were discharged with the intent to cause the surviving victim's death, the actus rei of the two offenses were not the same. Furthermore, the actus reus of the murder was not a material element of the actus reus of the attempted murder because more than the two shots that struck the bystander were fired at the surviving victim. Even assuming that the actus rei for the two crimes overlapped under the theory of transferred intent relied on by the People, the testimony of the ballistics expert and the medical examiner established that two shots struck and killed the bystander. Those shots were the result of separate and distinct acts of pulling a trigger to discharge a firearm, and these acts did not merge even though the same criminal intent inspired the whole transaction. *People v McKnight*, 16 NY3d 43.

**51. Concurrent and Consecutive Terms — Actus Reus.**—In a prosecution arising out of an incident in which a fire broke out after defendant doused certain victims with gasoline, the sentence imposed for the depraved indifference assault of one surviving victim must run concurrent to the sentences for the depraved indifference murder and assault imposed with respect to the other victims, since that victim was never doused with gasoline, but rather, was sprayed as a result of the dousing of the others. The risk-creating conduct for his conviction was the same act as that of the other victims, and his sentence must run concurrently (see Penal Law § 70.25 [2]). *People v Battles*, 16 NY3d 54.

**52. Concurrent and Consecutive Terms — Depraved Indifference Crimes.**—In a prosecution for murder and assault arising out of an incident in which defendant doused his victims with gasoline and a fire broke out, killing one person and severely injuring three others, the imposition of consecutive sentences was permissible with

**CRIMES—Cont'd**

respect to the victim who died and two of the severely injured victims because separate acts constituted the actus reus of each depraved indifference crime against those victims. Defendant's acts of soaking each victim with gasoline in a room where other people were present, and where one of them was smoking a lit cigarette, were so inherently dangerous to each victim that defendant was properly found guilty of depraved indifference murder and depraved indifference assault based on those acts alone, irrespective of whether the jury found that defendant was the one who ignited the fire. Because defendant engaged in conduct which created a grave risk of death or serious physical injury to each of those victims, by separate and distinct acts of dousing them with gasoline, consecutive sentences were authorized under Penal Law § 70.25 (2). *People v Battles*, 16 NY3d 54.

**53. Resentence — Postrelease Supervision — Consideration of Propriety of Sentence.**—A judge resentencing a defendant in order to correct a *Sparber* error (*People v Sparber*, 10 NY3d 457 [2008]), namely the failure of the original sentencing judge to pronounce a mandatory postrelease supervision (PRS) term in the defendant's presence in open court, may not revisit the propriety of the defendant's sentence as a whole, i.e., the incarceratory and PRS components. A *Sparber* error amounts only to a procedural error, akin to a misstatement or clerical error, which the sentencing court can easily remedy. The sole remedy is to vacate the sentence and remit for a resentencing hearing so that the trial judge can make the required pronouncement that will include the relevant PRS term. Resentencing to set right the flawed imposition of PRS at the original sentencing is not a plenary proceeding. *People v Lingle*, 16 NY3d 621.

**54. Resentence — Postrelease Supervision — Consideration by Appellate Court of Propriety of Sentence.**—An appellate court may not reduce the prison sentence on appeal in the interest of justice of a defendant who was resentenced in order to correct a *Sparber* error (*People v Sparber*, 10 NY3d 457 [2008]), namely the failure of the original sentencing judge to pronounce a mandatory postrelease supervision (PRS) term in the defendant's presence in open court. A defendant's right to appeal is limited to the correction of errors or the abuse of discretion at the resentencing proceeding. As a resentencing court is not authorized to lower the prison sentence at a *Sparber* resentencing, appellate courts are likewise unauthorized to do so—i.e., the resentencing court's failure to consider a lesser sentence was not an error or defect subject to reversal or modification. *People v Lingle*, 16 NY3d 621.

**55. Resentence — Postrelease Supervision — Double Jeopardy.**—The Double Jeopardy Clause of the Federal Constitution did not bar the imposition of post-release supervision (PRS) at the resentencing of defendants, who were resentenced, before completion of their originally-imposed sentences of imprisonment, so as to add the mandatory term of PRS that their respective sentencing judges had failed to pronounce when defendants were originally sentenced. An expectation of finality arises for purposes of double jeopardy when a defendant completes the lawful portion of an illegal sentence and exhausts any appeal taken. Here, five of the six defendants were still incarcerated when resentenced, and the sixth had been conditionally released from prison after serving six sevenths of his originally-imposed sentence; accordingly, none had yet completed their sentences. A rule that resentencing to PRS should be precluded when a "significant" or "substantial" portion of the originally-imposed sentence of imprisonment has been served would supply no meaningful standard by which to measure a reasonable expectation of finality. Moreover, defendants offered no principled basis to interpret the State Constitution's Double Jeopardy Clause more broadly than its federal counterpart. *People v Lingle*, 16 NY3d 621.

**56. Resentence — Postrelease Supervision — Due Process.**—Substantive due process did not bar the imposition of postrelease supervision (PRS) at the resentencing of defendants, who were resentenced, before completion of their originally-imposed sentences of imprisonment, so as to add the mandatory term of PRS that their respective sentencing judges had failed to pronounce when defendants were originally sentenced. Substantive due process analysis requires a determination as to whether the right at issue is so deeply rooted in this Nation's history and traditions as to be considered fundamental, and, if so, whether the government's action is so egregious,

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so outrageous, that it may fairly be said to shock the conscience; negligence alone is insufficient to shock the conscience. Even assuming a defendant possesses a fundamental right not to have an illegal sentence revised upward to correct an error, defendants here could not establish that the government's conduct shocked the conscience. The resentencings merely imposed statutorily-required sentences and were aimed at an entire category of defendants whose sentences were improperly pronounced. Defendants also failed to meet the largely abandoned multi-factor test for determining when a defendant's expectation that his or her sentence will remain unchanged has "crystallized" such that resentencing would offend substantive due process. Here, among the multiple factors to be considered, defendants could not have developed a reasonable expectation in a prison sentence without PRS; any prejudice resulting from resentencing was de minimis; and the government acted diligently to correct the sentencing errors. Moreover, defendants suggested no reason to interpret substantive due process more broadly in these circumstances as a matter of state constitutional law. *People v Lingle*, 16 NY3d 621.

**SEX OFFENDERS.**

**57. Civil Commitment or Supervision.**—A Mental Hygiene Law article 10 proceeding seeking sex offender civil management of respondent, who was not subject to State custody or supervision at the time the Attorney General filed any of the three petitions against him, was not timely commenced. In order to pursue civil management under Mental Hygiene Law article 10, the Attorney General must file the required petition against an individual in a court of competent jurisdiction before that individual's release from State custody or supervision. Here, the first of the three petitions was filed the day after respondent's parole supervision ended. Although the State Division of Parole gave interagency notice to the Commissioner of Mental Health and the Attorney General pursuant to Mental Hygiene Law § 10.05 (b) before respondent was released from parole supervision, the filing of the interagency notice did not mark the point in time when the civil management proceeding began, and did not "lock in" or "freeze" respondent's status as "detained." Nor should it be inferred from Mental Hygiene Law § 10.06 (h) and (f) that the Attorney General was entitled to file the petition after respondent's release from State supervision. Mental Hygiene Law § 10.06 (h), which permits a court to order a respondent who was released subsequent to notice under Mental Hygiene Law § 10.05 (b) and "is therefore at liberty when the petition is filed" to be returned to confinement for purposes of the probable cause hearing, is meant to deal with the circumstance where a petition is filed against someone "at liberty" because not confined, but who is still subject to State supervision. Mental Hygiene Law § 10.06 (f), which authorizes the Attorney General to file a "securing petition" to protect the public safety at any time after receipt of section 10.05 (b) notice in order to prevent a respondent's release "if it appears that the respondent may be released prior to the time the case review team makes a determination," may be used to stop an individual's release from custody or parole supervision, but is not directed at an individual whose parole has expired. Moreover, requiring the Attorney General to file a sex offender civil management petition before the respondent's release from State custody or supervision is in keeping with the Legislature's intent to create a special set of procedures in article 10 to deal with the civil management of mentally ill sex offenders who are completing their prison terms. *Matter of State of New York v Rashid*, 16 NY3d 1.

**58. Civil Commitment or Supervision.**—A Mental Hygiene Law article 10 proceeding seeking sex offender civil management of respondent was properly dismissed, as respondent did not stand convicted of a Sex Offender Management and Treatment Act-qualifying offense, and so was not a detained sex offender. Shortly before respondent was released from a local correctional facility where he was serving a determinate sentence for a misdemeanor conviction, and shortly before the expiration of his parole supervision upon the expiration of the maximum term of his prior consecutive indeterminate sentences related to his previous robbery convictions, the State Division of Parole (Division) notified the Commissioner of Mental Health and the Attorney General pursuant to Mental Hygiene Law § 10.05 (b) that respondent was an individual who might be a detained sex offender. At the time of the notifica-

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tion, however, respondent was not under the Division's supervision on account of a conviction for a sex offense, or a sexually-motivated designated felony committed prior to article 10's effective date, or offenses which were prosecuted along with a sex offense or were part of the same criminal transaction as a sex offense, and he was not an inmate serving his current term of incarceration for robbery in the Department of Correctional Services' custody, as his parole had not been revoked. *Matter of State of New York v Rashid*, 16 NY3d 1.

**59. Civil Commitment or Supervision.**—Penal Law § 70.30 is not relevant to the question of which sentences make someone eligible for sex offender civil management under Mental Hygiene Law article 10. Section 70.30 (1) (b) of the Penal Law provides that when two or more indeterminate sentences are consecutive, the minimum and maximum sentences are added to form aggregate minimum and maximum wholes, subject to certain limitations. Although the primary function of section 70.30 was to allow for the ready calculation of parole eligibility, consideration of that statute is permissible when determining the Sex Offender Registration Act (SORA) eligibility of a prisoner serving multiple sentences, as there is an absence of any statutory guidance within SORA itself as to the eligibility of persons serving multiple sentences. By contrast, Mental Hygiene Law article 10 contains its own provision for determining which offenders subject to multiple sentences will be eligible for article 10 civil commitment. It is a comprehensive and complex scheme that defines which offenses "count" for purposes of eligibility for civil management: sex offenses, sexually-motivated designated felonies committed prior to article 10's effective date, and those non-sex crimes that are related offenses. Superimposing Penal Law § 70.30 on article 10 for purposes of making eligibility determinations would distort this statutory scheme. *Matter of State of New York v Rashid*, 16 NY3d 1.

**SEXUAL ABUSE.**

**60. Attempt — Physical Helplessness of Victim.**—Defendant's conviction for attempted first degree sexual abuse was vacated where the evidence failed to support the jury's finding that defendant had attempted to subject a physically helpless woman to sexual contact. Defendant was charged with an attempt to violate Penal Law § 130.65 (2) which states that a person is guilty of sexual abuse in the first degree when he or she "subjects another person to sexual contact" when the other person is "incapable of consent by reason of being physically helpless." Here, a reading of the record as a whole showed that the victim, who was extremely intoxicated, may well have been physically helpless at some times, and that defendant may have attempted to subject her to sexual contact at other times, but there was no evidence that the two occurred together. When defendant tried to subject the victim to sexual contact, she could and did withhold her consent, with the result that sexual contact did not occur. Nor could defendant's conviction be sustained in light of testimony that the victim was physically helpless at the moment she prevented defendant from fondling her: she could not have blocked defendant if she were helpless. *People v Cecunjanin*, 16 NY3d 488.

**STALKING.**

**61. Attempt.**—Attempted stalking in the third degree is a legally cognizable offense (Penal Law §§ 110.00, 120.50 [3]). The relevant portions of the penal statute for stalking penalize behavior that is likely to cause harm, and do not require proof of actual harm to establish guilt. Moreover, the statute strictly penalizes conduct—engaging in "a course of conduct . . . likely to cause" certain consequences (Penal Law § 120.50 [3])—and an attempt to engage in that conduct is not a legal impossibility. Thus, because stalking proscribes the performance of certain acts, the attempt to commit those acts is punishable as a criminal offense. *People v Aponte*, 16 NY3d 106.

**TRIAL.**

**62. Mistrial — Consent of Defendant.**—In a CPLR article 78 proceeding in the nature of prohibition seeking to prevent the retrial of defendants, there was no basis in the record to disturb the factual finding of the Appellate Division that

**CRIMES—Cont'd**

defendants impliedly consented to the mistrial at their criminal trial. After the jury submitted a note stating that a verdict had been reached on two counts but that it was at an impasse on others, and the trial judge, at an *O'Rama* conference to determine how it could respond to the note, indicated that he intended to take a partial verdict and declare a mistrial on the undecided charges, defense counsel either responded “no” or remained silent when asked if they wanted to be heard. After the court took the partial verdict but before it discharged the jury, the judge again inquired of defense counsel if there was anything they wanted to put on the record. Neither attorney responded. Thus, there was ample basis on the record for the trial court to conclude that defendants agreed that a mistrial on the undecided charges was the appropriate course of action. Nothing at the *O'Rama* conference could have led counsel to reasonably believe that the court was deferring its decision, and counsels' objections to the mistrial after the jury was discharged did not mean that implied consent could not be found as a matter of law. The purpose of an *O'Rama* conference is for the attorneys to advise the court concerning the appropriate response to a jury note in order to assist the court in averting error. *Matter of Marte v Berkman*, 16 NY3d 874.

**UNLAWFUL SEARCH AND SEIZURE.**

**63. Attenuation of Initial Improper Police Conduct.**—In a juvenile delinquency proceeding, the evidence established, as a matter of law, that the illegal police entry into the vestibule of respondent's home was attenuated by the voluntary, unsolicited consent of respondent's sister to the entry of the police into the rest of the dwelling. In determining whether voluntary consent attenuated the taint of illegal police action, consideration must be given to a variety of factors, including the temporal proximity of the consent to the illegal police action, the presence or absence or intervening circumstances, whether the police purpose underlying the illegality was to obtain the consent or the fruits of the search, whether the consent was volunteered or requested, whether the defendant was aware he could decline to consent, and particularly, the purpose and flagrancy of the official misconduct. Here the sister welcomed the officers into the home, indicating that she was glad to see them. The fact that her consent came quickly after the unlawful entry was not dispositive of attenuation, particularly where the sister was not the subject of the police action. In addition, the immediacy and spontaneity of the sister's consent showed that it was truly volunteered and not coerced in any way. There was no evidence that the illegal entry was for the purpose of obtaining the consent or seizing the fruits of the search. Moreover, the alleged police misconduct—walking through an unlocked front door into a vestibule before knocking on an interior door—was not so flagrantly intrusive that its taint could not be dissipated. *Matter of Leroy M.*, 16 NY3d 243.

**64. Stop and Frisk — Level of Knowledge Required to Form Reasonable Suspicion.**—In a prosecution arising from defendant's possession of a gravity knife (see Penal Law § 265.01 [1]), the arresting officer's observations of the hinged top of a closed knife and outline of a knife in defendant's pocket did not, as a matter of law, provide reasonable suspicion of criminal activity justifying a stop and frisk where the arresting officer was unable to testify that he suspected or believed the observed object to be a gravity knife. Reasonable suspicion does not require absolute certainty that the knife carried is a gravity knife, as opposed to a similar, but legal object, such as a pocketknife. However, the detaining officer must have reason to believe, based on his or her experience and training and/or observable, identifiable characteristics, that the object observed is a gravity knife. The detaining officer must possess specific and articulable facts from which he or she inferred that the defendant was carrying a gravity knife. Here, the arresting officer testified that the knife in defendant's pocket looked like a pocketknife. Consequently the defendant's motion to suppress was granted. *People v Brannon*, 16 NY3d 596.

**65. Stop and Frisk — Level of Knowledge Required to Form Reasonable Suspicion.**—In a prosecution arising from defendant's possession of a gravity knife (see Penal Law § 265.01 [1]), there was record support for the Appellate Division's conclusion that there was reasonable suspicion that defendant possessed a gravity



**CRIMES—Cont'd**

knife justifying a stop and frisk where the detaining officer observed a knife clipped to defendant's front pants pocket with the "head" of the knife protruding in plain view and the officer testified that he believed it was a gravity knife because, in his experience, this type of knife was typically carried with a clip on the outside of the pocket, and with the "head" protruding. Reasonable suspicion does not require absolute certainty that the knife carried is a gravity knife, as opposed to a similar, but legal object, such as a pocketknife. However, the detaining officer must have reason to believe, based on his or her experience and training and/or observable, identifiable characteristics, that the object observed is a gravity knife. The detaining officer must possess specific and articulable facts from which he or she inferred that the defendant was carrying a gravity knife. Here, the officer had made approximately 300 arrests involving gravity knives and testified that gravity knives are often carried in such a way as to make them readily accessible. *People v Bran-non*, 16 NY3d 596.

**66. Execution of Arrest Warrant.**—The determinations of the courts below as to whether an officer had a reasonable belief that the subject of the arrest warrant was in the home so as to demand entry into the residence was a mixed question of law and fact, which was supported by record evidence and was beyond further review by the Court of Appeals. *People v Paige*, 16 NY3d 816.

**67.** In a prosecution for criminal possession of a weapon and unlawful possession of a knife, an order of the Appellate Division, which reversed an order granting a motion by defendant to suppress physical evidence and a statement by the defendant, denied the motion, and reinstated the criminal complaint, was affirmed (*see People v Fernandez*, 16 NY3d 596 [2011]). *People v Herrera*, 16 NY3d 881.

**VERDICT.**

**68. Inconsistent Verdict.**—The criminal defendant was not entitled to notice and a chance to be heard regarding the trial court's proposed response to the jury's reporting of a verdict inconsistent with the court's instructions before the court addressed the jury. CPL 310.30 applies to specific jury requests for further instruction or information by the court in response to a problem or concern identified by the jury, whereas CPL 310.50 (2) applies when a jury renders a verdict which in form is not in accordance with the court's instructions or is otherwise legally defective. Here, in response to the jury's announcement of its verdict, the court advised that it would not accept the verdict, explained the inconsistencies therein with regard to defendant's state of mind, and directed the jury to resume deliberations. Thus, as the trial court's explanation to the jury was a response to a verdict that was inconsistent with the court's instructions, not a response to a request for further instruction or information, CPL 310.50 (2) governed. The court therefore was not obligated to discuss with counsel its proposed explanation in response to the verdict prior to addressing the jury since the specific statutory duty to give the parties notice of a jury's request imposed upon the court by CPL 310.30 is not present in CPL 310.50 (2). By not including or incorporating CPL 310.30's notice requirement within the text of CPL 310.50 (2), the Legislature made a conscious choice that the notice requirement shall apply only to the court's response to a jury's request for further instruction or information, and not to the court's response to a jury's rendition of an inconsistent or defective verdict. *People v Williams*, 16 NY3d 480.

**69. Jury Deliberation in Public.**—In a criminal prosecution, the trial court did not cause the jury to deliberate in public by directing the jury foreperson to complete, in open court, a verdict sheet that had not been filled out as to two counts if the jury had reached a verdict on those counts. While settled principles require jurors to deliberate in secret outside the courtroom, there is nothing in the record to suggest that the court's direction called for or encouraged deliberations among the jurors. Here there was a short 5 to 15 second discussion among jurors after the court asked the foreperson to complete the verdict sheet that had not been filled out as to counts for which defendant was ultimately acquitted; as such, the conversation among the jurors was harmless. Moreover, in directing the jury foreperson to indicate a verdict as to the two overlooked counts, the court asked that the

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foreperson perform what amounts to a ministerial or clerical act, since CPL 310.50 (3) converts any incomplete counts into acquittals. *People v Williams*, 16 NY3d 480.

**WITNESSES.**

**70. Expert Witness — Child Sexual Abuse Accommodation Syndrome.**—In the prosecution of defendant on sodomy and related charges for acts that had occurred years before the 13-year-old complainant first reported the abuse, the trial judge did not abuse his discretion when he allowed a licensed clinical social worker to testify about child sexual abuse accommodation syndrome (CSAAS) to rehabilitate the complainant's credibility. Defendant had attacked the complainant's credibility, principally on the basis that he neglected to report the alleged abuse promptly and continued to associate with defendant after the abuse was claimed to have taken place. The legitimate purpose of the expert's testimony was to counter defendant's inference that the complainant's behavior was inconsistent with having been molested. The expert stressed that CSAAS was not a diagnosis; rather, it describes a range of behaviors observed in cases of validated child sexual abuse, some of which seem counterintuitive to a layperson. He confirmed that the presence or absence of any particular behavior was not substantive evidence that sexual abuse had, or had not, occurred. Moreover, he made it clear that he knew nothing about the facts of the case before taking the witness stand; that he was not venturing an opinion as to whether sexual abuse took place in this case; and that it was up to the jury to decide whether the complainant was being truthful. Although, as a whole, the expert's testimony certainly supported the complainant's credibility by supplying explanations other than fabrication for his post-molestation behavior, the expert did not express an opinion on the complainant's credibility. *People v Spicola*, 16 NY3d 441.

**71. Expert Witness — Child Sexual Abuse Accommodation Syndrome — Scientific Reliability.**—In the prosecution of defendant on sodomy and related charges for acts that had occurred years before the 13-year-old complainant first reported the abuse, where the trial judge allowed a licensed clinical social worker to testify about child sexual abuse accommodation syndrome (CSAAS), which includes delayed disclosure of abuse, the record did not support defendant's contention that CSAAS lacked scientific validity for the purpose for which it was offered. The evidence offered by defense counsel in disputing the scientific reliability of CSAAS did not question the empirical basis for delayed reporting. Rather, the criticism of CSAAS dealt with the prevalence of denial and recantation, aspects of CSAAS not at issue here. *People v Spicola*, 16 NY3d 441.

**DEBTOR AND CREDITOR.**

*See* ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles.

**DECEDENTS' ESTATES.**

*See* ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles.

**DENTISTS.**

*See* LICENSES; PHYSICIANS AND SURGEONS.

**DEPOSITIONS.**

*See* DISCLOSURE.

**DISCLOSURE.**

PENALTY FOR FAILURE TO DISCLOSE.

**1. Enforcement of Conditional Preclusion Order — Requirements for Excusing Noncompliance.**—In a medical malpractice action wherein plaintiff failed to serve a

**DISCLOSURE—Cont'd**

supplemental bill of particulars before the deadline set by a conditional order of preclusion, the trial court erred as a matter of law in excusing the default without requiring plaintiff to establish both a reasonable excuse for his noncompliance and a meritorious cause of action. In a situation where a party willfully fails to provide a properly demanded bill of particulars, the trial court has broad power to craft a conditional order that grants the motion and imposes the determined sanction unless the defaulting party submits to the disclosure within a specified time (CPLR 3042 [d]; 3126). To obtain relief from the dictates of a conditional order that will preclude a party from submitting evidence in support of a claim or defense, the defaulting party must demonstrate (1) a reasonable excuse for the failure to produce the requested items and (2) the existence of a meritorious claim or defense, which, in a medical malpractice action, requires expert medical opinion evidence. Plaintiff here failed to respond to defendant doctor's periodic requests for compliance with his authorized demand for a bill of particulars, disregarded the court order requiring him to serve a supplemental bill of particulars, and did not abide by the conditional preclusion order, all without efforts to obtain extensions of time or seek court relief. Furthermore, plaintiff's failure to submit an affidavit from a medical expert establishing the basis of the alleged malpractice claim was a fatal deficiency. Since as the preclusion order prevented plaintiff from offering evidence supporting his malpractice claim, summary judgment in favor of defendant should have been awarded. Regardless of whether plaintiff's failures were characterized as willful, the preclusion order became absolute upon his default, thus obligating him to satisfy the two-part test. *Gibbs v St. Barnabas Hosp.*, 16 NY3d 74.

**2. Striking Answer.**—In a civil action, appellants failed to comply with a conditional order. Therefore, the courts below did not err in striking their answer. *Henderson v Manhattan & Bronx Surface Tr. Operating Auth.*, 16 NY3d 886.

**DISCONTINUANCE.**

*See* DISMISSAL AND NONSUIT.

**DISCOVERY AND INSPECTION.**

*See* DISCLOSURE.

**DIVORCE.**

*See* HUSBAND AND WIFE.

**DOUBLE JEOPARDY.**

*See* CRIMES.

**ELDER LAW.**

*See* HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS.

**EMPLOYMENT RELATIONSHIPS.**

*See, also,* CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

**EQUITY.**

UNJUST ENRICHMENT.

**1. Lack of Relationship between Parties.**—Plaintiff, the purchaser of a painting, failed to state a cause of action for unjust enrichment against defendant appraiser, who issued a letter giving an estimate of the painting's worth, where there was a lack of allegations to indicate a relationship between the parties or at least an awareness by defendant of plaintiff's existence. The essential inquiry in an action for unjust enrichment is whether it is against equity and good conscience to permit the defendant to retain what is sought to be recovered. While privity is not required



**EQUITY—Cont'd**

for an unjust enrichment claim, a claim will not be supported if the connection between the parties is too attenuated. Moreover, there were no indicia of an enrichment that was unjust where the pleadings failed to indicate a relationship between the parties that could have caused reliance or inducement. Without further allegations, the mere existence of an appraisal letter that happened to find a path to a prospective purchaser did not render the transaction one of equitable injustice requiring a remedy to balance a wrong. *Mandarin Trading Ltd. v Wildenstein*, 16 NY3d 173.

**EVIDENCE.**

*See, also*, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles.

**DOCUMENTARY EVIDENCE.**

**1. Specific Performance.**—In an action for specific performance of a contract, a photocopy of the contract was admissible as secondary evidence of its contents where there was support in the record for the affirmed finding that the original contract was in the possession or control of defendant and, upon due notice, defendant failed to produce the original. Moreover, as there was support for the undisturbed finding of Supreme Court that defendant frustrated plaintiff's efforts to perform the contract, plaintiff was entitled to the remedy of specific performance. *Clarke v Rodriguez*, 16 NY3d 815.

**EXAMINATION BEFORE TRIAL.**

*See* DISCLOSURE.

**FILIATION PROCEEDINGS.**

*See* CHILDREN BORN OUT OF WEDLOCK.

**FORMER ADJUDICATION.**

*See* JUDGMENTS.

**FORMER JEOPARDY.**

*See* CRIMES (DOUBLE JEOPARDY).

**FRATERNAL ORDERS.**

*See* ASSOCIATIONS.

**FRAUD.****FACTUAL MISREPRESENTATION.**

**1. Nonactionable Opinion.**—Plaintiff, the purchaser of a painting, failed to state a cause of action for fraud against defendant appraiser, since defendant's letter regarding the painting's value constituted nonactionable opinion providing no basis for a fraud claim. The letter, which made no mention of plaintiff, merely disclosed defendant's familiarity with the painting, his belief concerning its value, and an acknowledgment that the letter was addressed to a person whose role in the transaction and relationship to the parties was not stated in the pleadings. Although plaintiff alleged that defendant fraudulently omitted that he had an ownership interest in the painting, the complaint failed to allege that defendant owed a fiduciary duty to plaintiff. By failing to plead the role played by the addressee of the letter or how he was related to the parties, no inference could be drawn that defendant misrepresented his alleged ownership interest or the painting's value, knowing that the addressee would transfer that information to plaintiff. Moreover, rather than alleging that defendant misrepresented its ownership to plaintiff specifically, an insufficient, general allegation was proffered that defendant was required to disclose his interest because he should have known that a hypothetical purchaser would rely on the appraisal letter. *Mandarin Trading Ltd. v Wildenstein*, 16 NY3d 173.

**GAS AND OIL.**

*See, also,* PUBLIC UTILITIES.

**GUARANTEE.**

*See* SURETYSHIP AND GUARANTEE.

**HOTELS.**

*See* INNKEEPERS.

**HUSBAND AND WIFE.**

*See, also,* ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT AND CHILD; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles.

**IMMIGRATION.**

*See* ALIENS.

**INFANTS.**

*See, also,* ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE; PARENT AND CHILD; SCHOOLS; SOCIAL SERVICES, and other specific titles.

**INJUNCTIONS.****PRELIMINARY INJUNCTION.**

1. An order of the Appellate Division, which reversed an order denying a motion for a preliminary injunction and remanded the matter for an appropriate provisional remedy, was modified by remitting to the Appellate Division for the exercise of its discretion. The failure of authorities to issue a violation of the municipal noise control ordinance, by itself, did not preclude plaintiff from establishing that it was likely to succeed on the merits. However, in light of the record, it could not be said that the imposition of a provisional remedy was required as a matter of law. *61 W. 62 Owners Corp. v CGM EMP LLC*, 16 NY3d 822.

**INSURANCE.**

*See, also,* ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

**AGENTS AND BROKERS.**

1. Common-Law Fiduciary Duty — Nondisclosure of Incentive Program with Insurance Companies.—In an action brought by the Attorney General against defendant insurance brokerage firm, the complaint did not plead a viable claim for breach of fiduciary duty based upon the defendant's nondisclosure to its customers of incentive programs it had entered into with insurers, whereby the brokerage firm allegedly "steered" its customers to participating insurers in exchange for cash compensation from those insurers. The rule that one acting as a fiduciary in a particular transaction may not receive, in connection with that transaction, undisclosed compensation from persons with whom the principal's interests may be in conflict did not apply here. Although the brokerage firm was not exempt from the general rule that an agent owes a duty of loyalty to its principal, which prohibited it from giving advice in bad faith, the complaint did not allege that the brokerage firm made any affirmative misrepresentations or that any customer was persuaded to buy inferior, or overpriced, insurance in order to help the brokerage firm earn its incentives. Since a broker is the agent of the insured, but customarily looks for compensation to the insurer and is sometimes the insurer's agent also, the broker has a dual agency status. Given the complexity of an insurance broker's role, such broker is not normally required to disclose to its customers contractual arrangements it has made with insurance companies. An exception to that rule was not warranted here, where the complaint did not allege that the brokerage firm did anything contrary to industry custom. *People v Wells Fargo Ins. Servs., Inc.*, 16 NY3d 166.

**INSURANCE—Cont'd****AUTOMOBILE INSURANCE.**

**2.** Intentional Assault of Innocent Insured was “Accident” within Meaning of Policy.—The insured decedent, a victim of an intentional crime when he was struck by a vehicle intentionally driven into him, was injured as the result of “an accident” within the meaning of the uninsured/underinsured motorist (UM) endorsement and other provisions of the insured’s automobile liability policy, and decedent’s estate was therefore entitled to benefits under those policy provisions. In order to determine whether a particular event was accidental for the purposes of an automobile insurance policy, the occurrence must be viewed from the insured’s perspective to see whether or not it was unexpected, unusual and unforeseen. In addition, consistent with the reasonable expectation of the insured under the policy and the stated purpose of the policy’s UM endorsement to provide coverage against damage caused by uninsured motorists, the intentional assault of an innocent insured is an accident within the meaning of his or her own policy. Here, even though the driver admittedly intended to strike decedent with the vehicle, the occurrence, viewed from the insured’s point of view, was clearly an unexpected or unintended event, and therefore an “accident.” The insured was also entitled to coverage under the policy’s mandatory personal injury protection endorsement and death, dismemberment and loss of sight endorsement; the average insured’s understanding of the term “accident” is unlikely to vary from endorsement to endorsement within the same policy. The occurrence at issue was certainly unexpected and unforeseen from the insured’s perspective, and should be considered an accident subject to coverage. *State Farm Mut. Auto. Ins. Co. v Langan*, 16 NY3d 349.

**DUTY TO DEFEND AND INDEMNIFY.**

**3.** Allocation of Defense Costs — Effect of “Other Insurance” Clause.—In declaratory judgment actions relating to a dispute between the Commercial General Liability (CGL) policy insurer and the Association Directors and Officers Liability (D&O) policy insurer over their respective responsibility for the cost of defending their mutual insured against two underlying actions, the CGL policy insurer had the primary duty to defend the insured to the exclusion of any duty owed by the D&O policy insurer based on the language of the “other insurance” clauses in the policies and notwithstanding that the D&O policy insurer appeared to have an obligation to indemnify the insured for a greater proportion of the causes of action in the underlying actions. An insurer’s duty to defend its insured arises whenever the allegations in a complaint state a cause of action that gives rise to the reasonable possibility of recovery under the policy regardless of whether the complaint asserts additional claims that fall outside the policy’s coverage. In the context of primary and excess insurance, a primary insurer has the primary duty to defend and generally is not entitled to contribution from an excess insurer. Here, where the possibility that the CGL policy covered at least one cause of action in each of the two underlying complaints was conceded, the plain language of the “other insurance” clauses of the policies was determinative. The CGL policy provided that it was primary insurance, except in regard to types of insurance not relevant here. The D&O policy provided that its coverage was excess where any loss, including defense costs, arising from any claim against the insured was insured under any other valid policy. Thus, under the terms of the D&O policy, the CGL policy constituted “other insurance” which would cover the loss arising from the defense of the two underlying actions. *Fieldston Prop. Owners Assn., Inc. v Hermitage Ins. Co., Inc.*, 16 NY3d 257.

**EXCESS COVERAGE.**

**4.** Construction of Policy — “Follow-the-Form” Clause.—The aggregate limit of an excess liability insurance policy issued by defendant insurers was renewed annually during the three-year life of the policy where the policy incorporated by reference, through a “follow-the-form” clause, the terms and conditions of an underlying primary policy that provided an annualized aggregate limit. Although the follow-the-form clause was expressly made subject to declarations in the excess policy that

**INSURANCE—Cont'd**

established a limit of liability of “\$30,000,000. each occurrence and in the aggregate,” the follow-the-form clause prevailed here. Follow-the-form clauses serve the important purpose of allowing an insured that deals with many insurers for the same risk to obtain uniform coverage. It was implausible that an insured with as large and complicated an insurance program as plaintiff would have bargained for policies that differed, as between primary and excess layers, in the time over which policy limits were spread. Further, defendants were unable to answer why, if \$30 million was the most that could be paid on the entire policy, the parties specified a per occurrence limit in an equal amount. Even assuming that there was ambiguity in the text of the excess policy, necessitating consideration of extrinsic evidence, such evidence showed that annualization of limits was the universal custom of the industry and that at least some participants in the transactions at issue assumed that the limits under the excess policy would be annualized. *Union Carbide Corp. v Affiliated FM Ins. Co.*, 16 NY3d 419.

**INTELLECTUAL PROPERTY LAW.**

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION.

**INTERVENTION.**

See PARTIES.

**JUDGMENTS.**

See, also, EXECUTION, and other specific titles.

**SUMMARY JUDGMENT.**

1. Scope of Insurance Policy.—In an insurance coverage dispute arising out of an excess liability insurance policy issued by defendant insurers to plaintiff which had an aggregate limit of liability that renewed annually over each year of the three-year life of the policy, plaintiff failed to meet its burden on summary judgment of establishing that a two-month extension of coverage provided by one of the insurers entitled it to an additional year's policy limits. *Union Carbide Corp. v Affiliated FM Ins. Co.*, 16 NY3d 419.

2. In a personal injury action arising from plaintiff's decedent's fall in defendant hospital, defendants demonstrated their entitlement to summary judgment on the negligence cause of action, since plaintiff failed to adduce sufficient evidence to raise a triable issue of fact on the allegations that a nurse grabbed decedent's arm or caused her to fall to the ground. Additionally, plaintiff's negligent supervision claim was not before the court because neither the cause of action nor its underlying facts were raised in the complaint. *Darrisaw v Strong Mem. Hosp.*, 16 NY3d 729.

**JUDICIAL NOTICE.**

See EVIDENCE.

**LABOR.**

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

**SAFE PLACE TO WORK.**

1. Hoisting of Load by Power-Operated Heavy Equipment — Safety Requirements.—Plaintiff maintenance worker, who was injured while assisting a work crew in the construction of a drainage pipeline when a section of pipe fell on him from the jaws of a hydraulic-operated clamshell bucket attached to the bucket arm of a front-end loader, stated a claim against defendant property owners under Labor Law § 241 (6) predicated on a violation of 12 NYCRR 23-9.4 (e). Although 12 NYCRR 23-9.4, a provision of the Industrial Code which requires loads to be fastened with sturdy wire, proportionate to the weight of the load (12 NYCRR 23-9.4 [e]), only mentions “power shovels and backhoes,” the safety requirements of that section extend to a front-end loader enlisted to do the material handling that is otherwise

**LABOR—Cont'd**

performed by power shovels and backhoes. 12 NYCRR 23-9.4 (e) was drafted to reduce the threat posed by heavy materials falling from buckets, and the same danger that exists for a worker using a power shovel or backhoe with an unsecured load exists for a worker using a front-end loader with an unsecured load. Here, the members of the work crew testified that they normally secured materials in the clamshell bucket by use of a metal chain, and the accident report stated that the injury could have been prevented by using "chain on pipe." Thus, it was apparent that material hoisting with a front-end loader was associated in the trade with the same known risks as other power-operated machinery used in the same manner. The Industrial Code should be interpreted and applied to effectuate its purpose of protecting construction laborers against hazards in the workplace and the preferred rule is to consider the function of a piece of equipment, and not merely the name, when determining the applicability of a regulation. *St. Louis v Town of N. Elba*, 16 NY3d 411.

**LANDLORD AND TENANT.**

*See, also*, NEGLIGENCE (MAINTENANCE OF PREMISES).

**RENT REGULATION.**

**1.** Power of New York City Rent Guidelines Board to Make Distinctions in Rent Increases Allowed within Class of Accommodation.—Respondent New York City Rent Guidelines Board (RGB) had the power to permit minimum dollar rent increases in renewal leases for rent-stabilized apartments that rented for less than \$1,000 a month and had no vacancy for six years or more prior to the date of the renewal lease. In permitting the minimum dollar rent increases the RGB made a distinction between low-rent apartments in which there had been no recent vacancy and other apartments, allowing larger rent increases, in percentage terms, for apartments in the former category. The RGB's purpose in making the percentage increases subject to a dollar floor was to remedy the perceived inequity of having tenants who paid higher rents subsidizing those who paid lower rents even though RGB analysis showed that the median rent-to-income ratio for tenants living in their apartments six years or more was lower than the same ratio for all tenants. The RGB is not forbidden from drawing any distinctions within the apartment "class" of housing accommodations by either Rent Stabilization Law of 1969 (Administrative Code of City of NY) § 26-510 (b) or Emergency Tenant Protection Act of 1974 (L 1974, ch 576, § 4) § 3 (a) (McKinney's Uncons Laws of NY § 8623 [a], as amended). In fact, the RGB has always made some distinctions between apartments, even though apartments are generally considered one "class" of housing accommodation. Moreover, there was no conflict between the RGB's minimum dollar increases, which give some benefit to landlords of low-rent, slow-turnover apartments while their tenants remain in possession, and the state legislation governing the rent increases permitted after an apartment becomes vacant (*see* Administrative Code § 26-511 [c] [5-a]), which gives relief regardless of rent level after a slow-turnover apartment has finally become vacant. The two benefits, even where cumulative, are not logically inconsistent; nor is the state legislation so detailed and comprehensive as to imply that the Legislature has preempted the field. *Matter of Casado v Markus*, 16 NY3d 329.

**2.** Power of New York City Rent Guidelines Board to Make Distinctions in Rent Increases Allowed within Class of Accommodation.—In *Matter of New York State Tenants & Neighbors Coalition, Inc. v Nassau County Rent Guidelines Bd.* (53 AD3d 550 [2d Dept 2008]) the Second Department invalidated an order of the Nassau County Rent Guidelines Board permitting rent increases that would vary with tenants' income. To the extent that the Second Department accepted the argument in that case that there can be no distinction in the rent increases allowed within a "class of accommodation," it was mistaken. *Matter of Casado v Markus*, 16 NY3d 329.

**LIBEL AND SLANDER.**

*See, also*, NEWSPAPERS, and other specific titles.

**LICENSES.**

*See, also*, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles.

**LIMITATION OF ACTIONS.****SIX-YEAR STATUTE OF LIMITATIONS.**

**1. Action by School District against Former School Board Member.**—The six-year limitations period in CPLR 213 (7) was applicable to plaintiff school district's causes of action for negligence, breach of fiduciary duty, declaratory judgment and accounting against defendant, a former member of the school board, arising from the theft by certain district employees of approximately \$11,000,000 in district funds. Causes of action that seek monetary damages for injury to property are generally subject to a three-year statute of limitations (*see* CPLR 214 [4]), but CPLR 213 (7) extends the limitations period to six years for "an action by or on behalf of a corporation against a present or former . . . officer . . . to recover damages for waste or for an injury to property or for an accounting in conjunction therewith." A school district is a "corporation" within the meaning of CPLR 213 (7) and, as such, benefits from the limitations period that applies to certain corporate causes of action. In addition, CPLR 213 (7) covers both equitable and nonequitable causes of action. *Roslyn Union Free School Dist. v Barkan*, 16 NY3d 643.

**LITTORAL RIGHTS.**

*See* ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

**MANDAMUS.**

*See* PROCEEDING AGAINST BODY OR OFFICER.

**MASTER AND SERVANT.**

*See* EMPLOYMENT RELATIONSHIPS.

**MEDICAL REPORTS.**

*See* DISCLOSURE.

**MOTELS.**

*See* INNKEEPERS.

**MOTIONS AND ORDERS.****MOTION TO DISMISS.**

**1. No Waiver of Objection to Filing Error.**—In a medical malpractice lawsuit where plaintiff failed to purchase an index number and file a summons and complaint with the County Clerk, defendant timely interposed affirmative defenses of lack of personal jurisdiction and expiration of the statute of limitations in its amended answer and consequently did not waive its objection to plaintiff's filing error. Pursuant to CPLR 3211 (e), these affirmative defenses are properly raised either in an answer or in a pre-answer motion to dismiss. And, because defendant's jurisdictional objection was not to improper service, defendant was not required to move to dismiss within 60 days of service of its answer. *Goldenberg v Westchester County Health Care Corp.*, 16 NY3d 323.

**MOTOR VEHICLES.****OPERATOR'S LICENSE.**

**1. Conditional License — Unauthorized Operation.**—A driver whose license has been revoked, but who has received a conditional license and failed to comply with its conditions, may be prosecuted only for the traffic infraction of driving for a use not authorized by his license (Vehicle and Traffic Law § 1196 [7] [f]), not for the crime of driving while his license is revoked. Here, defendant's license had been



**MOTOR VEHICLES—Cont'd**

revoked following a conviction for driving while intoxicated and a conditional license had been issued. Defendant was again arrested for driving while intoxicated while operating a vehicle in violation of the restrictions imposed on his conditional license. However, defendant could not be prosecuted for aggravated unlicensed operation of a motor vehicle in the first degree (Vehicle and Traffic Law § 511 [3] [a] [i]) since, at the time in question, he had a valid, unrevoked driver's license, though a conditional one. The legislative history of Vehicle and Traffic Law § 1196 (7) (f) indicates that the Legislature decided not to amend section 511 to make what defendant did a crime, but instead created a more serious traffic infraction by adding paragraph (f) to section 1196 (7). That history reinforces what is the most plausible reading of the statutory language: Vehicle and Traffic Law § 511 does not apply to drivers who fail to meet the conditions on a conditional license. *People v Rivera*, 16 NY3d 654.

**MUNICIPAL CORPORATIONS.**

*See, also*, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles.

**SNOW AND ICE.**

1. Prior Notice of Defective Condition — Negligent Snow Removal.—In an action to recover damages for injuries sustained by plaintiff when she slipped and fell on black ice in a municipal parking lot as the result of defendant municipality's alleged negligent snow removal efforts on the preceding day, defendant's motion for summary judgment was denied, notwithstanding that it had not received written notice of the black ice condition (Village Law § 6-628). Prior written notice statutes were never intended to and ought not exempt a municipality from liability as a matter of law where a municipality's negligence in the maintenance of a municipally owned parking facility triggers the foreseeable development of black ice as soon as the temperature shifts. Further, plaintiff raised triable issues of fact as to whether she fell on ice created by defendant's snow clearance operation and whether defendant exercised its duty of care to maintain the parking lot in a reasonably safe condition by plowing snow high alongside active parking spaces, and in failing to salt or sand the lot on weekends, despite the fact that it remained open seven days a week. *San Marco v Village/Town of Mount Kisco*, 16 NY3d 111.

2. Prior Notice of Defective Condition.—Prior written notice statutes do not exempt a municipality from liability as a matter of law where a municipality's negligence in the maintenance of a municipally owned parking facility triggers the foreseeable development of black ice as soon as the temperature shifts. Generally, a prior written notice statute does not protect a municipality from liability if the locality creates the defect or hazard through an affirmative act of negligence that immediately results in the existence of the dangerous condition. The immediacy requirement, created in the context of "pothole cases," recognizes the difficulty in determining, after the passage of time, whether the initial repair was negligent. The affirmative negligence exception addresses situations where a hazard was foreseeable, insofar as the municipality created it by, for example, digging an unmarked ditch in a road or neglecting to cover a street drain. In view of the public policy rationale for prior written notice statutes, as well as the factual distinctions between each category of case, the immediacy requirement for "pothole cases" should not be extended to cases involving hazards related to negligent snow removal. In the case of black ice that forms from plowing snow in a municipally owned parking facility, a municipality should require no additional notice of the possible danger arising from its method of snow clearance apart from widely available local temperature data. *San Marco v Village/Town of Mount Kisco*, 16 NY3d 111.

**TORT LIABILITY.**

3. Police.—The reckless disregard standard of care in Vehicle and Traffic Law § 1104 (e) only applies when a driver of an authorized emergency vehicle involved in an emergency operation engages in the specific conduct exempted from the rules of

**MUNICIPAL CORPORATIONS—Cont'd**

the road by Vehicle and Traffic Law § 1104 (b); any other injury-causing conduct of such a driver is governed by the principles of ordinary negligence. Section 1104 empowers the driver of an “authorized emergency vehicle,” when involved in an emergency operation, to exercise the rules-of-the-road privileges set forth in subdivision (b) subject to the conditions in subdivision (c). Subdivision (e) specifies that the “foregoing provisions” shall not relieve the driver of an authorized emergency vehicle from the duty to drive safely “nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others.” Thus, subdivision (e) cautions those drivers to operate their vehicles as safely as possible in an emergency and makes them answerable in damages if their reckless exercise of a privilege granted in subdivision (b) causes personal injuries or property damage. If the conduct causing the accident resulting in injuries and damages is not privileged under Vehicle and Traffic Law § 1104 (b), the standard of care for determining civil liability is ordinary negligence. Moreover, the legislative history supports the view that the reckless disregard standard of care of subdivision (e) is limited to accidents or incidents caused by exercise of a privilege identified in subdivision (b). That history confirms that those provisions are interrelated such that subdivision (e) does not create a reckless disregard standard of care independent of the privileges enumerated in subdivision (b). *Kabir v County of Monroe*, 16 NY3d 217.

**NEGLIGENCE.**

*See, also*, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles.

**NEGLIGENT MISREPRESENTATION.**

**1. Lack of Special Relationship.**—Plaintiff, the purchaser of a painting, failed to state a cause of action for negligent misrepresentation against defendant appraiser, who issued a letter providing an estimate of the painting’s worth, where the pleadings lacked allegations showing a special relationship between the parties. A claim for negligent misrepresentation requires the demonstration of the existence of a special relationship between the parties imposing a duty on a defendant to impart correct information to a plaintiff. Although plaintiff generally pleaded that “a special relationship of trust or confidence” existed between the parties, the complaint did not allege whether defendant had any contact with plaintiff, whether plaintiff solicited the appraisal directly from defendant, whether defendant knew the purpose of the appraisal letter, or whether defendant was even aware of plaintiff’s existence. In addition, neither defendant’s art expertise nor the alleged foreseeability that the appraisal was requested by a purchaser for the purpose of buying the painting could create a special relationship without further allegations establishing a relationship between the parties. *Mandarin Trading Ltd. v Wildenstein*, 16 NY3d 173.

**SNOW AND ICE.**

**2. Duty.**—In an action to recover damages for injuries sustained when plaintiff allegedly slipped and fell on a patch of ice, defendant contractor, in contracting to render snow removal services to the property owner, did not assume a duty of care toward third parties who used the property. Under the circumstances, the property owner did not relinquish its duty to inspect and safely maintain the premises. *Lehman v North Greenwich Landscaping, LLC*, 16 NY3d 747.

**NEGOTIABLE INSTRUMENTS.**

*See* BILLS, NOTES AND CHECKS.

**NEWSPAPERS.**

*See, also*, LIBEL AND SLANDER, and other specific titles.

**OPTICIANS.**

*See* LICENSES; PHYSICIANS AND SURGEONS.



**OPTOMETRISTS.**

*See* LICENSES; PHYSICIANS AND SURGEONS.

**PARENT AND CHILD.**

*See, also*, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE; INFANTS; SCHOOLS; SOCIAL SERVICES, and other specific titles.

**SUPPORT.**

**1. Mother Receiving Public Assistance.**—In a child support proceeding, the courts below correctly held that the Commissioner of Social Services was not required to prove that the award of public assistance to the mother was justified. Although the father suggested that he could bear the burden of proving that the mother had undisclosed resources available for support of the child, he failed to make an adequate offer of proof on that issue. *Matter of Commissioner of Social Servs. v Paul C.*, 16 NY3d 846.

**PATERNITY PROCEEDINGS.**

*See* CHILDREN BORN OUT OF WEDLOCK.

**PERPETUITIES.****RULE AGAINST PERPETUITIES.**

**1. Renewal Option Clause in Commercial Lease.**—The rule against perpetuities (EPTL 9-1.1 [b]) does not apply to options to renew leases. Because the rule against perpetuities has not applied to options to renew leases under the American common law, and EPTL 9-1.1 (b) codifies the American common law, it follows that options to renew leases also fall outside of the scope of EPTL 9-1.1 (b). An option to renew, like a purchase option appurtenant to a lease, furthers the policy goal of the rule against remote vesting: to protect the alienability of property. Here, plaintiff landlord sought to void commercial lease renewal options of defendant tenant where it was clear from the lease that so long as the renewal options existed, the tenant would remain a tenant, lawfully in possession of the property, at least on a month-to-month basis. The parties expressly agreed upon nine consecutive renewal options following the initial lease term, exercisable according to particular notice requirements. Those options were not inconsistent with the purpose of the rule against perpetuities because they continued the tenant's possession of the property without interruption, thus encouraging the efficient use of the property. Therefore, there was no sound policy reason to invalidate the tenant's option to renew. *Bleecker St. Tenants Corp. v Bleecker Jones LLC*, 16 NY3d 272.

**PHYSICAL EXAMINATIONS.**

*See* DISCLOSURE.

**PHYSICIANS AND SURGEONS.****MALPRACTICE.**

**1. Wrongful Birth — Legally Cognizable Injury Notwithstanding Provision of Services under Government Programs.**—In a medical malpractice “wrongful birth” action, wherein plaintiffs, the parents of a child born with a neurological disorder resulting in developmental and behavioral deficits, sought damages for the extraordinary expenses involved in his care based on the allegation that they would have taken steps to terminate the pregnancy had defendant medical providers informed them of the abnormal development of the fetus, defendants were not entitled to summary judgment dismissing the complaint, notwithstanding evidence that the child's medical and educational services had been and would continue to be completely covered under governmental programs. The legally cognizable injury in a “wrongful birth” action is the parents' increased financial obligation arising from the extraordinary medical treatment rendered to the child during minority. Here, plaintiffs' expert's life care plan, report and affirmation indicated that “optimal care” for the child required more services than those provided by government

**PHYSICIANS AND SURGEONS—Cont'd**

programs. Thus, a triable factual issue existed as to whether there was a difference between the resources provided by the government programs and the extraordinary medical and other treatment or services necessary for the child during minority. *Foote v Albany Med. Ctr. Hosp.*, 16 NY3d 211.

2. In a medical malpractice action to recover for the pain and suffering arising out of the alleged improper positioning of a hip screw that had been implanted in the infant plaintiff during an operation to alleviate the child's birth defects, defendant doctor and defendant hospital were entitled to summary judgment dismissing the complaint. Plaintiffs' expert, in response to defendants' prima facie showing of entitlement to summary judgment, did not raise an issue of fact as to any departure from good and accepted practice in the doctor's treatment of the infant, and did not demonstrate any causal connection between the doctor's alleged departures from good and accepted practice in placing the hip screw in the infant's hip and the injuries claimed to have been suffered on account of the delayed removal of the hardware. *Rivera v Kleinman*, 16 NY3d 757.

**PODIATRISTS.**

*See* LICENSES; PHYSICIANS AND SURGEONS.

**POLITICAL PARTIES.**

*See* ELECTIONS.

**PRINCIPAL AND AGENT.**

*See, also*, BROKERS; INSURANCE, and other specific titles.

**PROHIBITION.**

*See* PROCEEDING AGAINST BODY OR OFFICER.

**PSYCHIATRISTS.**

*See* LICENSES; PHYSICIANS AND SURGEONS.

**PUBLIC OFFICERS.**

*See, also*, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles.

**PUBLIC UTILITIES.**

PUBLIC SERVICE COMMISSION.

1. Review of Utility Rate Request — Prudence of Utility's Decision.—In a proceeding to review a determination of respondent Public Service Commission (PSC) involving petitioner utility company's request for a rate increase based on certain environmental remediation costs it incurred, the Department of Public Service (DPS) failed to meet its initial burden of rebutting the presumption that the utility's parent company acted prudently when it allocated the proceeds of insurance settlements among its subsidiaries on the basis of the premiums paid by the subsidiaries. The only DPS employee to testify opined that the premiums paid formula was unreasonable because the settlements were not procured in relation to the amount of premiums paid. However, that testimony did not provide a rational basis to infer that the parent acted imprudently or sought to maximize future recovery from utility rates where the record did not reveal what factors prompted the insurers to settle, nor did it definitively exclude as a relevant factor the amount of premiums collected from each subsidiary. In light of the uncertainty of coverage under the policies and the lack of definitive information pertaining to all potential remediation claims, the testimony of the DPS employee was too conclusory to call into question the prudence of the parent's allocation decision or to shift the burden of proof to the utility. In addition, while the parent could have used an environmental report's

**PUBLIC UTILITIES—Cont'd**

estimate of its subsidiary's remediation liabilities in allocating settlement proceeds, there are often multiple ways to reasonably address an issue that arises in a business setting and the fact that it may have been prudent to have used the estimated liabilities method did not, standing alone, make the use of the premiums paid approach imprudent. Inasmuch as there was no evidentiary foundation to infer that the parent may have acted imprudently when it decided to use the premiums paid formula, the PSC's finding of imprudence was erroneous as a matter of law. *Matter of National Fuel Gas Distrib. Corp. v Public Serv. Commn. of the State of N.Y.*, 16 NY3d 360.

**2. Review of Utility Rate Request.**—In reviewing the prudence of a management decision of a utility company seeking permission from the Public Service Commission (PSC) to recoup from ratepayers certain environmental remediation costs it had incurred, the utility's decision is prudent if it acted reasonably based on the information that it had and the circumstances that existed at the time. A decision may be viewed as prudent even though a different course of action would ultimately have been more advantageous to the utility or its ratepayers. Hindsight is irrelevant to a prudence analysis because the utility must make a determination that addresses its business prospectively. Thus, if more than one course of action was reasonable at the time of decision making, the utility may choose among them, and the PSC cannot overturn a prudent decision by a utility because it believes that another course of action would have been preferable. *Matter of National Fuel Gas Distrib. Corp. v Public Serv. Commn. of the State of N.Y.*, 16 NY3d 360.

**RATE MAKING.**

**3. Burden of Proof — Department of Public Service.**—A utility company seeking a rate change has the burden of proving that the requested regulatory action is "just and reasonable"; however, a utility's decision to expend monetary resources is presumed to have been made in the exercise of reasonable managerial judgment. Accordingly, the Department of Public Service bears the initial burden of providing a rational basis to infer that the utility may have acted imprudently before the burden shifts to the utility to demonstrate that its decision was prudent when made. *Matter of National Fuel Gas Distrib. Corp. v Public Serv. Commn. of the State of N.Y.*, 16 NY3d 360.

**RAILROADS.**

*See, also, CARRIERS.*

**REAL ESTATE BROKERS.**

*See BROKERS.*

**REAL PROPERTY.**

*See* ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles.

**RELEASE.****AVOIDANCE.**

**1. Personal Injury Action.**—In a personal injury action, defendant was correctly granted summary judgment dismissing the complaint. In support of his motion for summary judgment, defendant proffered a prima facie case that the action should be barred on the ground of release and plaintiff, in opposition, failed to raise a triable issue of fact that the release should be set aside on the ground of mutual mistake or because the settlement was not fairly and knowingly made. *Bronson v Hansel*, 16 NY3d 850.

**RESCISSION.**

*See* CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles.

**RESIDENCE.**

*See* DOMICILE.

**RES JUDICATA.**

*See* JUDGMENTS.

**RETIREMENT AND PENSION BENEFITS.**

*See* CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles.

**RIPARIAN RIGHTS.**

*See* ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

**SALES.**

*See, also,* CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles.

**SCHOOLS.**

*See, also,* CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles.

**ADMINISTRATIVE PERSONNEL.**

**1. Security Clearance — Prior Criminal Conviction.**—Respondent New York City Department of Education (DOE) failed to comply with the requirements of the Correction Law and thus acted arbitrarily in denying petitioner's application for a security clearance on the ground that she presented an "unreasonable risk" to the safety and welfare of the school community. While Correction Law § 752 prohibits the adverse treatment of an application for a license or employment based on an applicant's prior criminal conviction, an exception arises when the licensing or employment "would involve an unreasonable risk to property or to the safety or welfare of specific individuals or the general public" (Correction Law § 752 [2]). In making a determination as to whether the "unreasonable risk" exception applies, the public agency is required to consider eight factors (Correction Law § 753 [1]). Here, following an interview and an investigation into petitioner's prior criminal conviction for first degree robbery when she was 17 years old, it was plain that the DOE failed to consider all of the factors in making its determination as to whether the "unreasonable risk" exception applied to petitioner's application. One of the considerations noted by the DOE was that petitioner had failed to provide references from previous employers; however, respondent had not requested such references and had it reviewed a letter from her current employer it would have discovered that petitioner had submitted highly favorable employment references when applying for her current position. Furthermore, despite respondent's policy of more closely reviewing first-time applicants, it was plain that, other than her personal statement, the DOE did not consider the documentation that petitioner submitted which evidenced her education, rehabilitation and volunteer work over the 13 years since her conviction. It was difficult to conclude, given the record before the court, that respondent's "closer review" was anything more than a pro forma denial of petitioner's application on the basis of her prior criminal conviction. Such a denial, without consideration of each of the factors listed in Correction Law § 753, was prohibited. *Matter of Acosta v New York City Dept. of Educ.*, 16 NY3d 309.

**STUDENTS.**

**2. Injury to Student.**—In an action seeking damages for injuries sustained by plaintiff's 12-year-old son when he walked in front of the public bus that transported him to and from school into an adjoining lane of traffic and was struck by an automobile, defendant transportation authority, who contracted with the school district to provide students bus transportation, and defendant bus driver were entitled to summary judgment dismissing the complaint against them. A common carrier owes a duty to an alighting passenger to stop at a place where the passenger may safely disembark and leave the area, and once that occurs, no further duty ex-

**SCHOOLS—Cont’d**

ists, even if the disembarking passenger is a school child who attempts to cross a street by passing in front of a stopped bus. Here, the duty owed to plaintiff’s son by defendants terminated once he exited the bus at a safe location. Moreover, the special duty that applies to yellow school buses was not present inasmuch as the rules mandating the use of specific safety equipment (*see* Vehicle and Traffic Law § 375 [20]) and requiring specially-equipped school buses to stop “with red signal lights flashing” until a passenger needing to cross a street does so (*see* Vehicle and Traffic Law § 1174 [b]) did not apply to the public bus that plaintiff’s son rode and defendant bus driver therefore did not have the legal authority or necessary safety equipment to make other vehicles stop while plaintiff’s son crossed the street. *Smith v Sherwood*, 16 NY3d 130.

**SEPARATION.**

*See* HUSBAND AND WIFE.

**SLANDER.**

*See* LIBEL AND SLANDER.

**SOCIAL SERVICES.****MEDICAL ASSISTANCE.**

**1. Community Spouse Income Allowance — “Exceptional Circumstances” Increase Not Available for Everyday Living Expenses.**—Substantial evidence supported respondent Department of Health’s determination denying petitioner community spouse an increase in her Medicaid “minimum monthly maintenance needs allowance” (MMMNA) on the basis of her everyday living expenses. Petitioner did not demonstrate that her “significant financial distress” was caused by “exceptional circumstances” within the meaning of the spousal impoverishment provisions of the Medicaid program. All petitioner attempted to show at the fair hearing was that she could not maintain her existing lifestyle if all of the husband’s income was applied toward his medical care. The Medicare Catastrophic Coverage Act of 1988 (42 USC § 1396r-5), and New York’s conforming legislation and implementing regulations, establish the MMMNA at an amount Congress has deemed a reasonable basic living allowance for an individual to live in the community after his or her spouse residing in a nursing home becomes eligible for Medicaid. If either spouse establishes “exceptional circumstances” resulting in “significant financial distress” then an amount adequate to provide such additional income as is necessary shall be substituted for the MMMNA (42 USC § 1396r-5 [e] [2] [B]; Social Services Law § 366-c [8] [b]; 18 NYCRR 360-4.10 [a] [10]). Since “exceptional” means “out of the ordinary” or “uncommon” or “rare,” an increase in the MMMNA is available only to alleviate true financial hardship that is thrust upon the community spouse by circumstances over which he or she has no control. Here, the everyday living expenses for which petitioner sought an increase in the MMMNA, were ordinary and therefore, by definition, nonexceptional. The spousal impoverishment provisions are not meant to enable the community spouse to maintain his or her prior lifestyle and have the public subsidize it, and do not guarantee a community spouse the same standard of living that he or she enjoyed before the institutionalized spouse entered a nursing home. *Matter of Balzarini v Suffolk County Dept. of Social Servs.*, 16 NY3d 135.

**SPORTING EVENTS.**

*See* THEATRES AND SHOWS.

**STATE.****UNJUST CONVICTION AND IMPRISONMENT ACT.**

**1. Conduct Contributing to Conviction.**—In a claim arising under the Unjust Conviction and Imprisonment Act (Court of Claims Act § 8-b), claimant’s early conversations with the police did not “cause or bring about his own conviction”

**STATE—Cont'd**

(Court of Claims Act § 8-b [4] [b]) and thereby bar recovery under the act. A claimant's conduct bars recovery under the statute only if it was the proximate cause of conviction. Here, while claimant acknowledged that he initiated contact with the police, triggering the questioning that ultimately led to his false confession and conviction, he also alleged that he was "severely mentally impaired," and that the police knew of his mental illness. Moreover, it was the police department's alleged mishandling of the ensuing investigation that ultimately resulted in claimant's conviction. *Warney v State of New York*, 16 NY3d 428.

**2. Motion to Dismiss — Evidentiary Support.**—On a motion to dismiss a claim arising under the Unjust Conviction and Imprisonment Act (Court of Claims Act § 8-b), which provides a mechanism for innocent persons who were unjustly convicted and imprisoned to recover damages, no evidentiary support is necessary to support the allegations of claimant's pleading, except where expressly indicated by the statute. Although a claimant must submit documentary evidence supporting certain facts pursuant to subdivision (3) of section 8-b, the pleading standard articulated in subdivision (4) thereof, requiring that facts be stated in sufficient detail to permit the court to find that claimant is likely to succeed at trial, lacks any analogous requirement. Because the State, in waiving its sovereign immunity from suit, has consented to have its liability determined in accordance with the same rules of law as applied to actions in the Supreme Court, except where superseded by the Court of Claims Act or Uniform Rules of the Court of Claims, the familiar standard governing motions to dismiss in Supreme Court is presumed appropriate. Therefore, the Court of Claims, like other trial courts, should accept the facts as alleged in the claim as true and in evaluating the likelihood of success at trial it should avoid making credibility and factual determinations. Accordingly, a claimant who meets the evidentiary burdens described in subdivision (3) and makes detailed allegations with respect to the elements described in subdivision (4) is entitled to an opportunity to prove the allegations at trial (Court of Claims Act § 8-b [5]). *Warney v State of New York*, 16 NY3d 428.

**3. Motion to Dismiss — Factual and Credibility Determinations.**—The Court of Claims prematurely dismissed a claim arising under the Unjust Conviction and Imprisonment Act (Court of Claims Act § 8-b) at the pleading stage based in large part on factual and credibility determinations that were inappropriate at that stage of the litigation. Although the claimant alleged that his confession was coerced, the court concluded that the evidence did not "indicate" that it was, even though the proper inquiry was whether claimant's allegations, if true, demonstrated a likelihood of success at trial, and not whether they were supported by convincing evidence. Assuming the truth of claimant's allegations, as must be done, the police used "coercive tactics" and threats to induce his confession and claimant thus adequately pleaded that he was coerced into adopting the false confession. The Court of Claims also found that claimant made an incriminating statement that constituted conduct contributing to his conviction under the act although he never admitted to making that statement. Accepting claimant's allegations as true, it is presumed that he never made the statement in question. *Warney v State of New York*, 16 NY3d 428.

**STATUTE OF FRAUDS.**

*See* CONTRACTS; FRAUDS, STATUTE OF.

**STATUTE OF LIMITATIONS.**

*See* LIMITATION OF ACTIONS.

**SUBPOENA.**

*See* WITNESSES.

**SUMMONS.**

*See* PROCESS.

**SYNAGOGUES.**

*See* RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

**TAXATION.**

## EXEMPTIONS.

1. Religious Organization.—An order of the Appellate Division, which affirmed an order granting summary judgment striking petitioner's real property from respondent Town's tax assessment rolls, was affirmed. Because petitioner was a religious organization utilizing the subject property to further the religious purposes for which it was organized, it was entitled to a real property tax exemption for the property (*see* RPTL 420-a [1] [a]). The respondent Town did not demonstrate an existing zoning violation so as to bar the exemption. *Matter of Eternal Flame of Hope Ministries, Inc. v King*, 16 NY3d 778.

**TOWNS.**

*See* MUNICIPAL CORPORATIONS.

**UNFAIR COMPETITION.**

*See* MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles.

**VENDOR AND PURCHASER.**

*See, also*, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles.

**VETERANS.**

*See* CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION.

**VILLAGES.**

*See* MUNICIPAL CORPORATIONS.

**WELFARE.**

*See* SOCIAL SERVICES.

**WILLS.**

## EXECUTION.

1. Validity.—An order of the Appellate Division, which affirmed a decree admitting a document to probate as the last will and testament of decedent, was affirmed. When viewed in its entirety, the testimony from the attesting witness was insufficient to create a triable issue of fact as to whether decedent's will was duly executed. *Matter of Halpern*, 16 NY3d 777.

**WITNESSES.**

*See, also*, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles.

## EXPERT WITNESS.

1. Religious Belief of Witness.—In a proceeding seeking the civil management of a detained sex offender pursuant to article 10 of the Mental Hygiene Law, a new trial was required where the State's attorney attacked the offender's expert's credibility on the basis of his religious beliefs and affiliation. Any attempt to discredit or otherwise penalize a witness because of his religious beliefs is improper, because those factors are irrelevant to the issue of credibility. Except under extraordinary circumstances, such questioning must be deemed sufficiently prejudicial to require a new trial, at least where the trial judge fails to give a prompt and clear corrective instruction. Here, the trial boiled down to a battle of the experts in which the offender's expert was portrayed as unreliable because he adhered to an out-of-the-mainstream religion and it was impossible to know whether or to what extent the jury's assessment of the expert's testimony was prejudiced as a result. Moreover, the trial judge did not handle the episode promptly and forcefully; rather, he overruled objections to the improper cross-examination. Additionally, the judge failed to

**WITNESSES—Cont'd**

sustain an objection to the State's attorney's admonition to the jurors that they would be at fault if the offender molested another child. Instead of striking and directing the jurors to disregard this inflammatory commentary, he merely reminded them that argument is not testimony. *Matter of State of New York v Andrew O.*, 16 NY3d 841.

**ZONING.**

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- 214 (4) (Actions to be commenced within three years; injury to property). *Roslyn Union Free School Dist. v Barkan*, 16 NY3d 643.
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- Art VI, § 3 (b) (Jurisdiction of Court of Appeals). *Rose v Heidorf*, 16 NY3d 733; *Matter of Richards v Cuomo*, 16 NY3d 739; *People ex rel. DeVeaux v Sawyer*, 16 NY3d 873.
- Art VI, § 3 (b) (2) (Jurisdiction of Court of Appeals). *Matter of Richards v Cuomo*, 16 NY3d 739.
- Art VI, § 3 (b) (7) (Jurisdiction of Court of Appeals). *Kelsey v McNally*, 16 NY3d 853.
- Art VI, § 5 (b) (Power of appellate courts upon appeal from judgment or order; transfer of appeals taken to improper appellate court). *Matter of Richards v Cuomo*, 16 NY3d 739.

**PENAL LAW.**

- § 15.00 (1) (Culpability; definitions of terms; “act” defined). *People v McKnight*, 16 NY3d 43.
- § 35.05 (2) (Justification; generally; imminent public or private injury). *People v Rodriguez*, 16 NY3d 341.
- § 70.25 (2) (Concurrent and consecutive terms of imprisonment; when concurrent sentences are required). *People v Frazier*, 16 NY3d 36; *People v McKnight*, 16 NY3d 43; *People v Battles*, 16 NY3d 54.
- § 70.30 (Calculation of terms of imprisonment). *Matter of State of New York v Rashid*, 16 NY3d 1.
- § 110.00 (Attempt to commit crime). *People v McKnight*, 16 NY3d 43; *People v Aponte*, 16 NY3d 106.
- § 120.50 (3) (Stalking, third degree; course of conduct). *People v Aponte*, 16 NY3d 106.
- § 125.25 (1) (Murder, second degree). *People v McKnight*, 16 NY3d 43.
- § 130.00 (3) (Sex offenses; “sexual contact” defined). *People v Alonzo*, 16 NY3d 267.
- § 130.65 (1) (Sexual abuse, first degree; forcible compulsion). *People v Alonzo*, 16 NY3d 267.
- § 130.65 (2) (Sexual abuse, first degree; physically helpless). *People v Cecunjanin*, 16 NY3d 488.
- § 140.00 (3) (Criminal trespass and burglary; “dwelling” defined). *People v Cummings*, 16 NY3d 784.
- § 140.25 (2) (Burglary, second degree). *People v Frazier*, 16 NY3d 36.
- § 155.35 (1) (Grand larceny, third degree). *People v Frazier*, 16 NY3d 36.
- § 170.25 (Criminal possession of forged instrument, second degree). *People v Muhammad*, 16 NY3d 184.
- § 170.27 (Criminal possession of forged instrument, second degree; presumption). *People v Muhammad*, 16 NY3d 184.
- § 176.05 (1) (Insurance fraud; “fraudulent insurance act” defined). *People v Boothe*, 16 NY3d 195.
- § 176.05 (2) (Insurance fraud; “fraudulent health care insurance act” defined). *People v Boothe*, 16 NY3d 195.
- § 176.30 (Insurance fraud, first degree). *People v Boothe*, 16 NY3d 195.
- § 205.00 (1) (a) (Escape and other offenses relating to custody; “detention facility” defined; person charged with or convicted of offense). *Matter of Dylan C.*, 16 NY3d 614.
- § 205.00 (1) (b) (Escape and other offenses relating to custody; “detention facility” defined; person charged with being or adjudicated youthful offender, person in need of supervision or juvenile delinquent). *Matter of Dylan C.*, 16 NY3d 614.
- § 205.10 (1) (Escape, second degree; escape from detention facility). *Matter of Dylan C.*, 16 NY3d 614.
- § 240.20 (Disorderly conduct). *People v Weaver*, 16 NY3d 123.
- § 265.01 (1) (Criminal possession of weapon, fourth degree). *People v Brannon*, 16 NY3d 596.

**PUBLIC AUTHORITIES LAW.**

- § 3850-a (Legislative declaration of need for state intervention). *Matter of Meegan v Brown*, 16 NY3d 395.

**PUBLIC AUTHORITIES LAW—Continued**

§ 3858 (2) (c) (i) (Buffalo Fiscal Stability Authority; control period; wage and/or hiring freeze; suspension of all increases). *Matter of Meegan v Brown*, 16 NY3d 395.

§ 3858 (2) (c) (iii) (Buffalo Fiscal Stability Authority; control period; wage and/or hiring freeze; no retroactive pay adjustments shall accrue). *Matter of Meegan v Brown*, 16 NY3d 395.

**REAL PROPERTY TAX LAW.**

§ 420-a (1) (a) (Exemptions; nonprofit organizations; mandatory class; religious organization). *Matter of Eternal Flame of Hope Ministries, Inc. v King*, 16 NY3d 778.

**REGULATIONS OF DEPARTMENT OF SOCIAL SERVICES.**

18 NYCRR 360-4.10 (a) (10) (Medical assistance; financial eligibility; treatment of income and resources of institutionalized spouses; significant financial distress). *Matter of Balzarini v Suffolk County Dept. of Social Servs.*, 16 NY3d 135.

**RULES OF COURT OF APPEALS.**

22 NYCRR 500.22 (b) (2) (Motions for permission to appeal in civil cases). *Batshever v Jafar*, 16 NY3d 731.

22 NYCRR 500.24 (b) (Motions for reargument of appeals, motions and decisions on certified questions). *Larabee v Governor of the State of N.Y.*, 16 NY3d 736.

**SOCIAL SERVICES LAW.**

§ 366-c (8) (b) (Medical assistance; treatment of income and resources of institutionalized persons; increase in minimum monthly maintenance needs allowance based upon exceptional circumstances). *Matter of Balzarini v Suffolk County Dept. of Social Servs.*, 16 NY3d 135.

**STATE ADMINISTRATIVE PROCEDURE ACT.**

§ 306 (1) (Adjudicatory proceedings; substantial evidence). *Matter of Ridge Rd. Fire Dist. v Schiano*, 16 NY3d 494.

**STATE INDUSTRIAL CODE.**

12 NYCRR 23-9.4 (e) (Power shovels and backhoes used for material handling; attachment of load). *St. Louis v Town of N. Elba*, 16 NY3d 411.

**UNITED STATES CODE.**

42 USC § 1396r-5 (Medical assistance; treatment of income and resources for certain institutionalized spouses). *Matter of Balzarini v Suffolk County Dept. of Social Servs.*, 16 NY3d 135.

42 USC § 1396r-5 (e) (2) (B) (Medical assistance; treatment of income and resources for certain institutionalized spouses; revision of minimum monthly maintenance needs allowance). *Matter of Balzarini v Suffolk County Dept. of Social Servs.*, 16 NY3d 135.

**UNITED STATES CONSTITUTION.**

6th Amend (Jury trials for crimes; right to confront witnesses). *People v Montes*, 16 NY3d 250.

**VEHICLE AND TRAFFIC LAW.**

§ 375 (20) (Equipment; omnibus used exclusively to transport pupils to and from school). *Smith v Sherwood*, 16 NY3d 130.

§ 511 (3) (a) (i) (Aggravated unlicensed operation of motor vehicle, first degree; operation while under influence of alcohol). *People v Rivera*, 16 NY3d 654.

§ 1104 (b) (Authorized emergency vehicles; disregard of certain road rules by operator). *Kabir v County of Monroe*, 16 NY3d 217.

§ 1104 (e) (Authorized emergency vehicles; operator to drive safely). *Kabir v County of Monroe*, 16 NY3d 217.

§ 1174 (b) (Overtaking and passing school bus; passengers crossing in front of bus). *Smith v Sherwood*, 16 NY3d 130.

§ 1196 (7) (f) (Alcohol and drug rehabilitation program; conditional license; penalty for unauthorized use). *People v Rivera*, 16 NY3d 654.

**VILLAGE LAW.**

§ 6-628 (Liability of village in certain actions; prior written notice of defect). *San Marco v Village/Town of Mount Kisco*, 16 NY3d 111.

**NEW YORK REPORTS  
CUMULATIVE ERRATA TABLE**

- |                                                                                                              |                                                                                          |
|--------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|
| 1. <b>33 NY2d 846</b> (Petrie v Chase Manhattan Bank)                                                        | Change defendant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr.       |
| 2. <b>35 NY2d 179</b> (Matter of Lutfy v Gangemi)                                                            | Change plaintiff's name in title from Edward R. Luffy to Edward R. Lutfy.                |
| 3. <b>45 NY2d 233</b> (Simonds v Simonds)                                                                    | At 45 NY2d 241, line 3 of last full paragraph, change contructive to constructive.       |
| 4. <b>53 NY2d 499</b> (Weinberg v D-M Rest. Corp.)                                                           | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 5. <b>54 NY2d 137</b> (People v Baldi)                                                                       | At 53 NY2d 147, lines 3 and 4, change meaninful to meaningful.                           |
| 6. <b>66 NY2d 667</b> (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.)                              | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713.                |
| 7. <b>69 NY2d 601</b> (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table.        |
| 8. <b>75 NY2d 927</b> (Matter of David T.)                                                                   | At 75 NY2d 929, line 20, change effect to defect.                                        |
| 9. <b>77 NY2d 806</b> (Dowd v Ahr)                                                                           | Change denied to granted in the result column of the motion for leave to appeal table.   |
| 10. <b>80 NY2d 1030</b> (People v Sallito)                                                                   | Change the title entry from Salito to Sallito.                                           |

11. **85 NY2d 139** (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) At 85 NY2d 146, second paragraph, line 13, change lead to led.
12. **88 NY2d 41** (Town of Orangetown v Magee) At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733.
13. **88 NY2d 400** (People v Huston) At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c].
14. **93 NY2d 382** (BDO Seidman v Hirshberg) At 93 NY2d 391, line 25, change former employer to former employee.
15. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
16. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).
17. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.
18. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).
19. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.
20. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.



## Errata

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|--------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------|
| 21. <b>7 NY3d 703</b> (Matter of Park v Kapica)                          | Change the page number of the reported below citation from 802 to 801.                               |
| 22. <b>8 NY3d 944</b> (People v Charriez)                                | In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U). |
| 23. <b>9 NY3d 923</b> (People v Jacobs)                                  | In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868.                           |
| 24. <b>11 NY3d 875</b> (People v Ford)                                   | On line 5 of the Summary, change Bronx County to New York County.                                    |
| 25. <b>13 NY3d 511</b> (Matter of Goldstein v New York Urban Dev. Corp.) | At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition].     |